

Chapter 6 - BUSINESS REGULATION

Footnotes:

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Cross reference— *Occupational license taxes, § 24-101 et seq.*

ARTICLE I. - ADMINISTRATIVE PROVISIONS

Footnotes:

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Cross reference— *Administration, Ch. 2.*

DIVISION 1. - GENERAL PROVISIONS; ADMINISTRATIVE AUTHORITY

Sec. 6-1. - Title.

This chapter shall be known and may be cited as the "City of Tampa Business Regulation Ordinance."

(Ord. No. 89-227, § 1(7-1), 9-28-89)

Sec. 6-2. - Purpose.

The purpose of this chapter is to protect the health, safety and welfare of the general public through the administration and regulation of certain businesses.

(Ord. No. 89-227, § 1(7-2), 9-28-89)

Sec. 6-3. - Applicability.

Unless otherwise expressly exempted by law, the provisions of this chapter shall apply to all regulated businesses within the corporate limits of the city.

(Ord. No. 89-227, § 1(7-3), 9-28-89)

Sec. 6-4. - Definitions.

For the purposes of this chapter, the following words are defined:

Amusement arcade means a business establishment, open to the general public, whose primary business is the use by the general public of coin- or token-operated pinball machines, video games or other similar amusement machines.

Blood donor center means a business which meets the definition of a blood donor center in the city zoning ordinance.

Business means any commercial activity in which any goods, services or real property are offered for sale.

Consideration means any money, fee, charge or other benefit.

Convicted or *conviction* means the finding of guilt for a violation of a municipal or county ordinance or state or federal law, adjudication withheld on such a finding of guilt, an adjudication of guilt on any plea or nolo contendere or the forfeiture of a bond or bail when charged with a violation of a municipal or county ordinance or state or federal law.

Corner or *street corner* means the sidewalk where two (2) or more platted or public streets meet, overlap, intersect or bisect, or unpaved right-of-way area serving as a sidewalk, but not including the street, extending twenty-five (25) feet in either direction.

Employee means any person, other than a bath technician, who renders any service to a patron in connection with the operation of a bathhouse and who receives compensation directly or indirectly from the operation or owner of the bathhouse and/or its patrons.

Handbill means any handbill, circular, notice, booklet, card, pamphlet or other printed or written paper or any sample product, any portion of which advertises any commodity, food, article, merchandise, business, attraction, entertainment, meeting, person or thing except:

- (1) Any handbill which has no commercial significance whatsoever, i.e., exclusively religious or political materials;
- (2) Handbills or materials delivered by U.S. Mail or in newspapers; or
- (3) Handbills distributed for the purpose of announcing community meetings which may contain up to twenty-five (25) percent commercial advertising providing the handbill is distributed on the authorization of the sponsor of said meeting and all proceeds of the advertising are used to subsidize the cost of production and distribution of the handbills.

Off-premises canvassing means the distribution of information by a person for purposes of soliciting business or customers in the Ybor City Historic District on publicly owned property or public right-of-way in connection with a business.

OPC means off-premises canvassing.

Patron means any person who receives a bath at a bathhouse, as applicable, under such circumstances that it is reasonably expected he will pay money or give other consideration therefor.

Permit holder means the person to whom a permit has been issued authorizing performance of a specific activity for which a permit is required by this chapter.

Primary business means, at a given premises, that which is provided the majority of floor space within the confines of the establishment or which provides a majority of the gross revenue of the establishment.

Regulated business means a secondhand dealer and secondary metals recycler as defined by F.S. Ch. 538, as now enacted or hereafter amended; swap lot; swap meet; flea market; amusement arcade; temporary help agency; blood donor center; skating rink; business or individual advertising on the private property of another by means of handbills, and any adult use as defined in the zoning code.

Sidewalk means that portion of street adjacent to the curblines or the lateral lines of a roadway and the adjacent property lines, intended for use of pedestrians.

Skating rink means a business establishment, open to the general public, whose primary business is the use for consideration thereof of an area for ice or roller skating.

Street means a dedicated and accepted right-of-way (including sidewalks) maintained by the city, county or the state and providing access to adjacent property, excluding alleys; or a dedicated right-of-way maintained by a private entity.

Temporary help agency means any business, corporation, or partnership of any kind which, for a monetary consideration, is primarily engaged in supplying workers from a pool of potential employees located on its premises and directly dispatches these employees to another corporation, partnership or business of any kind or to a private individual, on a temporary basis, whether the employees are to work full time or part time; provided that this definition shall not apply to agencies which provide professional employees, who are licensed and regulated by the state, to other businesses on a temporary basis.

Ybor City Historic District for purposes of this chapter means the area as defined in Chapter 27 of the City Code.

(Ord. No. 89-227, § 1(7-4), 9-28-89; Ord. No. 97-186, §§ 1, 2, 9-18-97; Ord. No. 97-213, §§ 2, 3, 10-16-97; Ord. No. 98-66, § 1, 3-26-98; Ord. No. 2000-258, § 1, 9-28-00; Ord. No. 2018-1, § 1, 1-11-18)

Cross reference— Definitions and rules of construction generally, § 1-2.

Sec. 6-5. - Administrative authority.

The provisions of this chapter shall be administered and enforced by the official or his designee.

(Ord. No. 89-227, § 1(7-5), 9-28-89; Ord. No. 90-179, § 1, 7-19-90)

Cross reference— Administrative authority of the official, § 1-13; delegation of administrative authority, § 1-14.

Sec. 6-6. - Inspections.

All businesses regulated by this chapter shall be subject to inspection by the city. The official may require documents, records or information necessary to effect approval of the conduct of such businesses.

(Ord. No. 89-227, § 1(7-6), 9-28-89)

Cross reference— Inspections, § 1-27.

Secs. 6-7—6-25. - Reserved.

DIVISION 2. - APPLICATIONS, DOCUMENTS AND PERMITS

Secs. 6-26—6-28. - Reserved.

Editor's note— Section 2 of Ord. No. 90-179, adopted July 19, 1990, repealed §§ 6-26—6-28, requiring a business permit, derived from Ord. No. 89-227, § 1(7-21)—(7-23), adopted Sept. 28, 1989.

Sec. 6-29. - Business operating permit—When required.

It is unlawful for any person to engage in a regulated business without a current business operating permit issued by the city. Each day of operation without such permit shall constitute a separate offense. Each location requires a separate business operating permit.

(Ord. No. 89-227, § 1(7-24), 9-28-89; Ord. No. 90-179, § 3, 7-19-90)

Sec. 6-30. - Same—Application; submission requirements.

Application for a business operating permit shall be made in writing on a form to be provided by the official. Such application shall include the following:

- (1) Proof that a zoning compliance permit has been issued pursuant to the zoning code;
- (2) Proof that a permit for change of use, pursuant to the building and construction regulations chapter, if applicable, has been issued;
- (3) Proof that an occupational license tax, if applicable, has been paid;
- (4) Payment of the business operating permit application fee; and
- (5) A certified statement, signed by the applicant, that all information submitted to the official is true and correct.

(Ord. No. 89-227, § 1(7-25), 9-28-89; Ord. No. 90-179, § 3, 7-19-90)

Sec. 6-31. - Same—Issuance; denial.

- (a) The official shall approve a business operating permit application and issue a business operating permit, or deny such application, within thirty (30) days of the receipt of the application and all required submittals as provided in section 6-30.
- (b) An application for a business operating permit shall be denied if:
 - (1) The applicant has failed to comply with any of the submission requirements contained in section 6-30;
 - (2) The applicant, owner or agent or employee of the regulated business has been convicted in any jurisdiction of the violation of an ordinance or law relative to a business similar or identical to that for which a permit is being sought;
 - (3) The business, as the applicant represents how it will be conducted, violates or will violate any applicable ordinance, statute or regulation;
 - (4) A business operating permit for the same regulated business, and owned by same person, has been revoked at the same or another location; or
 - (5) Any information submitted by the applicant is found to be incorrect.
- (c) In the event an application for a business operating permit is denied by the official pursuant to this section, the applicant may appeal such denial by appropriate action to an appropriate civil court.

(Ord. No. 89-227, § 1(7-26), 9-28-89; Ord. No. 90-179, § 3, 7-19-90)

Sec. 6-32. - Same—Failure to obtain.

Any person who shall commence operation of a regulated business before obtaining a business operating permit therefor shall pay double the application fee prescribed for that business. The payment of the double fee shall not preclude nor be deemed a substitute for prosecution as provided for elsewhere in this Code.

(Ord. No. 89-227, § 1(7-27), 9-28-89)

Sec. 6-33. - Same—Not transferable.

A business operating permit is not transferable from one (1) location to another, from one (1) business type to another, from one (1) owner to another, or from one (1) ownership type (i.e. proprietorship, partnership, corporation) to another. Under any of the above circumstances, application must be made as if for a new business operating permit.

(Ord. No. 89-227, § 1(7-28), 9-28-89)

Sec. 6-34. - Same—Expiration.

Any business operating permit issued by the city in the previous twelve (12) months shall expire on September thirtieth of each year. Applications for renewal shall be processed by the official upon payment of the required fee.

(Ord. No. 89-227, § 1(7-29), 9-28-89)

Sec. 6-35. - Same—Termination.

Any change of ownership or management shall terminate the business operating permit and shall require a new application and a new business operating permit and conformance with all the requirements of this division pertaining to an original business operating permit.

(Ord. No. 89-227, § 1(7-30), 9-28-89)

Sec. 6-36. - Same—Issuance does not set aside other requirements.

The issuance of a business operating permit does not set aside, waive or replace any other provisions of this Code or any other laws, ordinances, statutes or regulations of any governmental body or agency having lawful jurisdiction.

(Ord. No. 89-227, § 1(7-31), 9-28-89)

Sec. 6-37. - Fees—Authority to establish.

The city council shall have the authority to set fees by resolution.

(Ord. No. 89-227, § 1(7-32), 9-28-89)

Sec. 6-38. - Same—Types enumerated.

The following fees shall be established:

- (1) Business operating permit application;
- (2) Business operating permit renewal application.

(Ord. No. 89-227, § 1(7-33), 9-28-89)

Sec. 6-39. - Posting of permit.

Each and every owner or operator required by this chapter to be permitted shall post and at all times display the business operating permit in its business establishment.

(Ord. No. 89-227, § 1(7-34), 9-28-89)

Secs. 6-40—6-65. - Reserved.

Editor's note— Ord. No. 2018-1, § 2, adopted January 11, 2018, repealed §§ 6-40—6-46, which pertained to bath technician's permit required; application; issuance; denial; term; report of employment changes; transfer and derived from Ord. No. 89-227, § 1(7-35—7-41), 9-28-89.

ARTICLE II. - SANCTIONS AND APPEALS

DIVISION 1. - GENERALLY

Secs. 6-66—6-75. - Reserved.

DIVISION 2. - VIOLATIONS

Sec. 6-76. - Grounds for permit suspension or revocation.

The official may suspend for a period of time or permanently revoke a business operating permit if:

- (1) The business operating permit was issued by mistake of law or fact;
- (2) The business operating permit was issued based on incorrect information given in the application therefor;
- (3) There has been a violation of any of the rules, regulations, ordinances or laws regulating or applying to the permitted business or premises;
- (4) The permittee fails to pay the business license tax prescribed in this Code; or
- (5) The permittee or owner, agent or employee of the business has a conviction involving an ordinance or law related to the conduct of the permitted business.

(Ord. No. 89-227, § 1(7-51), 9-28-89)

Sec. 6-77. - Hearing; notification.

- (a) Upon reasonable suspicion of the existence of one (1) or more grounds for revocation as set out in section 6-76, the official shall set a time and place for an administrative hearing to decide the matter.
- (b) The city shall issue and serve upon the permittee written notice of such administrative hearing, giving no less than ten (10) days' advance notice thereof.
- (c)

The official shall conduct the hearing at the time and place specified in the notice and make a determination pertaining to the disposition of the business operating permit in question. The official may specify terms and conditions for the continued operation of the business or may suspend or revoke the operating permit.

- (d) The decision of the official is final, and it is unlawful for the permittee or any other person to continue operation of the subject business if the business operating permit has been revoked or to operate the business during a period of suspension.

(Ord. No. 89-227, § 1(7-52), 9-28-89)

Secs. 6-78—6-105. - Reserved.

ARTICLE III. - SPECIFIC REGULATIONS AND REQUIREMENTS

DIVISION 1. - GENERALLY

Secs. 6-106—6-125. - Reserved.

DIVISION 2. - TEMPORARY HELP AGENCIES

Sec. 6-126. - Minors prohibited.

It is unlawful for persons under eighteen (18) years of age to be present on the premises of a temporary help agency.

(Ord. No. 89-227, § 1(7-71), 9-28-89)

Secs. 6-127—6-140. - Reserved.

DIVISION 3. - ADULT USES—SPECIAL CABARETS, MASSAGE PARLORS, ESCORT SERVICES, LIVE MODEL STUDIOS, ADULT BOOKSTORES

Sec. 6-141. - Certification required for issuance of permit.

In order to obtain or renew a business operating permit for an adult use defined in the city zoning ordinance, the applicant must certify by sworn statement that the applicant:

- (1)

Is not less than eighteen (18) years of age or, if the applicant is a corporation, that all officers of the corporation are not less than eighteen (18) years of age;

- (2) Has not been convicted within the last ten (10) years in this state or any other state or the United States of any offense designated as a felony by such state or the United States committed while engaged in a business similar to that for which a permit is sought or which directly relates to the applicant's fitness to engage in the business for which a permit is sought; if the applicant is a corporation, that no officer of that corporation has been convicted of such crime within such period;
- (3) Has not been convicted in the last ten (10) years in this state or any other state or the United States of soliciting for prostitution, pandering, letting premises for prostitution, keeping a disorderly place, dealing in or possession of drugs, dealing in or possessing controlled substances or of any other crime of a similar nature however designated; if the applicant is a corporation, that no officer of that corporation has been convicted of such a crime within such period.

(Ord. No. 89-227, § 1(7-81), 9-28-89)

Secs. 6-142—6-155. - Reserved.

DIVISION 4. - BATHHOUSES

Footnotes:

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Editor's note— Ord. No. 2018-1, §§ 4—24, adopted January 11, 2018, amended division 4 in its entirety to read as herein set out. Former division 4, §§ 6-156—6-160, pertained to similar subject matter, and derived from Ord. No. 89-227, § 1(7-91—7-95), 9-28-89.

State Law reference— *Massage practice, F.S. Ch. 480; power of municipality to regulate massage, F.S. § 480.052; public swimming and bathing facilities, F.S. Ch. 514.*

Sec. 6-156. - Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Apply, applies, applying, applied or application means to place or put upon another individual, with or without direct physical contact, by way of physically touching, spraying, or using a sponge, cloth, brush, or other device.

Bath means any intentional washing, rinsing, wiping, or scrubbing of the structure of the living human torso through the application of water or other liquid for the sole purpose of cleansing.

Bathhouse means any establishment in the City of Tampa having a business where a bath is applied by a bath technician, or where any establishment engages in or carries on or permits to be engaged in or carried on any portion of the applying of a bath to another individual, provided that nothing contained in this definition shall be construed to include a legally operating hospital, nursing home, assisted/congregate living facility, home health care, medical clinic, physician, surgeon, physical therapist, chiropractor, osteopath, naturopath, or podiatrist.

Bath technician means any individual who for any consideration whatsoever applies a bath to another individual at a bathhouse.

Code enforcement officer means any designated employee or agent of the City of Tampa whose duty it is to enforce codes and ordinances enacted by the City of Tampa and includes, but is not limited to, code inspectors and law enforcement officers.

Convicted of or conviction means a guilty verdict or the finding of guilt by a judge or jury, or a guilty or nolo contendere plea by a defendant, regardless of adjudication of guilt in any state or federal court; and any finding of a violation or guilt, or an admission or plea to, including the payment of, any violation of local law or ordinance. The fact that a conviction is being appealed has no effect on the disqualifications of the applicant.

Employee means any individual who is being paid, tipped, or receiving a benefit for services provided as part of the duties or employment for the bathhouse, and shall include full-time and part-time employees, staff, temporary staff, new hires, and third party contractors or employees. The term shall not include third party contractors who perform property maintenance as their primary function.

Individual means a human being.

Operating activities means those business activities related to the sale of goods or services.

Operator means the business owner, permittee, proprietor, lessee, manager, assistant manager, or appointed agent of a bathhouse, and any individual who has responsibility over the operation or control of the business to include any individual who has ownership in or is a managing member of any corporation, limited liability company, or partnership which owns the property.

PDD means the same as defined under chapter 27.

Property owner means any person who owns the property, to include any individual who has ownership in or is a managing member of any corporation, limited liability company, or partnership, which owns the property.

Sexual or genital parts means the genitals, pubic area, buttocks, anus or perineum of any person, the vulva or, with regard to the breast of a female, that portion of the breast below the top of the nipple or the pigmented portion adjacent thereto, otherwise defined as areola.

Torso means the trunk of the human body or the main part of the human body not including the head, arms, and legs, but includes the pelvic region and buttocks.

(Ord. No. 2018-1, § 4, 1-11-18)

Sec. 6-157. - Administrative and enforcement authority.

This division shall be administered by the PDD with the assistance of the Tampa Police Department and the department of neighborhood empowerment. Enforcement of this division shall be the joint responsibility of the PDD, Tampa Police Department, and the department of neighborhood empowerment. Administrative enforcement of this division shall be by the PDD. Violations brought under the authority of section 1-6, punishable by imprisonment and/or a fine of up to five hundred dollars (\$500.00), are to be enforced by the Tampa Police Department. Violations brought in front of a code enforcement board or magistrate shall be enforced by the department of neighborhood empowerment.

(Ord. No. 2018-1, § 5, 1-11-18)

Sec. 6-158. - Fees.

The applicant shall pay applicable, non-refundable, administrative fees in the amounts set by city council resolution. Such fees may include:

- (a) Permit application fee;
- (b) Background check(s) fee;
- (c) Bathhouse permit placard fee;
- (d) Bath technician permit card fee;
- (e) Fee for replacement of lost/damaged (c) or (d).

(Ord. No. 2018-1, § 6, 1-11-18)

Sec. 6-159. - General permit requirements.

- (a) *Permits required.* A separate permit shall be required for the following:
 - (1) Any bathhouse location; and
 - (2) Any bathhouse technician.
- (b)

Permit types; application requirements. All applications for permits required under this division shall be obtained from the PDD, who shall administer the permitting process with the assistance of the Tampa Police Department and the department of neighborhood empowerment, as needed. Any application that does not include the minimum submittal requirements of this section, and does not pay the required fee, as set forth in section 6-158, shall not be accepted by the city.

(1) *General application requirements.*

- a. An application for any permit set forth in this division shall be completed and signed by the individual required to be permitted.
- b. An application for a permit shall be notarized on a form provided by the PDD.
- c. All applications shall be required to pay an application fee prior to the processing or consideration of the application by the PDD.
- d. Proof of required training. Applicants (bathhouse owners, bathhouse operators, bathhouse managers, and bath technicians) are required to submit proof of completion of a human trafficking and prostitution awareness course. Such course shall cover the following, as approved by the PDD:
 - i. An educational component covering understanding and recognizing human trafficking and prostitution;
 - ii. Safety and health concerns of human trafficking and prostitution;
 - iii. Federal, state, and law laws concerning human trafficking and prostitution;
 - iv. Where educational resources can be obtained; and
 - v. How to contact and obtain community and law enforcement resources for anyone who may be a victim of human trafficking.

(2) *Bathhouse permit.* An application for a bathhouse shall be made by an operator, and the application shall include the following information for each person defined as an operator, pursuant to section 6-156:

- a. A copy of a valid photographic identity card issued by a governmental agency which provides the applicant's(s') date of birth and identity (U.S. Passport, State identification card or driver's license);
- b. The residential address, primary phone number, and cellular telephone number (if different) of the applicant(s);
- c. A complete listing of any criminal convictions of the applicant(s), to include the description(s) of the charge(s), the case number(s), the jurisdiction(s), and the date(s) of the conviction(s);
- d. Two (2) front-face portrait photographs of the applicant(s), at least two (2) inches by two (2) inches, taken within the thirty (30) days preceding the date of application;

- e. The address of the bathhouse, a copy of a legally binding and fully executed current lease, the name of the property owner(s) where the bathhouse is located, and all known contact information (address, phone, cellular phone, and e-mail) for the property owner(s); if the property is owned by a corporation, then the applicant(s) shall provide the name(s) of the individual(s) who own the corporation and all known contact information (address, phone, cellular phone, and e-mail);
 - f. A complete list of the names and residential addresses of all other bathhouse employees and the names of any designated bathhouse technicians at the time of the application.
- (3) *Bathhouse technician permit.* An application for a bathhouse technician shall be made by the individual who intends to be said technician, and the application shall include the following:
- a. A copy of a valid photographic identity card issued by a governmental agency which provides the applicant's date of birth and identity (U.S. Passport, State identification card or driver's license);
 - b. The residential address, primary phone number, and cellular telephone number (if different) of the applicant;
 - c. A complete listing of any criminal conviction(s) of the applicant, to include the description(s) of the charge(s), the case number(s), the jurisdiction(s), and the date(s) of the conviction(s);
 - d. Two (2) front-face portrait photographs of the applicant, at least two (2) inches by two (2) inches, taken within the thirty (30) days preceding the date of application; and,
 - e. The name and address of the bathhouse at which the bathhouse technician will work.

(Ord. No. 2018-1, § 7, 1-11-18)

Sec. 6-159.1. - General review procedures; permit issuance; permit denial.

- (a) *Application qualifications; review criteria; pre-permit inspections.* The PDD, with consultation of the Tampa Police Department, shall review all applications to determine whether the applicant meets the qualifications and the application meets the requirements for the issuance of a permit under this division, as follows:

(1) *Qualifications for permits.*

- a. All applicants for permits must be eighteen (18) years of age or older.
- b. All applicants must not have previously been convicted in any jurisdiction of any of the following:
 - i. Any crime of dishonesty;
 - ii. Any crime relating to kidnapping;
 - iii. Any crime relating to human trafficking;

- iv. Any crime relating to battery or sexual battery;
 - v. Any crime relating to lewdness, assignation, prostitution, or sexual misconduct;
 - vi. Any crime relating to obstruction of justice;
 - vii. Any crime related to false imprisonment;
 - viii. Any crime related to luring or enticing a child;
 - ix. Any crime relating to human smuggling;
 - x. Any crime relating to lewd or lascivious conduct;
 - xi. Any crime relating to computer pornography; or
 - xii. Any crime relating to abuse of children.
- (2) *Compliance with applicable zoning regulations.* A bathhouse permit application shall meet and adhere to the city's zoning regulations, as applicable.
- (3) *Compliance with minimum standards.* A bathhouse permit application shall meet and adhere to the minimum standards set forth in section 6-162.
- (4) *Compliance with hours of operation requirement.* An applicant for a bathhouse permit shall affirmatively declare on the application to adhere to the following: "No bathhouse, within the City of Tampa, shall be open for any business transaction whatsoever, between the hours of 10:00 p.m. and 6:00 a.m., on any day of the week."
- (5) *Bathhouse property owners.* The property owner of any property at which a bathhouse is located shall attest to and comply with the following:
- a. The bathhouse has a designated permit area and has posted permits for the bathhouse and any applicable bath technician permits;
 - b. The bathhouse has at least one (1) designated bathhouse manager;
 - c. The bathhouse complies with the required hours of operation set forth in this division;
 - d. Provide the bathhouse operator with the name of a designated individual for the property owner who can be immediately contacted for service of a notice of a violation, along with the designated individual's phone number, e-mail, and a physical address. Any change for the designated individual shall be provided to the bathhouse operator within five (5) business days of the change; and,
 - e. If the property is leased, that a valid and current written lease is entered into between the parties and a copy of the lease is provided to the bathhouse operator and the PDD as part of the application for a permit.
- (6) *Bathhouse managers.* Any bathhouse manager or assistant manager shall attest to and comply with the following:
- a.

An individual issued a bathhouse permit shall designate an individual(s) as the bathhouse manager and shall provide that individual's name(s) to the PDD as required under the application for a bathhouse permit;

- b. The individual(s) designated as the bathhouse manager shall meet and comply with the same application permit requirements of a bathhouse technician and shall have a background check by the Tampa Police Department;
- c. Any designated bathhouse manager shall remain on the premises of the bathhouse during all hours of operation to ensure the bathhouse is conducted in accordance with this division and all state and federal laws; and
- d. A bathhouse manager shall be considered an "operator" as defined under this division and is jointly and severally liable.

(7) *Review procedures; pre-permit inspection(s); permit issuance and denial.*

- a. The PDD will forward all permit applications that appear to comply with the application requirements stated above, to the Tampa Police Department, within ten (10) working days, from receipt of the application for a criminal background check and verification of any statements made within the application;
- b. The Tampa Police Department shall attempt to verify the statements made in the application and conduct a background check on the applicant, the bathhouse manager, and anyone else necessary to ensure the bathhouse application does not contain fraud or deceit;
- c. Pre-permit inspection. The Tampa Police Department shall conduct a pre-inspection of the bathhouse in coordination with the applicant to ensure the bathhouse is prepared to meet the minimum standards for bathhouses as established under this division (refer to section 6-162);
- d. The Tampa Police Department shall report the findings of the review and pre-inspection back to the PDD within thirty (30) calendar days of the receipt of the application from the PDD;
- e. The PDD shall render a decision on the application within ten (10) working days of receipt of the Tampa Police Department's response (refer to subsection f. below);
- f. Permit approval and issuance. Unless otherwise prohibited by law, the PDD shall approve an application that meets the requirements of this division and shall issue the applicable permit. A permittee is not authorized to operate a bathhouse or perform the duties of a bath technician until the permit has been issued by PDD and said permittee has physical possession of a "Bathhouse Permit Placard" or "Bath Technician Permit Card," as applicable. The permit placard or card shall include a copy of the photo provided with the application, and shall state, at a minimum, on its face, the following:
 - 1. Permit issuance date;

2. Permit expiration date;
 3. Bath technician permit card:
 - i. Residential address of the bath technician permittee;
 - ii. Physical address(-es) of the bathhouse(-es) at which the bath technician permittee is authorized to work;
 4. Bathhouse permit placard:
 - i. Name of the permittee to whom it is granted;
 - ii. Name of any listed bathhouse owner, manager, or assistant manager;
 - iii. Physical address of the bathhouse business;
 - iv. Primary phone number for the bathhouse business.
- g. Denial of permits.
1. The PDD shall not approve and issue a permit when:
 - i. The applicant does not meet the qualifications for permits;
 - ii. The application does not meet the requirements of this section;
 - iii. The location does not meet the minimum standards set forth in sec. 6-162, based on findings of the pre-permit inspection;
 - iv. The applicant has knowingly made any false, misleading or fraudulent statements of fact in the permit application or in any document required by the city in conjunction herewith; or
 The applicant has had a bathhouse, bath technician, massage establishment, massage therapist, or other similar permit or license denied, revoked, or suspended for any of the above causes by the city, or any state or local agency within five (5) years prior to the date of application.
 2. The PDD, upon denying an applicant a permit, shall state the reasons for the denial in writing, specifying the particular grounds for the denial.
 3. Unless otherwise permitted by the PDD, an applicant whose application has been denied may not reapply for a permit under this division for one (1) year from the date denial becomes final. If the PDD finds that the basis for denial of a renewal permit has been corrected or abated within ninety (90) days from the date a denial was issued, the permit may be renewed.

(Ord. No. 2018-1, § 8, 1-11-18)

Sec. 6-159.2. - Posting of permit placards; wearing of permit cards.

- (a) Every bathhouse must have a designated permit area where all permit placards are posted under this division. The designated permit area must be easily and plainly visible at standing eyelevel on, at, or within ten (10) feet of the main public entrance to a bathhouse, so that it may be easily read at any time.
- (b) A bathhouse permit placard must be posted at all times at the designated permit area.
- (c) A bath technician permit card must be worn on the outside of the bath technician's clothing at all times, when the technician is on the premises, and a copy shall be posted at all times, in the designated permit area, for any bath technician who is on the premises.

(Ord. No. 2018-1, § 9, 1-11-18)

Sec. 6-159.3. - Term of permits.

Unless suspended or revoked, each permit issued pursuant to this division shall be effective until September 30 of each calendar year.

(Ord. No. 2018-1, § 10, 1-11-18)

Sec. 6-159.4. - Renewal of permits.

Permits issued under this division shall expire each calendar year, in accordance with section 6-159.3. Unless otherwise prohibited, an applicant may apply for renewal of a permit, for the next calendar year, which commences on October 1 of each calendar year. Applications for renewal will be processed in the same manner, including payment of fees) as new applications (refer to section 6-159.1).

(Ord. No. 2018-1, § 11, 1-11-18)

Sec. 6-159.5. - Modifications to permits, post-issuance.

- (a) Report of employment or application information changes.
 - (1) Every permittee shall report within thirty (30) days in writing to the PDD any and all:
 - a. Changes of employment, whether by new or renewed employment, discharge or termination, or otherwise, giving the name and address of the former employer, if any, and the name and address of the new employer, if any.
 - b. Changes or modifications in any information provided in the application.
 - (2) Bathhouse operators shall be required to report within thirty (30) days, in writing to the PDD, any and all terminations, resignations, or hiring of employees along with the required information for the application approval for any newly hired bathhouse managers and employees.

- (3) Any bath technician who seeks to modify the list of bathhouses stated on an approved/issued permit shall notify PDD in accordance with the time frame described in this section. Said bath technician shall also be required to obtain, with payment of applicable fee, a new, updated bath technician permit card from PDD in a timely manner.
- (4) Any modifications described above, which are not reported to the PDD in a timely manner, may be grounds for suspension or revocation of a permit, subject to the provisions set forth in section 6-160.

(Ord. No. 2018-1, § 12, 1-11-18)

Sec. 6-159.6. - Transfer of permits.

No permit shall be transferable, separate or divisible, and such authority as a permit confers shall be conferred only on the permittee named therein.

(Ord. No. 2018-1, § 13, 1-11-18)

Sec. 6-159.7. - Inspections of bathhouses, post-permit issuance.

- (a) Application for, and issuance of, any bathhouse permit shall constitute consent by the permittee for representatives of the city to enter and inspect the premises of the bathhouse, on a reasonable basis, no more than four (4) times a year, unless otherwise agreed upon or a compelling reason exists, at any time it is open for business or occupied, for the purpose of verifying compliance with the law.
- (b) No person who operates a bathhouse or a person designated as a bathhouse manager or assistant manager shall refuse to allow such inspection of the premises of a bathhouse, as authorized above, by a representative of the city.

(Ord. No. 2018-1, § 14, 1-11-18)

Sec. 6-160. - Enforcement; suspension of permit; revocation of permit.

- (a) *Suspension of permits.* A permit issued under this division shall be immediately suspended for a period of time, not initially exceeding thirty (30) days, if the PDD has reason to believe or is notified by the Tampa Police Department that:
 - (1) Any provision of this division has been violated;
 - (2) An employee or independent contractor was not lawfully employed or contracted; or
 - (3) An inspection of the bathhouse premises as authorized in this division was refused.
- (b) *Revocation of permits.*
 - (1)

A permit issued under this division shall be revoked if the permit has been previously suspended within the preceding twelve (12) months and the PDD has reason to believe a new reason for a suspension has occurred.

- (2) The PDD shall revoke a bathhouse permit if there is reason to believe that one (1) or more of the following has occurred:
 - a. A permittee has given false or misleading information in the application;
 - b. A permittee or an employee has knowingly allowed possession, use, or sale of controlled substances or any derivative thereof on the premises;
 - c. A permittee or an employee knowingly permitted a bath during a period of time when the bathhouse was not permitted or was suspended;
 - d. A prohibited activity as described in this division occurred at the bathhouse;
 - e. A permittee no longer meets any of the qualifications for a permit;
 - f. A permittee committed a crime that would otherwise disqualify an applicant for the issuance of a permit;
 - g. A felony was committed at the property of the bathhouse; or
 - h. A bathhouse manager violated the responsibilities of the bathhouse manager or was not present during business hours.
- (3) The fact that a conviction is being appealed shall have no effect on the revocation of the permit.
- (4) When the PDD revokes a permit, the revocation will continue for one (1) year, and the permittee may not be issued any bathhouse permit for one (1) year from the date revocation became final. If, subsequent to revocation, the PDD finds that the basis for the revocation action has been corrected or abated, the applicant may be granted a permit if at least ninety (90) days have elapsed since the date the revocation became final. If the permit was revoked under subsection (b)(4) hereof, an applicant may not be granted another permit until the appropriate number of years has elapsed in accordance with this division.

(Ord. No. 2018-1, § 15, 1-11-18)

Sec. 6-161. - Appeals.

- (a) If the PDD denies a permit, the PDD shall notify the applicant in writing, with the reason(s) for denial included. Any appeal of such denial shall be subject to section 1-19 of the City Code.
- (b) If the PDD suspends or revokes a permit, the PDD shall send to the applicant or permittee, by certified mail, return receipt requested, written notice of the action and the right to an appeal. The aggrieved party (applicant or permittee only) may appeal the decision of the PDD to city

council in accordance with the following procedures. The filing of an appeal stays the action of the PDD in suspending or revoking a permit, until the city council makes a final decision.

- (1) The aggrieved party may, not later than ten (10) calendar days after receiving notice of the denial, file with the city clerk a written request for an appeals hearing before the city council.
- (2) If a written request is filed under subsection (a) hereof with the city clerk within the ten (10) calendar days, the city council shall consider the request. Within thirty (30) days from the date the written request is received, the city council shall set a date for the hearing.
- (3) The city council shall hear and consider evidence offered by any interested person to determine whether the PDD properly denied issuance or renewal, or properly suspended or revoked the permit in accordance with the provisions of this division. The formal rules of evidence do not apply.
- (4) The city council shall grant or deny the appeal by majority vote. Failure to reach a majority vote will result in denial of the appeal. Any dispute of fact must be decided on the basis of a preponderance of the evidence. The decision of the city council is final.
- (5) If the city council denies the appeal, the aggrieved party may not re-apply for a permit under this division until at least twelve (12) months have elapsed since the date of the city council's action.

(Ord. No. 2018-1, § 16, 1-11-18)

Sec. 6-162. - Minimum standards.

No bathhouse shall be operated, maintained, established or conducted within the city, unless the bathhouse complies with all of the following provisions:

- (a) The premises shall have adequate equipment for disinfecting and sterilizing non-disposable instruments, equipment, and materials used in administering baths. The non-disposable instruments, equipment, and materials shall be disinfected and sterilized after each use where a physical contact was made between the patron and the instrument, equipment, or material used.
- (b) Closed cabinets shall be provided and used for the storage of clean linen, towels and other materials used in connection with administering baths. All soiled linens, towels and other materials shall be kept in properly covered containers or cabinets, which containers or cabinets shall be kept separate from the clean storage areas.
- (c) Clean linen and towels shall be provided for each patron. No common use of towels or linens shall be permitted.
- (d) All bathhouse tables, mats, bathtubs, shower stalls, steam or bath areas and floors shall have surfaces, which may be readily disinfected.

- (e) Adequate private bathing, dressing, locker and toilet facilities shall be provided for the number of patrons to be served at any given time. If male and female patrons are to be served simultaneously, separate bathing, dressing, locker, toilet and massage room facilities shall be provided. Separate toilet and lavatory facilities shall be maintained for personnel. Doors to all dressing rooms shall be self-closing.
- (f) All walls, ceilings, floors, pools, showers, bathtubs, steam rooms and all other physical facilities shall be in good repair and maintained in a clean and sanitary condition. Wet and dry heat rooms, steam or vapor rooms, steam or vapor cabinets, shower compartments and toilet rooms shall be thoroughly cleaned each day the business is in operation. Bathtubs and showers shall be thoroughly cleaned after each use. When carpeting is used on the floors, it shall be kept dry.
- (g) The premises shall be equipped with a service tank for custodial services.
- (h) The eating of food or the consuming of alcoholic beverages in the bathhouse bathing areas shall not be permitted.
- (i) Unless otherwise authorized by law, animals shall not be permitted in the bathhouse bathing areas.
- (j) All employees and bath technicians must wear clean outer garments in the nature of a surgical gown whose use shall be restricted to the bathhouse, and, in addition, such employees and bath technicians shall at all times during normal working hours at the bathhouse conceal, with a fully opaque covering, the sexual or genital parts of their bodies.
- (k) All services enumerated in the definition of "bath" must be rendered or carried on in one (1) bathhouse area devoted to baths. There shall be no separate or individual cubicles, rooms, booths or areas set apart for private massages or baths, except that if the male and female patrons are to be served simultaneously, two (2) separate bathhouse bathing areas shall be set apart for male and female patrons. No service enumerated in the definition of "bath" may be rendered or carried on in a work area in such a manner or condition that is not readily visible at all times from any place within the same work area.
- (l) The sexual or genital parts of patrons must be covered at all times by towels, cloths, robes, undergarments, swim trunks, swimsuits or other similar fully opaque materials while in the presence of an employee or bath technician.
- (m) During non-business hours, the business must be closed to all patrons and all lighted signs must not be illuminated.
- (n) There shall only be one entrance for public access to the bathhouse and said entrance must be well lit, unobstructed by man-made objects on the premises which could be readily avoided, and facing the front of the building, street, parking lot, or interior hallway, unless otherwise approved by the PDD, so as to promote the most visible view of the entrance.

- (o) It is the duty of each operator of a bathhouse to maintain at all times a register at the location of the bathhouse, signed by or for patrons who pay for or receive a bath, showing the printed name of the patron, the date of the payment and bath, the approximate time of the arrival and departure of the patron, and the amount of the payment for the bath. This register must be maintained in chronological order by date and be immediately available upon request for inspection during the hours of operation by the Tampa Police Department, PDD, or a code enforcement officer. However, operators need not make available registers that are more than two (2) years old.
- (p) Every bathhouse shall post a copy of this division in a conspicuous place in the bathhouse so that it may be readily seen by persons entering the premises.
- (q) Human trafficking signage as described under sections 36-373(b) through (e), Hillsborough County Code of Ordinances, as amended, shall be displayed in a conspicuous location that is clearly visible to the public and employees of the bathhouse.

(Ord. No. 2018-1, § 17, 1-11-18)

Sec. 6-163. - Advertising restrictions.

No bathhouse granted a permit under provisions of this chapter shall place, publish or distribute or cause to be placed, published or distributed any advertising matter that depicts any portion of the human body that would reasonably suggest to prospective patrons that any service is available other than those services as described in the definition of "bath," nor shall any bathhouse indicate in the text of such advertising that any service is available other than those services described in the definition of "bath."

(Ord. No. 2018-1, § 18, 1-11-18)

Sec. 6-164. - Duty to report unlawful activity.

Operators, bathhouse managers, employees, and bath technicians shall immediately report to the Tampa Police Department by calling the non-emergency line upon learning of any violation of or attempted violation or solicitation to commit any violation of an "unlawful activity" to include any of the following criminal offenses: prostitution, human trafficking, battery, indecent exposure, or any prohibited activities as described in section 6-166. If a patron commits the unlawful activity, the patron shall be identified using the daily register and the Tampa Police Department shall be provided the identification of the patron.

(Ord. No. 2018-1, § 20, 1-11-18)

Sec. 6-165. - Prohibited activities.

- (a) It is unlawful to operate a bathhouse without a valid bathhouse permit issued pursuant to the terms and conditions of this division.

- (b) A property owner shall not knowingly lease or rent any property to a bathhouse which does not have a valid bathhouse permit.
- (c) It is unlawful for an individual without a valid bath technician permit to bathe another individual.
- (d) It is unlawful for a bath technician to bathe another individual unless pursuant to the terms and conditions of this division.
- (e) An operator shall not knowingly allow the unlawful administration of a bath.
- (f) It is unlawful to operate a bathhouse for any business transaction whatsoever, between the hours of 10:00 p.m. and 6:00 a.m. on any day of the week.
- (g) It is unlawful for an operator to operate a bathhouse in violation of any of the minimum standards required under section 6-162 or to allow an employee to perform any duties or functions of the business in violation of the minimum standards.
- (h) Unlawful residency at a bathhouse. It is unlawful for an operator or owner to use or permit the use of a bathhouse to be used as a principal domicile, or to allow any employee to stay at the bathhouse after the hours of operation for the purpose of residing or sleeping at the bathhouse.
- (i) Sexual misconduct at a bathhouse. The bathhouse-client relationship requires mutual trust. Sexual misconduct in the practice of a bath is a violation of the bathhouse-client relationship and is prohibited. It shall be considered sexual misconduct at a bathhouse and unlawful for:
 - (1) Any bath technician, employee, patron or other person in a bathhouse to place his or her hand or hands upon, to touch with any part of his body, to fondle in any manner or to bathe a sexual or genital part of any bath technician, employee, patron or other person.
 - (2) Any bath technician, employee, patron or other person in a bathhouse to expose his or her sexual or genital parts or any portion thereof to any other bath technician, employee, patron or other person. It shall also be unlawful for any bath technician, employee, patron or other person in a bathhouse to expose the sexual or genital parts or any portion thereof of any other bath technician, employee, patron or other person.
 - (3) Any bath technician, employee, patron or other person while in the presence of any bath technician, employee, patron or other person in a bathhouse to fail to conceal with a fully opaque covering the sexual or genital parts of his or her body.
 - (4) Any bathhouse technician to induce or attempt to induce the client to engage, or to engage or attempt to engage the client, in sexual activity.
 - (5) To be present in the same room where a client is dressing or undressing.
- (j) It is unlawful for any bath technician to render any services described in the definition of "bath" at any location other than a duly licensed bathhouse. A violation of this subsection shall be known as "Unlawful bath outside of bathhouse".
- (k)

It is unlawful for an operator to knowingly fail to report unlawful activity as required under section 6-164.

- (l) Whoever commits any violation of this section or aids, abets, counsels, hires, or otherwise procures any violation of this section to be committed, and such violation is committed or is attempted to be committed, is a principal and may be charged and punished in violation of the section, whether or not he or she is actually or constructively present at the commission of the violation. It shall be prima facie evidence that an operator is a principal if the operator had knowledge violations of this section had previously occurred at the bathhouse, even if the specific violation was not known. A bathhouse operator may rebut the prima facie evidence with evidence which shows the operator made efforts to mitigate or abate future violations.

(Ord. No. 2018-1, § 21, 1-11-18)

Sec. 6-166. - Enforcement and penalties for violations.

- (a) The PDD may impose and enforce any administrative penalties or sanctions as authorized by this division.
- (b) Any code enforcement officer, Tampa Police officer, or any other person authorized to enforce municipal ordinances may carry out inspections as provided herein and enforce the provisions of this division.
- (c) Violations of section 6-165 of this division shall be punished in accordance with section 1-6 and be punishable by a fine not to exceed five hundred dollars (\$500.00) per violation or imprisonment not to exceed sixty (60) days, or both such fine and imprisonment.
- (d) The city may elect to bring property owners in front of the code enforcement board or magistrate for enforcement of penalties as provided under chapter 9 of the city's code.
- (e) Each day of a continuing violation shall constitute a separate violation.
- (f) More than one (1) person may be held responsible for a single violation.
- (g) Unless otherwise prohibited by law, nothing herein shall limit the ability to seek alternative enforcement methods to include administrative, civil, criminal, or quasi-criminal sanctions for a single violation.

(Ord. No. 2018-1, § 23, 1-11-18)

Sec. 6-167. - Other remedies.

Nothing contained herein shall prevent the city from taking such other lawful action in law and equity as may be necessary to remedy any violation of, refusal to comply with, any part of this division, including but not limited to:

- (a) Pursuit of injunctive and/or declaratory relief in a court of competent jurisdiction;
- (b)

Initiating an action to recover any and all damages that may result from a violation of, or refusal to comply with, any part of this division; and

(c) Utilizing any other action or enforcement method allowable by law.

(Ord. No. 2018-1, § 24, 1-11-18)

Secs. 6-168—6-170. - Reserved.

DIVISION 6. - HANDBILL DISTRIBUTION

Footnotes:

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Editor's note— Ord. No. 97-213, § 5, adopted Oct. 16, 1997, amended the Code by adding the title of a new Div. 6 to read as herein set out. See the Code Comparative Table.

Sec. 6-171. - Handbill distribution on private property.

- (a) It is unlawful for any individual to deliver, distribute or place, or attempt to deliver, distribute or place, handbills on private property upon which is posted a reasonably conspicuous sign reading "No Advertising" or "No Solicitation."
- (b) It is unlawful for any business advertising by means of handbills to direct, encourage or allow any individual, employee or independent contractor distributing handbills on behalf of the business to deliver, distribute or place handbills on private property upon which is posted a reasonably conspicuous sign reading "No Advertising" or "No Solicitation."
- (c) Any violation shall be punished as provided in Tampa Code section 1-6.

(Ord. No. 97-186, § 5, 9-18-97; Ord. No. 97-213, § 6, 10-16-97)

Sec. 6-172. - Handbill distribution on vehicles.

- (a) It is unlawful for any individual to place, throw, deposit, drop or offer any handbill on or to any motor vehicle, or occupant thereof, in operation or momentarily stopped on any public street within the city, or stopped, standing or parked in any parking space on any city owned or operated parking lot, garage or other property.
- (b) Any violation shall be punished as provided in Tampa Code section 1-6.

(Ord. No. 97-186, § 6, 9-18-97; Ord. No. 97-213, § 7, 10-16-97; Ord. No. 98-54, § 1, 3-5-98)

Secs. 6-173—6-179. - Reserved.

DIVISION 7. - DANCE HALLS

Sec. 6-180. - Legislative findings, intent, and purpose.

- (a) The City of Tampa hereby finds and determines as a matter of fact that late night and all night dance halls and similar forums of assembly commonly referred to as "raves" are sites for the sale, possession and use of illicit drugs.
- (b) The City of Tampa also finds such raves expose drug activity to the uninitiated youth of our city, and such exposure to drug activity occurring at such raves is often found to result in drug addiction, overdose and death of both juveniles and adults.
- (c) The City of Tampa hereby finds raves provide an arena for predatory-type sexual crimes, thus, for the protection of our city's youth, juveniles should not congregate in such social settings with adults; additionally, regulation of raves is also necessary for the protection of adult victims of such crimes.
- (d) The City of Tampa hereby finds raves are often times the sites for violent criminal activity, as well as street gang activity as defined in Florida Statutes Chapter 874.
- (e) The City of Tampa hereby finds that the dangerous criminal activity occurring at such raves occurs predominately in the late night/early morning hours.
- (f) The City of Tampa hereby finds that the actions of rave patrons entering and exiting dance hall establishments has a deleterious effect on nearby residential and commercial properties in terms of excessive noise, traffic and debris, and such impacts are exacerbated by the fact that rave patrons enter and exit such raves at extraordinarily late night/early morning hours when citizens have a reasonable expectation of peace and quiet.
- (g) The City of Tampa hereby finds that the above-referenced problems associated with raves are unique and specific to such dance hall establishments and are not prevalent in other types of unregulated places of assembly.
- (h) It is the intent of the City of Tampa to address the unique problems associated with raves by implementing dance hall regulations for both juvenile and adult dance halls to prevent dance hall contact between juveniles and adults so as to prevent and/or reduce illicit or undesirable juvenile involvement and exposure to illegal drugs and dangerous criminal activity, and further to protect both juveniles and adults from criminal activity that occurs at such raves.
- (i) The City of Tampa hereby asserts that the following purposes of the dance hall regulations set forth herein are matters of legitimate, substantial and compelling governmental interests:
 - (1) To protect juveniles and adults from illegal drug activity, including use, sale and drug abuse such as overdoses and to reduce, if not eliminate, such activity from occurring in dance halls;

- (2) To protect juveniles and adults from violent criminal activity occurring in dance halls;
- (3) To protect juveniles and adult victims from predatory-type sexual crimes occurring in dance halls;
- (4) To protect juveniles and adults from gang-related activity occurring in dance halls;
- (5) To reduce the amount of criminal activity occurring predominately in the late night/early morning hours;
- (6) To prevent the deleterious impacts of noise, traffic and debris on adjacent residential and commercial property that occurs in the late night/early morning hours.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-181. - Definitions.

[For the purposes of this division, certain terms shall have the meanings ascribed to them in this section, unless the context clearly indicates otherwise.]

Adult dance hall means any dance hall whose patrons or admittees are eighteen (18) years of age or older.

Conviction or *convicted* means the finding of guilt for a violation of a municipal or county ordinance or state or federal law, adjudication withheld on such a finding of guilt, an adjudication of guilt on any plea of guilty or nolo contendere or the forfeiture of a bond or bail when charged with a violation of a municipal or county ordinance or state or federal law.

Dance hall means any place, area or property operated as open to the public which:

- (1) Has music either live or electronically produced or transmitted; and
- (2) Has space available for dancing or dancing is permitted whether such dancing takes place or not; and
- (3) Allows admission by payment of a direct or indirect charge, fee, donation, or any form of consideration, or by the purchase, possession or presentation of a ticket or token; and
- (4) Is not zoned for the sale of alcoholic beverages pursuant to Chapter 3 hereof.

Notwithstanding the foregoing, a "dance hall" as defined herein, does not include:

- (a) A private residence or residential facility from which the general public is excluded;
- (b) A place owned and operated by the federal, state, or local government;
- (c) A public or private elementary school, secondary school, college, or university;
- (d) A place owned and operated by a bona fide religious organization, created, organized, existing and recognized as such pursuant to all applicable laws; or
- (e)

An adult use establishment (special cabaret or adult entertainment establishment), as defined in Chapter 27, lawfully established, existing, permitted and licensed under the provisions of this Code, during such hours of the day as said establishment is being lawfully and principally operated as an adult use.

Dance hall regulations means the regulations set forth in this division.

Juvenile dance hall means any dance hall whose patrons or admittees are seventeen (17) years of age or younger.

Knowingly means with actual knowledge of a specific fact or facts, or with reasonable inquiry a reasonable person should have known a specific fact or facts.

Permit or dance hall permit means a permit to operate a dance hall.

Permittee means a person in whose name a permit to operate a dance hall has been issued, as well as the individual listed as an applicant on the application for a dance hall permit.

Person means an individual, partnership, corporation, association, or legal entity.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-182. - Permit required; application for permit.

- (a) No person may operate a dance hall without a permit.
- (b) A notarized application for a permit shall be made on a form provided by the chief of police. The applicant must be qualified according to the provisions of this division.
- (c) The applicant shall indicate whether the application is for a juvenile dance hall or adult dance hall.
- (d) A person who wishes to operate a dance hall shall sign the application for a permit as applicant. If a person who wishes to operate a dance hall is other than an individual, each individual who has a twenty (20) percent or greater interest in the business must sign the application for a permit as an applicant. Each applicant must meet the requirements of section 6-183, and each applicant shall be considered a permittee if a permit is granted.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-183. - Requirements for issuance of permit; posting.

- (a) The chief of police shall approve issuance of a dance hall permit within sixty (60) days after receipt of an application unless the chief of police finds one (1) or more of the following to be true:
 - (1) An applicant is under eighteen (18) years of age.
 - (2) An applicant has failed to answer or falsely answered a question(s) or request for information on the application provided.

- (3) An applicant has been convicted of a violation of any dance hall regulations within two (2) years immediately preceding the application.
- (4) An applicant has failed to obtain a certification from the fire marshal that the dance hall complies with all applicable provisions of Chapter 11, Fire Prevention and Protection, relative to places of assembly, including but not limited to maximum permitted occupancy load.
- (5) An applicant has failed to obtain a certification from the zoning administrator that the dance hall complies with all applicable provisions of the Land Development Code, including but not limited to parking.
- (6) An applicant has been convicted of a crime,
 - a. Involving:
 1. Any felony, or
 2. Any misdemeanor offense of Florida Statutes Ch. 784, Assault; battery; culpable negligence; Ch. 787, Kidnapping; false imprisonment; luring or enticing a child; custody offenses; Ch. 790, Weapons and firearms; Ch. 794, Sexual battery; Ch. 800, Lewdness; indecent exposure; Ch. 812, Theft, robbery and related crimes; Ch. 827, Abuse of children; Ch. 837, Perjury; Ch. 856, Drunkenness; open house parties; loitering; prowling; desertion; Ch. 859, Poisons; adulterated drugs; Ch. 870, Affrays; riots; routs; unlawful assemblies; Ch. 874, Street terrorism enforcement and prevention; Ch. 877, Miscellaneous crimes, and Ch. 893, Drug abuse prevention and control, as said Chapters currently exist or may be amended from time to time, or
 3. Any violation of dance hall regulations of any other city, county, state or government; and
 - b. For which:
 1. Less than two (2) years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense;
 2. Less than five (5) years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or
 3. Less than five (5) years have elapsed since the date of the last conviction or the date of release from confinement for last conviction, whichever is the later date, if the convictions are of two (2) or more misdemeanor offenses or combination of misdemeanor offenses occurring within any twenty-four-month period.
- (b) The fact that a conviction is being appealed has no effect on the disqualifications of the applicant under subsection (a) above.

- (c) An applicant who has been convicted of an offense listed in subsection (a)(6)a. may qualify for a dance hall permit only when the time period required by subsection (a)(6)b. has elapsed.
- (d) The application shall be reviewed by the police department, the fire department and the department of business and community services for compliance with the provisions of this section. Review shall be conducted by the fire department and department of business and community services within thirty (30) days from the receipt of the application by the chief of police, and their comments forwarded to the chief of police for consideration in issuance of the permit in accordance with the provisions hereof.
- (e) The chief of police, upon approving issuance of a dance hall permit, shall send to the applicant, by certified mail, return receipt requested, written notice of that action and state where the applicant must pay the permit fee and obtain the permit. The chief of police's approval of the issuance of a permit does not authorize the applicant to operate a dance hall until the applicant has paid all fees required by this chapter and obtained possession of the permit.
- (f) The permit shall state on its face the name of the person to whom it is granted, the expiration date, the address of the dance hall, and whether it is issued for a juvenile dance hall or adult dance hall.
- (g) The permit must be posted in a conspicuous place at or near the entrance to the dance hall so that it may be easily read at any time.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-184. - Fees.

The city council may, by resolution, establish non-refundable fees for the city to review the contents of a dance hall permit application and for each permit issued under the terms of this chapter.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-185. - Persons under eighteen (18) prohibited in adult dance hall.

- (a) No person under the age of eighteen (18) years may enter an adult dance hall unless accompanied by a parent or guardian.
- (b) No person shall falsely represent himself to be either a parent or guardian of another person under the age of eighteen (18) years for the purpose of gaining the other person's admission into an adult dance hall.
- (c) No permittee or employee of a adult dance hall shall knowingly allow a person under the age of eighteen (18) years to enter or remain on the premises of an adult dance hall.
- (d)

No permittee of an adult dance hall shall maintain or operate the premises without posting a sign at each entrance to the business that reads: "It is unlawful for any person under eighteen (18) years of age to enter this premises without a parent or guardian."

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-186. - Persons age eighteen (18) and over prohibited in juvenile dance hall.

- (a) No person age eighteen (18) and over may enter a juvenile dance hall.
- (b) No person shall falsely represent himself to be under age eighteen (18) for the purpose of gaining admission to a juvenile dance hall.
- (c) No permittee or employee of a juvenile dance hall shall knowingly allow a person age eighteen (18) or over to enter or remain on the premises of the juvenile dance hall.
- (d) No permittee of a juvenile dance hall shall maintain or operate the premises without posting a conspicuous sign at the entrance to the business that reads: "It is unlawful for any person age eighteen (18) or over to enter this premises".
- (e) It is a defense to prosecution under subsections (a) and (c) that the person is:
 - (1) A permittee or employee of the dance hall;
 - (2) A parent or guardian of a person inside the dance hall; or
 - (3) A governmental employee in the performance of official duties.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-187. - Hours of operation.

- (a) No person shall operate a juvenile dance hall during any hours other than 4:00 p.m. to 11.00 p.m. on any Sunday, Monday, Tuesday, Wednesday, or Thursday, and from 4:00 p.m. on Friday to 12:01 a.m. of the following day, and from 1:00 p.m. Saturday to 12:01 a.m. of the following day.
- (b) No person shall operate an adult dance hall during any hours other than 1:00 p.m. to 3:00 a.m. of the following day.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-188. - Public safety.

- (a) *Security.* The following security shall be provided at all dance halls:
 - (1) Exterior security officers consisting of off-duty (extra-duty) sworn law enforcement officers, of a number as determined appropriate in an application to the law enforcement agency requesting the same, which number shall not be less than two (2); provided however, one (1) exterior security officer may be permitted in the event two (2) immediately adjacent

establishments mutually utilize the same two (2) officers, and said arrangement is approved by the law enforcement agency assigning said officers. Exterior security officers shall only be required if the number of occupants exceeds two hundred fifty (250).

(2) When required, exterior security personnel shall be provided seven (7) days a week.

(b) *Fire*. No person shall operate a dance hall in violation of any applicable provisions of Chapter 11, Fire Prevention and Protection.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-189. - Land Development Code.

No person shall operate a dance hall in violation of any applicable provisions of the Land Development Code, as defined in Chapter 17.5 .

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-190. - Dance hall supervisor.

- (a) A person who operates a dance hall shall designate a person as the dance hall supervisor and shall register that supervisor's name with the chief of police.
- (b) The person designated as the dance hall supervisor shall comply with the requirements set forth in section 6-183(a)(6)a. and b. for applicants.
- (c) The person designated dance hall supervisor shall remain on the premises of the dance hall during all hours of operation and until thirty (30) minutes after closing to ensure that the operation is conducted in accordance with all dance hall regulations hereof.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-191. - Inspection.

- (a) Application for, and issuance of, any dance hall permit shall constitute consent by the permittee for representatives of the City of Tampa to enter and inspect the premises of the dance hall at any time it is open for business or occupied for the purpose of verifying compliance with the law.
- (b) No person who operates a dance hall or a person designated as the dance hall supervisor shall refuse to permit a lawful inspection of the premises of a dance hall by a representative of the City of Tampa at any time it is open for business or occupied.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-192. - Expiration of permit.

- (a) A permit for a dance hall expires one (1) year from the date of issuance. A permit may be renewed only by making application as provided in section 6-182. Application for renewal should be made at least sixty (60) days before the expiration date, and when made less than sixty (60) days before the expiration date, the expiration of the permit will not be affected by the pendency of the application.
- (b) If the chief of police denies renewal of a permit, the applicant may not be issued any dance hall permit for one (1) year from the date denial becomes final. If, subsequent to denial, the chief of police finds that the basis for denial of the renewal permit has been corrected or abated, the applicant may be granted a permit if at least ninety (90) days have elapsed since the date denial became final.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-193. - Suspension.

The chief of police shall suspend a dance hall permit for a period of time not exceeding thirty (30) days if the chief of police determines that a permittee or an employee of a permittee has committed any one (1) or more of the following acts:

- (1) Violated any provisions of the dance hall regulations;
- (2) Engaged in the use of alcoholic beverages on the dance hall premises;
- (3) Refused to allow an inspection of the dance hall premises so authorized in this division;
- (4) Knowingly permitted an intoxicated person to remain on the premises;
- (5) Knowingly permitted gambling by any person on the dance hall premises;
- (6) Knowingly permitted the possession, consumption, or sale of an alcoholic beverage on the premises of a dance hall.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-194. - Revocation.

- (a) The chief of police shall revoke a permit if a cause of suspension under section 6-193 occurs and the permit has been previously suspended within the preceding twelve (12) months.
- (b) The chief of police shall revoke a permit if the chief of police determines that one (1) or more of the following is true:
 - (1) A permittee has given false or misleading information in the material submitted to the chief of police during the application process.
 - (2) A permittee or an employee has knowingly allowed possession, use, or sale of controlled substances or any derivative thereof on the premises.

- (3) A permittee or an employee knowingly permitted dancing or a live performance during a period of time when the dance hall permit was suspended.
- (4) A permittee has been:
 - a. Convicted of an offense listed in section 6-183(a)(6)a. for which the time period required in section 6-183(a)(6)b. has not elapsed; or
 - b. Convicted of or is under indictment for any felony offense while holding a dance hall permit.
- (5) While an employee of the dance hall, and while on the permitted premises, a person has committed an offense listed in section 6-183(a)(6)a., for which a conviction has been obtained, two (2) or more times within a twelve-month period.
- (c) The fact that a conviction is being appealed shall have no effect on the revocation of the permit.
- (d) When the chief of police revokes a permit, the revocation will continue for one (1) year, and the permittee may not be issued any dance hall permit for one (1) year from the date revocation became final. If, subsequent to revocation, the chief of police finds that the basis for the revocation action has been corrected or abated, the applicant may be granted a permit if at least ninety (90) days have elapsed since the date the revocation became final. If the permit was revoked under subsection (b)(4) hereof, an applicant may not be granted another permit until the appropriate number of years required under section 6-183(a)(6)b. has elapsed.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-195. - Appeals.

If the chief of police denies the issuance or renewal of a permit, suspends or revokes a permit, the chief of police shall send to the applicant or permittee, by certified mail, return receipt requested, written notice of the action and the right to an appeal. The aggrieved party (applicant or permittee only) may appeal the decision of the chief of police to city council in accordance with the following procedures. The filing of an appeal stays the action of the chief of police in suspending or revoking a permit until the city council makes a final decision.

- (1) The aggrieved party may, not later than ten (10) calendar days after receiving notice of the denial, file with the city clerk a written request for an appeals hearing before the city council.
- (2) If a written request is filed under subsection (a) hereof with the city clerk within the ten (10) day limit, the city council shall consider the request. The city clerk shall set a date for the hearing within thirty (30) days from the date the written request is received.
- (3) The city council shall hear and consider evidence offered by any interested person to determine whether the chief of police properly denied issuance or renewal, or properly suspended or revoked the permit in accordance with the provisions of this division. The

formal rules of evidence do not apply.

- (4) The city council shall grant or deny the appeal by majority vote. Failure to reach a majority vote will result in denial of the appeal. Any dispute of fact must be decided on the basis of a preponderance of the evidence. The decision of the city council is final.
- (5) If the city council denies the appeal, the aggrieved party may not re-apply until at least twelve (12) months have elapsed since the date of the council's action.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-196. - Transfer of permit.

A permittee shall not transfer a permit to another person, nor shall a permittee operate a dance hall under the authority of a permit at any place other than the address designated in the application.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-197. - Penalties and remedies.

A person who operates or causes to be operated a dance hall without a valid permit or in violation of any provision of this division shall be subject to the following penalties and/or remedies:

- (1) Violations of this division may be punished as provided in City of Tampa Code Section 1-6.
- (2) Each day that any violation continues after receipt of a written notice of such violation shall constitute a separate violation and a separate offense for purposes of the penalties and remedies specified herein.
- (3) In addition to the penalties and remedies above, the city may institute any appropriate action or proceedings to prevent, restrain, correct or abate a violation of this chapter, as provided by law.

(Ord. No. 98-164, § 1, 7-16-98)

Sec. 6-198. - Severability.

If any term, provision, section, or subsection of this division is found to be unconstitutional by a court of law, said term, provision, section or subsection may be stricken and the remaining terms, provisions, parts, sections and subsections shall remain in full force and effect.

(Ord. No. 98-164, § 1, 7-16-98)

Secs. 6-199—6-209. - Reserved.

DIVISION 8. - OFF-PREMISES CANVASSING IN THE YBOR CITY HISTORIC DISTRICT

Sec. 6-210. - Off-premises canvassing in the Ybor City Historic District; legislative findings; intent and purpose.

- (a) The City of Tampa hereby finds and determines as a matter of fact that OPC causes harassment of pedestrians in the Ybor City Historic District.
- (b) The City of Tampa also finds that OPC causes an invasion of pedestrians' privacy in the Ybor City Historic District.
- (c) The City of Tampa hereby finds and determines as a matter of fact that OPC has a negative impact on aesthetics in the Ybor City Historic District, which is listed on the National Register of Historic Places as a landmark historic district and is locally designated as an historic district.
- (d) The City of Tampa hereby finds and determines as a matter of fact that OPC causes litter which causes clogging of stormwater drains in the Ybor City Historic District.
- (e) The City of Tampa hereby finds and determines as a matter of fact that OPC causes sidewalk congestion and impedes orderly movement of the crowd in the Ybor City Historic District.
- (f) The City of Tampa hereby finds that the above referenced problems associated with OPC are unique and specific to the Ybor City Historic District.
- (g) It is the intent of the City of Tampa to address the unique problems associated with OPC in the Ybor City Historic District so as to promote tourism, prevent harassment of pedestrians and invasion of pedestrians' privacy, preserve the aesthetics of the historic district, reduce litter and clogging of stormwater drains and sidewalk congestion and maintain orderly movement of the crowds.
- (h) The City of Tampa hereby asserts that the following purposes of the OPC regulations set forth herein are legitimate and substantial governmental interests:
 - (1) To prevent harassment of pedestrians;
 - (2) To prevent invasion of pedestrians' privacy;
 - (3) To preserve the aesthetics of the historic district;
 - (4) To reduce litter and clogging of stormwater drains;
 - (5) To reduce sidewalk congestion and maintain orderly movement of the crowds.

(Ord. No. 2000-258, § 2, 9-28-00)

Sec. 6-211. - Permit requirement; application for a permit; issuance.

- (a) No person or business may conduct OPC in the Ybor City Historic District without a permit. Each person or business that proposes to engage in OPC shall apply for a permit to do so at the business tax division by submitting an application that includes the following:

- (1) Name, date of birth, business represented, business address and telephone number, and
 - (2) A non-refundable fee of one hundred fifty dollars (\$150.00), and
 - (3) Two (2) passport size photographs of the person who will conduct the OPC.
- (b) Upon receipt of a complete application, the business tax division shall verify that the business has a current business tax receipt and, if so, shall issue said permit.

(Ord. No. 2000-258, § 2, 9-28-00)

Sec. 6-212. - Permit non-transferable; limitation on number, renewal.

- (a) The OPC permit issued pursuant to this division of the City Code is non-transferable and may only be used by the person whose picture is on the permit. Any attempted transfer shall render such permit void.
- (b) An OPC permit is only valid for the business stated on the permit. A permit holder must obtain a separate permit for each business represented.
- (c) OPC permits shall be effective for one (1) year from the date of issuance.
- (d) No more than four (4) permits may be issued per business per year.

(Ord. No. 2000-258, § 2, 9-28-00)

Sec. 6-213. - Off-premises canvassing prohibited in certain areas.

Notwithstanding issuance of an OPC permit, no permit holder shall engage in OPC in the following prohibited locations:

- (1) Street of Seventh (7th) Avenue;
- (2) Street of Eighth (8th) Avenue;
- (3) Any publicly owned parking lot or garage;
- (4) Street of Sixth (6th) Avenue between the eastern boundary of the Street of Sixteenth (16th) and western boundary of the Street of Fifteenth (15th) Street.

(Ord. No. 2000-258, § 2, 9-28-00)

Sec. 6-214. - Off-premises canvassing regulations in the Ybor City Historic District.

- (a) All OPC permit holders shall comply with the following regulations when engaging in OPC:
 - (1) The permit holder shall wear the permit and shall locate it on the front of their person below the neck and above the waist.
 - (2) No permit holder shall drop, throw, place or otherwise put solid waste on any public right-of-way, or publicly owned parking lots or garages or parks, including any street or sidewalk.

- (3) No permit holder may distribute any handbill except at the express request of the person to whom the permit holder hands the handbill.
- (4) No permit holder shall interfere with or obstruct the free travel or passage of any pedestrian.
- (b) Any person engaging in OPC shall abide by the following restrictions:
 - (1) No two (2) permit holders from the same business may operate within one hundred (100) feet of each other where both permit holders are located on public property or public right-of-way.
 - (2) A permit holder may operate on a sidewalk so long as he or she remains within the area defined herein as a corner or street corner which shall not include the areas defined in section 6-213. No permit holder shall operate on the street or other portion of the public right-of-way not expressly permitted in this division.
 - (3) Whenever a permit holder engages in permitted OPC on a right-of-way expressly permitted in this division, the permit holder shall remain at least ten (10) feet away from any right-of-way prohibited in section 6-213.

(Ord. No. 2000-258, § 2, 9-28-00)

Sec. 6-215. - Violation of Division 8.

Any person who engages in conduct in violation of Division 8, Off-Premises Canvassing shall be subject to any one (1) of the following penalties, for each such violation:

- (1) Violations of Division 8 may be punished as provided in the City of Tampa Code Section 1-6, General Penalty.
- (2) The city may institute any appropriate action or proceeding to prevent, retrain, correct or abate a violation of this section, as provided by law.
- (3) Each instance of OPC in violation of this Division 8 shall constitute a separate offense for purposes of the penalties and remedies specified herein.

(Ord. No. 2000-258, § 2, 9-28-00)

Secs. 6-216—6-229. - Reserved.

DIVISION 9. - IMMOBILIZATION OF VEHICLES ON PRIVATE PROPERTY

Sec. 6-230. - Intent and purpose; applicability and exemptions.

- (a) *Intent and purpose.* The intent of this division is to protect and safeguard the safety, property and welfare of the public and businesses by providing for the licensure and regulation of business enterprises engaged in the practice of immobilization of vehicles. The purpose of this division is to provide a uniform system for the licensure and regulation of persons who are engaged in or who intend to engage in the practice of immobilization of vehicles which are parked on private property without the permission or authorization of the owner of the private property.
- (b) *Applicability and exemptions.* Any person who utilizes any vehicle immobilization method for unauthorized vehicles parked on private property shall comply with the regulations set forth hereinbelow. Provided however, this section shall not apply to the following:
- (1) Towing of vehicles; or
 - (2) Immobilization of a vehicle which occurs:
 - a. At the direction of a law enforcement or code enforcement officer of the city pursuant to an agreement between the city and a towing service, or
 - b. With the consent of the vehicle's owner or operator, or
 - c. At the direction of an owner/manager of rental property when the tenant has abandoned a vehicle on the real property upon vacating the residence/residential unit.

(Ord. No. 2001-129, § 1, 6-14-01)

Sec. 6-231. - Definitions.

The following words, terms and phrases, when used in this division shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Immobilization, immobilize or immobilizing, also known as boot or booting shall mean the act of placing, on a parked vehicle, a "boot" or other device which causes a vehicle to be immobile or prohibits its usual manner of movement or otherwise disables a vehicle from operation.

Immobilization contractor shall mean any person or firm authorized by the owner, lessee, or controller of real property to engage in the business of immobilization of unauthorized vehicles parked on private property of such owner, lessee or controller, their agents, or employees.

Immobilization service(s) shall include any person, company, corporation or other entity, whether licensed or not, who engages in or owns or operates a business which engages, in whole or in part, in the immobilization or booting of vehicles on private property.

Parked means the state of a vehicle being temporarily left and unattended by its owner or operator.

Person shall mean and include, but shall not be limited to, any individual, firm, partnership, joint venture, syndicate or other group, or combination acting as a unit, association, corporation, estate, trust, trustee, executor, administrator, receiver, or other fiduciary, and shall include the plural as well as the singular.

Property owner means that person who exercises dominion and control over private real property, including but not limited to legal titleholder, lessee, designated representative of a condominium association or any person authorized to exercise or share dominion and control over private real property. However, "property owner" shall not mean nor be included in the term "business enterprise".

Recover means to take possession of a vehicle and its contents and to exercise control and supervision over the vehicle.

(Ord. No. 2001-129, § 1, 6-14-01)

Sec. 6-232. - Pre-requisites to immobilization on private property and responsibilities of immobilization service.

- (a) *Immobilization license required.* No person shall engage in the act, practice or business of immobilization of unauthorized motor vehicles that are parked on private property unless such person has obtained an immobilization license. An application for an immobilization license shall be submitted to the business tax division office. Immobilization licenses shall be issued on an annual basis. An annual license fee shall be charged for the cost of review and administration of issuance of immobilization licenses.

All immobilization licensees shall file a copy of their immobilization license with the Hillsborough County Public Transportation Commission, Tampa Police Department and the Hillsborough County Sheriff's Office in the same manner as tow operators licenses are filed with said agencies.

- (b) *Requirements for issuance of immobilization license.* No person shall be issued an immobilization license under this division unless they comply with the following requirements:

- (1) *Proof of insurance.* Every applicant for an immobilization license shall file with the city's business tax division office a certificate of insurance or other proof of insurance providing coverage for all liability claims and claims of damage to property resulting from any action or operation in connection with the immobilization service, in an amount not less than sixty thousand dollars (\$60,000.00) for each incident.
- (2) *Business license tax/occupational license.* No immobilization service shall engage in the business of immobilization of unauthorized vehicles parked on private property unless such immobilization service shall first obtain a business license tax receipt or an "occupational license" in accordance with the provisions set forth in Chapter 24 of this Code.

- (c) *Authorization of the real property-owner.* No immobilization service shall immobilize a vehicle on private property unless such immobilization service has written authorization or permission of the owner of the real property upon which the immobilization will occur.

- (1) Prior to immobilization of any vehicle, every immobilization service or immobilization contractor shall have executed a written agreement with the owner of the real property upon which the immobilization will occur, and shall file and maintain on record at all times with the city's parking division a list of any and all such agreements for immobilization services on private property within the city limits. The list shall be kept current and shall provide the city with (a) the address of the real property; (b) the date of the agreement; (c) the property owner's name, a contact name and a telephone number, the duration of the agreement; (d) the days of the week and time of day that such immobilization is authorized;
 - (2) The above requirement of a written agreement shall not apply to the immobilization of vehicles from property appurtenant to and part of a single-family residence;
 - (3) The rebate or payment of money or any other valuable consideration, directly or indirectly from the person, immobilization contractor or immobilization service immobilizing vehicles to the owners or operators of the property upon which the vehicles are immobilized, for the privilege of immobilizing those vehicles, is prohibited.
- (d) *Record keeping procedures.* Every person, immobilization service, and immobilization contractor who immobilizes a vehicle shall keep and maintain an immobilization log with the following information:
- (1) Date and time the vehicle was observed illegally parked;
 - (2) The date and time of immobilization;
 - (3) The location/address of the real property where the immobilization took place;
 - (4) The description of the vehicle including make, model, year, color, vehicle identification number, and license plate number;
 - (5) The date and time the request for removal of the immobilization device was received and the date and time of response and removal of the immobilization device;
 - (6) The amount and method of payment for release of the immobilization device;
 - (7) The name of the person removing the immobilization device; and
 - (8) The name of person to whom the vehicle was released.

All persons, immobilization contractors and immobilization services shall file a copy of their immobilization log with the city parking division and shall also keep all such immobilization logs on file for a period of three (3) years and shall make such logs available for inspection to any law or code enforcement officer or designee assigned to investigate the complaints and enforcement during normal business hours.

- (e) *Identification.* All employees or agents of every immobilization service or immobilization contractor, and every person who immobilizes a vehicle shall wear identification tags, or uniforms with identification, stating the full name of the immobilization service, if any, and the name of the employee or agent. Said identification shall be prominently displayed on the front left side of the

employee's or agent's shirt. All immobilization service vehicles shall display the name (or name of joint venture or individual owner or other entity ownership) on the driver and passenger side of the vehicle in letters at least three (3) inches high, and the address (or address of joint venture, or individual owner or other entity ownership) and telephone number of the immobilization service shall be displayed on the driver and passenger side of the vehicle in letters at least one (1) inch high.

(Ord. No. 2001-129, § 1, 6-14-01)

Sec. 6-233. - Immobilization; criteria and requirements for immobilizing vehicles; release of vehicle; maximum fee.

- (a) *Immobilization criteria.* No person shall immobilize an unauthorized vehicle which is parked on private property, unless such immobilization is in accordance with the following requirements:
- (1) The vehicle is parked in an unauthorized manner and a sign was posted in accordance with subsection 6-233(b) below;
 - (2) The vehicle is not occupied by a person or animal;
 - (3) The immobilization device is placed on the front wheel of the driver's side of the motor vehicle. The device may be placed on any other wheel if placement on the front wheel of the driver's side is not feasible; and
 - (4) Immediately upon immobilization, the person immobilizing such vehicle, shall affix on the driver's side window of such vehicle, a warning notice sticker with a completely removable adhesive, measuring eight and one-half (8½) by eleven (11) inches, containing a warning stating that the vehicle has been immobilized and that any attempt to move the vehicle may result in damage to the vehicle, and shall provide the name and business address of the person who immobilized such vehicle, the business telephone number to contact for release of the immobilization device, and the thirty-five dollar (\$35.00) fee for its removal.
- (b) *Sign posting.* Prior to immobilizing, in any manner, any unauthorized vehicle parked on a private property, a separate/individual sign meeting the following requirements shall be posted:
- (1) The sign shall be prominently placed at each driveway access or curb cut allowing vehicular access to the property, within five (5) feet from the public right-of-way. If there are no curb cuts or access barriers, sign(s) must be posted for each twenty-five (25) feet of property abutting public right-of-way, with a minimum of at least one (1) sign;
 - (2) The sign must clearly indicate, in not less than two (2) inch high, light reflective letters on contrasting background, that unauthorized vehicles will be immobilized at the owner's expense. The words "vehicle immobilization area" must be included on the sign in not less than four-inch high letters;
 - (3)

The sign structure containing the above notices must be permanently installed with the words "vehicle immobilization area" not less than three (3) feet and not more than six (6) feet above ground level and must be continuously located on the property for not less than twenty-four (24) hours prior to immobilization of any vehicles;

- (4) The sign must also provide the name and current telephone number of the person or firm which placed the immobilization device on the vehicle; and
 - (5) The sign shall state whether public parking is permitted and the hours of operation that the property is utilized for public parking.
- (c) *Removal of immobilization device; release of vehicle; availability and response time.* When a vehicle has been immobilized, the immobilization device shall be removed and the vehicle shall be released or returned to its owner or custodian within thirty (30) minutes upon request for removal and payment of the immobilization charge. If the immobilization device is not so removed, then either the Tampa Police Department or the city parking division may remove said device, if possible.

Any person, immobilization contractor or immobilization service which places an immobilization device on an unauthorized vehicle parked on private property shall operate a twenty-four-hour, seven-day-a-week answering service, and shall make available on a twenty-four-hour, seven-days-a-week basis, attendants and equipment for the release of the immobilization device within thirty (30) minutes of request for removal and payment of the immobilization charge.

- (d) *Maximum immobilization charge.* No person, immobilization service, nor immobilization contractor may charge more than a thirty-five dollar (\$35.00) immobilization charge or fee for removal of an immobilization device on an unauthorized vehicle parked on private property.
- (e) *Required receipt.* Any person, immobilization contractor or immobilization service which places an immobilization device on an unauthorized vehicle parked on private property shall provide, at the time of payment, a written receipt for all charges imposed and received from the owner or operator of a vehicle resulting from the immobilization of a vehicle. Said receipt shall be made and maintained in duplicate and shall include at a minimum:
- (1) The date, time, and location of the immobilization;
 - (2) The total charges listed individually and specifically;
 - (3) The date and time of the request for removal of the immobilization device;
 - (4) The date and time of payment of the charges; and
 - (5) The following disclosure in bold capitalized letters of at least twelve-point type:

IF YOU HAVE AN QUESTION OR COMPLAINT, PLEASE CONTACT THE CITY OF TAMPA PARKING DIVISION, 107 N. FRANKLIN ST., TAMPA, FL. TELEPHONE: (813) 274-8177: (813) 274-8956 (FAX)

(f)

Return of owner prior to immobilization. No person, immobilization contractor or immobilization service shall immobilize a vehicle or charge for its services where the registered owner or other legally authorized person in control of the vehicle arrives at the scene prior to the immobilization, unless:

- (1) The registered owner or other legally authorized person in control of the vehicle refuses to remove the vehicle; or
- (2) The vehicle has already been connected to the immobilization device and the registered owner or other person in control of the vehicle refuses to pay a service fee of not more than one-half (½) of the rate contained herein for such immobilization service.
- (3) The person immobilizing the vehicle shall wait a minimum of twenty (20) minutes to allow the vehicle's owner or operator to secure cash or other acceptable payment of the fees enumerated herein.

(g) *Towing/removal requirements.* An immobilized vehicle shall not remain immobilized on private property for more than twenty-four (24) hours. After such period of time has expired, the vehicle shall be released from the steel boot and may be towed or removed pursuant to this article, and no fee shall be assessed for release of the immobilization device.

(Ord. No. 2001-129, § 1, 6-14-01)

Sec. 6-234. - Enforcement and inspection; penalties; disclaimer.

(a) *Enforcement and inspection.* The official shall enforce the provisions set forth in this division. This shall not preclude other law enforcement personnel from conducting any action as deemed necessary to assure compliance with all applicable laws.

To determine compliance and enforce the provisions of this division, the official shall have the right of entry upon real property during the operating hours of the subject business and shall be immune from civil or criminal prosecution for trespass upon real property while in the discharge of his duties of enforcing the provisions of this division.

(b) *Penalties.* Any violation of this section shall be punished in accordance with section 1-6 of the City of Tampa Code.

(c) *Revocation of immobilization license.* In addition to the penalties set forth above, the city may also institute proceedings to revoke a person's immobilization license upon finding that the person has violated any provision of this division on three (3) or more occasions. The procedures for revocation of an immobilization license shall be as set forth in sections 6-76 and 6-77 for revocation of a business operating permit.

(d) *Disclaimer of immobilization methods.* The imposition of the vehicle immobilization regulations set forth herein are solely intended for the public's protection from vehicle immobilization without adequate notice. Nothing herein shall be construed as authorization or permission to

immobilize vehicles on private parking lots open to the public. Any person immobilizing vehicles on private parking lots open to the public shall be subject to whatever legal remedies the owner of the vehicle may have.

(Ord. No. 2001-129, § 1, 6-14-01)

Secs. 6-235—6-243. - Reserved.

DIVISION 10. - SHOPPING CARTS

Sec. 6-244. - Definitions.

Shopping cart. As defined in F.S. § 506.502, means a basket mounted on wheels or a similar device which is generally used in a retail establishment by a customer for the purpose of transportation of goods of any kind.

(Ord. No. 2002-254, § 1, 11-21-02)

Sec. 6-245. - Retrieval plan.

Each retail establishment furnishing shopping carts to patrons to transport items purchased from the establishment, is hereby required to develop and implement a specific plan to retrieve its shopping carts that are found throughout the City of Tampa. Two (2) or more retail establishments may collaborate and submit to the city a single plan.

Plans must be submitted to the City of Tampa, Division of Neighborhood Improvement, within sixty (60) days of the effective date of this division (November 21, 2002), and must include the following:

- (1) A method for retrieving all shopping carts within a one (1) mile radius of the store at least one (1) day per week;
- (2) A method for retrieving any and all shopping carts belonging to the retail establishment within the city limits; and
- (3) Name, including the name of a contact person, address and telephone number of the retail establishment; and
- (4) Name, including the name of a contact person, address and telephone number of the company implementing the retrieval plan, if other than retail establishment.

(Ord. No. 2002-254, § 1, 11-21-02)

Sec. 6-246. - Plan submission and review.

The city shall determine whether a retail establishment's plan for retrieving its shopping carts submitted pursuant to this division is reasonably calculated to result in the prompt removal of the retail establishment's shopping carts found within the city limits.

Based upon the above-referenced criteria, the city shall approve, reject or modify a plan within sixty (60) days of when the plan is submitted.

If the plan is approved or approved with modifications, the plan shall be implemented no later than thirty (30) days after approval.

If the plan is rejected, the retail establishment shall modify the plan to address the deficiencies and resubmit it to the city no later than thirty (30) days after the date of its rejection.

(Ord. No. 2002-254, § 1, 11-21-02)

Sec. 6-247. - Identification of shopping carts.

Within sixty (60) days of the effective date of this division (November 21, 2002), each retail establishment that utilizes shopping carts in the operation of its business shall affix on each shopping cart, and maintain thereon, information identifying the name, address and telephone number to call for shopping cart retrieval.

(Ord. No. 2002-254, § 1, 11-21-02)

Sec. 6-248. - Posting of sign.

Within sixty (60) days of the effective date of this division (November 21, 2002), each retail sales establishment that utilizes shopping carts in the operation of its business shall post a minimum of two (2) signs not less than one and one-half (1½) feet by three (3) feet in conspicuous locations on the inside of the retail sales establishment building and a minimum of two (2) signs not less than one and one-half (1½) feet by three (3) feet in conspicuous locations on the outside of the retail sales establishment building. Such signs shall state the following:

"NOTICE — It is a violation of Section 506.513, Florida Statutes to remove a shopping cart, without written authorization, from its owner or from the premises or parking area of any retail establishment."

(Ord. No. 2002-254, § 1, 11-21-02)

Sec. 6-249. - Penalties and remedies.

A person who violates any provision of this division shall be subject to the following penalties and/or remedies:

- (1) Violations of this division may be punished as provided in City of Tampa Code Section 1-6.
- (2) Each day that any violation continues after receipt of a written notice of such violation shall constitute a separate violation and a separate offense for purposes of the penalties and remedies specified herein.
- (3) In addition to the penalties and remedies above, the city may institute any appropriate action or proceedings to prevent, restrain, correct or abate a violation of this chapter, as provided by law.

(Ord. No. 2002-254, § 1, 11-21-02)

Secs. 6-250—6-254. - Reserved.

DIVISION 11. - PAIN MANAGEMENT CLINICS

Footnotes:

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Editor's note— Ord. No. 2010-79, §§ 1—9, adopted July 15, 2010, repealed the former Div. 11, §§ 6-255—6-262, and enacted a new Div. 11 as set out herein. The former Div. 11 pertained to similar subject matter and derived from Ord. No. 2010-59, §§ 2—9, 5-20-2010. See also the Code Comparative Table.

Sec. 6-255. - Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Chronic nonmalignant pain means pain unrelated to cancer which persists beyond the usual course of the disease or injury that is the cause of the pain for more than ninety (90) days after surgery.

Conviction or *convicted* means the finding of guilt for a violation of a municipal or county ordinance or state or federal law, adjudication withheld on such a finding of guilt, an adjudication of guilt on any plea of guilty or nolo contendere or the forfeiture of a bond or bail when charged with a violation of a municipal or county ordinance or state or federal law.

Pain management clinic means a privately owned clinic, facility or medical office that advertised in any medium for any type of pain management services and/or employs one (1) or more physicians who are primarily engaged in the treatment of pain. For the purposes of this Division 11, a physician shall be considered primarily engaged in the treatment of pain by prescribing or dispensing controlled substance medication when the majority of the patients seen are prescribed or dispensed controlled substance medication for the treatment of chronic nonmalignant pain. Registration with the Florida Department of Health pursuant to F.S. § 458.309(4), (5) and (6) or F.S. § 459.005(3), (4) and (5) shall be prima facie evidence

of operating as a pain management clinic pursuant to this definition. Expressly exempted from this definition are hospitals, nursing homes, ambulatory surgical care centers, hospice or intermediate care facilities for the disabled, or clinics which are affiliated with an accredited medical school at which training is provided for medical students, residents or fellows.

Knowingly means with actual knowledge of a specific fact or facts, or with reasonable inquiry a reasonable person should have known a specific fact or facts.

Medical director means the physician licensed by the State of Florida with a full, active and unencumbered license under F.S. ch. 456 or 459 who shall be the designated physician responsible for complying with all requirements related to the permitting and operation of the pain management clinic.

Permit means a permit to operate a pain management clinic.

Permittee means a person in whose name a permit to operate a pain management clinic has been issued, as well as all individuals listed as an applicant on the application for a permit for a pain management clinic.

Person means an individual, partnership, corporation, association, or legal entity. Any individual with any partial or whole ownership of any partnership, corporation, association or legal entity shall also be included in this definition.

(Ord. No. 2010-79, § 2, 7-15-2010)

Sec. 6-256. - Permit required; application for permit.

- (a) After the adoption of this Division 11, no person shall operate a pain management clinic in any location within in the City of Tampa without a permit as provided for herein.
- (b) A separate permit is required for each pain management clinic location. A person who seeks to operate a pain management clinic and the person who is the property owner for property on which the pain management clinic is located shall sign the application for a permit as an applicant(s). At least one (1) applicant shall be the medical director of the pain management clinic. The applicant(s) shall be fully responsible for compliance with this section and each applicant shall be considered a permittee upon the grant of a permit pursuant to this Division 11.
- (c) The notarized application for a permit shall:
 - (1) Be typewritten, signed and sworn to by the applicant(s) and shall include the post office address of the applicant(s) and the property owner. The application shall not be signed by an authorized agent.
 - (2) Provide an accurate legal description of the property on which the pain management clinic is located including street address, if any, and the names of all owners, mortgage holders, lienors and lessees.

(3) Indicate whether the pain management clinic dispenses controlled substances on the pain management clinic site.

(4) Include the following information:

- a. The registration number from the state department of health as required by F.S. § 458.309 or 459.005, if the pain management clinic must be registered in accordance with state law.
- b. The professional license numbers of the medical director, including DEA number.
- c. A list of all persons associated with the management or operation of the pain management clinic whether paid or unpaid, part time or full time, contract labor or independent contractor.

The list must include, but is not limited to all owners, operators, employees or volunteers. For persons listed, the following information must be provided:

1. Title;
2. Current home address, telephone numbers and date of birth;
3. All criminal convictions whether misdemeanor or felony;
4. Current Florida driver's license;
5. A set of fingerprints, unless the person's fingerprints are currently on file with the State of Florida Department of Health; and
6. Whether the person has any financial or business interest in a pharmacy, as defined in F.S. § 465.003, within the State of Florida.

This information shall be required to be updated within ten (10) days of any new person becoming associated with the pain management clinic.

- d. A written determination by the zoning administrator that property in which the pain management clinic is located or seeks to locate complies with all current applicable provisions of the Land Development Code, including but not limited to all required parking requirements for a clinic use (as defined in Chapter 27, City of Tampa Code of Ordinances).
- e. An affidavit by the medical director for the pain management clinic attesting to the following:
 1. That their practice is located at the pain medical clinic;
 2. That no employees of the facility have been convicted of a drug-related felony within the five-year period to the date of application;
 3. That the pain management clinic will not knowingly employ any such convicted felons thereafter; and

4. That the medical director shall be required to inform the City of Tampa within ten (10) days should the medical director be terminated or otherwise leave the affiliation with the pain management clinic as medical director.
- f. A floor plan of the pain management clinic showing the location and size of the waiting area, location of and size of the patient rooms and location and type of diagnostic equipment.
- g. If any controlled substances are dispensed on-site during the course of business, a floor plan showing the location and the method of security for protection of any controlled substance to be dispensed in the course of business.

(Ord. No. 2010-79, § 3, 7-15-2010; Ord. No. 2010-101, § 1, 8-26-2010)

Sec. 6-257. - Requirements for issuance of permit; posting.

- (a) The application shall be reviewed by the City of Tampa Police Department, the City of Tampa Land Development Coordination Division, and any other person or entity deemed appropriate by the official for compliance with the provisions of this Division 11.
- (b) The official shall either approve the issuance of a pain management clinic permit within sixty (60) days after receipt of a complete application, deny the application or request additional information.
- (c) The following shall be a basis for denial of an application:
 - (1) An applicant is under eighteen (18) years of age.
 - (2) An applicant has failed to answer or falsely provided information as part of the application.
 - (3) An applicant or a person listed in the application has been convicted of a crime or had final administrative action taken,
 - a. Involving:
 1. Any felony or misdemeanor offense of Florida Statutes which involves the prescribing, dispensing, supplying or selling of any controlled substance as defined by Florida Statutes; or
 2. Any violation of pain management clinic regulations of any other city, county, state or government; or
 3. Any administrative or other similar action in which the applicant has been denied the privilege of prescribing, dispensing, administering, supplying or selling any controlled substance by this state or any other state; or
 4. Any administrative or other similar action in which the state or any other state's medical board action taken against the applicants medical license as a result of dependency on drugs or alcohol.

b. For which:

1. Less than two (2) years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is of a misdemeanor offense;
 2. Less than five (5) years have elapsed since the date of conviction or the date of release from confinement for the conviction, whichever is the later date, if the conviction is of a felony offense; or
 3. Less than five (5) years have elapsed since the date of the last conviction or the date of release from confinement for last conviction, whichever is the later date, if the convictions are of two (2) or more misdemeanor offenses or combination of misdemeanor offenses occurring within any twenty-four-month period;
 4. Less than five (5) years have elapsed for any final administrative or other action.
- c. The fact that a conviction is being appealed has no effect on the disqualifications of the applicant under subsection (a) above.

(Ord. No. 2010-79, § 4, 7-15-2010)

Sec. 6-258. - Grant of permit; operational standards.

- (a) Each permit shall be effective for one (1) year and be subject to annual renewal on October 1 of each year.
- (b) A permit shall be issued to the persons deemed the permittee(s) for the particular location provided for in the application and shall not be transferable in any manner either to another person or for another location.
- (c) The grant of a permit is expressly conditioned upon compliance with the following operational standards:
 - (1) The permit must be posted in a conspicuous place at or near the entrance to the pain management clinic so that it may be easily read at any time.
 - (2) The pain management clinic shall not limit the form of payment for services or prescriptions to cash only.
 - (3) The pain management clinic shall be operated by the medical director.
 - (4) The hours of operation of the pain management clinic shall be limited to 7:00 a.m. to 9:00 p.m. Monday through Saturday.
 - (5) The pain management clinic shall maintain the diagnostic equipment to diagnose and treat patients complaining of chronic pain as provided for by the appropriate standard of care.
 - (6)

The medical director shall secure prescription pads so that only authorized persons may access them. All prescription pads shall contain the name of the pain management clinic and the pain management clinic permit number.

- (7) The dispensing of controlled substances for treatment of chronic non-malignant pain must be done in compliance with all applicable state and federal laws and regulations, including but not limited to F.S. § 465.0276.

(Ord. No. 2010-79, § 5, 7-15-2010; Ord. No. 2010-101, § 2, 8-26-2010)

Sec. 6-259. - Fees.

The Tampa City Council shall, by resolution, establish non-refundable fees for the city to review the pain management clinic permit application and for each permit issued under the terms of this chapter.

(Ord. No. 2010-79, § 6, 7-15-2010)

Sec. 6-260. - Inspection.

- (a) Application for, and issuance of, any pain management clinic permit shall constitute consent by the permittee for representatives of the City of Tampa, at any time it is open for business or occupied, to enter and inspect the premises of the pain management clinic for the purpose of verifying compliance with the permit.
- (b) No person who operates a pain management clinic shall refuse to permit a lawful inspection of the premises by a representative of the City of Tampa at any time it is open for business or occupied.

(Ord. No. 2010-79, § 7, 7-15-2010)

Sec. 6-261. - Expiration of permit.

- (a) A permit for a pain management clinic September 30 of each year. A permit may be renewed only by making application as provided in this Division 11. A formal decision of the zoning administrator shall only be required every three (3) years, unless the pain management clinic undergoes an expansion or substantial change. Application for renewal should be made at least sixty (60) days before the expiration date, and when made less than sixty (60) days before the expiration date, the expiration of the permit will not be affected by the pendency of the application.
- (b) If a permit or renewal for a pain management clinic is denied the applicant may not be issued a pain management clinic permit for one (1) year from the date denial becomes final, unless the basis for denial has been corrected or abated.

(Ord. No. 2010-79, § 8, 7-15-2010)

Sec. 6-262. - Penalties and remedies.

Any person who operates or causes to be operated a pain management clinic without a valid permit or in violation of any provision of this section shall be subject to the following penalties and/or remedies:

- (1) Violations of this section may be punished as provided in City of Tampa Code section 1-6.
- (2) A violation of any provision of this section will be deemed an irreparable and irreversible violation which will result in immediate violation.
- (3) Each day that any violation continues after receipt of a written notice of such violation shall constitute a separate violation and a separate offense for purposes of the penalties and remedies specified herein.
- (4) In addition to the penalties and remedies above, the city may institute any appropriate action or proceedings to prevent, restrain, correct or abate a violation of this chapter, as provided by law.

(Ord. No. 2010-79, § 9, 7-15-2010)

Secs. 6-263, 6-264. - Reserved.

DIVISION 12. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2015-75, § 1, adopted July 16, 2015, repealed § 6-265, which pertained to newspaper street sales allowed and derived from Ord. No. 2011-128, § 1, 10-20-2011.

Sec. 6-265. - Reserved.

Chapter 11 - FIRE PREVENTION AND PROTECTION

Footnotes:

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Related law references—Fire prevention and protection, Art. X; pension fund for firemen and policemen, Art. XVI.

Cross reference— Building and construction regulations, Ch. 5; alarm systems, § 14-261 et seq.; use of fire hydrants for other than firefighting purposes, § 26-93; private fire protection systems generally, § 26-94; connection of fire protection systems, § 26-95; requirements for fire hydrants, § 26-96.

State Law reference— Fire prevention and control, F.S. Ch. 633; local fire chief authorized to enforce laws and rules of state fire marshal, F.S. § 633.121; manufacture, distribution and use of explosives, F.S. Ch. 552; sale of fireworks, F.S. Ch. 791.

ARTICLE I. - ADMINISTRATIVE PROVISIONS

Footnotes:

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Cross reference— Administration, Ch. 2.

DIVISION 1. - GENERAL PROVISIONS; ADMINISTRATIVE AUTHORITY; DEFINITIONS

Sec. 11-1. - Title.

This chapter shall be known and may be cited as the "City of Tampa Fire Prevention Ordinance."

(Ord. No. 89-234, § 2(14-1), 9-28-89)

Sec. 11-2. - Purpose.

The purpose of this chapter is to protect the health, safety and welfare of the general public through the administration of the city's fire prevention and protection program.

(Ord. No. 89-234, § 2(14-2), 9-28-89)

Sec. 11-3. - Applicability; authority to require employment of stand-by emergency services personnel for events held within the city.

- (a) *Applicability.* The provisions of this chapter shall apply to all buildings, improvement, land, events and facilities within the corporate limits of the city.
- (b) *Authority to require employment of stand-by emergency services personnel for events held within the city.*
 - (1) The fire chief or his designee is hereby authorized to require the employment of one (1) or more stand-by city emergency services personnel, by any owner, lessee, agent or promoter, when in the fire chief's opinion it is essential that such personnel be on duty in any place of public assembly or any other place where people congregate. The determination that stand-by emergency services personnel are required shall be based upon the number of persons in attendance and the nature of the performance, exhibition, display, contest, event or activity. While so employed, such personnel shall be subject to the fire chief's orders at all times and shall be in uniform and remain on duty during the times such places or events are open to the public, or when the activity is being conducted. Paramedics or EMTs shall not be required or permitted, while on duty, to perform any other duties than those specified in this article.

- (2) Stand-by emergency, fire suppression and fire prevention services shall be provided exclusively through the city fire rescue division, unless and except, to the extent that assistance by other duly qualified service providers is specifically requested by the fire chief or designee. Such request for assistance shall be pursuant to a fully executed agreement for Mutual Aid, unless the fire chief or designee has made the request for assistance pursuant to emergency. The fire rescue division is authorized to charge for services rendered under this section, based upon the fire rescue division's cost to provide the required level of emergency services including any administrative expenses.

(Ord. No. 89-234, § 2(14-3), 9-28-89; Ord. No. 2008-88, § 1, 5-20-08)

Sec. 11-4. - Definitions.

For the purpose of this chapter, certain abbreviations, terms, phrases, words and their derivatives shall have the following meanings:

Building system means a functionally related group of elements, components and/or equipment, such as the electrical, plumbing and mechanical systems of a building.

Certificate of occupancy (C.O.) means an official document evidencing that a building satisfies the requirements of the city for the occupancy of a building.

Change of occupancy means a change from one (1) Standard Building Code occupancy class to another.

Change of use means a change from one (1) zoning use classification to another.

Commercial building means any building, structure or improvement other than a one- or two-family dwelling.

Department means the fire marshal's office of the city fire department.

Establishment means a single-tenant building or facility or each nonresidential tenant of a multiple-tenant building or facility.

Facility means such improvements to real property as tank farms and industrial installations not under roof.

False fire alarm means the activation of a fire alarm system through mechanical failure, malfunction, improper installation or the negligent or intentional misuse by the owner or lessee of an alarm system or by his employees, servants or agents or any other activation of the alarm system not caused by fire or smoke. It is a rebuttable presumption that a fire alarm is false if personnel responding from the fire department do not discover any evidence of fire or other emergency after following normal fire department operating procedures in investigating the incident. An alarm is not false if the alarm user proves that:

(1)

An individual activated the alarm based upon a reasonable belief that a fire-related emergency existed; or

- (2) The alarm system was activated by severe weather conditions, telephone line trouble, external power failure or other conditions which are clearly beyond the control of the alarm user.

Fire alarm system means any mechanical or electrical device which is designed to be used for the detection of fire or smoke in a building, structure or facility or for alerting others of a fire or smoke condition within a building, structure or facility or both and which emits an alarm within the premises or transmits a signal to the fire department or both.

Fireworks means the same as defined in F.S. § 791.01.

Governmental or public facilities means capital improvements and/or buildings or structures owned by or leased by and directly related to the operation of city, county, state and federal governments, agencies, authorities or departments including, but not limited to, governmental offices, police and fire stations, airports, waterports, parking facilities, offices, equipment yards, sanitation facilities, schools, parks and similar facilities in or through which general government operations are conducted.

License means a city occupational license tax receipt.

Permit means an official document authorizing performance of a specific activity regulated by this chapter.

Permit card or placard means a document issued by the city evidencing the issuance of a permit.

Physical value means the county property appraiser's assessed value or a certified appraisal by a person appropriately licensed to provide appraisals of real estate.

Remodeling means work which changes the original size, location or material of the components of a building.

Residential building means any one- or two-family building or accessory structure.

Sparkler means the same as defined in F.S. § 791.01.

Structural component means any part of a building or structure which is integral to the structural integrity thereof.

Substantial completion means the construction work has been sufficiently completed in accordance with the applicable city, state and federal codes so that the owner can occupy or utilize the project for the use for which it is intended.

Value means job cost.

(Ord. No. 89-234, § 2(14-4), 9-28-89; Ord. No. 90-87, § 1, 3-22-90)

Cross reference— Definitions and rules of construction generally, § 1-2.

Sec. 11-5. - Administrative authority.

The provisions of this chapter shall be administered and enforced by the official. For purposes of administration of the provisions of this chapter, the official's designee shall be the fire marshal.

(Ord. No. 89-234, § 2(14-5), 9-28-89)

Cross reference— Administrative authority of the official, § 1-13; delegation of administrative authority, § 1-14.

Sec. 11-6. - Alternate materials and methods of construction.

The provisions of this chapter are not intended to prevent the use of any material or method of construction not specifically prescribed by this chapter, provided any such alternate has been approved by the official. The official shall approve any such alternate, provided he finds that the alternate for the purpose intended is at least the equivalent of that prescribed in this chapter in quality, strength, effectiveness, fire resistance, durability and safety. The official shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternate. If these criteria are not met, the official shall deny the request.

(Ord. No. 89-234, § 2(14-6), 9-28-89)

Sec. 11-7. - Fire marshal's authority to make arrests.

The Fire Marshal and his designated representatives shall have power to make arrests for the violation of the provisions of this chapter or any city ordinances relating to fire prevention, fire control or the abatement of fire hazards. In the investigation of fires, bombings, or any attempt of fires or bombings or any related offenses, the Fire Marshal and his designated representatives shall have the same authority as police officers, including the right to bear arms. This authority shall be regulated by the Fire Marshal.

(Ord. No. 89-234, § 2(14-7), 9-28-89; Ord. No. 2009-68, § 1, 4-30-09)

Sec. 11-8. - Investigation of fires.

The Fire Marshal and his designated representatives shall investigate the origin, cause, and circumstances of every fire of explosion occurring within the jurisdiction of the city, which is of suspicious nature or which involves loss of life or injury to person or by which property has been destroyed or damaged or an attempt has been made to destroy property, or cause loss of life or injury. Where it has been determined through such investigation that the fire is of a criminal nature, it shall be the responsibility of

the Fire Marshal or his designated representative to conduct further investigation to determine who is criminally responsible, to develop a case for presentation to the State Attorney, and arrest those for whom probable cause has been established that a criminal act has been committed.

(Ord. No. 2009-68, § 2, 4-30-09)

Secs. 11-9—11-25. - Reserved.

DIVISION 2. - CERTIFICATES; DOCUMENTS; REQUIREMENTS; ETC.

Sec. 11-26. - Applications; documentation.

- (a) Any person legally entitled to apply for and receive a permit under the provisions of this chapter shall make such application in writing to the city on forms provided for that purpose. Every applicant for a permit shall give a description of the character of the work proposed to be done and the location, ownership, occupancy and use of the premises in connection therewith. The city may require plans, specifications or drawings and such other information as it may deem necessary and pertinent prior to the granting of a permit. If the city determines that the plans, specifications, drawings, descriptions or other information furnished by the applicant is in compliance with this chapter, the rules and regulations of any other department having jurisdiction and any other laws, rules and regulations pertaining to work proposed to be done, it shall issue the permit applied for upon payment of the required fee.
- (b) The order, sequence and prerequisite for making applications for service shall be as designated by the official.

(Ord. No. 89-234, § 2(14-41), 9-28-89)

Sec. 11-27. - Fire code compliance inspections.

All commercial establishments, including residential structures of three (3) or more dwelling units, are subject to periodic fire code compliance inspections. The inspections are to be conducted for the purpose of determining compliance with fire safety codes applicable to the use and location of commercial establishments and facilities. An inspection fee as established by city council resolution is due and payable upon the first inspection of an establishment within any one (1) fiscal-year period of the city, and a reinspection fee as set by city council resolution is due and payable for each reinspection done to verify that required corrections have been made.

(Ord. No. 89-234, § 2(14-42), 9-28-89)

Cross reference— Inspections generally, § 1-27.

Sec. 11-28. - Testing requirements.

For the purpose of testing objects or materials for compliance with applicable Code sections when required, the applicable test must be performed by a nationally recognized fire research laboratory.

(Ord. No. 89-234, § 2(14-43), 9-28-89)

Secs. 11-29—11-45. - Reserved.

DIVISION 3. - FEE AUTHORITY AND TYPES; PERMITS; INSPECTIONS

Sec. 11-46. - Fees—City council to establish.

The city council shall have the authority to set fees by resolution.

(Ord. No. 89-234, § 2(14-51), 9-28-89)

Sec. 11-47. - Same—Types enumerated.

Fees may be charged for the following:

- (1) Permit fees;
- (2) Reinspection fees;
- (3) Fire code compliance inspection fees;
- (4) Hazardous materials incidents;
- (5) False fire alarms;
- (6) Public education activities;
- (7) Plan examination fees;
- (8) Administrative fees.

(Ord. No. 89-234, § 2(14-52), 9-28-89; Ord. No. 98-3, § 1, 1-8-98)

Sec. 11-48. - Permits—Types.

Permits shall be required for the following:

- (1) *Petroleum product storage tanks.*

a.

Required for the installation, alteration, removal or repair of tanks intended to store liquid petroleum products or any other flammable or combustible liquids.

- b. May be issued to state-certified and city-licensed petroleum equipment contractors upon approval of plans as required by the official and upon payment of required fees.
- c. Scope of work. A petroleum product storage tank permit authorizes the permittee to perform the work indicated on approved plans in accordance with applicable codes and within the scope of the permittee's certificate of competency.

(2) *Liquid propane gas (LPG).*

- a. Required for the installation, alteration or repair of LPG tanks, valves, piping and/or appliances.
- b. May be issued to state-certified and city-licensed LPG contractors upon approval of plans as required by the official and upon payment of required fees.
- c. Scope of work. An LPG installation permit authorizes the permittee to perform the work indicated on the permit (and the approved plans, when applicable) in accordance with applicable codes and within the scope of the permittee's certificate of competency.

(3) *Fire suppression system.*

- a. Required for the installation, alteration or repair of fire suppression systems.
- b. May be issued to state-certified and city-licensed fire protection contractors upon approval of plans as required by the official and upon payment of required fees.
- c. Scope of work. A fire suppression system installation permit authorizes the permittee to perform the work indicated on approved plans in accordance with applicable codes and within the scope of the permittee's certificate of competency.

(4) *Fire alarm system.*

- a. Required for the installation or alteration of fire alarm systems.
- b. May be issued to state-certified and city-licensed low voltage electrical or electrical contractors upon approval of plans as required by the official and upon payment of required fees.
- c. Scope of work. A fire alarm system installation permit authorizes the permittee to perform the work indicated on approved plans in accordance with applicable codes and within the scope of the permittee's certificate of competency.

(5) *Liquid propane gas (LPG) sales, transport, storage and handling.*

- a. Required for the sale, transportation, storage and handling of liquid propane gas.
- b. May be issued to state-certified and city-licensed LPG contractors upon inspection and approval of the business facility, including equipment and vehicles, and upon payment of required fees.

- c. Scope of work. An annual LPG sales, transport, storage and handling permit authorizes the permittee to seal, transport, store and handle liquid propane gas in accordance with applicable codes and within the scope of the permittee's certificate of competency.

(6) *Temporary tent.*

- a. Required for installation of tents in excess of one hundred (100) square feet to be used for any commercial or nonprofit activity where the public at large is invited to attend.
- b. May be issued to licensed general building or residential contractors, property lessees or their agents, a city-licensed tent rental company.
- c. Scope of work. The holder of a tent permit is authorized to erect a tent or tents in accordance with the approved plans and subject to the requirements of the official.

(7) *Blasting.*

- a. Required for the use of explosives, as defined in F.S. Ch. 552, within the city limits.
- b. May be issued to persons holding a current explosive materials user's license issued by the state fire marshal upon approval of an application as required by the official and upon payment of required fees.
- c. Scope of work. A blasting permit authorizes the permittee to perform the work indicated on the permit application as approved by the official in accordance with applicable codes and within the scope of the permittee's license.

(8) *Transportation of explosives.*

- a. Required for the transportation of explosives, as defined in F.S. Ch. 552, into, through or within the city limits.
- b. May be issued to persons holding a current explosive materials user's license issued by the state fire marshal or commercial carriers properly licensed to transport explosives upon approval of an application as required by the official and upon payment of required fees.
- c. Scope of work. An explosives transport permit authorizes the permittee to transport explosives within the city limits under the terms and conditions set by the official.

(9) *Public display of fireworks.*

- a. Required for the public display of fireworks within the city limits.
- b. May be issued to a licensed and insured fireworks display operator who has met the requirements of the official as to competency and experience.
- c. Scope of work. A fireworks display permit authorizes the permittee to conduct such a display within the city limits under the terms and conditions set by the official.

(10) *Retail sale of sparklers.*

- a. Required for the retail sale of pyrotechnic novelty devices.

- b. May be issued to retailers holding a current certificate of registration issued by the state fire marshal.
- c. Scope of work. The retail sale of sparklers which are approved for sale by the state fire marshal and other devices not classified as fireworks.

(11) *Other permits.* Other permits as described in the Standard Fire Prevention Code hereinafter adopted are required as set forth in such standard code. The official shall determine to whom such permits may be issued and shall specify the work or activity permitted thereby.

(Ord. No. 89-234, § 2(14-53), 9-28-89)

Sec. 11-49. - Same—Requirements.

- (a) *Applications.* Applications for permits required by this chapter shall be on forms provided by the official and shall contain the information required by the official.
- (b) *Insurance.* Proof of liability insurance, with the city as an additional insured, in the amount of one million dollars (\$1,000,000.00), issued by an insurer licensed to do business in the state, is a prerequisite for the issuance of blasting and fireworks display permits. The official may require a higher dollar limit if he finds that, due to the location or nature of the permitted event, such higher limit would be in the city's or the public's interest. The official may require similar insurance for other events or activities requiring his approval when, due to the circumstances, nature or location of the event or activity, it is in the city's and the public's interest to do so.

(Ord. No. 89-234, § 2(14-54), 9-28-89)

Sec. 11-50. - Same—Revocation.

The official may revoke permits required under this chapter and issued by him upon finding that:

- (1) The permit was issued by mistake of law or fact;
- (2) The permit is for work which violates the provisions of this chapter;
- (3) The permit was issued upon a false statement or misrepresentation by the applicant;
- (4) The permit violates any ordinance of the city or any state or federal law, rule or regulation;
- (5) The work is not being performed in accordance with the provisions of this chapter;
- (6) The certificate of competency or license of the permittee has become invalid by reason of expiration, suspension, revocation or otherwise;
- (7) The work is not being performed under the supervision of the holder of the certificate or license upon which the same was issued;
- (8) The work is not being done in accordance with the terms of the permit, the plans or the application upon which the same was issued; or

(9) Payment of the permit fee was not effected due to insufficient funds or any other reason.

(Ord. No. 89-234, § 2(14-55), 9-28-89)

Sec. 11-51. - Same—Nontransferability.

No permit required by this chapter shall be transferable from the permittee to another, and the issuance of a permit for certain work shall not preclude the issuance of a subsequent permit for the same work or for the completion of the work.

(Ord. No. 89-234, § 2(14-56), 9-28-89)

Sec. 11-52. - Inspections; other approvals.

Activities regulated by this chapter shall be subject at all times to inspection by the city. The official may require documents, drawings or certificates necessary to effect approval of such work.

(Ord. No. 89-234, § 2(14-57), 9-28-89)

Cross reference— Inspections generally, § 1-27.

Sec. 11-53. - Approval of fire marshal—Required for the location and manner of development of all installations involving the manufacture, processing or storage of flammable liquids, liquefied petroleum gases or explosives and blasting agents.

After December 20, 1966, all installations involving the manufacture, processing or storage of flammable liquids, liquefied petroleum gases or explosives and blasting agents shall be permitted only in such locations and in such manner of development as are expressly approved by the fire marshal. In approving or disapproving any such installations, the fire marshal shall be governed by the regulations, purposes and intent of the fire prevention code. In granting approval of any such installation, the fire marshal may impose such conditions as may be reasonably necessary to carry out the intent of the fire prevention code and to promote the public health, safety and general welfare of the city. Application for approval shall be made in accordance with procedures and forms as established and made available by the fire marshal. In the event of disapproval, the fire marshal shall furnish the applicant with the written reasons therefor within a reasonable period of time.

(Ord. No. 89-234, § 2(14-58), 9-28-89)

Sec. 11-54. - Same—Exceptions.

The approval of the fire marshal, as set forth in section 11-53, shall not be necessary with respect to the location of installations for the storage of flammable liquids for airport and related airport uses at Tampa International Airport, and such installations for the storage of flammable liquids for airport and related

airport uses at the airport, including aboveground tanks, are hereby specifically authorized, any other sections or provisions of this Code to the contrary notwithstanding; provided, however, that such installations shall comply with all the requirements set forth in section 902 of the Standard Fire Prevention Code.

(Ord. No. 89-234, § 2(14-59), 9-28-89)

Sec. 11-55. - Failure to obtain permit.

Any person who shall commence any work regulated by this chapter without first obtaining a permit therefor shall, if subsequently permitted to obtain a permit, pay double the permit fee prescribed for the work and any other administrative fees or fines as set forth by this chapter. This section shall not apply to emergency work when failure to commence the same immediately would clearly have placed life or property in imminent danger, but in all such cases a permit must be obtained as soon as it is practicable, and if there is any unreasonable delay in obtaining such permit, a double fee shall be charged. The payment of a double fee shall not preclude nor be deemed a substitute for prosecution for commencing work without first obtaining a permit.

(Ord. No. 89-234, § 2(14-60), 9-28-89)

Sec. 11-56. - False fire alarms.

- (a) A fee for false fire alarms, as established by a city council resolution, may be assessed to defray the expense of responding to the false fire alarms. Responsibility for a false fire alarm shall be borne by the owner or lessee of the alarm system or his employee, servant or agent occupying and/or controlling the premises at the time of the occurrence of the false fire alarm.
- (b) A governmental or public facility will be exempted from the provisions in subsection (a) above, if:
 - (1) The governmental or public facility is registered with the fire marshal's office. The registration must state a certified individual or company with qualifications to service fire alarm systems;
 - (2) The governmental or public facility receives scheduled, regular service, at least twice a year, of its fire alarm system; and
 - (3) The governmental or public facility receives service on its fire alarm system when a false fire alarm occurs and, thereafter, sends all reports of tests and service on the fire alarm system to the fire marshal's office.

A governmental or public facility which does not comply with the provisions in this subsection will not be exempted from the provisions in subsection (a).

(Ord. No. 89-234, § 2(14-61), 9-28-89; Ord. No. 90-87, § 2, 3-22-90)

Secs. 11-57—11-75. - Reserved.

ARTICLE II. - SANCTIONS; APPEALS; BOARDS

DIVISION 1. - GENERALLY

Secs. 11-76—11-90. - Reserved.

DIVISION 2. - ACTION AUTHORIZED TO MITIGATE VIOLATIONS

Sec. 11-91. - Stop work and emergency orders.

Upon notice from the official, work on any system that is being done contrary to the provisions of this chapter or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, his agent or the person doing the work or posted at the job site and shall state the conditions under which work may be resumed. Where an emergency exists, verbal notice by the official shall be sufficient to require the stoppage of work.

(Ord. No. 89-234, § 2(14-71), 9-28-89)

Sec. 11-92. - Unsafe conditions, work and nonconforming structures.

- (a) Any building or structure which is unsafe, unsanitary, does not provide adequate egress, constitutes a fire hazard, is otherwise dangerous to human life or, in relation to existing use, constitutes a health or safety hazard, is considered an unsafe building. Any such unsafe building is hereby prohibited and shall be abated by repair and rehabilitation or by demolition in accordance with the provisions of this Code.
- (b) If it shall come within the ascertainment of the official that any building, structure, building system, building component or work is dangerous, unsafe, unsanitary, a menace to life, health or property or is in violation of this chapter, the official may institute an investigation. If the official determines that such condition does exist, the official shall order and serve written notice to any person, agent, owner or occupant using or maintaining any such condition or who is responsible for the maintenance thereof to discontinue the use or maintenance thereof or to repair, replace, alter, change, remove, demolish or otherwise correct the same as may be considered necessary for the protection of life, health and property. Such written notice shall state precisely which building component or work is in violation of this section, the reasons for the violation and the time prescribed for the correction of the violation. If such order is not complied with in the time prescribed in the written notice, the official may notify the appropriate utility company serving

such premises to disconnect the premises from its service lines, and the official may institute an action or proceeding in the appropriate court to prevent, restrain, abate or otherwise correct such condition.

- (c) If the official shall find any building, structure, building system, building component or work upon or within any premises so dangerous as to place persons or property in imminent danger of injury or damage so that an emergency is created, the official shall forthwith order such work to cease, shall disconnect such component from the service lines or order the appropriate utility company serving such premises to disconnect the same from its service lines or both. The owner, agent, occupant or person responsible for the maintenance thereof shall have the right of appeal in accordance with this chapter, but the dependency of any such appeal shall not stay or supersede the action of the official. It shall be unlawful for any person to reconnect such building system or component until the same has been made safe and written authorization has been obtained from the official or until his action has been reversed by the unified construction trades board.

(Ord. No. 89-234, § 2(14-72), 9-28-89)

Cross reference— Unsafe buildings, work and nonconforming structures, § 5-228; certain structures declared public nuisance, § 19-48.

Related law reference—Dangerous and unsafe buildings, Art. VI.

Sec. 11-93. - Interfering with, obstructing firemen, emergency workers.

It is unlawful for any person to interfere with, oppose, attack, threaten or delay firemen or other emergency workers in the discharge of their duties pursuant to the laws and ordinances of this city. It shall also be unlawful for any person to interfere with or deny access to any equipment or facilities used by firemen or emergency workers in the discharge of their duties pursuant to the laws and ordinances of this city.

(Ord. No. 89-234, § 2(14-73), 9-28-89)

Secs. 11-94—11-115. - Reserved.

ARTICLE III. - TECHNICAL PROVISIONS

DIVISION 1. - AUTHORITY TO ESTABLISH/PUBLISH TECHNICAL STANDARDS

Sec. 11-116. - Technical standards may be established.

The official may establish technical standards setting forth administrative guidelines governing the enforcement of this chapter, requirements not specifically addressed in this chapter but necessary to the effective pursuit of the purpose of this chapter and any other information needed for the uniform and orderly administration of this chapter. Such standards are to be published in a technical manual, which manual shall be on file in the office of the city clerk at least seven (7) days prior to adoption thereof and shall be made available to the public for inspection and for duplication at cost.

(Ord. No. 89-234, § 2(14-111), 9-28-89)

Cross reference— Requirements not covered by Code may be required by the official, § 1-17.

Secs. 11-117—11-135. - Reserved.

DIVISION 2. - ADOPTION OF STANDARDS BY REFERENCE

Sec. 11-136. - Fire limits established.

The fire district limits of the city are hereby established as designated upon the map on file in the office of the city clerk, such map being designated and described as the "Building Code Fire Limits Atlas Map," and such map and all notations, references or other information shown thereon shall be as much a part of this section as if such information set forth on such map were fully described and set out herein.

(Ord. No. 89-234, § 2(14-121), 9-28-89)

Sec. 11-137. - Florida Fire Prevention Code adopted.

The city adopts by reference and incorporates into this Code as though fully set out herein, that certain code, as it may from time to time be amended, known as the Florida Fire Prevention Code. The Florida Fire Prevention Code includes and incorporates by reference, as a part thereof, the National Fire Protection Association Uniform Fire Code, NFPA 1, and the Life Safety Code, NFPA 101.

(Ord. No. 89-234, § 2(14-122), 9-28-89; Ord. No. 95-178, § 1, 9-7-95; Ord. No. 2007-246, § 1, 12-6-07)

Secs. 11-138, 11-139. - Reserved.

Editor's note— Ord. No. 2007-246, § 2, adopted Dec. 6, 2007, repealed §§ 11-138 and 11-139, which pertained to Life Safety Code adopted and Standard Fire Prevention Code adopted; amended. See also the Code Comparative Table.

Chapter 17.5 - AFFORDABLE HOUSING, SUSTAINABILITY, AND CONCURRENCY MANAGEMENT SYSTEM

*Footnotes:**--- (1) ---*

Editor's note— *Ord. No. 2012-123, § 1, adopted November 1, 2012, effective December 15, 2012, amend the title of Ch. 17.5 to read as herein set out. Formerly said chapter was entitled planning and land development.*

Cross reference— *Building and construction regulations, Ch. 5; landscaping, tree removal and site clearing, Ch. 13; signs, § 19-96 et seq.; stormwater management, Ch. 21; subdivision procedures, § 27-153.1 et seq.; transportation, Ch. 25; water, § 26-66 et seq.; sanitary sewers, § 26-116 et seq.; solid waste, § 26-146 et seq.; zoning and land development, Ch. 27.*

Related law reference—*Planning commission, Art. XVII.*

ARTICLE I. - AFFORDABLE HOUSING ADVISORY COMMITTEE AND COMPLIANCE AND MONITORING FEES FOR AFFORDABLE HOUSING DEVELOPMENTS

Sec. 17.5-1. - Creation.

There is hereby established the affordable housing advisory committee, hereafter referred to as AHAC, which shall serve as the advisory review board to periodically evaluate established policies, procedures, ordinances, land development regulations, and the local government comprehensive plan, and report its findings to the Mayor and City Council of the City of Tampa (hereafter jointly referred to as the "governing body") with recommended changes.

(Ord. No. 2008-77, § 1A, 5-15-08)

Sec. 17.5-2. - Membership.

The AHAC shall be comprised of eleven (11) members. Six (6) members of the AHAC shall be appointed by the mayor, with the approval of the majority of city council, and five (5) members shall be appointed by city council. All appointees shall be residents of the City of Tampa. The members shall have a demonstrated interest, competence, professional experience or knowledge in the development of affordable housing, planning, building, real estate, mortgage lending, law or other related discipline.

(1) In appointing the six mayor-appointed members, the mayor shall include:

- a. One (1) citizen who is actively engaged in the residential home building industry in connection with affordable housing.
- b. One (1) citizen who is actively engaged in banking or mortgage banking industry in connection with affordable housing.
- c. One (1) citizen who is a representative of those areas of labor actively engaged in home building in connection with affordable housing.
- d.

One (1) citizen who is actively engaged as an advocate for low-income persons in connection with affordable housing.

- e. One (1) citizen who is actively engaged as a for-profit provider of affordable housing.
 - f. One (1) citizen who is actively engaged as a not-for-profit provider of affordable housing.
- (2) In appointing the five city council-appointed members, city council shall include
 - a. One (1) citizen who is actively engaged as a real estate professional in connection with affordable housing.
 - b. One (1) citizen who actively serves on the local planning agency pursuant to F.S. § 163.3174.
 - c. One (1) citizen who resides within the City of Tampa.
 - d. One (1) citizen who represents employers within the City of Tampa.
 - e. One (1) locally elected official.
- (3) If the governing body, whether due to the city's size, the presence of a conflict of interest by prospective appointees, or other reasonable factor, is unable to appoint a citizen actively engaged in these activities in connection with affordable housing, a citizen actively engaged in the activities without regard to affordable housing may be appointed.
- (4) The members of the AHAC shall not be entitled to compensation, pension, or other retirement benefits by virtue of serving on the AHAC, but shall be entitled to receive their travel expenses and other actual AHAC expenses, as approved by the director (defined in section 17.5-5, below), while outside of the city in the performance of their duties as a committee member, in an amount equal to and computed in the same manner as the amount allowed to officials of the city for travel and subsistence while traveling on public business.
- (5) If a member of the AHAC has one (1) or more conflicts of interest, as defined in F.S. Ch. 112, within one (1) year, then such a member's appointment shall be reviewed by the mayor for a determination of whether the member's business or personal interests present frequent, recurring conflicts with his/her membership. Upon such a finding by the mayor with the approval of city council, the AHAC member shall be removed and a replacement appointed. Except with respect to their official duties, members of the AHAC shall not participate in activities relating to matters filed with the AHAC.
- (6) The locally elected official must, as provided in F.S. § 420.531(2), attend biannual regional workshops convened and administered under the Affordable Housing Catalyst Program. Per F.S. § 420.9076(10), the Florida Housing Finance Corporation may withhold funds if the locally elected official fails to attend three (3) consecutive regional workshops pending such person's attendance at the next regularly scheduled biannual meeting. As such, if the locally elected official fails to attend two (2) consecutive regional workshops, they shall be removed and a

replacement appointed by city council; provided, however, if the Florida Housing Finance Corporation waives a locally elected officials absence in writing, for example due to illness or an emergency, that absence shall be deemed an excused absence.

(Ord. No. 2008-77, § 1B, 5-15-08; Ord. No. 2020-88, § 1, 9-17-2020)

Sec. 17.5-3. - Terms.

All appointments shall be made for terms of three (3) years. No member shall serve more than two (2) consecutive terms on the AHAC. Appointments to fill a vacancy shall be for the unexpired term of office, which term shall not count toward the two (2) consecutive term limit. Upon the expiration of a term, members may continue to serve until replaced by the original governing body. Upon the expiration of a term and replacement by the governing body, a former member is not eligible to be re-appointed to the AHAC unless a minimum of one (1) year has transpired. The terms of the original members may be staggered so that all terms may not expire simultaneously. The locally elected official shall only serve while holding the elected office and does not have to wait to be eligible for re-appointment.

(Ord. No. 2008-77, § 1C, 5-15-08; Ord. No. 2020-88, § 2, 9-17-2020)

Sec. 17.5-4. - Officers.

The AHAC shall each year elect members to serve as chair and vice-chairs. The chair shall preside at meetings of the AHAC and shall have the right to vote. The chair shall be the spokesman for the AHAC in presenting its policy to the public. In the absence or disability of the chair, the vice-chair shall perform the duties of the chair. At the chair's request, the AHAC administrator (as defined in [section 17.5-5](#) below) may present the AHAC policy to the public or before governmental bodies.

(Ord. No. 2008-77, § 1D, 5-15-08; Ord. No. 2020-88, § 3, 9-17-2020)

Sec. 17.5-5. - Staff.

The AHAC shall be cooperatively staffed by such department or division as the officer may administratively designate from time to time (hereinafter, "the department"), which has the authority to administer local affordable housing programs, to ensure an integrated approach to the work of the AHAC. The director of the department (hereinafter "the director") shall designate an AHAC administrator, who shall have the responsibility of assisting the AHAC in the implementation of its duties. The AHAC administrator and staff shall not sit as officers or board members of local affordable housing related organizations. The AHAC administrator and staff shall act in an impartial manner in all matters involving AHAC. Except with respect to their official duties, the AHAC administrator and staff shall not participate in activities relating to matters filed with the AHAC.

(Ord. No. 2008-77, § 1E, 5-15-08; Ord. No. 2020-88, § 4, 9-17-2020)

Sec. 17.5-6. - Meetings.

The AHAC shall meet at least once a month for the first year, and quarterly, or more frequently, thereafter, at a regularly scheduled time with advance notice given and an agenda available prior to the meeting. The chair may cancel a regularly scheduled meeting if there is no business or quorum to conduct the meeting. If a meeting is cancelled due to a lack of quorum, all matters on the agenda shall automatically carry over to the next regularly scheduled AHAC meeting. Additional meetings may be called by the chair or upon the request of six (6) members of the AHAC. All meetings of the AHAC shall be open to the public.

- (1) *Attendance at meetings.* Any member of the AHAC who misses more than three (3) consecutive regular meetings or more than half of the regular meetings in a calendar year may be dismissed from the AHAC by the mayor with the approval of city council. Replacement shall be made by the mayor or city council, whichever appointed the dismissed member. The replacement shall be made by resolution. Absences due to an illness or an emergency shall be recognized as approved absences and shall not affect the member's status on the AHAC, except that in the event of a long illness or other such cause for prolonged absence, the member may be replaced in the manner described herein.

(Ord. No. 2008-77, § 1F, 5-15-08)

Sec. 17.5-7. - Rules of procedure.

The AHAC shall adopt and make public rules for the transactions of its business.

(Ord. No. 2008-77, § 1G, 5-15-08)

Sec. 17.5-8. - Records; minutes and annual report.

All AHAC records are public records. The AHAC administrator shall prepare and file, available for public inspection, minutes of its meetings, written reports, and such records of its activities as may be performed in the regular course of its activities.

(Ord. No. 2008-77, § 1H, 5-15-08)

Sec. 17.5-9. - Conflict of interest.

AHAC members shall comply with the state ethics code and the city code of ethics, in the same manner as those codes are applicable to appointed officials. Any member who abstains from a vote due to a conflict of interest shall not be considered as part of the total membership for that vote.

(Ord. No. 2008-77, § 11, 5-15-08)

Sec. 17.5-10. - Powers and duties of the AHAC and AHAC staff.

The AHAC shall have the following responsibilities as authorized by F.S. § 420.9076:

- (1) *Function of the AHAC generally.* Annually, the AHAC shall review the established policies and procedures, ordinances, land development regulations and the local comprehensive plan, and shall recommend specific actions or initiatives to encourage or facilitate affordable housing while protecting the ability of the property to appreciate in value.
- (2) *Recommendations.* The recommendations may include the modification or repeal of existing policies, procedures, ordinances, regulations, or plan provisions; the creation of exceptions applicable to affordable housing; or the adoption of new policies, procedures, regulations, ordinances, or plan provisions, including recommendations to amend the local government comprehensive plan and corresponding regulations, other regulations, ordinances, and other policies. At a minimum, the AHAC shall submit an initial report to the local governing body, and annually thereafter to the local governing body and to the entity providing statewide training and technical assistance for the Affordable Housing Catalyst Program, that includes recommendations on the implementation of, affordable housing incentives in the following areas:
 - a. The processing of approvals of development orders or permits, as defined in F.S. § 163.3164(7) and (8), for affordable housing projects, is expedited to a greater degree than other projects.
 - b. All allowable fee waivers provided.
 - c. The allowance of flexibility in densities for affordable housing.
 - d. The reservation of infrastructure capacity for housing for very-low-income persons, low-income persons, and moderate-income persons.
 - e. Affordable accessory residential units.
 - f. The reduction of parking and setback requirements for affordable housing.
 - g. The allowance of flexible lot configurations, including zero-lot-line configurations for affordable housing.
 - h. The modification of street requirements for affordable housing.
 - i. The establishment of a process by which a local government considers, before adoption, policies, procedures, ordinances, regulations, or plan provisions that increase the cost of housing.
 - j. The preparation of a printed inventory of locally owned public lands suitable for affordable housing.

k. The support of development near transportation hubs and major employment centers and mixed-use developments.

- (3) *Additional recommendations; election.* AHAC recommendations may also include other affordable housing initiatives identified by AHAC. Notwithstanding anything in section 17.5-5(2) to the contrary, if the city is a local government that only receives the minimum allocation under the State Housing Initiatives Partnership Program, it may elect not to perform the annual review.

(Ord. No. 2008-77, § 1J, 5-15-08; Ord. No. 2020-88, § 5, 9-17-2020)

Sec. 17.5-11. - Approval of recommendations.

The approval by the AHAC of its local housing incentive strategies recommendations and its review of local government implementation of previously recommended strategies must be made by affirmative vote of a majority of the membership of the AHAC taken at a public hearing.

- (1) Notice of the time, date, and place of the public hearing of the AHAC to adopt final local housing incentive strategies recommendations must be published in a newspaper of general paid circulation in the county. The notice must contain a short and concise summary of the local housing incentive strategies recommendations to be considered by the AHAC. The notice must state the public place where a copy of the tentative AHAC recommendations can be obtained by interested persons.

(Ord. No. 2008-77, § 1K, 5-15-08)

Sec. 17.5-12. - Implementation.

Within ninety (90) days after the date of receipt of the local housing incentive strategies recommendations from the AHAC, the City of Tampa shall adopt an amendment to its local housing assistance plan to incorporate the local housing incentive strategies it will implement within its jurisdiction. The amendment must include, at a minimum, the local housing incentive strategies required under F.S. § 420.9071(16). The City of Tampa must consider the strategies specified in subsections 17.5-10(2)a.—k. hereof as recommended by the AHAC.

- (1) The department, directly or through the AHAC administrator, shall notify the Florida Housing Finance Corporation (Corporation) by certified mail of the city's adoption of an amendment of its local housing assistance plan to incorporate local housing incentive strategies. The notice must include a copy of the approved amended plan.
- (2) If the corporation fails to receive the approved amended local housing assistance plan to incorporate local housing incentive strategies in a timely manner, a notice of termination of its share of the local housing distribution shall be sent by certified mail by the corporation to

the City of Tampa. The notice of termination must specify a date of termination of the funding if the city has not adopted an amended local housing assistance plan to incorporate local housing incentive strategies. If the city has not adopted an amended local housing assistance plan to incorporate local housing incentive strategies by the termination date specified in the notice of termination, the local housing distribution share terminates; and any uncommitted local distribution funds held by the city in its local housing assistance trust fund shall be transferred to the local government housing trust fund to the credit of the corporation to administer the local government housing program pursuant to F.S. § 420.9078.

(Ord. No. 2008-77, § 1L, 5-15-08; Ord. No. 2020-88, § 6, 9-17-2020)

Sec. 17.5-13. - Other responsibilities.

The AHAC may perform other duties at the request of the governing body, including:

- (1) The provision of mentoring services to affordable housing partners including developers, banking institutions, employers, and others to identify available incentives, assist with applications for funding requests, and develop partnerships between various parties.
- (2) The creation of best practices for the development of affordable housing in the community.

(Ord. No. 2008-77, § 1M, 5-15-08)

Sec. 17.5-14. - Compliance and monitoring fees.

(1) *Definitions.*

- (a) "*Affordable housing project*" shall mean a project containing one or more affordable housing units approved or authorized by the city pursuant to:
 - (i) A bonus provision agreement approving bonus density or floor area pursuant to section 27-140(f)(1) of the Tampa City Code; or
 - (ii) F.S. § 166.04151(6); or
 - (iii) F.S. § 166.04151(7).
- (b) "*Affordable housing unit(s)*" shall mean one or more residential dwelling units that is/are deemed "affordable" as defined in F.S. § 420.0004, and is also designated as an affordable unit pursuant to a land use restrictions agreement or "LURA".
- (c) "*LURA*" or land use restriction agreement means the Declaration of Affordable Housing Restrictive Covenants, or such other declaration or land use restriction agreement executed by the fee owner of the affordable housing units in an affordable housing project in favor of the City of Tampa, which is recorded in the public records of Hillsborough County, Florida, and which subjects the affordable housing units in an affordable housing project to restrictions

ensuring that the affordable housing units remain "affordable" as defined in F.S. § 420.0004, for a minimum prescribed period of time as may be required by the city consistent with City Code or Florida Statutes.

- (2) An owner of an affordable housing project shall pay the following monitoring and compliance fees to the city:
 - (a) A fee per affordable housing unit shall be paid prior to the issuance of the certificate of occupancy for the building(s) containing one or more affordable housing units. Such fee shall be set by resolution of the Tampa City Council and shall be based upon the actual cost to the city to qualify initial occupants for the affordable housing units.
 - (b) An annual fee shall be paid with the submittal of the annual monitoring report, as required by the LURA. Such fee shall be set by resolution of the Tampa City Council and shall be based upon the actual cost to the city to monitor compliance of the affordable housing project with the LURA.
- (3) An "affordable housing project" as defined in this section shall not include a project that is completed with funding provided by the city and which is subject to a separate funding agreement entered into with the city.
- (4) These compliance and maintenance fees shall not be paid to the city in the event that the fee owner of the affordable housing project and the city have agreed in writing to the utilization of a third-party monitoring company provided that: (1) the third-party monitoring company is approved by the city; (2) the scope of the monitoring services to be provided by the third-party monitoring company have been approved by the city; (3) the third-party monitoring company performs the monitoring services, as required by the city, and issues monitoring reports to the city, as required by the city; and (4) the owner of the affordable housing project pays for all monitoring services and monitoring reports provided to the city by the third-party monitoring company.

(Ord. No. 2024-50, § 3, 6-6-2024)

Sec. 17.5-15. - Reserved.

ARTICLE II. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2012-123, § 2, adopted November 1, 2012, repealed §§ 17.5-16, 17.5-17, which pertained to land development code and derived from Ord. No. 90-35, §§ 1, 2, 2-8-90; Ord. No. 90-112, § 1, 4-26-90; Ord. No. 90-249, § 1, 10-4-90; Ord. No. 2002-77, § 1, 3-14-02; Ord. No. 2006-297, § 1, 11-20-06. The users' attention is directed to Ch. 27 for similar provisions.

Secs. 17.5-16—17.5-40. - Reserved.

ARTICLE III. - TAMPA COMPREHENSIVE PLAN AND CONCURRENCY MANAGEMENT SYSTEM

Footnotes:

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Editor's note— This article is included as part of the land development code adopted in § 17.5-17 which combines and compiles all land development regulations into a single land development code. This article consists of the substantive portions of Ord. No. 90-32 enacted February 8, 1990. Section II(A) of Ord. No. 90-32 states in pertinent part: "The recital clauses of this Ordinance ... are hereby adopted by reference as the legislative findings of the City Council" Therefore, the preamble of Ord. No. 90-32 is published as follows:

AN ORDINANCE OF THE CITY OF TAMPA, FLORIDA, ADOPTING A CONCURRENCY MANAGEMENT SYSTEM; STATING THE AUTHORITY AND PURPOSE OF A CONCURRENCY MANAGEMENT SYSTEM; PROVIDING FOR DEFINITIONS; PROVIDING FOR CONCURRENCY EVALUATION AND DETERMINATION PROCEDURES; PROVIDING FOR MINIMUM REQUIREMENTS; PROVIDING FOR RECOGNITION OF ESTABLISHED LEVELS OF SERVICE IN THE TAMPA COMPREHENSIVE PLAN; PROVIDING FOR A VESTED RIGHTS PROCEDURE; PROVIDING FOR BENEFICIAL USES; PROVIDING FOR A CONCURRENCY INFORMATION CENTER; PROVIDING FOR THE MONITORING OF FINAL DEVELOPMENT PERMITS; PROVIDING AUTHORITY FOR FEES; PROVIDING FOR MANDATORY REVIEW; PROVIDING A SEVERABILITY CLAUSE; PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, Section 163.3161, et seq., Florida Statutes (1989), establishes the Local Government Comprehensive Planning and Land Development Regulation Act (the "Growth Management Act"); and

WHEREAS, the Growth Management Act requires all local governments to adopt comprehensive plans which regulate the development of land within the local government's jurisdiction; and

WHEREAS, the City of Tampa ("City") adopted its comprehensive plan as Ordinance No. 89-167 on July 17, 1989 ("Tampa Comprehensive Plan"); and

WHEREAS, Section 163.3202, Florida Statutes, requires that each local government adopt land development regulations within one year after submission of its revised comprehensive plan, which regulations shall contain specific and detailed provisions necessary or desirable to implement the adopted comprehensive plans; and

WHEREAS, the City must adopt and enforce land development regulations which assure that public facilities and services meet or exceed the standards established in the Tampa Comprehensive Plan; and

WHEREAS, the City must adopt a Concurrency Management System ("CMS") which prohibits development which results in a reduction of level of service for affected public facilities and services below that provided in the Tampa Comprehensive Plan; and

WHEREAS, the Concurrency Management Advisory Committee met on December 1, 8, and 15, 1989 and January 5, 12, and 19, 1990, for the purpose of reviewing this proposed CMS, and has made recommendations to the City Council regarding this proposed CMS; and

WHEREAS, the Local Planning Agency held a public hearing on January 17, 1990 and accepted public comments, and found this Ordinance to be consistent with the Tampa Comprehensive Plan; and

WHEREAS, the City Council of the City of Tampa held public hearings on January 25 and February 8, 1990 and accepted public comments, and found this Ordinance to be consistent with the Tampa Comprehensive Plan;

WHEREAS, the City, by adopting this Ordinance, adopts and establishes a CMS for the City of Tampa;

NOW, THEREFORE, BE IT ORDAINED, by the City Council of the City of Tampa, Florida, as follows:

Subsequently, Ord. No. 2011-40, § 1, adopted March 17, 2011, amended the title of Art. III to read as herein set out. Prior to inclusion of said ordinance, Art. III was titled, "Concurrency Management System." See also the Code Comparative Table.

Sec. 17.5-41. - Authority.

- (a) This article is adopted in compliance with and pursuant to F.S. § 163.3161 et seq., the Local Government Comprehensive Planning and Land Development Regulation Act.
- (b) This article is adopted pursuant to the Constitutional and Home Rule powers of Article VIII, Florida Constitution, F.S. Ch. 166, and section 2.05 of the Charter.

(Ord. No. 90-32, § I, 2-8-90)

Sec. 17.5-42. - Legislative findings and intent.

- (a) The recital clauses of this ordinance and the following statements are hereby adopted by reference as the legislative findings of the city council and shall act as further justification and authority for the adoption of this article.
- (b) It is the purpose of this article to establish a concurrency management system (CMS) that ensures that facilities and services needed to support land development are available concurrent with the impacts of such development. The CMS shall ensure that adopted levels of service standards for roadways, potable water, sanitary sewers, solid waste, drainage, recreation, and public schools shall not be degraded below the levels adopted in the Tampa Comprehensive Plan by the issuance of a final development permit.
- (c) The city desires to establish a CMS which informs the citizens about infrastructure deficiencies, creates options to mitigate such deficiencies, informs other governments or agencies when such deficiencies exist on infrastructure not the responsibility of the city, and allows minimal development which will avoid a claim against the city that property has been "taken without just compensation."
- (d) Not all such development activity impacts are significant enough to cause the deterioration of the level of service as adopted in the Tampa Comprehensive Plan. It is, therefore, further found that to establish a minimum developmental impact in accordance with applicable state law, as it may be amended from time to time, which minimum developmental impact, alone or in combination with other similar or lesser impacts, will not cause an unacceptable degradation of existing levels of service is consistent with the goals, objectives and policies of the Tampa Comprehensive Plan. Application of this methodology is found to be substantially related to the preservation of individual, private property rights in accordance with the state comprehensive plan.

(Ord. No. 90-32, § II, 2-8-90; Ord. No. 99-125, § 1, 6-10-99; Ord. No. 2011-40, § 2, 3-17-2011)

Sec. 17.5-43. - Definitions.

For the purpose of this article, certain abbreviations, terms, phrases, words and their derivatives shall have the meanings as set forth in Chapter 27.

(Ord. No. 90-32, § III, 2-8-90; Ord. No. 99-125, §§ 2, 3, 6-10-99; Ord. No. 2011-40, § 3, 3-17-2011; Ord. No. 2012-123, § 3, 11-1-2012)

Sec. 17.5-44. - Concurrency review procedures.

Review procedures for the concurrency management system shall be as follows:

- (1) *Concurrency determination of a preliminary development permit.* A concurrency evaluation must be performed by the city prior to the issuance of a preliminary development permit. The concurrency evaluation for a preliminary development permit will be incorporated into the development review process. The evaluation with respect to facility or service availability will be included in the staff report or review. The concurrency evaluation performed for a preliminary development permit does not guarantee service availability during subsequent reviews. A certificate of concurrency will not be issued for a preliminary development permit.
- (2) *Concurrency determination for a final development permit.*
 - a. *General.*
 1. The issuance of a certificate of concurrency ("COC") shall be required with the issuance of any final development permit.
 2. If a development requires more than one (1) final development permit, the issuance of the COC shall occur with the issuance of the first final development permit.
 3. A COC shall automatically expire with the expiration of the final development permit to which it applies, unless otherwise specified herein. In the event that a time extension is granted prior to the expiration of the final development permit, then the accompanying COC shall be automatically renewed for the length of the time extension.
 4. If the concurrency determination results in a finding that public facilities and services are sufficient to serve the development, the appropriate city department or agency shall reserve the capacity required for the final development permit after application and approval of the permit, except that reservation of capacity for F.S. Ch. 380 final development permits shall occur at the time of issuance of the final report by the Tampa Bay Regional Planning Council. This capacity shall not be returned to the system unless and until the application is, for whatever reason, denied, rejected, expired, invalidated or abandoned.
 5. If the concurrency determination results in a finding that public facilities and services are not sufficient to serve the development, the application for the final development permit shall be returned to the applicant with an explanation as to what the

deficiencies are. Notwithstanding this provision, permits will be issued in accordance with section 17.5-49 of this article.

b. *Concurrency determination at application for commercial site plan.*

1. With respect to potable water, wastewater, solid waste and parks and recreation, if the annual capacity statement indicates that a public facility or service is at ninety (90) percent of capacity, the applicant shall provide the information, as outlined in the concurrency procedures manual, to determine project impact on available capacity.
2. With respect to stormwater management, and public schools, all commercial site plan applications will be reviewed in accordance with the requirements outlined in the concurrency procedures manual.
3. With respect to transportation, commercial site plan applications within the TCEA are not subject to concurrency review; however all commercial site plan applications will be reviewed in accordance with the requirements outlined in the transportation review and mitigation procedures manual as set forth in Chapter 25.
4. If adequate public facilities and services exist to serve the proposed development, a COC will be issued with the approval of the commercial site plan. The applicant has one (1) year from commercial site plan approval to obtain a building permit. If a building permit is not received within that year, the COC expires and the reserved capacity for the project is returned to the system.

c. *Concurrency determination at application for building permit.*

1. With respect to potable water, wastewater, solid waste and parks and recreation, if the annual capacity statement indicates that a public facility or service is at ninety (90) percent of capacity, the applicant shall provide the information, as outlined in the concurrency procedures manual, to determine project impact on available capacity.
2. With respect to stormwater management, and public schools, all building permit applications will be reviewed in accordance with the requirements outlined in the concurrency procedures manual.
3. With respect to transportation, building permit applications within the TCEA are not subject to concurrency review; however all building permit applications will be reviewed in accordance with the requirements outlined in the transportation review and mitigation procedures manual as set forth in Chapter 25.
4. If adequate public facilities and services exist to serve the proposed development, a COC will be issued with the approval of the building permit. The COC is valid for the length of the building permit approval.

d. *Concurrency determination at application for construction drawing review.*

- 1.

With respect to potable water, wastewater, solid waste and parks and recreation, if the annual capacity statement indicates that a public facility or service is at ninety (90) percent of capacity, the applicant shall provide the information, as outlined in the concurrency procedures manual, to determine project impact on available capacity.

2. With respect to stormwater management, and public schools, all construction drawing review applications will be reviewed in accordance with the requirements outlined in the concurrency procedures manual.
 3. With respect to transportation, construction drawing applications within the TCEA are not subject to concurrency review; however all construction drawing applications will be reviewed in accordance with the requirements outlined in the transportation review and mitigation procedures manual as set forth in Chapter 25.
 4. If adequate public facilities and services exist to serve the proposed development, a COC will be issued with the approval of the construction drawings. The COC is valid for the length of the construction drawing approval.
- e. *Concurrency determination at application for final plat.*
1. With respect to potable water, wastewater, solid waste and parks and recreation, if the annual capacity statement indicates that a public facility or serve is at ninety (90) percent of capacity, the applicant shall provide the information, as outlined in the concurrency procedures manual, to determine project impact on available capacity.
 2. With respect to stormwater management, and public schools, all applications for final plat approval will be reviewed in accordance with the requirements outlined in the concurrency procedures manual.
 3. With respect to transportation, final plat approval applications within the TCEA are not subject to concurrency review; however all applications for final plat approval will be reviewed in accordance with the requirements outlined in the transportation review and mitigation procedures manual as set forth in Chapter 25.
 4. If adequate public facilities and services exist to serve the proposed development, a COC will be issued with the approval of the final plat. The COC is valid for the length of the final plat approval.
- f. *Concurrency determination for F.S. Ch. 380, DRI development order or Florida Quality Development.*
1. A preliminary concurrency determination will be made with the review of the application for development approval (ADA).
 2. Capacity reservation for DRIs and Florida Quality Developments may be amended from time to time, shall occur with the issuance of the final report by the Tampa Bay Regional Planning Council.

3. The certificate of concurrency shall be issued at approval by the DRI development order or Florida Quality Development.
4. The COC shall be valid for the length and as provided for in the DRI development order or Florida Quality Development.

(Ord. No. 90-32, § IV, 2-8-90; Ord. No. 99-125, § 4, 6-10-99; Ord. No. 2005-25, § 2, 1-27-05; Ord. No. 2011-40, § 4, 3-17-2011)

Sec. 17.5-45. - Minimum requirements for concurrency.

In order to obtain a certificate of concurrency based on the existence of adequate public facilities and/or service, the following conditions must be satisfied:

(1) *For potable water, sewer, solid waste, drainage and parks and recreation.*

- a. The necessary facilities and services are in place at the time a final development permit is issued;
- b. A final development permit is issued subject to the condition that the necessary facilities and services are included in year one (1) of the capital improvement element;
- c. The necessary facilities are under construction at the time a final development permit is issued; or
- d. Provisions of facilities and services are guaranteed via an enforceable development agreement, to be in place prior to issuance of certificate of occupancy. An enforceable development agreement may include, but is not limited to, service commitments, development agreements pursuant to F.S. § 163.3220, or an agreement or development order or Florida Quality Development issued pursuant to F.S. Ch. 380. The agreement must guarantee that the necessary facilities and services will be in place when the impacts of the development occur.

(2) *For transportation.*

- a. The provisions of subsection (1)a. through d. of this section may satisfy the concurrency test;
- b. The necessary transportation improvement(s) is/are included in the five-year schedule of capital improvements with actual construction scheduled to commence in or before the third year of the five-year schedule of capital improvements; or
- c. The necessary transportation improvement(s) is/are the subject of a binding agreement executed by the developer or an enforceable development agreement, which requires the necessary transportation improvement(s) to serve the new development to be in place or under actual construction no more than three (3) years after the issuance of a certificate of occupancy for the new development; or

- d. The new development would create a "de minimis impact," as defined in F.S. § 163.3180(6), on the existing roadways and transportation network; or
- e. The new development is located within the boundaries of the Transportation Concurrency Exception Area (TCEA). Development within the TCEA is exempt from the concurrency provision that requires the necessary transportation improvements(s) to serve the new development at adopted levels of service to be in place or under actual construction no more than three (3) years after the issuance of a certificate of occupancy for the new development. Notwithstanding the exemption from transportation concurrency, the development is still subject to transportation review and mitigation requirements as set forth in Chapter 25, Tampa City Code.

(3) *For public schools.*

- a. The new development on a lot of record or a lot approved through preliminary plat which meets the density and intensity consistent with the underlying zoning district as of the effective date of the adoption of this provision, or
- b. The new development is an amendment to a preliminary plat, which was approved prior to the effective date of the adoption of this provision, and which does not increase the number of students generated by the development based on the student generation rates for each school type, or
- c. The new development is an age restricted fifty-five-plus development that is subject to deed restrictions prohibiting the permanent occupancy of a resident under the age of fifty-five (55). Such deed restrictions must be recorded and must be irrevocable for a period of at least thirty (30) years, or
- d. The new development is a group quarters that does not generate students, including residential facilities such as local jails, prisons, hospitals, bed and breakfast, motels and hotels, temporary emergency shelters for the homeless, adult halfway houses, firehouse dorms, college dorms exclusive of married student housing, and religious non-youth facilities, or
- e. The new development would not create a demand for at least one (1) student station as defined in the concurrency management procedures manual, or
- f. The school board's written determination that adequate school capacity will be in place or under actual construction within three (3) years after the issuance of final subdivision or site plan approval for each level of school without mitigation; or
- g. The execution of a legally binding mitigation agreement between the applicant and the school board, as provided by this agreement.

(Ord. No. 90-32, § V, 2-8-90; Ord. No. 99-125, § 5, 6-10-99; Ord. No. 2005-25, § 3, 1-27-05; Ord. No. 2011-40, § 5, 3-17-2011)

Sec. 17.5-46. - Recognition of established levels of service in the comprehensive plan.

The city shall recognize those levels of service, adopted in the Tampa Comprehensive Plan, and as set forth below. The levels of service for public facilities and services subject to concurrency are:

(1) *Potable water [Policy 60.4.2 Tampa Comprehensive Plan]:*

Raw water:	125 gals/capita/day (yearly average)
Treatment:	166 gals/capita/day
Pumping capacity:	166 gals/capita/day 26 mgd (fire reserve)

(2) *Wastewater [Policy 60.4.2 Tampa Comprehensive Plan]:* The adopted level of service is divided into two (2) parts, level of service for the collection system and level of service for the treatment plant.

I. Level of service for the collection system is as follows:

District	Capacity (MGD)
Interbay	40.5
Central	50.0
West River w/Downtown	57.0
Southeast and Causeway	32.0
Main Outlet	32.5

II. Level of service for the treatment plant is set by the permitted discharge limits as follows:

Parameter	Allowed Concen- tration (lbs/gallon/day)	Maximum Permitted Effluent Load (lbs/day)
BOD	.000042	4003
Suspended Solids	.000042	4003
Nitrogen	.000025	2402

(3) *Solid waste [Policy 60.4.2 Tampa Comprehensive Plan]:*

- a. Six and one-half (6.50) lbs/capita/day.

(4) *Recreation and open space [Policy 60.4.2 Tampa Comprehensive Plan]:*

- a. Neighborhood parks, two (2) acs/one thousand (1,000) residents;
- b. Major parks, two and three tenths (2.3) acs/one thousand (1,000) residents;
- c. Regional parks, twenty (20) acs/one thousand (1,000) residents.

(5) *Stormwater management [Policy 60.4.2 Tampa Comprehensive Plan]:* Post development runoff does not exceed the predeveloped discharge volume and/or rate.

(6) *Transportation [Policy 60.4.2 Tampa Comprehensive Plan]:* The level of service for City of Tampa roads is LOS "D".

(7) *Mass Transit [Policy 60.4.2 Tampa Comprehensive Plan]:* Peak hour load factor less than or equal to 1.2 /bus (peak hour load factor = passengers/capacity).

(8) *Public Schools [Policy 60.4.2 Tampa Comprehensive Plan]:*

Elementary school	One hundred (100) percent of permanent FISH capacity;
Middle school	One hundred (100) percent of permanent FISH capacity;
K—8 school	One hundred (100) percent of permanent FISH capacity;

High school	One hundred (100) percent of permanent FISH capacity;
Special purpose facility	One hundred (100) percent permanent FISH capacity.

(Ord. No. 90-32, § VI, 2-8-90; Ord. No. 99-125, § 6, 6-10-99; Ord. No. 2011-40, § 6, 3-17-2011)

Sec. 17.5-47. - Vested rights procedure.

- (a) *Statutory vested rights.* A proposed development shall be exempt from the requirements of the concurrency management system if it has received a final local development order on or before January 31, 1990.
- (b) *Common law vested rights.* A proposed development may proceed, even if deemed inconsistent with the Tampa Comprehensive Plan or amendments thereto or inconsistent with the land development regulations adopted to implement the Tampa Comprehensive Plan if a written determination of vested rights is obtained pursuant to this section.
- (c) *Vested rights determination process.*
 - (1) A vested rights determination shall be made pursuant to the formal decision process in section 27-368.1.
 - (2) Standards for vested rights determination.
 - a. The applicant must show the follow:
 - i. As to statutory vesting for concurrency and the land development regulations adopted to implement concurrency, owned the property on January 31, 1990; as to common law vesting for the adopted Tampa Comprehensive Plan or amendments thereto or land development regulations adopted to implement the Tampa Comprehensive Plan owned the property prior to the date of adoption of this provision or the date of the provision of the Tampa Comprehensive Plan or the date of adoption of any subsequent amendments thereto; or
 - ii. Entered into a contract or option to purchase the property on or before such date set forth in (a) above; or
 - iii. Presents evidence such that it would be inequitable, unjust or fundamentally unfair to deny an application for vested rights where the applicant acquired ownership after such date; and

- b. There was a valid, unexpired act of by Tampa City Council or a City of Tampa department or division with authority to make decisions or a valid, unexpired act by another governmental entity upon which the applicant reasonably relied in good faith; and
- c. The applicant, in reliance upon such valid, unexpired act, has made a substantial change in position or has incurred extensive obligations or expenses; and
- d. It would be inequitable, unjust or fundamentally unfair to destroy the rights acquired by the applicant. In making this determination, the zoning administrator shall consider the following factors:
 - i. Whether construction or other development activity has commenced and is continuing in good faith, or
 - ii. Whether the expense or obligation incurred cannot be substantially utilized for a development proposal which would be permitted under the newly adopted provisions of Tampa Comprehensive Plan and/or land development regulations adopted to implement the Tampa Comprehensive Plan.
- e. Eligibility of certain development expenditures or obligations: The following are not considered development expenditures or obligations in and of themselves, without more, unless the applicant was unable to obtain further approvals because of extraordinary delays, beyond the applicant's control:
 - i. Expenditures for legal and other professional services that are not related to the design or construction of improvements.
 - ii. Taxes paid.
 - iii. Expenditures for initial acquisition of the land.

(d) *Effect of vested rights determination.*

- (1) Possession of an unexpired vested rights determination shall enable the applicant to complete development which is the subject of the determination up to and through issuance of appropriate certificates of occupancy, subject to compliance with such laws, ordinances and regulations against which the development is not vested.
- (2) A vested rights determination shall be valid for five (5) years from the date of the issuance of the vested rights determination. After expiration, an applicant shall be required to reapply for a vested rights determination and show compliance with this section or be required to comply with applicable provisions of the Tampa Comprehensive Plan and applicable land development regulations and/or other applicable City of Tampa Code of Ordinances.
- (3) An unexpired vested rights determination shall run with the parcel which was the subject of the vested rights determination and is therefore transferable to any new owner of the subject parcel.

(Ord. No. 90-32, § VII, 2-8-90; Ord. No. 2011-40, § 7, 3-17-2011)

Sec. 17.5-48. - Reserved.

Editor's note— Ord. No. 2011-40, § 8, adopted March 17, 2011, repealed § 17.5-48, which pertained to appellate process. See also the Code Comparative Table.

Sec. 17.5-49. - Beneficial use.

Upon a determination that adequate facilities and services are not available for a project applying for a final development permit, the city will issue a final development permit if the trip generation from the proposed development totals five (5) or fewer peak-hour trips.

(Ord. No. 90-32, § IX, 2-8-90)

Sec. 17.5-50. - Concurrency information center.

A concurrency information center shall be established by the director. The concurrency information center shall provide to the public, upon request, information on existing and anticipated capacities and levels of service of all services addressed by this article. This information will reflect existing facility and service capacities, planned and committed facility and service capacity increases or extensions, and existing and committed service demands.

(Ord. No. 90-32, § X, 2-8-90; Ord. No. 2011-40, § 9, 3-17-2011; Ord. No. 2020-88, § 7, 9-17-2020)

Sec. 17.5-51. - Monitoring final development permits.

The city shall monitor final development permits for their impact on facility or service availability. The monitoring of permits will be accomplished by the annual capacity statement or on a permit-by-permit basis for transportation and stormwater management impacts and for those facilities and services at ninety (90) percent of capacity.

(Ord. No. 90-32, § XI, 2-8-90)

Sec. 17.5-52. - Fees.

Reasonable fees for conducting concurrency analyses, providing written information, and for providing services to support the concurrency management program may be charged and collected upon establishment of a schedule of reasonable fees by resolution of the city council.

(Ord. No. 90-32, § XII, 2-8-90)

Secs. 17.5-53—17.5-70. - Reserved.

ARTICLE IV. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2012-123, § 4, adopted November 1, 2012, repealed §§ 17.5-71—17.5-78, which pertained to land development variance review board and derived from Ord. No. 95-253, § 1, 11-30-95; Ord. No. 98-12, §§ 1, 2, 1-8-98; Ord. No. 2002-67, § 2, 2-28-02; Ord. No. 2004-71, § 3, 3-11-04; Ord. No. 2005-255, § 5, 9-15-05; Ord. No. 2007-48, § 2, 2-15-07; Ord. No. 2007-199, § 2, 10-4-07; Ord. No. 2008-174, § 1, 10-16-08; Ord. No. 2009-13, § 1, 1-8-09; Ord. No. 2010-50, § 1, 5-6-2010; Ord. No. 2010-121, § 1, 8-26-2010, eff. 9-1-2010; Ord. No. 2011-12, § 2, 1-20-2011, eff. 2-1-2011. For similar provisions see sections 27-77—27-84.

Secs. 17.5-71—17.5-90. - Reserved.

ARTICLE V. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2012-123, § 5, adopted November 1, 2012, repealed §§ 17.5-91—17.5-95, 17.5-101—17.5-106, 17.5-113—17.5-122, 17.5-129—17.5-133, which pertained to land development variance review board and derived from Ord. No. 99-141, § 1, 6-24-99; Ord. No. 2005-255, § 7, 9-15-05. For similar provisions see sections 27-287—27-287.24.

Secs. 17.5-91—17.5-140. - Reserved.

ARTICLE VI. - CONCURRENCY MANAGEMENT PROCEDURES

DIVISION 1. - RESERVED

Footnotes:

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Editor's note— Ordinance No. 2012-126, § 2(Exh. A), adopted November 1, 2012, renumbered and readopted § 17.5-141 as § 27-271.

Sec. 17.5-141. - Reserved.

DIVISION 2. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2012-123, § 6, adopted November 1, 2012, repealed §§ 17.5-142—17.5-151, which pertained to stormwater technical standards manual for private development adopted and derived from Ord. No. 96-269, § 3, 12-5-96; Ord. No. 97-89, § 1, 4-24-97.

Secs. 17.5-142—17.5-159. - Reserved.

DIVISION 3. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2012-123, § 6, adopted November 1, 2012, repealed §§ 17.5-160—17.5-162, which pertained to technical standards manual for sewer adopted and derived from Ord. No. 99-109, § 1, 5-27-99; Ord. No. 2002-143, § 1, 7-11-02; Ord. No. 2004-119, § 1, 5-6-04.

Secs. 17.5-160—17.5-169. - Reserved.

DIVISION 4. - RESERVED.

Secs. 17.5-170—17.5-179. - Reserved.

DIVISION 5. - CONCURRENCY MANAGEMENT PROCEDURES MANUAL

Sec. 17.5-180. - Concurrency Management Procedures Manual adopted.

The Concurrency Management Procedures Manual, as it may be amended from time to time, is hereby adopted as a technical manual by this reference, and it, therefore, has the forward effect of law.

(Ord. No. 99-125, § 7, 6-10-99)

Secs. 17.5-181—17.5-189. - Reserved.

DIVISION 6. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2012-123, § 6, adopted November 1, 2012, repealed §§ 17.5-160—17.5-162, which pertained to historic district and landmark design guidelines and derived from Ord. No. 200-235, § 4, 8-31-00; Ord. No. 2002-21, § 2, 1-3-02; Ord. No. 2002-22, § 2, 1-3-02; Ord. No. 2002-23, § 2, 1-3-02; Ord. No. 2002-230, § 1, 10-10-02; Ord. No. 2003-152, § 4, 6-26-03.

Secs. 17.5-190—17.5-200. - Reserved.

ARTICLE VII. - THE CITY OF TAMPA SUSTAINABILITY ORDINANCE

Sec. 17.5-201. - Short title.

This section shall be known as the City of Tampa Sustainability Ordinance.

(Ord. No. 2008-112, § 2, 6-26-08)

Sec. 17.5-202. - Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administration means the Mayor of the City of Tampa or his or her designee.

Best Practices are defined as the techniques, methodologies, processes, practices, and systems identified by public and private organizations that performed exceptionally well utilizing available and appropriate resources. They are widely recognized as continuously improving an organization's performance and efficiency in specific areas that, through experience and research, have proven to reliably lead to a desired result.

Building means any structure designed or intended for the support, enclosure, shelter or protection of persons, animals, chattels or property.

Building, accessory means subordinate building detached from, but located on the same lot as the principal building, the use of which is incidental and accessory to that of the principal building.

Building, principal means a building or, where the context so indicates, a group of buildings, in which is conducted the principal use of the lot on which such building is located.

CGO is defined as the city's green officer.

Demolition means the act of razing, dismantling or removal of a building or structure, or portion thereof, to the ground level.

FGBC is defined as the Florida Green Building Coalition.

Green building means any building which increases the efficiency with which it uses resources, such as energy, water, and materials, while reducing a building's negative impact on human health and the environment, through better siting, design, construction, operation, maintenance, and removal, completing building life cycle.

Major renovation means any construction, reconstruction, structural alteration, expansion, enlargement or remodeling conducted within any two-year period, the total cost of which exceeds fifty-one (51) percent of the assessed value of the property.

New construction means the erection of a building or structure or the addition to a building or structure of greater than fifty (50) percent of the existing building size in square feet.

Permit means an official document authorizing performance of a specific activity regulated by this chapter.

Structure, for the purposes of this chapter, means any principal and/or accessory building constructed or erected which requires a fixed location on the ground or attachment to something having a fixed location on the ground.

USGBC is defined as the United States Green Building Council.

(Ord. No. 2008-112, § 3, 6-26-08)

Sec. 17.5-203. - City funded construction and renovation of structures to comply with LEED Silver Standard.

- (a) All new construction of municipal buildings, regardless of the source of the funds, in excess of five thousand (5,000) square feet of air conditioned space, shall be built to satisfy, at a minimum, the most current USGBC LEED Silver standard.
- (b) For any renovation of existing municipal buildings, all building materials replaced shall be done so with consideration of their energy efficiency ratings as recognized by the USGBC for their sustainable qualities, and with recycled products whenever available and appropriate.
- (c) In the event that it is determined by the administration that it is not feasible to construct or renovate a building or structure to this standard, compliance with this section shall not be required and the CGO will identify the project in his/her report to city council.

(Ord. No. 2008-112, § 4, 6-26-08)

Sec. 17.5-204. - Incentives to encourage sustainable construction and redevelopment.

- (a) As of October 1, 2008, a process will be instituted by the city for providing a grant which would provide a partial rebate of permit fees, if funds are made available through the budget process on a yearly basis. Property owners who receive a permit for single family or multi family homes or for commercial projects, after the date which this program is instituted, may be eligible if the structure constructed is appropriately certified as a green structure by the USGBC or FGBC.
- (1) For newly constructed single family residential construction or for major renovation of an existing single family home, the structure must be built and satisfy all the requirements of the current Green Home Designation Standards of the Florida Green Building Coalition. Upon receipt of evidence of this certification, the city will rebate fifty (50) percent of the building permit fees paid.
- (2) For newly constructed commercial and multifamily construction or for major renovations of such existing structures, the structure must be built and satisfy all the requirements of the most current (USGBC LEED (Leadership in Energy and Environmental Design) standard. Upon receipt of evidence of this certification of the structure, the city will rebate a percentage of the building permit fees paid as follows:
- a. *LEED Platinum Certified*—Eighty (80) percent.
 - b. *LEED Gold Certified*—Sixty (60) percent.
 - c. *LEED Silver Certified*—Forty (40) percent.
 - d. *LEED Certified*—Twenty (20) percent.
- (3) The city will designate within its budget a specific amount per year for residential projects and a specific amount per year for commercial projects. Grants will be awarded on a first-come-first-served basis as the funds allow.

(Ord. No. 2008-112, § 5, 6-26-08)

Sec. 17.5-205. - Green building initiatives for affordable housing.

All multifamily and single family homes constructed after October 1, 2008, through any of the city's affordable housing programs will be encouraged to utilize the Florida Green Building Coalition's specifications for green building certification, Florida Energy Star and Florida Water Star appliances and principles. When evaluating the extent to which these specifications, appliances and principles can be used, consideration of federal and state rules, regulations, funding and programs will be included in the evaluation. If the administration determines that compliance with these specifications, appliances, and principles is not feasible for the affordable housing structure to attain, the administration may waive compliance with this section. The CGO will identify the project in his/her report to city council.

(Ord. No. 2008-112, § 6, 6-26-08)

Chapter 19 - PROPERTY MAINTENANCE AND STRUCTURAL STANDARDS

Footnotes:

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Editor's note— Section 1 of Ord. No. 90-124, adopted May 17, 1990, repealed former Ch. 19, and § 2 enacted a new chapter. In most cases, the new provisions paralleled those of the former chapter; in those cases, a comparable history note has been included. In some cases, provisions of the former chapter were included but were given a different section number; in those cases, a complete history note has been retained, with a note giving the former section number included. Completely new provisions will carry reference only to Ord. No. 90-124.

Related law references—Dangerous and unsafe structures, Art. VI; urban renewal law, Art. XIX; weeds, Art. XXII. Art in public places, Ch. 4; building and construction regulations, Ch. 5; fire prevention and protection, Ch. 11; utilities, Ch. 26; zoning and land development, Ch. 27.

ARTICLE I. - IN GENERAL

DIVISION 1. - GENERAL PROVISIONS; ADMINISTRATIVE AUTHORITY; DEFINITIONS

Sec. 19-1. - Department of code enforcement; authorized employees or officers; jurisdiction.

The Department of Code Enforcement, as well as any other properly authorized city employee or officer, shall have jurisdiction and control over the administration and enforcement of all ordinances of the city, fixing and prescribing standards for all existing structures and land, property maintenance, and related code enforcement within the city.

(Ord. No. 89-269, § 2(48-1), 10-12-89; Ord. No. 90-124, § 2(48-1), 5-17-90; Ord. No. 96-204, § 1, 9-26-96; Ord. No. 2003-315, § 2, 11-20-03; Ord. No. 2011-98, § 1, 8-25-2011)

Sec. 19-2. - Application of standards.

The standards established by this chapter do not replace or modify standards established by other ordinances or sections of this Code for the construction, replacement or repair of structures. In any case where the provisions of this chapter impose a higher standard than set forth in any other ordinance or section of this Code or under the laws of the state, then the standard as set forth herein shall prevail, but if the provisions of this chapter impose a lower standard than any other ordinance or section of this Code or of the laws of the state, then the higher standard contained in any such ordinance, section or law shall prevail.

(Ord. No. 89-269, § 2(48-2), 10-12-89; Ord. No. 90-124, § 2(48-2), 5-17-90; Ord. No. 2011-98, § 1, 8-25-2011)

Sec. 19-3. - Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessory structure means a structure, the use of which is incidental to that of the main building and which is attached thereto or located on the same premises.

Alteration means any change, addition or modification in construction or occupancy.

Approved means authorized by this Code or by order of the neighborhood improvement manager or code enforcement board.

Assessed value means the most recent assessment performed and recorded in the ad valorem tax rolls by the county property appraiser.

Basement means a portion of a building located partly underground, but having less than one-half its clear floor-to-ceiling height below the average grade of the adjoining ground.

Building means a combination of materials to form a construction adapted to permanent or continuous occupancy for use for public, institutional, residential, business, industrial or storage purposes.

Building code means the building code of the city and shall include the boiler, building, electrical, gas, mechanical, plumbing and sign codes.

Building official means the construction services division manager or the official in charge of the division that is responsible for administering, enforcing and investigating the provisions of [chapter 5](#).

Cellar means a portion of a building located partly or wholly underground and having one-half or more than one-half of its cellar floor-to-ceiling height below the average grade of the adjoining ground.

Code enforcement officer means any designated employee or agent of the city whose duty it is to enforce codes and ordinances enacted by the city. This shall include but is not limited to, code enforcement inspectors, building inspectors, solid waste code inspectors, grease management inspectors, law enforcement officers, and fire safety inspectors.

Dangerous tree shall have the same meaning, as defined in [chapter 27](#), of the City Code.

Deterioration means the condition or appearance of a building characterized by holes, breaks, rot, crumbling, cracking, peeling, rusting or other evidence of physical decay or neglect, excessive use or lack of maintenance.

Department of code enforcement means the department that is designated by the mayor to enforce the provisions of this chapter.

Director means the neighborhood improvement manager or the official in charge of the department that is responsible for enforcing the provisions of this chapter.

Dwelling means any building or structure used and occupied for human habitation or intended to be so used and shall include any outhouses and appurtenances belonging thereto or usually enjoyed therewith.

Dwelling unit means any room or group of rooms located within a dwelling and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking or eating.

Exposed to public view means any premises or any building which may be lawfully viewed by the public or any member thereof from a sidewalk, street, alleyway, licensed open-air parking lot or from any adjoining or neighboring premises.

Exterior of premises means those portions of a building which are exposed to public view and the open space of any premises outside of any building erected thereon.

Extermination means the control and elimination of insects, rodents or other pests and termites by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping or by any other recognized and approved pest elimination method.

Fire hazard means anything or any act which increases or may cause an increase of the hazard or menace for fire to a greater degree than that customarily recognized as normal by persons in the public service of preventing, suppressing or extinguishing fire or which may obstruct, delay or hinder or may become the cause of an obstruction, a delay, a hazard or a hindrance to the prevention, suppression or extinguishment of fire.

Garbage means every refuse accumulation of animal, fruit or vegetable matter that attends the preparation, use, cooking and dealing in or storage of edibles and any other matter of any nature whatsoever which is subject to decay, putrefaction and the generation of noxious or offensive gases or odors or which, during or after decay, may serve as breeding or feeding material for flies or other germ-carrying insects.

Garden trash means all accumulations of leaves, grass or shrubbery cuttings and other refuse attending the care of lawns, shrubbery, vines and trees.

Good state of repair means a dwelling unit is safe and comfortable for its ordinary intended use or that the materials used in any structure are sound and stable and performing the function for which intended.

Good working condition means the item is fully operable for the use for which it was intended.

Graffiti means unauthorized writings, drawings, inscriptions, figures or marks of paint, ink, chalk, dye or other similar substances on public or private buildings, structures or places, regardless of the content or the nature of materials used in the commission of the act, not authorized by the property owner or possessor or which is not permitted under the City Code and ordinances.

Habitable room means a room or enclosed floor space used or intended to be used for living, sleeping, cooking or eating purposes, but shall not include bathrooms, water closet compartments, laundries, pantries, foyers or communicating corridors, closets and storage spaces.

Household means one (1) or more persons living together, whether related by blood, marriage or adoption, and having common housekeeping facilities.

Industrial wastes means the waste products of canneries, slaughterhouses or packing plants, condemned food products, agricultural waste products, waste and debris from brick, concrete block, roofing shingles or tile plates, debris and wastes accumulated from land clearing, excavating, building, rebuilding and altering of buildings, structures, roads, streets, sidewalks or parkways and other solid waste products generated from industrial processing or manufacturing.

Infestation means the presence, within or around a structure, of any insects, rodents or other pests which may be harmful to the health or safety of the occupants or the soundness of the structure.

Inoperative vehicle means a vehicle which is in a state of disrepair and incapable of being moved under its own power, or a vehicle which fails to meet the minimum requirements necessary for lawful operation of a motor vehicle on the streets and highways of the state, including a valid license plate properly placed on the vehicle.

Junk means pieces of old cable or cordage, mats, swabs or oakum, old iron, glass, paper or other waste or secondhand, worn or discarded articles or anything of little meaning or significance.

Let means to lease, demise or furnish an estate in or possession of a dwelling or dwelling unit to another for rent or other consideration for a term certain or at will for the purpose of living, sleeping, cooking or eating therein.

Meaning of certain words. Whenever the words "structure," "building," "dwelling," "dwelling unit," "rooming house," and "premises," are used in this chapter, they shall be construed as though they were followed by the words "or any part thereof."

Mixed occupancy means any building containing one (1) or more dwelling units and also having a portion thereof devoted to nondwelling uses.

Multiple dwelling means any structure containing more than two (2) dwelling units.

Noncombustible refuse means refuse materials that are non-burnable at ordinary incinerator temperatures (eight hundred (800) degrees to one thousand eight hundred (1,800) degrees Fahrenheit) such as metals, mineral matter, large quantities of glass or crockery, metal furniture, auto bodies or parts and other similar material or refuse not usual to housekeeping or to operation of stores or offices.

Nuisance means any one (1) or combination of the following:

(1)

Any public nuisance known at common law or in equity jurisprudence or as provided by the statutes of the state or ordinances of the city, including this chapter;

- (2) Any attractive nuisance which may prove detrimental to the health or safety of children, whether in a building, on the premises of a building or upon an unoccupied lot including, but is not limited to, abandoned wells, shafts, basements, excavations, abandoned iceboxes, refrigerators, motor vehicles and any structurally unsound fences or structures, lumber, trash, fences, debris and vegetation such as poison ivy, oak or sumac which may prove a hazard for inquisitive minors;
- (3) Any vegetation which is not commercially grown or sold for the purposes of landscaping or is grown, sold or used for landscaping but is not being maintained according to standard industry practices;
- (4) Any graffiti;
- (5) Any snipe signs as defined in Chapter 5 of this Code;
- (6) Physical conditions dangerous to human life or detrimental to health or persons on or near the premises where the condition exists;
- (7) Insanitary conditions or anything offensive to the senses or dangerous to health;
- (8) Whatever renders air, food or drink unwholesome or detrimental to the health of human beings; and
- (9) Fire hazards.

Occupancy means uninterrupted use of a dwelling or dwelling unit as a place of abode by an owner or tenant, except for temporary absences for business, vacation or other similar reasons.

Occupancy or reoccupancy means the act of an owner or tenant first moving into a dwelling or dwelling unit for the purpose of using the dwelling or dwelling unit as a place of abode.

Occupancy permit means a written document signed by the neighborhood improvement manager authorizing an occupant or other person designated by the occupant to move into a vacant dwelling or dwelling unit for the purpose of residing therein, subject to the limitations specified on the signed document.

Occupant means the head of the household and, when used in the plural, shall include all other persons over one (1) year of age living, sleeping, cooking or eating in or having actual possession of a dwelling unit.

Operator means any person who has charge, care or control of a building, whether with or without the knowledge or consent of the owner.

Ordinary winter conditions means when the outdoor temperature is fifty (50) degrees Fahrenheit or below.

Owner means a holder of any legal or equitable estate in the premises, whether alone or jointly with others and whether in possession or not, and, if the case permits, shall include all individuals, associations, partnerships, corporations and others who have interest in a structure and any who are in possession or control thereof as agent of the owner, as executor, administrator, trustee, or guardian of the estate of the owner. Any such person thus representing the owner shall be bound to comply with the provisions of this chapter and of the rules and regulations adopted pursuant thereto to the same extent as if he were the owner and upon failure to comply therewith shall be subject to the same penalties hereinafter set out. Any person who is a lessee of any part or all of any commercial premises shall be deemed to be a co-owner with the lessor and shall have joint responsibility over the portion of the premises occupied by the lessee.

Plumbing means all of the following supplied facilities and equipment: gas pipes, gas-burning equipment, water pipes, garbage disposal units, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes-washing machines, catch basins, drains, vents and any other similar supplied fixtures, together with all connections to water, sewer or gas lines, and water pipes and lines utilized in connection with air-conditioning equipment.

Public area means an unoccupied open space adjoining a building and on the same property.

Public authority means any official, department or branch of the government of the city, county or state having jurisdiction over matters of health, fire, building regulations or dwellings within the city.

Refuse means all putrescible and nonputrescible solid wastes, including but not limited to garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles and solid market and industrial wastes.

Repair means the construction or renewal of any part of an existing building for the purpose of its maintenance. The word "repair" or "repairs" shall not apply to any change of construction.

Rooming unit means any room or group of rooms forming a single habitable unit used or intended to be used for living and sleeping, but not for cooking or eating purposes.

Rooming house means any dwelling or that part of any dwelling containing one (1) or more rooming units in which space is let by the owner or operator to three (3) or more persons who are not husband or wife, son or daughter, mother or father or sister or brother of the owner or operator.

Rubbish means any refuse, accumulations of paper, packing material, rags or wooden or paper boxes or containers, sweepings, and all other accumulations of a nature other than garbage, which are usual to housekeeping and to the operation of stores, offices and other business places, and also any bottles, cans or other containers which, due to their ability to retain water, may serve as breeding places for mosquitoes or other water-breeding insects.

Solid waste is a general term that includes the specific terms "garbage," "garden trash," "junk," "rubbish," "industrial waste" and "hazardous waste."

Story means that portion of a building included between the upper surface of any floor and the upper surface of the floor next above, except that the topmost story shall be that portion of a building included between the upper surface of the topmost floor and the ceiling or roof above. If the finished ceiling level directly above a basement or cellar is more than six (6) feet above grade, such basement or cellar shall be considered a story.

Structurally sound means free of imperfections which affect the intended use of a structure.

Structure means a combination of any materials, whether fixed or portable, forming a construction, including all buildings and dwellings.

Supplied means paid for, furnished or provided by or under the control of the owner or operator, his agent and/or representative.

Temporary housing means any tent, trailer or other structure used for human shelter which is designed to be transportable and which is not attached to the ground, to another structure or to any utilities system on the same premises for more than thirty (30) consecutive days.

Tenant means a person who has the occupation or temporary possession of a dwelling or dwelling unit, but does not hold title to same.

Trash means something worth little or nothing; junk, rubbish; something in a crumbled or broken condition or mass.

Unfit for human habitation means dwellings which are unfit for human habitation due to dilapidation or defects creating or increasing the hazards of fire, accident or other calamities; lack of ventilation, light or sanitary facilities; overcrowding or other conditions rendering such dwellings unsafe or insanitary or dangerous or detrimental to the health, safety or morals or otherwise to the welfare of the inhabitants.

Vacant or *vacated* means a dwelling unit deemed to be vacated and to have become vacant whenever an occupying owner or tenant ceases to use the dwelling or dwelling unit as a place of abode.

Washroom means an enclosed space containing one (1) or more bathtubs, showers or both and which shall also include toilets, lavatories or fixtures serving similar purposes.

Waste means garbage, rubbish, garden trash, noncombustible refuse and industrial wastes as herein defined.

Water closet compartment means an enclosed space containing one (1) or more toilets which may also contain one (1) or more lavatories, urinals and other plumbing fixtures.

(Ord. No. 89-269, § 2(48-3), 10-12-89; Ord. No. 90-124, § 2(48-3), 5-17-90; Ord. No. 96-204, §§ 1, 2, 9-26-96; Ord. No. 2011-98, § 1, 8-25-2011; Ord. No. 2017-91, § 1, 6-22-2017; Ord. No. 2019-54, § 3, 4-18-2019; Ord. No. 2022-40, § 4, 3-3-2022; Ord. No. 2023-64, § 1, 5-4-2023)

Cross reference— Definitions and rules of construction generally, § 1-2.

Sec. 19-4. - Department of code enforcement; duties and scope of authority of the director.

- (a) The director shall have all powers, duties and responsibilities to administer and enforce the following City Code chapters or sections. The director shall be deemed to be an officer for the purpose of enforcing the provisions of this chapter under authority provided in section 1-14 of this Code.
 - (1) Section 5-105;
 - (2) Sections 12-142, 12-143, 12-146 and 12-147;
 - (3) Chapter 14, articles III, IV and X;
 - (4) Chapter 19;
 - (5) Chapter 21, articles I, II, III and V;
 - (6) Chapter 22, articles I and III;
 - (7) Chapter 25, article I;
 - (8) Chapter 27;
 - (9) Chapter 15, except for parking regulations within the central business district as defined in chapter 27.
- (b) The director shall have the power, duty and responsibility to administer and enforce those county ordinances not in conflict with a city ordinance, and which are enforceable within the City of Tampa. Without limiting the foregoing, the director shall have the power, duty and responsibility to administer and enforce "Section 36-373 of the Hillsborough County Code—General Requirements" within the City of Tampa.
- (c) Any action to be taken by the director pursuant to this chapter in regard to the enforcement of any section hereof shall be considered cumulative and in addition to penalties and to other remedies provided elsewhere by ordinance or law.
- (d) It shall be unlawful for any person to oppose, obstruct or resist the director or his authorized agents, assistants, employees and independent contractors in the discharge of his duties as provided in this chapter.

(Ord. No. 89-269, § 2(48-4), 10-12-89; Ord. No. 90-124, § 2(48-4), 5-17-90; Ord. No. 96-204, §§ 1, 3—6, 9-26-96; Ord. No. 97-44, § 1, 2-20-97; Ord. No. 97-91, § 1, 4-24-97; Ord. No. 2011-98, § 1, 8-25-2011; Ord. No. 2012-48, § 2, 5-3-2012; Ord. No. 2013-97, § 1, 7-18-2013; Ord. No. 2014-128, § 1, 12-18-2014; Ord. No. 2017-47, § 7, 4-6-2017; Ord. No. 2020-96, § 1, 10-1-2020; Ord. No. 2020-156, § 1, 12-3-2020; Ord. No. 2022-40, § 5, 3-3-2022; Ord. No. 2022-51, § 5, 3-17-2022; Ord. No. 2022-85, § 4, 5-19-2022)

Sec. 19-5. - Authority of the director.

- (a) The director is authorized in the course of his duties in the administration and enforcement of this chapter to exercise the powers below and issue the following orders:
- (1) *Order to repair.* Whenever the director, or his designee, determines that a structure, or parts thereof, does not meet the standards required by this chapter and presents a serious threat to the public, health, safety, and welfare of the community, he may order the repair, stabilization, or replacement of any part of the structure, including the removal of any work done in violation of this Code. In the event of default by the owner, occupant or operator repairing, stabilizing or replacing the part of the structure so ordered within the time fixed in the order, the director may issue a subsequent order authorized in this section, as may be deemed necessary.
- (2) *Order to demolish.*
- a. *Criteria to demolish.* The director may order the demolition or removal of a structure when it is determined that:
- i. The structure poses a serious threat to the public health, safety, or welfare; or
 - ii. Is damaged, deteriorated or defective to such an extent that the cost of restoration or repair thereof will exceed seventy-five (75) percent of the assessed building value thereof.
- b. *Demolition review team.* Any structure that has been identified for demolition by the director must be reviewed by the demolition review team. The demolition review team shall be comprised of the director, the fire marshal and the building official or their respective designees. When the structure identified for demolition is a contributing structure located within a local or national historic district, is a locally designated landmark, or is located outside a local district but is fifty (50) years or older, the architectural review and historic preservation Manager, or designee, shall be included as a member of the demolition review team. The mayor shall be authorized to designate persons as alternate members of the demolition review team when the foregoing are unavailable.
- c. If the owner does not demolish or remove the structure within the time fixed in the order, the director may demolish or remove the structure, either by use of city forces or by an independent contractor secured by the purchasing agent of the city through normal purchasing processes as established by that office.
- (3) *Order declaring building or dwelling as unfit for human habitation.*
- a. Whenever the director determines that any building or dwelling or any part thereof:
- i. Constitutes a hazard to the safety, health or welfare of the occupants or to the general public;

- ii. Lacks the maintenance or sanitary facilities set forth in section 19-231 of the Tampa City Code; or
 - iii. Otherwise fails to comply with the standards established by this chapter, he may issue an order declaring such building or dwelling unfit for human habitation.
- b. Any building or dwelling, or any part thereof, declared unfit for human habitation shall be posted with notice of the same, and it shall be unlawful to alter, deface or remove any notice so posted during the pendency of the order.

(4) *Order to vacate.*

- a. The director may order a building or dwelling vacated when:
 - i. A building or dwelling is declared unfit for human habitation;
 - ii. A building or dwelling is ordered to be demolished or stabilized;
 - iii. A certificate of compliance with housing standards is revoked;
 - iv. The fire marshal notifies the director that a property is in violation of the fire code or life safety code; or
 - v. It is otherwise determined that circumstances so warrant.
- b. Any structure that has been identified to be vacated by the director for life safety code or fire code reasons must be reviewed and approved by the fire marshal or his designee.
- c. It is unlawful for any person to occupy the building or dwelling until a final order to vacate is rescinded.

(5) *Order to secure.* Whenever the director, or his designee, determines that a structure, or parts thereof, does not meet the standards required by this chapter, creates a nuisance, or presents a serious threat to the public, health, safety, and welfare of the community, he may order the structure be secured pursuant to the requirements of section 19-233 of this chapter. If the vacant structure is not properly secured within the time set forth in the order, then the director may take whatever action is necessary, including hiring a contractor, to secure the vacant structure.

(6) *Order to abate.* Whenever the director, or his designee, determines that conditions on property or a structure violate the provision(s) of this chapter or any other city ordinance or chapter of the City of Tampa Code of Ordinances for which the director has enforcement responsibility, he or she may issue or cause to be issued an order to abate directing the property owner to abate the conditions violating the provision(s) of the ordinance or Code of Ordinances. If the conditions are not abated within the time set forth in the order, then the director may take whatever action is necessary, including hiring a contractor, to abate the conditions.

(b) *Emergency circumstances.*

- (1) Whenever, in the opinion of the director, the condition or circumstance warranting the issuance of any order which he has the authority to issue under this section, is so unsafe as to imminently endanger life, limb, health, or property, he may issue such order on an emergency basis and immediately notify the owner(s), occupant(s), operator(s), or other parties having an interest in the building, structure, dwelling, or property of the issuance of the emergency order and direct immediate correction of the condition or circumstance in the manner ordered.
- (2) Notice will be made to the owner(s), occupant(s), operator(s), or other parties having an interest in the building, structure, dwelling, or property by any expedient means available, including but not limited to personal delivery, facsimile, or electronic mail. In addition, the property will be posted with the emergency order.
- (3) When public safety requires immediate action, the director may enter upon the premises with such assistants as may be necessary, either using city forces or an independent contractor, and cause the termination of the condition or circumstance, at the expense of the owner, occupant, operator or other party interested.
- (4) If the circumstances do not permit the hearing of an appeal before the city takes emergency abatement or curative actions, the owner, occupant, operator or other party having an interest in the building, structure, dwelling, or property shall have the right to an appeal hearing as soon as practicable.
- (5) An emergency order is final upon issuance.

(c) The director may:

- (1) Rescind or modify any order issued;
- (2) Extend the time for compliance with any order issued; and
- (3) Stipulate to the dismissal of any action commenced by or against him.

(d) It shall be unlawful to alter, deface or remove any posted order during the pendency of said order.

(Ord. No. 89-269, § 2(48-5), 10-12-89; Ord. No. 90-124, § 2(48-5), 5-17-90; Ord. No. 96-204, §§ 1, 7, 9-26-96; Ord. No. 2011-98, § 1, 8-25-2011; Ord. No. 2013-97, § 2, 7-18-2013; Ord. No. 2016-97, § 1, 6-23-2016; Ord. No. 2023-64, § 2, 5-4-2023)

Sec. 19-6. - Final order and orders binding.

(a) *Final order.* All orders of the director shall be final upon the expiration of the time set forth in the order for appeal, unless, prior to the expiration of such period, a written petition for appeal is filed with the director.

(b)

Orders binding. No order of the director shall be diminished, canceled or in any way affected by the conveyance of the title to any real property, building or other structure or of any interest in any real property, building or other structure. A person who acquires such an interest in any property or improvement while it is subject to an order of the director shall comply with that order to the same extent as if he had held his interest at the time the order of the director was issued. Upon request, the director shall provide all persons acquiring such interests with copies of all notices and orders previously served and issued with respect to the real property, building or other structure conveyed at the expense of the person requesting the copies.

(Ord. No. 89-269, § 2(48-6), 10-12-89; Ord. No. 90-124, § 2(48-6), 5-17-90; Ord. No. 96-204, §§ 1, 8, 9, 9-26-96; Ord. No. 2011-98, § 1, 8-25-2011)

Sec. 19-7. - Billing of costs; abatement assessment lien; appeal; interest; priority.

- (a) *Billing of costs of abatement to property owner.* If the property owner fails to comply with an order issued pursuant to section 19-5 above, and the city expends funds or resources to abate the condition or situation that is the subject of the order, the city shall bill the property owner for the abatement consisting of the actual costs or funds expended by the city, which may include an administrative fee associated with the abatement of the condition or situation. All bills shall be immediately due and payable upon receipt.
- (b) *Notice of intent to lien unpaid bills.* At the time of billing, the city will provide notice to the property owner that the city will impose an abatement assessment lien against the subject real property if the bill described in paragraph (a) above is not paid within thirty (30) calendar days.
- (c) *Challenge.* The property owner will have thirty (30) calendar days from the date of billing to challenge the abatement costs. Any challenge will be in writing specifying the basis for the challenge, and should be submitted to the director who will make a decision on the challenge.
- (d) *Abatement assessment lien.* If the abatement costs have not been appealed or paid within thirty (30) calendar days of billing, the city will, by resolution, impose an abatement assessment lien, and upon recordation in the official records of Hillsborough County, Florida will establish a lien against the subject real property.
- (e) *Interest on delinquent bills.* Upon recordation of the abatement assessment line in the official records of Hillsborough County, Florida, the lien will begin incurring simple interest at the rate of one-half (½) percent per month on the unpaid balance.
- (f) *Lien priority.* The abatement assessment lien shall be equal in dignity to ad valorem taxes but superior to all other liens encumbering the property except prior liens for taxes.

(Ord. No. 89-269, § 2(48-7), 10-12-89; Ord. No. 90-124, § 2(48-7), 5-17-90; Ord. No. 96-204, § 1, 9-26-96; Ord. No. 2011-98, § 1, 8-25-2011)

Secs. 19-8—19-25. - Reserved.

DIVISION 2. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2016-97, § 2, adopted June 23, 2016, repealed §§ 19-26—19-29, which pertained to certificates; inspections. See Code Comparative Table for complete history.

Secs. 19-26—19-45. - Reserved.

DIVISION 3. - PROPERTY MAINTENANCE REGULATIONS

Sec. 19-46. - Unlawful to allow or maintain a public nuisance.

- (a) *Generally.* It shall be unlawful for any owner, agent, custodian, lessee or occupant of any real property within the city to allow or permit or maintain at any time upon the real property a public nuisance as defined in this chapter.
- (b) *Property abutting public rights-of-way.* It shall be unlawful for any owner, agent, custodian, lessee or occupant of any real property abutting any public street, right-of-way or land area dedicated for use as a public street within the city to allow to exist a public nuisance as defined in this chapter between the paved or graded surface of any public street intended or designed for vehicular travel and the property line of the abutting real property.
- (c) *Undeveloped or vacated rights-of-way or abandoned alleys.* It shall be unlawful for any owner, agent, custodian, lessee or occupant of any real property abutting any undeveloped or vacated right-of-way or abandoned alley within the city to allow or permit or maintain at any time a public nuisance as defined in this chapter between the centerline of the undeveloped or vacated right-of-way or abandoned alley and the property line of the abutting real property.

(Ord. No. 89-269, § 2(48-31), 10-12-89; Ord. No. 90-124, § 2(48-31); Ord. No. 90-181, § 1, 7-19-90)

Sec. 19-47. - Offensive conditions declared a public nuisance; prohibited conditions enumerated.

Nothing shall be allowable on the premises within the corporate limits of the city provided for in this chapter that shall in any way be offensive or noxious by reason of the emission of odors, gases, dust, smoke, light, vibration or noise (including the crowing of cocks, barking of dogs or any noises emanating from any animal or fowl), nor shall anything be constructed or maintained that would in any way constitute an eyesore or nuisance to adjacent property owners or residents or to the community.

(Ord. No. 89-269, § 2(48-32), 10-12-89; Ord. No. 90-124, § 2(48-32), 5-17-90)

Cross reference— Noise, § 14-151 et seq.

Sec. 19-48. - Certain structures declared a public nuisance.

Any structure in the city which by reason of fire damage, age, decay, deterioration, structural defects, disrepair, improper design, unstable foundation, termites or other causes is dangerous to the occupants thereof or to surrounding buildings and the occupants thereof or a menace to public health or a fire hazard or so unsafe as to endanger life or property or render the use of the public streets dangerous shall constitute a nuisance.

(Ord. No. 89-269, § 2(48-33), 10-12-89; Ord. No. 90-124, § 2(48-33), 5-17-90; Ord. No. 96-204, §§ 1, 13, 9-26-96; Ord. No. 2017-91, § 2, 6-22-2017)

Cross reference— Unsafe buildings, work and nonconforming structures, § 5-228; unsafe conditions, work and nonconforming structures, § 11-92.

Sec. 19-49. - Excessive accumulation of debris, rubbish, trash, etc., declared a public nuisance.

The existence of any accumulations of debris, rubbish, trash, garbage, refuse, garden trash, snipe signs and junk, as defined in this chapter, upon any lot, tract or parcel of land, improved or unimproved, within the incorporated boundaries of the city, to the extent and in the manner that such lot, tract or parcel with nuisance vegetation which exceeds a height of twelve (12) inches over the majority of the parcel or may threaten or endanger the public health, safety or welfare or may reasonably cause disease or adversely affect and impair the economic welfare of adjacent property is hereby prohibited and declared to be a public nuisance.

(Ord. No. 89-269, § 2(48-34), 10-12-89; Ord. No. 90-124, § 2(48-34), 5-17-90; Ord. No. 96-204, § 14, 9-26-96)

Cross reference— Placing solid waste on streets, vacant lots, etc., § 26-149; accumulations of debris, rubbish, trash, garbage, refuse, garden trash or junk between paved or graded surface of street or alley and property line declared public nuisance, § 26-168.

Sec. 19-50. - Excessive undergrowth, etc., declared a public nuisance; prohibited; exemption.

- (a) The existence of excessive accumulations or untended growth of weeds, undergrowth or other dead or living plant life (but not including any trees, plants or other vegetation protected by state or local law or nuisance vegetation) upon any lot, tract or parcel of land, improved or unimproved, within two hundred (200) feet of the boundary line of any improved property or within twenty-five (25) feet of any paved or graded road surface intended or designed for vehicular travel and located within any street right-of-way or land area dedicated for use as a

public street or within two hundred (200) feet of any recreational area, all within the incorporated boundaries of the city, to the extent and in the manner that such lot, tract or parcel of land contains nuisance vegetation which exceeds a height of twelve (12) inches over the majority of the parcel or which threatens or endangers the public health, safety or welfare or may reasonably cause disease or which adversely affects and impairs the economic welfare of adjacent property is hereby prohibited and declared to be a public nuisance.

- (b) Trees or woody shrubs regardless of trunk diameter which the code requires obtaining a permit to remove shall be exempt from this section.

(Ord. No. 89-269, § 2(48-35), 10-12-89; Ord. No. 90-124, § 2(48-35), 5-17-90; Ord. No. 96-204, § 15, 9-26-96)

Sec. 19-51. - Excessive vehicles declared a public nuisance.

Any motorized vehicles including, but not limited to, cars, trucks, vans, motorcycles, minibikes, all-terrain vehicles or boats which by quantity, placement or visibility would in any way constitute a public nuisance as defined in this chapter shall be considered to be a violation of this Code and subject to penalties as set forth in this chapter.

(Ord. No. 89-269, § 2(48-36), 10-12-89; Ord. No. 90-124, § 2(48-36), 5-17-90)

Sec. 19-52. - Operation of business where wind regularly carries refuse into street; fencing requirements.

It shall be unlawful for the owner, tenant or occupant of any parcel of land to operate or permit the operation of any business upon the parcel of land when and where, by reason of the combined effect of the prevailing winds and the location, configuration and size of the structures thereon, trash, litter and other refuse generated by the operation of the business or the customers or patrons thereof is regularly driven, carried or conveyed by such winds in appreciable quantities into or upon any public street, unless and until the owner, occupant or tenant shall have erected or caused to be erected on each boundary of the parcel of land as shall abut an area having a residential zoning classification or a street abutting such an area a six-foot fence.

(Ord. No. 89-269, § 2(48-37), 10-12-89; Ord. No. 90-124, § 2(48-37), 5-17-90)

Cross reference— Operation of business where wind regularly carries solid waste into street, § 26-172.

Sec. 19-53. - Placing or permitting offensive matter on streets, vacant lots, in streams, etc.

- (a) It is unlawful for any person to accumulate or permit the accumulation of any trash, debris, garbage or waste of any kind on property under his control or ownership.
- (b) No person shall throw, scatter or leave any loose paper, trash, rubbish, tree clippings or any other dry refuse or waste matter of any kind or character on the streets or sidewalks of the city.

- (c) No merchant, storekeeper or other person shall sweep onto any sidewalk, pavement, alley, street or other right-of-way of the city the sweepings or trash from such store or premises.
- (d) It is unlawful for any person to dump or dispose of any trash, debris, garbage or waste of any kind except in such places or in such a manner as is lawful for the disposal of the waste under existing city, county, state and/or federal ordinances, laws and regulations.

(Ord. No. 89-269, § 2(48-38), 10-12-89; Ord. No. 90-124, § 2(48-38), 5-19-90)

Cross reference— Pollution of navigable waters, § 14-236 et seq.; protection of public drainage systems, § 21-9; placing solid waste on streets, vacant lots, in streams, etc., § 26-149.

Sec. 19-54. - Refuse created by contractor's activity; burying and burning of garbage and trash.

- (a) It shall be unlawful for any person to produce or accumulate any trash, refuse, building wastes or tree trunks or branches away from a person's residence or licensed place of business while the person is acting in the capacity of a contractor, including, but not limited to, a tree surgeon, landscaper, building contractor or otherwise, without removing same to a designated landfill or resource recovery facility.
- (b) It shall be unlawful for any person to bury any garbage or trash within the city, except at such landfills or resource recovery facilities designated by the director of solid waste, or to burn any garbage or trash within the city, except at such designated resource recovery facilities or landfills, without first obtaining a permit from the fire marshal.

(Ord. No. 89-269, § 2(48-39), 10-12-89; Ord. No. 90-124, § 2(48-39), 5-17-90)

Sec. 19-55. - Littering in parks and public places.

- (a) It shall be unlawful for any person to throw or deposit litter in or upon any street, sidewalk, beach, parkway, park, alley or other public area or right-of-way in the city, except in public receptacles provided for that purpose.
- (b) Persons placing litter in public receptacles in public areas shall do so in such a manner as to prevent it from being carried or deposited by the elements upon any street, sidewalk, beach, parkway, park or other public area or right-of-way. Where such public receptacles are not provided, all such litter shall be carried away from such areas by the person responsible for its presence.
- (c) "Litter," as used in this section, shall include garbage, refuse, paper, cans, bottles, cartons, snipe signs or other like waste matter. "Public area," as herein used, includes any and all streets, sidewalks, boulevards, alleys or other public ways and any and all parks, beaches, parkways, spaces, grounds and public buildings.

(Ord. No. 89-269, § 2(48-40), 10-12-89; Ord. No. 90-124, § 2(48-40), 5-17-90; Ord. No. 96-204, § 16, 9-26-96)

Cross reference— Littering in parks and public places, § 26-150.

Sec. 19-56. - Storage of inoperative vehicles, junk or scrap metal in residential or commercial sections prohibited.

- (a) *Definitions.* The following definitions shall apply in the interpretation and enforcement of this section:

Commercial section means any property now or hereafter designated as a commercial district under the zoning laws of the city as defined in the city's zoning ordinance.

Public property means any city-owned, -leased, -controlled, -dedicated or -platted real property, including but not limited to parks, marinas, alleys, streets, rights-of-way or other real property.

Residential section means any property now or hereafter designated as a residential district under the zoning laws of the city as defined in the city's zoning ordinance.

- (b) *Storage.* It shall be unlawful for any person to keep, store or allow to remain on any property within any residential or commercial section of the city or upon any public property any dismantled, partially dismantled, inoperative or discarded machinery, vehicle, boat or parts thereof, scrap metal or junk.
- (c) *Seventy-two-hour limitation.* It shall be unlawful for any person in charge of or in control of any property in a residential or commercial section of the city, whether as owner, lessee, tenant, occupant or otherwise, to allow any dismantled, partially dismantled, inoperative or discarded machinery, vehicle, boat or parts thereof, scrap metal or junk to remain on such property longer than seventy-two (72) hours. It shall be unlawful for any person to have any such items on any residential, commercial or public property within the city for a longer time than seventy-two (72) hours.
- (d) *Exceptions.* This section shall not apply with regard to such machinery, vehicles, boats or parts thereof, scrap metal or junk in an enclosed building or on the premises of a business enterprise operated in a lawful place and manner and in accordance with permissive uses as authorized under the zoning laws of the city, when necessary to the operation of such business enterprise, or in an appropriate storage place or depository maintained in a lawful place and manner by the city.
- (e) *Enforcement.* The provisions of this section shall be enforced by the neighborhood improvement manager and/or the chief of police or any members of their respective departments designated by them. The neighborhood improvement manager and/or the chief of police is authorized to remove or have removed any such machinery, vehicle, boat or parts thereof, scrap metal and junk when such item reasonably appears to be in violation of this section.

(Ord. No. 89-269, § 2(48-41), 10-12-89; Ord. No. 90-124, § 2(48-41), 5-17-90; Ord. No. 96-204, §§ 1, 17, 9-26-96)

Sec. 19-57. - Graffiti declared a public nuisance.

- (a) *Prohibition of graffiti.* It shall be unlawful for any person to write, paint, inscribe, scratch, scrawl, spray, place or draw graffiti of any type on any public or private building, structure or any other real or personal property.
- (b) *Abatement.* It shall be unlawful for any person owning property, acting as manager or agent for the owner of property, or in possession or control of property to fail to remove or effectively obscure any graffiti upon any public or private building, structure or any other real or personal property.
- (c) *Enforcement.* Whenever the city becomes aware of any graffiti, the city shall have the right to enter onto any private property or non-city owned governmental property and remove or obscure it.
- (d) *Exception.* This section shall not be construed to prohibit temporary, easily removable chalk or other water soluble markings on public or private sidewalks, streets or other paved surfaces which are used in connection with:
 - (1) Traditional children's activities such as drawing, creating bases or a playing field for games such as stickball, kickball or handball, hopscotch and similar activities, and
 - (2) Any lawful business or public purpose or activity.
- (e) *Prosecution for violation of subsection (a).* The city shall take all reasonable steps to apprehend and prosecute through the courts all violators of section (a) above.
- (f) *Penalty for violation of subsection (a).*
 - (1) *Fine.* Any person convicted of violating subsection (a) above shall be punished by a fine of not less than two hundred and fifty dollars (\$250.00) for a first offense and five hundred dollars (\$500.00) for second and subsequent offenses and in no event shall the violator be allowed to substitute community service hours for payment of the monetary fine. Where a minor is the convicted violator, the fine for the second and all subsequent convictions shall be assessed against both the minor and his parent or legal guardian.
 - (2)

Restitution. In addition to the fine imposed in sub-subsection (f)(1), the court shall order the convicted violator to make restitution to the victim or city, as appropriate, for the damage or loss caused directly or indirectly by that offense in a reasonable amount to be determined by the court, but in any event, no less than the actual cost incurred to abate the graffiti and in no event shall the convicted violator be allowed to substitute community service hours for monetary restitution. Where the convicted violator is a minor, the court may also order his parent or legal guardian to make such restitution.

(Ord. No. 96-204, § 18, 9-26-96)

Sec. 19-58. - Unlawful to allow a dangerous tree to remain on property.

- (a) It is unlawful for a property owner to allow any tree, or any part thereof, to remain on the property, that has been evaluated and deemed "dangerous," as defined in section 19-3, by the natural resources coordinator, urban forestry coordinator, or respective designee(s).
- (b) When a property owner has been issued a notice of violation for a dangerous tree under this section, and the cause of the condition rendering the tree "dangerous" is not a result of a violation of Chapter 27, Article VI, Division 4, the tree removal permit requirements set forth therein, will be waived, and the notice of violation will act as the permit.

(Ord. No. 2011-98, § 2, 8-25-2011; Ord. No. 2019-54, § 4, 4-18-2019)

Sec. 19-59. - Swimming pool and spa maintenance requirements.

- (a) Pools and spas shall be kept in working order so that pool and spa water remains free and clear of pollutants and debris, the water clarity shall be such that the lowest part of the swimming pool or spa can be seen from the pool or spa deck, and the water quality shall be such that it does not create a breeding ground for mosquitoes or other insects.
- (b) If a swimming pool has been converted to a fish pond, there must be adequate filtration to ensure the water does not become stagnant and the water quality shall be such that it does not create a breeding ground for mosquitoes or other insects.

(Ord. No. 2011-98, § 2, 8-25-2011)

Secs. 19-60—19-70. - Reserved.

DIVISION 4. - ANIMALS

Footnotes:

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Cross reference— *Offenses and miscellaneous provisions relating to animals, § 14-176 et seq.; animals prohibited upon beach areas owned or operated by city, § 16-7; dogs prohibited on streets or public places without leash, § 16-8; hitching animals to trees, etc., § 22-311; horses or beasts of burden pulling nonmotorized vehicles, § 25-188 et seq.;*

report and disposition of small dead animals in city, § 26-177.

Sec. 19-71. - Definitions.

For the purposes of this article, certain abbreviations, terms, phrases, words and their derivatives shall have the meanings as set forth in Chapter 27.

(Ord. No. 89-269, § 2(48-44), 10-12-89; Ord. No. 90-93, § 1, 4-5-90; Ord. No. 90-124, § 2(48-44), 5-17-90; Ord. No. 97-43, § 1, 2-2-97; Ord. No. 2013-73, § 1, 6-6-2013)

Cross reference— Definitions and rules of construction generally, § 1-2.

Secs. 19-72—19-74. - Reserved.

Editor's note— Ord. No. 2013-73, § 12, adopted June 6, 2013, repealed §§ 19-72—19-74, which pertained to permitted animals, wild or exotic animals, aquatic animals. See Code Comparative Table for complete derivation. See section 27-282.27 for similar provisions.

Sec. 19-75. - Animals running at large.

It is unlawful for an owner of an animal to permit the animal to run at large upon any public place or upon unenclosed lands or upon the premises of another person within the limits of the city.

(Ord. No. 89-269, § 2(48-47), 10-12-89; Ord. No. 90-93, § 5, 4-5-90; Ord. No. 90-124, § 2(48-48), 5-17-90)

Sec. 19-76. - Reserved.

Editor's note— Ord. No. 2013-73, § 12, adopted June 6, 2013, repealed § 19-76, which pertained to farm animals. See Code Comparative Table for complete derivation. See section 27-282.27 for similar provisions.

Sec. 19-77. - Animals as a public nuisance.

- (a) No person, being the owner of or having charge of any animal, shall permit it to unreasonably annoy humans, endanger the life or health of other animals or persons or substantially interfere with the rights of citizens, other than their owners, to enjoyment of life or property. The term "public nuisance animal" shall mean and include, but is not limited to, any animal that:

- (1) Is repeatedly found at large;
- (2) Damages the property of anyone other than its owner;
- (3) Molests or intimidates pedestrians or passers-by;
- (4) Chases vehicles;

- (5) Causes fouling of the air by odor and thereby creates unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the animal is kept or harbored;
 - (6) Causes unsanitary conditions in enclosures or surroundings where the animal is kept or harbored;
 - (7) Is offensive or dangerous to the public health, safety or welfare by virtue of the number and/or types of animals maintained; or
 - (8) Attacks other domestic animals.
- (b) Violations of subsection 19-77(a)(2)–(8) shall be irreversible/irreparable in nature.
- (c) Noise from animals.
- (1) It shall be unlawful for the owner, or any person having custody, of an animal or animals to allow or fail to restrain the animal(s) from barking, meowing, whining, crowing, howling, or making other sounds common to the species, persistently or continuously for a period of twenty (20) minutes or longer when every animal is not contained within an enclosure sufficient to baffle loud noises. For the purposes of this section, persistently or continuously shall mean nonstop utterances for twenty (20) consecutive minutes with individual interruptions of less than twenty (20) seconds at a time during the twenty-minute utterances. This subsection shall not apply to animals maintained on land zoned for agricultural purposes, nor shall it apply to a properly permitted animal shelter established for the care and/or placement of unwanted or stray animals. nor a properly zoned commercial boarding kennel or other animal facility.
 - (2) Each separate occasion is considered a separate violation. The owner or custodian of the animal(s) may be charged with a violation of this subsection when:
 - a. The department has received, from at least two (2) unrelated adult witnesses from different residences, a verified complaint under penalty of perjury attesting to an alleged nuisance pursuant to this subsection; or
 - b. The department has received from one adult witness both a recorded video showing the alleged violation and a verified complaint under penalty of perjury attesting to an alleged nuisance pursuant to this subsection; or
 - c. The department has received from one adult witness a verified complaint under penalty of perjury attesting to an alleged nuisance pursuant to this subsection and a code enforcement officer has witnessed the alleged presence of a nuisance. A code enforcement officer shall not be required to personally witness an alleged violation for a twenty-minute period.
 - (3)

A verified complaint(s) attesting to the nuisance must come from residents who live on property within a five-hundred-foot radius of the property line of the property where the violation occurred.

- (4) A first violation of this section in a calendar year shall result in a warning issued to the violator. Any second or subsequent violation of this section, at the same location, within one calendar year of the date of the initial warning may be enforced as a class I civil citation, punishable as a seventy-five dollar (\$75.00) civil penalty.
- (5) In lieu of paying the civil penalty for a first citation for a violation of this section, the violator may elect to complete a department-approved responsible pet ownership course. Submission by the violator of a certificate of completion to the department within thirty (30) days of issuance shall satisfy the citation.

(Ord. No. 89-269, § 2(48-49), 10-12-89; Ord. No. 90-93, § 7, Ord. No. 90-124, § 2(48-50), 5-17-90; Ord. No. 96-204, § 20, 9-26-96; Ord. No. 97-43, § 3, 2-2-97; Ord. No. 2007-15, § 2, 1-25-07; Ord. No. 2018-105, § 2, 7-19-2018)

Sec. 19-78. - Large kennels declared a public nuisance.

The establishment, placement, maintenance or operation of a large kennel within two hundred (200) feet of any dwelling on an adjoining parcel of land in separate ownership in the city is hereby declared to be a public nuisance and is unlawful, unless such large kennel has been classified as, and maintains its status as either a conforming use or a nonconformity, pursuant to chapter 27.

(Ord. No. 89-269, § 2(48-50), 10-12-89; Ord. No. 90-93, § 8, 4-5-90; Ord. No. 90-124, § 2(48-51), 5-17-90; Ord. No. 2013-73, § 2, 6-6-2013)

Sec. 19-79. - Removal of animal excrement; exceptions.

- (a) It is unlawful for any person owning or having custody or control of any animal to fail to remove immediately the animal's excrement from any public or private place other than property owned or occupied by the person owning or having control of the animal.
- (b) The provisions of this section shall not apply to utility or assistance animals or to animals used by police officers for law enforcement or tracking purposes.

(Ord. No. 89-269, § 2(48-51), 10-12-89; Ord. No. 90-93, § 9, 4-5-90; Ord. No. 90-124, § 2(48-52), 5-17-90; Ord. No. 96-204, § 21, 9-26-96)

Secs. 19-80—19-95. - Reserved.

DIVISION 5. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2002-67, adopted Feb. 28, 2002, repealed Div. 5, §§ 19-96—19-104.1, which pertained to signs. See the Code Comparative Table.

Secs. 19-96—19-104.1. - Reserved.

DIVISION 6. - RENTAL CERTIFICATE PROGRAM

Secs. 19-105—19-108. - Reserved.

Editor's note— Ord. No. 2023-64, §§ 3—6, adopted May 4, 2023, repealed §§ 19-105—19-108, which pertained to purpose and intent; definitions; applicability; registration and derived from Ord. No. 2016-97, §§ 4—7, 6-23-206.

Sec. 19-109. - Inspections.

Nothing in this article shall prevent the city from conducting inspections of dwelling units or property when:

- (a) The city observes a violation of City Code;
- (b) The city becomes aware that serious threats to the health, safety, or welfare of the tenants or community exist on the property;
- (c) If a particular dwelling unit has received complaints from the property's surrounding neighbors or the tenant(s).

(Ord. No. 2016-97, § 8, 6-23-2016)

Secs. 19-110—19-125. - Reserved.

Editor's note— Ord. No. 2023-64, §§ 7—9, adopted May 4, 2023, repealed §§ 19-110—19-112, which pertained to rental certificate; fees; enforcement and penalties and derived from Ord. No. 2016-97, §§ 9—11, 6-23-2016.

DIVISION 7. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2011-98, § 4, adopted August 25, 2011, repealed Div. 7, §§ 19-126—19-129, which pertained to fee authority and types; special assessment. See also the Code Comparative Table.

Secs. 19-126—19-130. - Reserved.

DIVISION 8. - FORECLOSURE REGISTRY

Sec. 19-131. - Purpose and intent.

It is the purpose and intent of this division to establish a process to limit and reduce the deterioration of property located within the City of Tampa, which property is in foreclosure, or where ownership has been transferred to lender or mortgagee by any legal method. It is further intended to establish a registration program as a mechanism to protect neighborhoods from becoming blighted through the lack of inadequate maintenance of abandoned and vacated properties subject to a mortgage or properties subject to mortgages that are in default. The registration process will require mortgagees to provide the city with the most up to date accurate data and information for contacting a responsible party to bring the property into compliance with this division.

(Ord. No. 2009-180, § 3, 12-17-09; Ord. No. 2010-40, § 1, 5-6-2010)

Sec. 19-132. - Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them, except where the context clearly indicates a different meaning. Where the context will permit and no definitions are provided herein, the definitions provided in the Florida Building Code shall apply.

Abandoned real property means any real property that is vacant and/or is under a public notice of default, notice of mortgagee's sale, pending tax assessor's lien sale and/or properties that have been the subject of a foreclosure sale where title is retained by the mortgagee, and any properties transferred under a deed-in-lieu of foreclosure sale, a short sale or any other legal means.

Default means that the mortgagee files a foreclosure action or public notice of default on the mortgage. A mortgage shall be considered in default at such time as the mortgagee declares said mortgage to be in default either in writing, by recording a lis pendens, or by its actions, or commences foreclosure proceedings.

Enforcement officer means any fulltime law enforcement officer, building official, fire inspector or code enforcement officer employed by the City of Tampa.

Evidence of vacancy means any condition that on its own, or combined with other conditions present would lead a reasonable person to believe that the property is vacant. Such conditions may include, but are not limited to: overgrown and/or dead vegetation; electricity, water or other utilities turned off; stagnant

swimming pool; statements by neighbors, passers-by, delivery agents or government agents.

Foreclosure means the judicial process by which a property, placed as security for a mortgage loan, after a judicial process, is to be sold at an auction to satisfy a debt upon which the borrower has defaulted.

Vacant means any building or structure that is not lawfully occupied or inhabited by human beings as evidenced by the conditions set forth in the definition of "evidence of vacancy" above.

(Ord. No. 2009-180, § 4, 12-17-09)

Sec. 19-133. - Applicability.

- (a) This division relates to abandoned and vacant property that is or has been subject to a mortgage determined by the mortgagee to be in default.
- (b) This division will not apply to dwellings and structures located within a multi-family structure if:
 - (1) The multi-family structure has a property manager on the premises; and
 - (2) The multi-family structure has an active owners' association responsible for the management and maintenance of the property.

(Ord. No. 2009-180, § 5, 12-17-09; Ord. No. 2010-40, § 2, 5-6-2010)

Sec. 19-134. - Penalties.

Violations of this division shall be subject to enforcement by any of the enforcement means available to the City of Tampa.

(Ord. No. 2009-180, § 6, 12-17-09)

Sec. 19-135. - Registration of real property mortgagee holding mortgages in default.

- (a) Any mortgagee who holds a mortgage on real property located within the City of Tampa shall perform an inspection of the property upon default by the mortgagor or prior to the issuance of a notice of default. If the property is found to be vacant or shows evidence of vacancy, it shall be deemed vacant or abandoned and the mortgagee shall, within fifteen (15) calendar days of the inspection, register the property with the City of Tampa. If the property was not vacant at the time of default but becomes vacant sometime thereafter, the mortgagee shall register the property with the City of Tampa, no later than fifteen (15) calendar days after the date the mortgagee discovers or is notified the property in default is vacant.
- (b) If the property is occupied but remains in default, it shall be inspected monthly by the mortgagee or mortgagee's designee.
- (c)

Registration. Registration pursuant to this section shall contain at a minimum the name of the mortgagee, the mailing address of the mortgagee, e-mail address, and telephone number and name of the local property manager and said person's address, e-mail address, and telephone number. The local property manager shall be responsible to inspect, secure and maintain the property. The local property manager named in the registration shall be available to be contacted by the city, Monday through Friday between 9:00 a.m. and 5:00 p.m., except recognized city holidays. The local property manager shall respond to any report of a violation of this division, or the violations of any other city ordinances, within twenty-four (24) hours of notice. The City of Tampa shall charge a fee as set by resolution of the City of Tampa City Council for the registration and it may assign and delegate the collection of such fee to an independent contractor.

- (d) A separate registration is required for each vacant property that is subject to this division.
- (e) This section shall also apply to properties that have been the subject of a foreclosure sale where title is transferred to the mortgagee as well as any properties transferred to the mortgagee under a deed in lieu of foreclosure.
- (f) Properties subject to this section shall be under an annual registration requirement as long as they remain vacant or subject to having been declared by a mortgagee to be in default.
- (g) Any person or other legal entity that has registered a property under this division must report any change of information contained in the registration within fifteen (15) calendar days of the change.
- (h) Failure of the mortgagee and/or property owner of record to properly register or to revise from time to time the registration to reflect a change of circumstances as required by this division is a violation of the Code of Ordinances of the City of Tampa and shall be subject to enforcement by any of the enforcement means available to the City of Tampa.
- (i) Pursuant to a finding and determination that any property is in violation of the Code of Ordinances of the City of Tampa, the city may take the necessary action to ensure compliance with its ordinance and place a lien on the property for the cost of the work performed to benefit the property and to bring it into compliance, which lien may be assigned to either the entity that performs the work or arranges to have the work performed.
- (j) Registration of the property will no longer be required upon the occurrence of either of the events set forth below. There will not be a refund of any registration fee already paid to the city.
 - (1) The property is transferred from the mortgagee to a third party in an arm's length transaction and proof of the transfer is provided to the city.
 - (2) The property becomes occupied and evidence of occupancy is provided to the city. If the property subsequently becomes vacant prior to transfer of the property as contemplated in paragraph (j)(1) above, registration of the property will again be required.

(Ord. No. 2009-180, § 7, 12-17-09; Ord. No. 2010-40, § 3, 5-6-2010)

Sec. 19-136. - Maintenance requirements.

- (a) Properties subject to this division shall be kept free of weeds, overgrown brush, dead vegetation, trash, junk, debris, building materials, any accumulation of newspapers, circulars, flyers, notices, except those required by federal, state, or local law, discarded personal items including, but not limited to, furniture, clothing, large and small appliances, or any other items that give the appearance that the property is abandoned or not being properly maintained. Weeds, overgrown brush or dead vegetation over ten (10) inches tall are prohibited.
- (b) The property shall be maintained free of graffiti or similar markings by removal or painting over with an exterior grade paint that matches the color of the exterior structure. Yards shall be landscaped and maintained pursuant to the standards set forth in the code. Landscaping shall include, but not be limited to, grass, ground cover, bushes, shrubs, hedges or similar plantings, decorative rock or bark or artificial turf/sod designed specifically for residential, commercial or industrial installation, as applicable. Landscaping shall not include weeds, broken concrete, asphalt or similar material.
- (c) Maintenance shall include, but not be limited to, cutting and mowing of required landscape and removal of all trimmings and weeds.
- (d) Pools and spas shall be kept in working order so that pool and spa water remains free and clear of pollutants and debris, the water clarity shall be such that the lowest part of the swimming pool or spa can be seen from the pool or spa deck, and the water quality shall be such that it does not create a breeding ground for mosquitoes or other insects.
- (e) Failure of the mortgagee and/or property owner of record to properly maintain the property is a violation of the Code of Ordinances of the City of Tampa and may be subject to enforcement by any of the enforcement means available to the City of Tampa. Pursuant to a finding and determination, the City of Tampa may take the necessary action to ensure compliance with its ordinances and place a lien(s) on the property and assign it as provided herein.

(Ord. No. 2009-180, § 8, 12-17-09; Ord. No. 2010-40, § 4, 5-6-2010)

Sec. 19-137. - Security requirements.

- (a) Properties subject to this division shall be maintained in a secure manner so as not to be accessible to unauthorized persons.
- (b) A "secure manner" shall include, but not be limited to, the closure and locking of windows, doors, gates and other openings of such size that may allow a child or adult to access the interior of the property and/or structure. Broken windows shall be secured by reglazing or boarding.
- (c)

If a mortgage on the property is in default on the property and has become vacant or abandoned, a local property manager shall be designated by the mortgagee to perform the work necessary to bring the property into compliance with the Code of Ordinances and the local property manager must perform weekly inspections to verify compliance with the requirements of this section, and any other applicable laws or ordinances of the City of Tampa.

- (d) When the property becomes vacant or abandoned, it shall be posted with the name and twenty-four-hour contact telephone number of the local property manager. The sign shall be placed in a window facing the street and shall be visible from the street. The posting shall be no less than eighteen (18) inches × twenty-four (24) inches, and shall be of a font that is legible from a distance of forty-five (45) feet. The posting shall contain the following language:

THIS PROPERTY IS MANAGED BY _____
AND IS INSPECTED ON A REGULAR BASIS.

THE PROPERTY MANAGER CAN BE
CONTACTED BY TELEPHONE AT
_____ OR BY EMAIL AT _____.

- (e) The posting shall be placed on the interior of a window facing the street to the front of the property so that it is visible from the street, or secured to the exterior of the building/structure facing the street to the front of the property so that it is visible from the street or if no such area exists, on a stake of sufficient size to support the posting in a location that is at all times visible from the street to the front of the property but not readily accessible to vandals. Exterior posting shall be constructed of and printed with weather-resistant materials.
- (f) Failure of the mortgagee and/or property owner of record to properly inspect and secure the property, and post and maintain the signage noted in this section, is a violation of this division and shall be subject to enforcement by any of the enforcement means available to the City of Tampa. Pursuant to a finding and determination, the City of Tampa may take the necessary action to ensure compliance with this section, and place a lien on the property and assign it as provided herein.

(Ord. No. 2009-180, § 9, 12-17-09)

Sec. 19-138. - Additional authority.

- (a) If the city's director of code enforcement has reason to believe that a property is subject to the provisions of this division is posing a serious threat to the public health, safety and welfare, the code enforcement administrator may bring the violations before the city's code enforcement board or code enforcement special magistrate as soon as possible to address the conditions of the property.

- (b) If there is a finding that the condition of the property is posing a serious threat to the public health, safety and welfare, then the code enforcement board or code enforcement special magistrate may direct the city to abate the violations and charge the mortgagee with the cost of abatement.
- (c) If the mortgagee does not reimburse the city for the cost of abatement within thirty (30) days of the city sending the mortgagee the invoice, then the city may lien the property with the cost of abatement, along with an administrative fee.
- (d) If the code enforcement board or code enforcement special magistrate finds that vagrancy or vandalism is occurring on the property and that the presence of a security guard may deter the vagrancy or vandalism, the board or special magistrate shall have authority to require the mortgagee and/or owner of record of any property affected by this division to provide an on-site security guard. The failure to provide an on-site security guard, as ordered by the code enforcement board or special magistrate, shall constitute a separate violation of this division and shall be subject to enforcement by any of the enforcement means available to the City of Tampa.

(Ord. No. 2009-180, § 10, 12-17-09)

Sec. 19-139. - Supplemental provisions.

Nothing contained in this division shall prohibit the City of Tampa from enforcing its codes by any other means, including, but not limited to, injunction, abatement or as otherwise provided by Code.

(Ord. No. 2009-180, § 11, 12-17-09)

Secs. 19-140—19-145. - Reserved.

ARTICLE II. - RESERVED

Footnotes:

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Editor's note— Ord. No. 2017-73, § 1, adopted May 18, 2017, repealed §§ 19-146—19-151, 19-166—19-168, 19-193, which pertained to notices, appeals, boards. See Code Comparative Table for complete derivation.

Secs. 19-146—19-210. - Reserved.

ARTICLE III. - TECHNICAL PROVISIONS

DIVISION 1. - AUTHORITY TO ESTABLISH TECHNICAL STANDARDS

Sec. 19-211. - Technical standards may be established.

The neighborhood improvement manager may establish technical standards setting forth administrative guidelines governing the enforcement of this chapter, requirements not specifically addressed in this chapter but necessary to the effective pursuit of the purpose of this chapter, and any other information needed for the uniform and orderly administration of this chapter. Such standards are to be published in a technical manual, which manual shall be on file in the office of the city clerk at least seven (7) days prior to adoption thereof and shall be made available to the public for inspection and for duplication at cost.

(Ord. No. 90-124, § 2, 5-17-90; Ord. No. 96-204, § 1, 9-26-96)

(Ord. No. 89-269, § 2(48-151), 10-12-89; Ord. No. 90-124, § 2(48-151), 5-17-90)

Cross reference— Requirements not covered by Code may be required by the official, § 1-17.

Secs. 19-212—19-230. - Reserved.

DIVISION 2. - SPECIFIC TECHNICAL REQUIREMENTS

Sec. 19-231. - Standards for dwellings generally.

No person shall occupy or let to another for occupancy or offer to let to another for occupancy any dwelling or dwelling unit which does not comply with the following standards:

(1) *Sanitary facilities.*

- a. *Kitchen sink.* Every dwelling unit shall contain a kitchen sink in good working condition connected to a water and sewer system in accordance with the requirements of the building code.
- b. *Water closet.* Every dwelling unit shall contain within its walls a room separate from the habitable rooms which affords privacy and which is equipped with a water closet.
- c. *Bathtub or shower.* Every dwelling unit shall contain a room which affords privacy to a person in the room and which is equipped with a bathtub or shower.
- d. *Lavatory.* Every dwelling unit shall contain a lavatory in close proximity to each water closet installed which shall be in good condition.
- e. *Connection to hot, cold water lines.* Every kitchen sink, lavatory basin and bathtub or shower required under the provisions of subsections (1)a., b., c. and d. shall be connected with both hot and cold water lines and installed in accordance with the requirements of

the building code.

- f. *Garbage disposal facilities.* Every dwelling unit shall have approved garbage disposal facilities or approved garbage storage containers.
 - g. *Water heating facilities.* Every dwelling shall be supplied with water heating facilities which are capable of heating water to such a temperature as to permit hot water to be drawn at every required kitchen sink, lavatory basin, bathtub or shower at a temperature of not less than one hundred twenty (120) degrees Fahrenheit.
- (2) *Heating facilities.* Every dwelling unit shall be equipped with permanent heating equipment which shall be capable of safely and adequately heating the room temperature to seventy (70) degrees three (3) feet above the floor under ordinary minimum winter conditions in all of the habitable rooms.
 - a. Permanent heating equipment, if electric, must be permanently installed and connected to the electric circuits.
 - b. Permanent heating equipment, if fuel fired, shall be properly connected to a flue or vent except as follows:
 - 1. Appliances listed for unvented uses by Underwriters' Laboratories, Inc. and the American Gas Association do not require vents;
 - 2. When the total input rating is less than thirty (30) BTU per hour per cubic foot of room area to be heated or less than a maximum of forty thousand (40,000) BTU.
 - c. At no time shall an unvented fuel-fired heater of any type be installed or used in any bedroom or other habitable room used at any time for sleeping purposes, and a fuel-fired heater cannot be installed or used in any room normally kept closed, such as a bathroom.
 - d. At no time shall any unvented fuel-fired heater be installed or used in any multifamily dwelling.
 - e. No appliance which has been converted from a vented to an unvented heater shall be used under any conditions.
 - f. No unvented fuel-fired heater may be used in any location which does not provide facilities for ventilation to permit satisfactory combustion of fuel under normal conditions of operation.
 - g. All unvented fuel-fired heaters (gas, oil, etc.) installed or used for domestic heating systems shall comply with applicable national standard requirements covering safe operation, substantial and durable construction and acceptable performance. Such compliance shall be determined by the presence of a label of a nationally recognized testing agency which states that its design complies with national safety requirements.

(3)

Smoke detection. Smoke detectors which are approved by Underwriters' Laboratories, Inc., are required in each dwelling unit. The number and placement of smoke detectors shall conform to the manufacturer's specifications or to NFPA 74, "Standard for the Installation, Maintenance and Use of Household Fire Warning Equipment."

(4) *Light and ventilation.*

- a. *Minimum window areas.* Every habitable room shall have at least one (1) window or skylight facing directly to the outdoors with a minimum total window area measured between stops of ten (10) percent of the floor area of each such room; provided that kitchens and dining rooms may be windowless if artificial lighting or other equal illumination is provided. Windows which face walls or other light-obstructing structures located less than five (5) feet from the window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area. Whenever the only window in a room is a skylight-type window in the top of such a room, the total window area of such skylight shall equal at least fifteen (15) percent of the total floor area of such room.
- b. *Openable window area, other ventilation.* Every habitable room shall have at least one (1) window or skylight which can easily be opened or such other device as will adequately ventilate the room. The total of openable window area in every habitable room shall be equal to at least forty-five (45) percent of the minimum window area, except where there is an approved device installed which shall provide at least one (1) complete change of air every four (4) minutes at an air velocity not exceeding six hundred (600) feet per minute.
- c. *Bathrooms.* Every bathroom shall comply with the light and ventilation requirements for habitable rooms, except that no window or skylight shall be required in bathrooms equipped with an approved ventilation system which provides at least one (1) complete change of air every six (6) minutes and operates continuously when the bathroom is in use.

(5) *Standards for basic electrical facilities.*

- a. *General requirements.* Every dwelling shall be wired for electric lights and convenience receptacles. Every habitable room of such dwelling shall contain at least two (2) separate floor or wall-type electrical convenience outlets. Every kitchen, bathroom, bedroom, laundry room, furnace room, corridor, hallway and porch shall contain at least one (1) ceiling- or wall-type electric light fixture which can be controlled by a wall switch. Every such outlet and fixture shall be properly installed, shall be maintained in good and safe working condition and shall be connected to an approved source of electric power in a safe manner. Compliance with the requirements of the following table shall be sufficient:

Area	Floor or wall-type electric convenience outlets	Ceiling-type or wall-type fixture	Wall switch
Bedroom	1	1	yes
Kitchen	2	1	yes
Bathroom	—	1	yes
Corridor or hallway	—	1	yes
Porches	—		yes
Living room	2	1	1
Dining room	2	1	1
Florida room	2	1	1
Laundry room	2	1	yes
Furnace room	2	1	yes
Other habitable rooms	2	—	—

b. *Location of switches, receptacles in bathrooms.* Switches and electrical receptacles in bathrooms shall be at least three (3) feet from tub or shower.

c. *Maintenance.* All fixtures, receptacles, equipment and wiring shall be maintained in a state of good working condition and capable of being used and connected to the source of electric power.

- Where the determination is made, upon examination of the existing electrical service supply, that the electrical service supply is obsolete or is being used in such manner as would constitute a hazard to the occupants or would otherwise constitute a hazard to life and property, such as, but not limited to, overloading of circuits, unsafe wiring or inadequate wiring, then such conditions shall be corrected by the owner or occupant in a manner consistent with the reasonable recommendations of the neighborhood improvement manager and in strict adherence to the electrical code.
- The minimum capacity of the service supply and the main disconnect switch shall be sufficient to adequately carry the total load required in accordance with the electrical code.

d. *Bathroom water heaters.* No electric water heater shall be allowed in any bathroom unless the water heater and all electrical connections are totally encased in a nonconducting material or the water heater is installed in such a manner as to avoid any probability of shock hazard.

(6) *Lighting public halls.* Every public hall and stairway in every multiple dwelling containing five (5) or more dwelling units shall be adequately lighted at all times. Every public hall and stairway in structures devoted solely to dwelling occupancy and containing not more than

four (4) dwelling units may be supplied with conveniently located light switches controlling an adequately lighted system, which may be turned on when needed instead of full-time lighting. Adequate lighting for the purpose of this subsection shall mean not less than one (1) foot candles, measured at any point on the floor of a hall or on a stairway.

- (7) *Protection against mosquitoes, insects.* Every door opening directly to outdoors from a dwelling unit used or intended to be used for ventilation shall be supplied screens and a self-closing device as protection against mosquitoes, flies and other insects. Every window and other device with openings to outdoor space used or intended to be used for ventilation shall likewise be supplied with screens with removable frames. The screen wire installed on every screen door or on every window screen shall be of at least eighteen (18) by fourteen (14) mesh. Openings on existing screen doors and windows shall not exceed sixteen (16) mesh. Dwellings and dwelling units containing central heating furnaces and air-conditioning equipment for mechanically ventilating the structure year-round shall not be required to have screens on door or window openings. Window-type air-conditioning units shall not qualify dwellings or dwelling units for the exception eliminating the screen requirements.
- (8) *Rodent control.* Every basement or cellar window used or intended to be used for ventilation and every other opening affording an entry for rodents shall be provided with a screen or other barrier.
- (9) *Space requirements.*
- a. *Minimum total floor area.* Every dwelling unit shall contain a habitable room area of at least one hundred fifty (150) square feet of floor area for the first occupant and at least one hundred (100) additional square feet of floor area for every additional occupant.
 1. In every dwelling unit of two (2) or more rooms, every room occupied for sleeping purposes by one (1) occupant shall contain at least seventy (70) square feet of floor space, and every room occupied for sleeping purposes by more than one (1) occupant shall contain at least fifty (50) square feet of floor space for each occupant thereof.
 2. Every dwelling unit shall have at least one (1) bathroom containing at least thirty-five (35) square feet of floor space.
 - b. *Ceiling height.* Habitable (space) rooms other than kitchens, storage rooms and laundry rooms shall have a ceiling height of not less than seven (7) feet. Hallways, corridors, bathrooms, water closet rooms and kitchens shall have a ceiling height of not less than seven (7) feet, measured to the lowest projection from the ceiling. If any room in a building has a sloping ceiling, the prescribed ceiling height for the room is required for only one-half the area thereof. No portion of the room measuring less than five (5) feet from the finished floor to the finished ceiling shall be included in any computation of the minimum area thereof.

- c. *Cellar space.* No cellar space shall be used as a habitable room or dwelling unit.
 - d. *Basement space.* No basement space shall be used as habitable room or dwelling unit unless:
 - 1. The floor and walls are impervious to leakage or underground and surface water runoff and are insulated against dampness.
 - 2. The total of window area in each room is equal to at least the minimum window area sizes as required by this section.
 - 3. The required minimum window area is located entirely above the grade of the ground adjoining such window area.
 - 4. The total of openable window area in each room is equal to at least the minimum as required by this section, except where there is supplied a mechanical device to provide adequate ventilation of at least one (1) complete change of air in the room or dwelling unit each four (4) minutes at an air velocity not exceeding six hundred (600) feet per minute.
 - e. *Kitchen storage space.* Every dwelling unit shall have a minimum of twenty-four (24) square feet of total shelving in wall and base cabinets for storage of cooking utensils. Usable storage shelving in a cooking range or under a sink may be included in meeting this requirement.
 - f. *Closets.* Every dwelling unit shall have a minimum of twelve (12) square feet of floor area of closet space for the first bedroom, and six (6) square feet of floor area of closet space for each additional bedroom. Kitchen closet space shall not be considered as space meeting this requirement. Clothes closets shall have a shelf and rod.
- (10) *Floors, walls and ceilings.* Every floor, wall and ceiling shall be capable of affording privacy and shall be maintained in a good state of repair. In addition, exterior floors, walls and ceilings shall be weather tight.
- (11) *Windows, doors and hatchways.* Every window, exterior door and basement hatchway shall be reasonably weather tight, maintained without cracks or holes and in a good state of repair. All windows intended for ventilation must be equipped with fully operable hardware.
- (12) *Stairs, porches and appurtenances.* Every inside and outside stair, every porch and every appurtenance thereto shall be so constructed as to meet the requirements of the building code and shall be kept in a good state of repair. No stair riser shall exceed eight (8) inches and no stair tread shall be less than nine (9) inches. Protective railings or handrails shall be required on any unenclosed structure over three (3) feet from the ground level and on every interior or exterior stair and stairwell more than four (4) risers high and shall be located in

accordance with the requirements of the building code. Handrails or protective railings shall be capable of bearing normal imposed loads and shall be maintained in good condition. No ladders shall be permitted, except spiral staircases.

- a. *Guardrails generally.* All unenclosed floor and roof openings, open and glazed sides of landings and ramps, balconies or porches which are more than thirty (30) inches (762 mm) above finished ground level or a floor below shall be protected by a guardrail. Guardrails shall form a vertical protective barrier not less than forty-two (42) inches (1067 mm) high. Open guardrails shall have intermediate rails or ornamental pattern such that a six-inch (152 mm) diameter sphere cannot pass through any opening. A bottom rail or curb shall be provided that will reject the passage of a two-inch (51 mm) diameter sphere. Construction of guardrails shall be adequate in strength, durability and attachment for their purpose as described in Chapter 5.

EXCEPTIONS:

1. Guardrails are not required on the loading side of loading docks.
 - b. *Guardrails for residential dwellings.*
 1. Guardrails for dwellings and within individual dwelling units or guest rooms shall be a minimum of thirty-six (36) inches (914 mm) high.
 2. For one and two-family dwellings, only one intermediate rail located between fourteen (14) and eighteen (18) inches (356 mm and 457 mm) above floor level shall be required between the top of the guardrail and the floor level of boat docks, piers, landings, decks on beach fronts and dune walkovers, providing the floor or deck level is not more than six (6) feet (1826 mm) above the mean high water level or average grade of the beach, dune or ground below. No guardrail shall be required on that portion of a boat dock used for docking a boat.
 3. A bottom rail or curb is not required on guardrails within dwellings or dwelling units.
- (13) *Plumbing fixtures and pipes.* Every plumbing fixture and water and waste pipe shall be maintained in good working condition, free from defects, leaks and obstructions.
- (14) *Floors.*
- a. *Kitchen and bathroom floors.* Floors in kitchens and bathrooms, except where constructed of materials impervious to moisture, shall be covered with asphalt, vinyl-plastic, rubber tile, ceramic tile, terrazzo or linoleum or other durable, waterproof, nonabsorptive material.
 - b. *Flooring generally.* All other flooring throughout the dwelling shall be of approved grade and type of material properly installed.
- (15) *Protection of structures.*

- a. *Paint, etc.* The exterior of all structures, including accessory buildings and fences, shall be protected from the elements by the application of paint or other approved protective material and shall be maintained in a good state of repair. All paint and other approved protective materials shall be applied in accordance with the manufacturer's specifications.
- b. *Roof covering.* Roofs shall have a suitable covering free of holes, cracks or excessively worn surfaces, which will prevent the entrance of moisture into the structure and provide reasonable durability. Metal roofs showing signs of corrosion shall be painted with an approved product applied in accordance with the manufacturer's specifications or protected in an approved manner. Gutters and downspouts, where in existence, shall be maintained in a good state of repair.
- c. *Maintenance.* All structures, accessory structures, appurtenances and fences shall be free of deterioration and maintained in a good state of repair and such that the appearance of the premises and structures shall not constitute a blighting factor for adjoining property owners nor an element leading to the progressive deterioration and downgrading of the neighborhood.

(16) *Supplied facilities.*

- a. *Construction and installation.* Every supplied facility, piece of equipment or utility which is required or provided shall be so constructed or installed that it will function safely and effectively and shall be maintained in good working condition.
- b. *Removal, interruption of service.* The removal or interruption of service of a supplied facility which is required shall not be permitted, except for such temporary interruption as may be necessary while actual repairs or alterations are in process or during temporary emergencies when discontinuance of service is approved by the neighborhood improvement manager. In all cases the occupant must be given reasonable notice of the impending interruption. The foregoing does not apply to public utilities which discontinue service for nonpayment of charges for utility services.

(17) *General condition of rental unit.* Each dwelling unit let or offered to let shall be clean, sanitary, fit for human habitation and in a good state of repair.

(18) *Public areas to be clean, sanitary.* The shared or public areas of every dwelling containing two (2) or more dwelling units shall be maintained in a clean and sanitary condition, free of pests and termite infestation.

(Ord. No. 89-269, § 2(48-171), 10-12-89; Ord. No. 90-124, § 2(48-171), 5-17-90; Ord. No. 96-204, § 33, 9-26-96)

Sec. 19-232. - Responsibilities of owner and occupant of dwelling.

During the occupancy of dwellings or dwelling units the responsibility for maintaining the standards set forth in this chapter shall be as follows:

- (1) *Public areas.* Every owner of a dwelling containing two (2) or more dwelling units shall be responsible for maintaining in a clean and sanitary condition the shared or public areas of the dwelling and premises thereof.
- (2) *Occupied portion of premises.* Every occupant of a dwelling or dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises thereof which he occupies and controls.
- (3) *Sanitary maintenance.* The operator of every rooming house shall be responsible for the sanitary maintenance of the entire premises.
- (4) *Garbage, waste disposal.* Every occupant of a dwelling or dwelling unit shall dispose of his garbage and rubbish in a clean and sanitary manner.
- (5) *Screens.* Every owner of a dwelling or dwelling unit shall be responsible for the installation and maintenance of all screens whenever same are required.
- (6) *Pest control.*
 - a. The occupant of a single dwelling shall be responsible for the extermination of any insects, rodents or other pests therein or on the premises, and every occupant of a dwelling unit in a dwelling containing more than one (1) dwelling unit shall be responsible for such extermination whenever his dwelling unit is the only one infested. Whenever infestation exists in two (2) or more of the dwelling units in any dwelling, extermination thereof shall be the responsibility of the owner.
 - b. It shall be the responsibility of the owner to effectively correct any conditions of termite infestation. In cases of extreme visible damage to structural members of the dwelling, treatment must be done by a licensed and certified exterminator.
- (7) *Plumbing fixtures.* Every occupant of a dwelling unit shall keep all plumbing fixtures therein in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation thereof. The owner shall be responsible for the repair and replacement of all plumbing facilities and equipment.
- (8) *Accessory structures.* Every owner of a dwelling or dwelling unit shall be responsible for maintaining all accessory buildings and fences in a good state of repair.
- (9) *Protection of exterior of structures.* Every owner of a dwelling or dwelling unit shall be responsible for the protection of the exterior of the structure.

(Ord. No. 89-269, § 2(48-172), 10-12-89; Ord. No. 90-124, § 2(48-172), 5-17-90)

Sec. 19-233. - Standards for vacant structures.

- (a) It is unlawful to maintain vacant structures which are unsecured or do not meet the requirements as set forth in section 19-231(15).

(b) All vacant structures shall be secured as follows:

(1) *Material requirements.* Door and window security panels shall consist of the following:

- a. One-half-inch sheathing grade plywood;
- b. Three-eighths-inch diameter carriage bolts with nuts and flat steel washers, sufficient in length to fasten the plywood panel to the wood support bracket for both wood frame and concrete block walls; washers to be approximately one (1) inch in diameter;
- c. Two (2) by four (4) utility grade lumber sufficient in length to overlap the window opening six (6) inches on each side;
- d. Galvanized hardware cloth, eight (8) by eight (8) mesh, to cover the vent opening in the plywood panel;
- e. One-and-one-half-inch wood lattice to trim around the screen vent.

(2) *Installation requirements.*

- a. *Windows.* The plywood shall be cut to fit over the window within the boundaries of the window opening. A three-inch-by-eighteen-inch opening shall be cut into the plywood as shown on the schematic drawing. Cover the opening with the hardware cloth lapping the opening one-half inch on each side and secure to plywood panel. Trim the opening with lattice trim covering the edge of the hardware cloth. Drill four (4) one-half-inch holes into the plywood for the carriage bolts as shown on the schematic drawing. Drill matching holes in the two (2) by four (4) support brackets to align with the holes in the plywood. Paint the panel assembly on both sides and edges with two (2) coats of good quality exterior latex enamel before installation. Install the panel to the window as shown on the schematic drawing. The window glass must be removed prior to installation, unless the windows can be raised or lowered out of the way of the bolts. Install the support brackets in either a vertical or horizontal position, depending on the circumstances, and secure in place with the carriage bolts and nuts on the inside of the window.
- b. *Doors.* All entrance doors are to be nailed closed with twelve-penny nails at twelve (12) inches O.C. around the perimeter of the door jamb and head. When no door exists, the opening is to be secured in the same manner as outlined in paragraph (2)a. of installation requirements, with the exception that no vent opening is required.

(Ord. No. 89-269, § 2(48-173), 10-12-89; Ord. No. 90-124, § 2(48-173), 5-17-90; Ord. No. 96-204, § 34, 9-26-96)

Sec. 19-234. - Responsibilities of owner of vacant structures.

(a) The owner of a vacant structure shall be responsible to maintain the property in compliance with sections 19-231 and 19-233.

(b)

All accessory buildings and fences on the premises on which a vacant dwelling is located shall be maintained as required by this chapter.

(Ord. No. 89-269, § 2(48-174), 10-12-89; Ord. No. 90-124, § 2(48-174), 5-17-90)

Sec. 19-235. - Rooming houses.

No person shall operate a rooming house, as defined in chapter 27, or shall occupy or let to another for occupancy any lodging unit in any rooming house, which does not comply with the applicable standards set forth in chapter 27, and the following:

- (1) *Plumbing fixtures; number; location; connection.* At least one (1) flush water closet, lavatory basin and bathtub or shower, properly connected to a water and sewer system and in good working condition, shall be supplied for each three (3) lodging units within a rooming house, wherever these facilities are shared, or that number of fixtures and/or connections required by the Florida Building Code-Plumbing Code, whichever is more.
- (2) All such fixtures, connections, and facilities shall be so located on the floor they serve within the building as to be reasonably accessible from a common hall or passageway to all persons sharing such facilities. Every lavatory basin and bathtub or shower shall be supplied with hot water at all times. No such facilities shall be located in a basement, unless otherwise allowed by local or state law.
- (3) *Applicability of division.* The requirements of this division shall also apply to rooming houses to the extent those requirements do not conflict with the requirements of this section.

(Ord. No. 89-269, § 2(48-175), 10-12-89; Ord. No. 90-124, § 2(48-175), 5-17-90; Ord. No. 96-204, § 35, § 1, 9-26-96; Ord. No. 2013-72, § 1, 6-6-2013)

Sec. 19-236. - Standards for commercial, business, institutional and industrial structures—Generally.

Every structure and the premises on which it is situated in the city used or intended to be used for commercial, business, institutional or industrial purposes shall comply with the provisions of this chapter, whether or not the structure shall have been constructed, altered or repaired before or after the enactment of this Code, irrespective of any permits or licenses which shall have been issued for the use or occupancy of the structure or premises and notwithstanding any permit which shall have been issued for the construction or repair of the structure or for the installation or repair of equipment or facilities prior to the effective date of the ordinance from which this chapter was derived. This section establishes certain standards for the initial and continued occupancy and use of all such structures and does not replace or modify standards otherwise established for the construction, repair, alteration or use of the structure, the premises or the equipment or facilities contained in the structure or on the premises.

(Ord. No. 89-269, § 2(48-176), 10-12-89; Ord. No. 90-124, § 2(48-176), 5-17-90)

Sec. 19-237. - Same—Maintenance.

No person shall maintain or operate any commercial, business, institutional or industrial structure which does not comply with the following standards:

- (1) *Maintenance of exterior of premises.* The exterior of the premises and of all structures thereon shall be kept free of all nuisances and any hazards to the safety of occupants, customers, pedestrians and other persons utilizing the premises and free of insanitary conditions, and any of the foregoing shall be promptly removed and abated by the owner or operator. It shall be the duty of the owner and/or operator to keep the premises free of hazards which include, but are not limited to, the following:
 - a. Brush, weeds, broken glass, stumps, roots, obnoxious growths and accumulations of filth, garbage, trash, refuse, debris and inoperative machinery;
 - b. Dead and dying trees and limbs;
 - c. Loose and overhanging objects which by reason of location above ground level constitute a danger of falling on persons in the vicinity thereof;
 - d. Holes, excavations, breaks, projections, obstructions and excretions of pets and other animals on paths, walks, driveways, parking lots and parking areas and other parts of the premises which are accessible to or used by persons on the premises;
 - e. Inadequate runoff drains for stormwaters;
 - f. Sources of infestation;
 - g. Foundations, floors and walls which are not structurally sound;
 - h. Chimneys and flue and vent attachments which are not safe, durable, smoketight and capable of withstanding the action of flue gases;
 - i. Exterior porches, landings, balconies, stairs and fire escapes which are not provided with guardrails and handrails properly designed and maintained to minimize the hazard of falling.
- (2) *Appearance of exterior of premises and structures.* The exterior of the premises and the condition of accessory structures shall be maintained so that the appearance of the premises and all buildings thereon shall reflect a level of maintenance in keeping with the standards of the neighborhood or such higher standards as may be adopted as part of a plan of property standards of the city and such that the appearance of the premises and structures shall not constitute a blighting factor for adjoining property owners nor an element leading to the progressive deterioration and downgrading of the neighborhood, including the following:
 - a. Premises shall be kept landscaped and lawns, hedges and bushes shall be kept trimmed.

- b. All windows exposed to public view shall be kept clean and free of marks or foreign substances, except when necessary in the course of changing displays. No storage of materials, stock or inventory shall be permitted in window display areas or other areas ordinarily exposed to public view unless the areas are first screened from the public view by drapes, venetian blinds or other permanent rendering of the windows opaque to the public view. All screening of interiors shall be maintained in a clean and attractive manner and in a good state of repair.
- c. All store fronts and walls exposed to public view shall be kept in a good state of repair.
- d. Any awning or marquee and its accompanying structural members which extend over any street, sidewalk or any other portion of the premises shall be maintained in a good state of repair. If awnings or marquees are made of cloth, plastic or of a similar material, the cloth or plastic, where exposed to public view, shall not show evidence of excessive weathering, discoloration, ripping, tearing or other holes. Nothing herein shall be construed to authorize any encroachment on streets, sidewalks or other parts of the public domain.

(3) *General maintenance.* The exterior of every structure or accessory structure shall be maintained in a good state of repair, and all surfaces thereof shall be kept painted or sealed with an approved material where necessary for purposes of preservation and appearance. All surfaces shall be maintained free of broken glass, vegetation, loose shingles, crumbling stone or brick, excessive peeling paint or other condition reflective of deterioration or inadequate maintenance.

- a. Floors, interior walls and ceilings of every structure shall be structurally sound and maintained in a clean and sanitary condition.
- b. All roofs shall have an approved covering free of holes, cracks or excessively worn surfaces which will prevent the entrance of moisture into the structure and provide reasonable durability. Metal roofs showing signs of corrosion shall be painted with an approved product, applied in accordance with the manufacturer's specifications.
- c. Every room open to the public or in which persons are employed and every public hall and stairway in every structure shall be adequately lighted at all times the structure is in use or open to the public. Unless otherwise provided by law, adequate lighting for the purpose of this subsection shall mean not less than one (1) foot candle, measured at any point on the floor of a room, hall or stairway.
- d. Every room open to the public or in which persons are employed shall have at least one (1) window or skylight which can easily be opened or such other device as will adequately ventilate the room. The total of openable window area in every such room shall be equal

to at least eight (8) percent of the floor area, except where there is an approved device installed which shall provide at least one (1) complete change of air every four (4) minutes at an air velocity not exceeding six hundred (600) feet per minute.

- e. Washroom and water closet compartment floors shall be surfaced with water-resistant materials and shall be kept in a dry, clean and sanitary condition at all times.
- f. Supporting structural members are to be kept structurally sound, free of deterioration and capable of bearing imposed loads safely.
- g. Walls and ceilings shall be maintained in a good state of repair. Walls shall be provided with paint, paper, sealing material or other protective covering and shall be kept clean, free of visible foreign matter and well maintained at all times.
- h. Every washroom and water closet compartment shall be provided with permanently installed artificial lighting fixtures with a switch and wallplate so located and maintained that there is no danger of short circuiting from water or plumbing.
- i. All premises shall be properly connected to electric power through safely insulated conductors conforming to the electrical code.
- j. All wiring or cables shall be properly affixed or attached to the structure and kept in a good state of repair. No loose cords or loose extension lines in excess of six (6) feet in length shall be permitted, and no ceiling or wall fixture shall be used for supplying power to equipment other than that for which it is designed.
- k. Garbage storage containers or garbage disposal facilities shall be provided and maintained for the disposal of garbage at every occupied structure.
- l. Flammable or combustible liquids or other materials may not be stored on the premises, unless they are of a type approved for storage by the regulations of the fire department, and then only in such quantities and in such fireproof storage containers as may be prescribed by the regulations of the department.

(Ord. No. 89-269, § 2(48-177), 10-12-89; Ord. No. 90-124, § 2(48-177), 5-17-90; Ord. No. 96-204, § 36, 9-26-96)

Sec. 19-238. - Numbering of buildings required.

- (a) All owners, tenants or occupants of residential or nonresidential buildings in the city located on any street or avenue within the corporate limits of the city are required to have all such buildings numbered. The numbers shall be plainly printed or stenciled or shall consist of numerals made from a durable material including, but not limited to, metal, plastic and vinyl. The numbers shall consist of dark numerals on a light background or light numerals on a dark background and shall be at least three (3) inches in height and shall be attached to or painted on or above the front entrance of the building or some conspicuous place so as to be plainly and readily visible from the street or avenue on which the entrance is located.
- (b) Assignment of names of streets and street numbers shall be the responsibility of the department of business and community services.
- (c) All owners, tenants or occupants of premises or establishments of any kind whatsoever located within any building set forth herein and having a separate entrance located on any street or avenue within the corporate limits of the city shall comply with the requirements of this section.
- (d) All owners, tenants or occupants of all residential or nonresidential buildings which may be erected in the city or of any premises or establishments located therein, as set forth above, shall have same numbered in accordance with the manner prescribed in this section as soon as completed.

(Ord. No. 89-269, § 2(48-178), 10-12-89; Ord. No. 90-124, § 2(48-178), 5-17-90; Ord. No. 96-204, § 1, 9-26-96)

Chapter 21 - STORMWATER MANAGEMENT

Footnotes:

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Editor's note— This chapter is included as part of the Land Development Code adopted in § 17.5-17 which combines and compiles all land development regulations into a single land development code.

Related law references—Drainage, Art. VII; excavations, Art. IX.

Cross reference— Building and construction regulations, Ch. 5; flood damage control, § 5-401 et seq.; landscaping, tree removal and site clearing, Ch. 13; affordable housing, sustainability, and concurrency management system, Ch. 17.5; concurrency management system, § 17.5-41 et seq.; property maintenance and structural standards, Ch. 19; signs, § 19-96 et seq.; public improvements, Ch. 20; streets and sidewalks, Ch. 22; subdivision procedures, § 27-153.1 et seq.; private drainage improvements in subdivisions, § 27-155.3.2; drainage easements in subdivisions, § 27-155.3.7(a); transportation, Ch. 25; utilities, Ch. 26; water, § 26-66 et seq.; sanitary sewers, § 26-116 et seq.; zoning and land development, Ch. 27.

State Law reference— Water resources, F.S. Ch. 373.

ARTICLE I. - ADMINISTRATIVE PROVISIONS

Footnotes:

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Cross reference— Administration, Ch. 2.

DIVISION 1. - GENERAL PROVISIONS; ADMINISTRATIVE AUTHORITY; DEFINITIONS

Sec. 21-1. - Title.

This chapter shall be known and may be cited as the "City of Tampa Stormwater Management Ordinance."

(Ord. No. 89-249, § 2(46-1), 9-28-89)

Sec. 21-2. - Legislative findings, intent, and purpose.

(a) The purposes of this chapter are to:

- (1) Protect the health, safety, and welfare of the general public through the administration and regulation of earthwork and drainage;
- (2) Provide procedures and standards for the imposition of stormwater charges under the constitutional and statutory power of the city;
- (3) Authorize a procedure for the funding of stormwater management services and stormwater charges within a stormwater service area;
- (4) Provide procedures and standards for the funding of stormwater improvements within a stormwater improvement area; and
- (5) Provide procedures and standards to determine the fair, equitable, and reasonable charge for the stormwater fees charged to government property to fund the regulation of stormwater management services provided to such property.

(b) The stormwater utility, the stormwater management services and the stormwater improvements provide a special benefit to assessed property or government property based upon the following legislative findings:

- (1) The stormwater utility possesses a logical relationship to the use and enjoyment of all developed property by treating and controlling contaminated stormwater generated by improvements constructed on developed property, which resulted in the alteration of such property from its natural state.
- (2) The special benefit received or burden created by assessed property or the reasonable relationship to the benefit received or burden created by government property is the collection, storage, control, management, treatment, and conveyance of the stormwater burden generated by the improvements on developed property.
- (3)

Substantially all of the stormwater burden managed, controlled and treated by the stormwater utility is generated by developed property and the amount of stormwater generated by property in its natural state that is managed, controlled and treated by the stormwater utility is inconsequential.

(4) The stormwater fee as authorized to be calculated herein and charged to government property bears a reasonable relationship to the cost of providing stormwater management services, including of stormwater generated by government property as developed property.

(5) The whereas clauses are hereby incorporated herein by reference.

(Ord. No. 89-249, § 2(46-2), 9-28-89; Ord. No. 2003-200, § 1, 8-7-03)

Sec. 21-3. - Applicability.

The provisions of this chapter shall apply to all land and improvements within the corporate limits of the city unless they are expressly exempted herein or by any other applicable law.

(Ord. No. 89-249, § 2(46-3), 9-28-89; Ord. No. 2010-93, § 1, 7-29-2010)

Sec. 21-4. - Definitions.

For the purpose of this chapter, certain abbreviations, terms, phrases, words and their derivatives shall have the following meanings:

Annual stormwater resolution means the resolution described in section 21-129 hereof, approving a stormwater roll for one (1) or more fiscal years.

Assessed property means all parcels of real property included on the stormwater roll that receive a special benefit from the stormwater improvements and stormwater management services identified in a final or annual stormwater resolution.

Borrow pits means the excavation and off-site hauling (to the site of another property owner) of sand, soil, peat, clay, stone, shell and the like in quantities of more than ten thousand (10,000) cubic yards.

Capital cost means the cost associated with the construction, acquisition, installation, reconstruction, renewal or replacement of stormwater improvements including without limitation: (a) the cost of physical construction, reconstruction, renewal, replacement or completion; (b) the costs of acquisition and installation; (c) the cost of all labor, materials, machinery and equipment, including costs associated with the acquisition thereof; (d) the cost of all lands and interest therein, property rights, and easements of any nature whatsoever, including costs associated with the acquisition thereof; (e) the cost of any indemnity or surety bonds and premiums for insurance during construction; (f) the cost of construction plans and specifications, surveys and estimates of costs; (g) the cost of engineering, legal and other consultant services; (h) reasonable contingencies for construction cost increases and change orders; and (i) all other expenses that are properly attributable to such acquisition or construction under generally accepted

accounting principles; and including reimbursement to the city or to a landowner or developer as authorized by any other city ordinance for any moneys heretofore or hereafter advanced for capital cost and interest on any interfund loan for such purposes.

Clerk means the city clerk, or such other person as may be duly authorized to act on such person's behalf.

Comprehensive plan means the comprehensive plan adopted by the city pursuant to F.S. ch. 163, pt. II.

Department means the public works department having jurisdiction and cognizance over the stormwater management division therein and its matters relating to the use, management, operation and maintenance of the stormwater services and system.

Department of revenue (DOR) code means those Florida Department of Revenue codes classifying land use as defined by Rule 12D-8-008(2)(a) F.A.C., as may be amended from time to time.

Detention pond means a stormwater facility designed to capture and limit stormwater flow (by releasing it at a reduced rate) in order to reduce downstream impacts or improve its quality.

Developed property means property that has been developed with impervious area.

Director means the director of the department who shall be responsible for the management of the affairs of the department, or his designee.

Drainage system means the surface and subsurface system for the removal of water from or control of water on the land, including both the natural elements of streams, marshes, swales and ponds, whether of an intermittent or continuous nature, and manmade elements which include culverts, ditches, channels, piping and storage facilities. The storm sewer system may be referred to as stormwater management facilities, conveyance system, etc.

Dwelling unit means a room or group of rooms forming a single independent habitable unit used for or intended to be used for living, sleeping, sanitation, cooking and eating purposes by one (1) family only; for owner occupancy or for rental, lease or other occupancy on a weekly or longer basis; and containing independent kitchen, sanitary and sleeping facilities.

ESFIA means "equivalent square footage of impervious surface," (also known as an "ESU" or an "equivalent stormwater unit") the standard unit used to express the stormwater burden expected to be generated by each parcel of property, after taking into consideration any approved mitigation credits.

Excavation means the action or process of creating a depression or hole in the ground of two (2) feet or greater in depth by moving and/or removing the soil.

Final stormwater resolution means the resolution described in section 21-128 hereof, which shall confirm, modify or repeal the initial stormwater resolution and which shall be the final proceeding for the imposition of the initial stormwater charges.

Fiscal year means the period commencing on October 1 of each year and continuing through the next succeeding September 30, or such other period as may be prescribed by law as the fiscal year for the city.

Government property means property owned by the United States of America, the State of Florida, a sovereign state or nation, a county, a special district, a municipal corporation, or any of their respective agencies or political subdivisions.

Grading means the action or process of changing the elevation contour of property.

Impervious area means hard surfaced areas which either prevent or severely restrict the entry of water into the soil mantle and/or cause water to run off the surface in greater quantities or at an increased rate of flow from that present under natural conditions prior to development. Common impervious surfaces include, but are not limited to, rooftops, sidewalks, walkways, patio areas, driveways, parking lots, storage areas and other surfaces which similarly affect the natural infiltration or runoff patterns which existed prior to development.

Initial stormwater resolution means the resolution described in section 21-124 hereof, which shall be the initial proceeding for the imposition of the stormwater charges.

Mine means a pit or excavation in the earth from which minerals or earthen products are taken for use elsewhere.

Mitigation credit means a credit applied to a stormwater charge for a developed property in consideration of the on-site management of the stormwater burden as a consequence of the location of a mitigation facility or in consideration of discharge to a non-city stormwater system or for the conveyance and/or treatment of city stormwater.

Mitigation facility means a manmade facility or structure on the site of a developed property which, by its design and function, retains or detains stormwater on-site and thus generates less volume of stormwater from the site or produces stormwater runoff at a lower rate or with less pollutants than would be the case in the absence of such facilities or structure.

Obligations means a series of bonds or other evidence of indebtedness including but not limited to, notes, commercial paper, capital leases or any other obligations of the city issued or incurred to finance any portion of the capital cost of a stormwater improvement and secured, in whole or in part, by proceeds of the stormwater improvement assessments.

Official means the mayor of the city or his or her designee.

Owner, tenant, occupant shall include the heirs, personal representatives, successors and assigns of the person referred to, and the covenants and agreements contained in any contract between the department and its consumers should be binding upon and inure to the benefit of the heirs, personal representatives, successors or assigns of the respective persons thereto.

Pledged revenue means as to any series of obligations: (a) the proceeds of such obligations, including investment earnings; (b) proceeds of the stormwater improvement assessments pledged to secure the payment of such obligations; and (c) any other legally available non-ad valorem revenue pledged to secure the payment of such obligations, as specified by the resolution authorizing such obligations.

Project cost means: (a) the capital cost of a stormwater improvement which may or may not include the following; (b) the transaction cost associated with the obligations to finance the stormwater improvement; (c) interest accruing on such obligations for such period of time as the city deems appropriate; (d) the debt service reserve fund or account, if any, established for the obligations which financed the stormwater improvement; and (e) any other costs or expenses related thereto.

Property appraiser means the Hillsborough County Property Appraiser.

Public drainage system means drainage systems located in and/or draining water from public rights-of-way or easements.

Retention pond means a stormwater facility that has no structural outfall and the discharge from which is limited to percolation, evaporation, and evapo-transpiration.

Retention storage means storm runoff collected and stored with no release other than evaporation or infiltration to the ground.

Service area means the corporate limits of the city.

Stockpile, permanent means the storage of soil or earthen products as a business function, unrelated to any one (1) special site and with no foreseen end in accordance with a site earthwork and drainage plan.

Stockpile, temporary means the short-term storage of soil or earthen products during construction activities of a specific site in accordance with a site earthwork and drainage plan.

Stormwater means the flow of water which results from, and which occurs following, a rainfall event.

Stormwater assessment means either a stormwater improvement assessment, a stormwater service assessment, or both.

Stormwater basin means a part of the earth's surface that contributes stormwater runoff to a drainage system, which consists of diffuse surface waters, together with all natural or artificial tributary surface streams and/or bodies of impounded surface water.

Stormwater basin plan means a policy document that is adopted by the council for each stormwater basin or hydrologic subarea thereof in which stormwater improvements are proposed and that provides for implementation of the stormwater master plan.

Stormwater charge means the stormwater assessments and/or the stormwater fee.

Stormwater fee means a fee reasonably related to service provided by the city to government property to fund all or any portion of the stormwater service cost for government property at a just, fair, reasonable, and equitable rate based upon such property's stormwater burden, the reasonable relationship to benefits received, and the reasonable cost of providing stormwater management services to such property. The stormwater fee imposed against government property is not a special assessment; it is a regulatory fee imposed for the stormwater management service provided to government property as developed property by the city's stormwater utility.

Stormwater improvement means land, capital facilities and improvements acquired or provided to detain, retain, convey or treat stormwater.

Stormwater improvement area means one (1) or more stormwater basins, or any portion or portions thereof, as identified in the initial stormwater resolution, encompassing those parcels of property specially benefited by the construction, reconstruction or installation of all or any portion of a stormwater improvement that removes, detains, retains or treats, in whole or in part, the stormwater burden expected to be generated by the physical characteristics and use of the assessed property. Each stormwater improvement area will include either: (a) the property which is hydrologically connected, directly or indirectly, to a stormwater improvement; or (b) all property located within a hydrologically defined area in which the city constructs one (1) or more stormwater improvements pursuant to a stormwater basin plan to correct existing deficiencies with respect to a specific level of service and provide a consistent level of stormwater management.

Stormwater improvement assessment means a special assessment imposed by the city within a stormwater improvement area to fund the capital cost or the debt service and related cost of obligations issued to finance the project cost of a stormwater improvement.

Stormwater management service means: (a) management and administration of the city's stormwater utility; (b) stormwater program engineering; (c) stormwater basin planning; (d) stormwater improvements to be acquired or constructed during a single fiscal year without the issuance of any obligations, except that budgeted and funded projects may overlap fiscal years; (e) operating and maintaining the city's capital facilities for stormwater management, including extraordinary maintenance and scheduled replacement of such facilities; (f) billing and collection of stormwater charges, including customer information services and reserves for statutory discounts; (g) permitting, inspecting and reviewing of plans; and (h) legal, engineering and other consultant services.

Stormwater roll means the roll created that includes all parcels within the city and their assigned stormwater charge relating to stormwater improvements or stormwater management services approved by a final stormwater resolution or each subsequent annual stormwater resolution pursuant to sections 21-128 and 21-129 hereof.

Stormwater service area means the geographic area described in the initial stormwater resolution that encompasses all parcels within the city which specially benefit from the stormwater management service and all parcels to which stormwater management services are provided.

Stormwater service assessment means a special assessment imposed by the city within the stormwater service area to fund the stormwater service cost.

Stormwater service cost means the estimated amount for any fiscal year (or for more than one (1) fiscal year upon approval of council pursuant to section 21-129(b) hereof) of all expenditures and reasonable reserves that are properly attributable to the stormwater management service provided within the stormwater service area under generally accepted accounting principles.

Stormwater system means the appurtenances, facilities, equipment and services necessary for the collection, treatment, storage and conveyance of storm and surface waters.

Stormwater utility means the entity established by section 21-117 hereof to implement the stormwater management program of the city.

Tax collector means the Hillsborough County Tax Collector.

Tax roll means the real property ad valorem tax assessment roll maintained by the property appraiser for the purpose of the levy and collection of ad valorem taxes.

Transaction cost means the costs, fees and expenses incurred by the city in connection with the issuance and sale of any series of obligations, including but not limited to: (a) rating agency and other financing fees; (b) the fees and disbursements of bond counsel; (c) the underwriters' discount; (4) the fees and disbursements of the city's financial advisor; (d) the costs of preparing or printing the obligations and the documentation supporting issuance of the obligations; (e) the fees payable in respect of any municipal bond insurance policy; and (f) any other costs of a similar nature incurred in connection with issuance of such obligations.

Uniform Assessment Collection Act means F.S. § 197.3632 and 197.3635, or any successor statutes authorizing the collection of non-ad valorem assessments on the same bill as ad valorem taxes, and any applicable regulations promulgated thereunder.

Year means calendar year from January 1 to December 31.

(Ord. No. 89-249, § 2(46-4), 9-28-89; Ord. No. 2003-200, § 2, 8-7-03; Ord. No. 2010-93, § 1, 7-29-2010; Ord. No. 2016-63, § 2, 5-5-2016)

Cross reference— Definitions and rules of construction generally, § 1-2.

Sec. 21-5. - Administrative authority.

The provisions of this chapter shall be administered and enforced by the official. For purposes of administration of the provisions of this chapter, the official's designee shall be the director. This article shall be deemed to provide an additional and alternative method for the doing of the things authorized hereby and shall be regarded as supplemental and additional to powers conferred by other laws, and shall not be regarded as in derogation of any powers now existing or which may hereafter come into existence. This article, being necessary for the welfare of the inhabitants of the city, shall be liberally construed to effect the purposes hereof.

(Ord. No. 89-249, § 2(46-5), 9-28-89; Ord. No. 2003-200, § 3, 8-7-03; Ord. No. 2010-93, § 1, 7-29-2010)

Cross reference— Administrative authority of the official, § 1-13; delegation of administrative authority, § 1-14.

Sec. 21-6. - Alternate materials and methods of construction.

The provisions of this chapter are not intended to prevent the use of any material or method of construction not specifically prescribed by this chapter, provided any such alternate has been approved by the official. The official shall approve any such alternate, provided he finds that the alternate for the purpose intended is at least the equivalent of that prescribed in this chapter in quality, strength, effectiveness, fire resistance, durability and safety. The official shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternate. If these criteria are not met, the official shall deny the request.

(Ord. No. 89-249, § 2(46-6), 9-28-89)

Sec. 21-7. - Borrow pits, mines.

Borrow pits and mines are expressly prohibited, unless a development plan relating to these activities has been received and approved by the city and a special excavation and earthwork permit is obtained from the city prior to engaging in the construction of a borrow pit or mine.

(Ord. No. 89-249, § 2(46-7), 9-28-89)

Sec. 21-8. - Drainage patterns not to be changed to the detriment of neighboring properties.

It is unlawful for any person, notwithstanding the issuance of a permit by the city, to stockpile material or to grade, fill, excavate, construct or do any other act affecting drainage which results in the alteration of the surface or subsurface drainage patterns to the detriment of neighboring properties or public rights-of-way.

(Ord. No. 89-249, § 2(46-8), 9-28-89)

Sec. 21-9. - Protection of public drainage systems.

- (a) It shall be unlawful for any individual to introduce any foreign matter (including, but not limited to, trash, leaves, grass clippings, debris, garbage, fill, construction materials, organic or inorganic pollutants, acids, and petroleum products), whether by action or inaction, to any public drainage system including but not limited to streets. It is a public nuisance for any person to damage, obstruct or interfere with the operation of any public drainage system, whether by action or inaction.
- (b) Any business who has received written notice of any employee who has acted in violation of paragraph (a) shall be jointly liable for any future violations of paragraph (a) by any employee which occurs within twelve (12) months after a written notice was received.

For purposes of this section, the following definitions shall apply:

Business means any for-profit entity, partnership, or corporation.

Employee means any individual directly or indirectly, including contractors and subcontractors, hired or paid to perform a service.

Written notice means notice sent on behalf of the City of Tampa whereby reasonable efforts are made to ensure the notice is received by the business.

- (c) A violation of paragraph (a) is deemed an irreparable and irreversible violation.

(Ord. No. 89-249, § 2(46-9), 9-28-89; Ord. No. 2003-200, § 4, 8-7-03; Ord. No. 2015-97, § 1, 9-17-2015)

Cross reference— Dumping or discharging oil, etc., into sewers, § 14-238; placing or permitting offensive matter on streets, vacant lots, streams, etc., § 19-53; placing solid waste on streets, vacant lots, streams, etc., § 26-149.

Secs. 21-10—21-25. - Reserved.

DIVISION 2. - CERTIFICATES; DOCUMENTS; REQUIREMENTS; ETC.

Sec. 21-26. - Applications, documentation.

- (a) Any person legally entitled to apply for and receive a permit under the provisions of this chapter shall make such application in writing to the city on forms provided for that purpose. Every applicant for a permit shall give a description of the character of the work proposed to be done and the location, ownership, occupancy and use of the premises in connection therewith. The city may require plans, specifications or drawings and such other information as it may deem necessary and pertinent prior to the granting of a permit. If the city determines that the plans,

specifications, drawings, descriptions or other information furnished by the applicant are in compliance with this chapter, the rules and regulations of any other department having jurisdiction and any other laws, rules and regulations pertaining to work proposed to be done, it shall issue the permit applied for upon payment of the required fee.

- (b) The order, sequence and prerequisites for making applications for service shall be as designated by the official.

(Ord. No. 89-249, § 2(46-31), 9-28-89)

Sec. 21-27. - Permit requirements.

- (a) A drainage and earthwork permit must be obtained from the city prior to engaging in excavating, grading, filling or stockpiling activities, otherwise, each activity shall be unlawful.
- (b) In order to qualify for issuance of a drainage and earthwork permit, the applicant must submit an application in conformance with the department's technical standards manual. Such manual identifies requirements which must be satisfied so that the applicant's permit may be approved.
- (c) Such permit shall be valid for six (6) months from the date of issuance only, unless (i) a building construction permit has been issued and remains viable, or (ii) an extension is requested and granted. The city may deny an extension if, upon inspection by the city, the site is determined to be in noncompliance with this chapter. An extension fee or a reissuance fee shall be charged and shall be the same for the applicable drainage and earthwork permit fee.
- (d) Such permit may be issued to the property owner or his agent.

(Ord. No. 89-249, § 2(46-32), 9-28-89)

Secs. 21-28—21-45. - Reserved.

DIVISION 3. - FEE AUTHORITY AND TYPES; PERMITS; INSPECTIONS

Sec. 21-46. - Fees and assessments—City council to establish.

The city council shall have the authority to set fees and assessments by resolution. The city council may follow the provisions set forth in F.S. § 197.3632, as may be amended from time to time, to establish assessments by resolution.

(Ord. No. 89-249, § 2(46-41), 9-28-89; Ord. No. 2003-200, § 5, 8-7-03)

Sec. 21-47. - Same—Types enumerated.

- (a) Fees may be charged for the following:

- (1) Residential drainage and earthwork permit fee;
- (2) Commercial drainage and earthwork permit fee;
- (3) Miscellaneous drainage and earthwork permit fee;
- (4) Special excavation and earthwork fee;
- (5) Inspection fee;
- (6) Re-inspection fee;
- (7) Culvert design fee;
- (8) Stormwater fees for government property.

(b) Stormwater assessments may be charged for the following:

- (1) Non-government developed property.

(Ord. No. 89-249, § 2(46-42), 9-28-89; Ord. No. 2003-200, § 6, 8-7-03)

Sec. 21-48. - Failure to obtain a permit.

Any person who shall commence any work without first obtaining a permit therefor shall, if subsequently authorized to obtain a permit, pay double the fees prescribed for this work; provided, however, that this section shall not apply to emergency work when failure to commence the same immediately would clearly have placed life or property in imminent danger, but in all such cases a permit must be obtained as soon as practicable and, if there is any unreasonable delay in obtaining such permit, a double fee shall be charged. The payment of a double fee shall not preclude nor be deemed to be a substitute for prosecution for commencing work without first obtaining a permit.

(Ord. No. 89-249, § 2(46-43), 9-28-89)

Sec. 21-49. - Operation and maintenance inspection fee.

A fee shall be charged for each regularly scheduled periodic inspection made by an authorized city representative to ensure the proper operation and maintenance of private drainage facilities. The charge for subsequent inspections to verify correction of any operation and maintenance deficiencies shall be the same as for a reinspection.

(Ord. No. 89-249, § 2(46-44), 9-28-89)

Cross reference— Inspections generally, § 1-27.

Sec. 21-50. - Permit types.

(a) *Residential or commercial drainage and earthwork permit.*

- (1)

Required for: Excavating, grading, filling or stockpiling in conjunction with a residential or commercial building permit for construction, expansion or paving.

(2) *May be issued to:* Property owner or his agent.

(3) *Scope of work:* The permittee is authorized to excavate, grade, fill or stockpile at a construction site in accordance with the approved plans, this Code and the stormwater management technical manual.

(b) *Miscellaneous drainage and earthwork permit.*

(1) *Required for:* Excavating, grading, filling or stockpiling not in conjunction with a commercial building permit for construction, expansion or paving.

(2) *May be issued to:* Property owner or his agent.

(3) *Scope of work:* The permittee is authorized to excavate, grade, fill or stockpile at a construction site in accordance with the approved plans, this Code and the stormwater management technical manual.

(c) *Special excavation and earthwork permit.*

(1) *Required for:* Excavating a borrow pit or mine.

(2) *May be issued to:* Property owner or his agent.

(3) *Scope of work:* The permittee is authorized to excavate, grade, fill or stockpile at a construction site in accordance with the approved plans, this Code and the stormwater management technical manual.

(Ord. No. 89-249, § 2(46-45), 9-28-89)

Sec. 21-51. - No changes in plans; certificate of construction.

- (a) All work shall be completed in accordance with plans approved for issuance of a permit. No changes shall be made in the plans or construction unless modified plans are submitted to the city and such modified plans are approved and the necessary permits are amended or reissued.
- (b) The engineer of record shall certify to the city that all work was completed in accordance with the approved plans. No certificate of occupancy will be issued unless and until this certification has been received by the city.

(Ord. No. 89-249, § 2(46-46), 9-28-89)

Sec. 21-52. - Revocation of permit.

- (a) The official may revoke all permits issued without notice if it reasonably appears that the work in progress constitutes an immediate threat and danger to the health, welfare and safety of the public.

- (b) The official may, in accordance with the applicable provisions of this Code, revoke permits issued by him upon finding that:
- (1) The permit was issued by mistake of law or fact;
 - (2) The permit is for work which violates the provisions of this chapter;
 - (3) The permit was issued upon a false statement or misrepresentation by the applicant;
 - (4) The permit violates any ordinance of the city or any state or federal law, rule or regulation;
 - (5) The work is not being performed in accordance with the provisions of this chapter;
 - (6) The certificate of competency or license of the permittee has become invalid by reason of expiration, suspension, revocation or otherwise;
 - (7) The work is not being performed under the supervision of the holder of the certificate or license upon which the same was issued;
 - (8) The work is not being done in accordance with the terms of the permit, the plans or the application upon which the same was issued;
 - (9) Payment of the permit fees was not effected due to insufficient funds or any other reason;
 - (10) The work performed under that permit is threatening or interfering with public welfare and safety.

(Ord. No. 89-249, § 2(46-47), 9-28-89)

Sec. 21-53. - Inspections, other approvals.

All construction, maintenance, improvements or changes to drainage and/or earthwork regulated by this chapter shall be subject to inspection by the city. The official may require documents, drawings or certificates necessary to effect approval of such work.

(Ord. No. 89-249, § 2(46-48), 9-28-89)

Cross reference— Inspections generally, § 1-27.

Sec. 21-54. - Performance security.

In order to receive final construction approval if work performed under a stormwater permit is not complete, not in accordance with approved plans or is in violation of this chapter, the official, at his discretion, may accept sufficient full performance security guaranteeing the installation and approval of all permitted work. Such performance security shall: Comply with all statutory requirements; be satisfactory in form to the city attorney and appropriate city staff; be in an amount equal to one hundred twenty-five (125) percent of the permittee's contract for the work, subject to approval of the appropriate city staff.

(Ord. No. 89-249, § 2(46-49), 9-28-89)

Cross reference— Sureties of persons dealing with city to be licensed by the state, § 2-231.

Secs. 21-55—21-70. - Reserved.

ARTICLE II. - SANCTIONS; APPEALS; BOARDS

DIVISION 1. - GENERALLY

Secs. 21-71—21-80. - Reserved.

DIVISION 2. - ACTION AUTHORIZED TO MITIGATE VIOLATIONS

Sec. 21-81. - Stop work and emergency orders.

Upon notice from the official, work on any system that is being done contrary to the provisions of this chapter or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, his agent or the person doing the work or posted at the job site and shall state the conditions under which work may be resumed. Where an emergency exists, verbal notice by the official shall be sufficient to require the stoppage of work.

(Ord. No. 89-249, § 2(46-61), 9-28-89)

Sec. 21-82. - Violations—General.

Violations of the provisions of this chapter and/or failure to comply with any of its requirements, including violations of conditions and safeguards established in connection with grants of a variance or special exceptions, shall be considered a public nuisance.

(Ord. No. 89-249, § 2(46-62), 9-28-89)

Sec. 21-83. - Same—Construction, operation and maintenance violations.

It is unlawful and hereby declared a public nuisance for any person to construct or add to or operate and maintain any stormwater management facility in a manner which causes and/or allows conditions which, in the opinion of the official, are dangerous, unsafe, unsanitary and/or are a menace to life, health, safety and welfare and/or property.

(Ord. No. 89-249, § 2(46-63), 9-28-89)

Sec. 21-84. - Same—Abatement; notice.

Where a condition exists which could constitute, in the opinion of the official, an imminent threat to the life, health, safety, property and/or welfare of the public, the official may abate the condition by the use of city forces or by contract, and, in this case of emergency, verbal notice to the owner, his agent, representative, contractor or the person who committed the violation will be sufficient notice under the law.

(Ord. No. 89-249, § 2(46-64), 9-28-89)

Cross reference— Abatement of violation by city forces, § 1-20.

Sec. 21-85. - Same—Each day an offense.

Each day that the public nuisance, as stated in this division, continues shall be considered a separate offense.

(Ord. No. 89-249, § 2(46-65), 9-28-89)

Secs. 21-86—21-100. - Reserved.

ARTICLE III. - TECHNICAL PROVISIONS

DIVISION 1. - AUTHORITY TO ESTABLISH/PUBLISH TECHNICAL STANDARDS

Sec. 21-101. - Technical standards may be established.

The official may establish technical standards setting forth: Administrative guidelines governing the enforcement of this chapter; requirements not specifically addressed in this chapter but necessary to the effective pursuit of the purpose of this chapter; and any other information needed for the uniform and orderly administration of this chapter. Such standards are to be published in a technical manual, which manual shall be on file in the office of the city clerk at least seven (7) days prior to the adoption thereof and shall be made available to the public for inspection and for duplication at cost.

(Ord. No. 89-249, § 2(46-101), 9-28-89)

Cross reference— Requirements not covered by Code may be required by the official, § 1-17.

Secs. 21-102—21-115. - Reserved.

DIVISION 2. - ADOPTION OF STANDARDS BY REFERENCE

Sec. 21-116. - Technical standards adopted.

The technical standards set forth in the mobility department's Stormwater Technical Standards Manual, as it may be amended from time to time, on file in the office of the city clerk, are herein adopted by reference and, therefore, have the force and effect of law.

(Ord. No. 89-249, § 2(46-106), 9-28-89; Ord. No. 90-24, § 1, 2-8-90; Ord. No. 2022-168, § 2, 8-25-2022)

ARTICLE IV. - CREATION OF STORMWATER UTILITY, IMPOSITION AND COLLECTION OF STORMWATER CHARGES

DIVISION 1. - CREATION OF STORMWATER UTILITY

Sec. 21-116.1. - Reserved.

Editor's note— Ord. No. 2022-168, § 2, adopted August 25, 2022, repealed § 21-116.1, which pertained to stormwater technical standards manual for private development adopted and derived from Ord. No. 2012-125, §§ 1, 2, 11-1-2012.

Sec. 21-117. - Creation of stormwater utility.

There is hereby established a stormwater utility, which shall be a portion of the operational means of implementing and performing the functional requirements of the city's stormwater management system to construct or acquire stormwater improvements and provide stormwater management services. The stormwater utility shall provide administration and management services in: the operation and maintenance of stormwater management services; the preparation of stormwater studies and the implementation of the stormwater utility; the regulation of stormwater basins; and the repair, replacement, improvement and extension, of the city's capital facilities for stormwater management.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-118. - Stormwater utility fund.

There shall be established a stormwater utility fund as a "special revenue fund" because a periodic determination of revenues earned and expenses incurred in connection with the provision of services and capital facilities for stormwater management will enhance accountability and management control of the city's stormwater utility. Proceeds of the stormwater service assessment and stormwater fees shall be used for payment of stormwater management services.

(Ord. No. 2003-200, § 7, 8-7-03)

DIVISION 2. - IMPOSITION OF STORMWATER CHARGES

Sec. 21-119. - Stormwater charges.

Stormwater charges are composed of stormwater assessments, (which includes stormwater service assessments and/or stormwater improvement assessments) and stormwater fees.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-120. - Imposition of stormwater service assessments.

- (a) The stormwater service cost may be assessed against developed property located within the stormwater service area at a rate of assessment based upon the special benefit accruing to such property from the stormwater management service provided by the city, measured by the number of ESFIAs attributable to each parcel or classification of property.
- (b) Notwithstanding the foregoing, if the council specifically determines that any portion of the stormwater service area receives a distinct special benefit from any component of the stormwater management service that is materially different in kind or degree from the special benefit received by other portions of the stormwater service area, the stormwater service cost related to such component shall be assessed against the portion of the stormwater service area receiving the distinct special benefit.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-121. - Imposition of stormwater improvement assessments.

- (a) Stormwater improvement assessments may be imposed to fund all or any portion of the capital cost or the debt service and related cost of obligations issued to finance the project cost of a stormwater improvement identified in any stormwater basin plan. Stormwater improvement assessments to fund the capital cost or the debt service and related cost of obligations issued to finance the project cost of each stormwater improvement may be imposed against all parcels of property within the stormwater improvement area at a rate of assessment based upon the special benefit accruing to such property from the stormwater improvement, measured by the number of ESFIAs attributable to each parcel or classification of property.
- (b) If stormwater improvement assessments are imposed to fund the debt service and related cost of obligations issued to finance the project cost of a stormwater improvement, the stormwater improvement assessment may include the amount required to fund any amounts withdrawn

during the prior fiscal year from any debt service reserve account established for obligations and the amount of any principal of and interest on obligations that has become due and remains unpaid.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-122. - Imposition of stormwater fees.

A stormwater fee may be levied on and collected from all government property that is developed property within the stormwater service area to fund all or any portion of the stormwater service cost for government property at a just, fair, reasonable, and equitable rate based upon such property's stormwater burden and the reasonable cost of providing stormwater management services to such property. The rate of the stormwater fee for each classification of government property shall be determined based upon each property's individual number of ESFIAs based upon that property's amount of impervious area.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-123. - Mitigation credit.

The council may, by separate resolution, or in any initial stormwater resolution or any annual stormwater resolution, establish a Mitigation Credit for a stormwater charge. The calculation of a Mitigation Credit may be based upon, but not limited to, the following factors: onsite Mitigation Facilities; discharge to a system other than the city's; and the receipt, treatment and collection of city stormwater. In order to qualify for a Mitigation Credit, a non-residential property owner or a community development district shall provide the city with as built drawings of the Mitigation Facilities sealed by a Florida registered professional engineer or a certification from a Florida registered professional engineer as to the standards of retention and detention achieved by the Mitigation Facilities. If these documents are not available, then other such documentation including but not limited to the following:

- Site survey or site plan depicting stormwater retention or detention;
- Survey depicting the area of the parcel directly discharging to eligible waters, or private system;
- Drainage survey plan;
- Stormwater pond permit (Southwest Florida Water Management District or Florida Department of Environmental Protection Environmental Resource Permit or City of Tampa permit);
- Subdivision plat;
- Demolition and cleared site documentation;
- Topographic elevation survey; or
- Hillsborough County Property Appraiser's parcel detail.

and deemed to be sufficient by the city to demonstrate that the Mitigation Facilities are operational and provide relief from all or a portion of the burden on the city system. For residential property owners and homeowners associations sufficient information shall be provided to establish an adequate basis to evaluate the property for Mitigation Credit. Such documentation may include but not be limited to documents such as those listed above. Such documentation shall be submitted to the city for review and approval within sixty (60) days of when the property owner receives notice of the proposed assessment or fee. Any reduction which may be necessary after the Stormwater Roll has been adopted will be refunded to the property owner. No Mitigation Credit shall be granted to a parcel whose mitigation is provided by a Mitigation Facility constructed or maintained by city funds or funds received by the city as part of a cooperative funding agreement or grant.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010; Ord. No. 2016-63, § 3, 5-5-2016)

DIVISION 3. - PROCEDURES FOR ADOPTION AND COLLECTION OF STORMWATER CHARGES

Sec. 21-124. - Initial stormwater resolution.

The initial proceeding for imposition of the stormwater charges may be the council's adoption of an initial stormwater resolution. The initial stormwater resolution shall: (a) describe the stormwater improvement or stormwater management service proposed for funding from the proceeds of the stormwater assessments and stormwater fees; (b) estimate the capital cost or stormwater service cost; (c) describe with particularity the proposed method of apportioning the capital cost or stormwater service cost among the parcels of property located within the stormwater improvement area or stormwater service area, as applicable, such that the owner of any parcel of property can objectively determine the amount of the stormwater assessments, based upon its value, use or physical characteristics; (d) include specific legislative findings that recognize the equity provided by the apportionment methodology and specific legislative findings that recognize the special benefit provided by the stormwater improvement or stormwater management service; (e) describe with particularity the proposed method of determining the amount each parcel of government property located within the stormwater service area should be charged as a stormwater fee based upon such property's stormwater burden and the reasonable cost of providing stormwater management services to such property; and (f) include specific legislative findings that recognize the fairness, equity and reasonableness of the stormwater fee. At its option, the council may adopt separate initial stormwater resolutions for the stormwater service assessment, each stormwater improvement assessment, and the stormwater fee. The initial stormwater resolution need only be adopted once for each stormwater service assessment, stormwater improvement assessment and stormwater fee.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-125. - Stormwater roll.

- (a) Each fiscal year, the official shall prepare, or direct the preparation of, a stormwater roll that contains the following information:
 - (1) A summary description of each parcel of property (conforming to the description contained on the tax roll) subject to the stormwater assessment and a summary description of each parcel of government property to be charged a stormwater fee for service;
 - (2) The name of the owner of record of each parcel as shown on the tax roll;
 - (3) The number of ESFIAs attributable to each parcel;
 - (4) The estimated maximum stormwater assessment to become due in the ensuing fiscal year for each ESFIA;
 - (5) The estimated maximum stormwater assessment to become due in any fiscal year for each parcel;
 - (6) The estimated maximum stormwater fee to become due in the ensuing fiscal year for each parcel of government property; and
- (b) Copies of the initial stormwater resolution, the final stormwater resolution and the stormwater roll shall be on file in the city clerk's office and open to public inspection and copying pursuant to the Public Records Act. The foregoing shall not be construed to require that the stormwater roll be in printed form if the data for each parcel can be determined by use of a computer available to the public.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-126. - Notice by publication.

After filing the stormwater roll in the office of the city clerk, as required by section 21-125 hereof, the official shall cause to be published once in a newspaper of general circulation within the county a notice stating that a public hearing of the council will be held on a certain day and hour, not earlier than twenty (20) calendar days from such publication, at which hearing the council will receive written comments and hear testimony from all interested persons regarding adoption of the final stormwater resolution and approval of the stormwater roll. The published notice shall conform to the requirements set forth in the Uniform Assessment Collection Act for purposes of the stormwater assessments. Publication of the notice of public hearing need only be done in the event that a public hearing will be held by council based on its election pursuant to section 21-129(b) hereof and resulting requirements of the Uniform Assessment Collection Act.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-127. - Notice by mail.

In addition to the published notice required by section 21-126, the official shall provide notice of the proposed stormwater charges by first class mail to the owner of each parcel of property subject to the stormwater charges. For purposes of the stormwater assessments, the mailed notice shall conform to the requirements set forth in the Uniform Assessment Collection Act. Notice shall be mailed at least twenty (20) calendar days prior to the hearing to each property owner at such address as is shown on the tax roll on the twentieth calendar day prior to the date of mailing. Notice shall be deemed mailed upon delivery thereof to the possession of the U.S. Postal Service. The official shall provide proof of such notice by affidavit. Failure of the owner to receive such notice due to mistake or inadvertence shall not affect the validity of the stormwater roll nor release or discharge any obligation for the payment of a stormwater charge imposed by the council pursuant to this article. Notice of the public hearing need only be mailed in the event that a public hearing will be held by council based on its election pursuant to section 21-129(b) hereof and resulting requirements of the Uniform Assessment Collection Act.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-128. - Final stormwater resolution.

At the time named in such notice, or such time to which an adjournment or continuance may be taken, the council shall receive written objections and hear testimony of interested persons and may then adopt the final stormwater resolution prior to the adjournment of said hearing which shall: (a) confirm, modify or repeal the initial stormwater resolution with such amendments, if any, as may be deemed appropriate by the council; (b) approve the stormwater roll, with such amendments as it deems just and right; and (c) determine the method of collection. All objections to adoption of the final stormwater resolution shall be made in writing, and filed with the clerk at or before the time or adjourned time of such hearing. No person who has received timely notice and has failed to object to the final stormwater resolution shall have standing to challenge the imposition of the stormwater charges described in such final stormwater resolution, provided this provision is contained in such timely notice. The final stormwater resolution need only be adopted once for each stormwater service assessment, stormwater improvement assessment and stormwater fee.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-129. - Annual stormwater resolution.

- (a) During its budget adoption process, the council may adopt an annual stormwater resolution for each fiscal year following adoption of the final stormwater resolution. The final stormwater resolution shall constitute the annual stormwater resolution for the initial fiscal year. The annual

stormwater resolution, if adopted, shall approve the stormwater roll for such fiscal year. The stormwater roll shall be prepared in accordance with the initial stormwater resolution, if adopted, as confirmed or amended by the final stormwater resolution.

- (b) In the event council elects to budget the stormwater service cost for more than one (1) fiscal year, then in such an event:
 - (1) For the first fiscal year, the notices provided pursuant to sections 21-126 and 21-127 hereof shall contain statements specifying the period for which the stormwater charges will be imposed and for subsequent fiscal years, the notices provided pursuant to sections 21-126 and 21-127 hereof are not necessary unless otherwise required by the Uniform Assessment Collection Act; and
 - (2) For the first fiscal year, an annual stormwater resolution shall be adopted and shall specify:
 - (a) the period for which the stormwater charges are to be imposed, and (b) the parcel data work to be conducted by the department and the adjustments to the stormwater roll, if any, that are permitted during such period; and
 - (3) For subsequent fiscal years, no annual stormwater resolution shall be required and the official shall cause the stormwater roll to be certified to the tax collector in compliance with the Uniform Assessment Collection Act.
- (c) Notwithstanding the above, if the proposed stormwater charge for any parcel of developed property exceeds the maximum amount established in the final stormwater resolution or the last annual stormwater resolution or if a stormwater charge is imposed against property not previously subject thereto, the council shall provide notice to the owner of such property in accordance with sections 21-126 and 21-127 hereof and conduct a public hearing prior to adoption of the annual stormwater resolution. Failure to adopt an annual stormwater resolution during the budget adoption process for a fiscal year may be cured at any time.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-130. - Effect of stormwater resolutions.

The adoption of the final stormwater resolution or any subsequent annual stormwater resolution shall be the final adjudication of the issues presented (including, but not limited to, the apportionment methodology, the rate of the fee for service to government property, the rate of assessment, the adoption of the stormwater roll and the levy and lien of the stormwater charges), unless proper steps are initiated in a court of competent jurisdiction to secure relief within twenty (20) days from the date of council adoption of the final stormwater resolution. The stormwater charges for each applicable fiscal year shall be established upon adoption of the annual stormwater resolution. The stormwater roll, as approved by the final stormwater resolution or any subsequent annual stormwater resolution, shall be delivered to the tax collector, or such other official as the council, by resolution, deems appropriate.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-131. - Lien of stormwater assessments.

Upon adoption of the annual stormwater resolution, stormwater assessments to be collected under the Uniform Assessment Collection Act shall constitute a lien against assessed property equal in rank and dignity with the liens of all state, county, district or municipal taxes and other non-ad valorem assessments. Except as otherwise provided by law, such lien shall be superior in dignity to all other prior liens, titles and claims, until paid. The lien shall be deemed perfected upon adoption by the council of each annual stormwater resolution and shall attach to the property included on the stormwater roll as of the prior January 1, the lien date for ad valorem taxes.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-132. - Method of collection of stormwater assessments.

Unless directed otherwise by the council, stormwater assessments shall be collected pursuant to the Uniform Assessment Collection Act, and the city shall comply with all applicable provisions thereof. Any hearing or notice required by this article may be combined with any other hearing or notice required by the Uniform Assessment Collection Act.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-133. - Method of collection of stormwater fees charged to government property.

- (a) Unless directed otherwise by the council, stormwater fee bills will be mailed by first class mail to the owner of each affected parcel of government property. The bill or accompanying explanatory material shall include: (1) a brief explanation of the stormwater fee; (2) a description of the ESFIAs used to determine the amount of the stormwater fee; (3) the number of ESFIAs attributed to the parcel; (4) the total amount of the parcel's stormwater fee for the appropriate period; (5) the location at which payment will be accepted; and (6) the date on which the stormwater fee is due.
- (b) A stormwater fee shall become delinquent if it is not paid within thirty (30) days from the date any installment is due. The city shall notify the owner of any government property that is delinquent in payment of its stormwater fee within sixty (60) days from the date the stormwater fee was due. Such notice shall state in effect that the city will initiate a mandamus or other appropriate judicial action to compel payment.
- (c) All costs, fees and expenses, including reasonable attorney fees and title search expenses, related to any mandamus or other action as described herein shall be included in any judgment or decree rendered therein. All delinquent owners of government property against which a mandamus or other appropriate action is filed shall be liable for an apportioned amount of

reasonable costs and expenses incurred by the city, including reasonable attorney fees, in collection of such delinquent stormwater fees and any other costs incurred by the city as a result of such delinquent stormwater fees including, but not limited to, costs paid for draws on a credit facility and the same shall be collectible as a part of or in addition to, the costs of the action.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

Sec. 21-134. - Responsibility for enforcement.

The city and its agent, if any, shall maintain the duty to enforce the prompt collection of stormwater charges by any and all legal means. The duties related to collection of stormwater assessments may be enforced at the suit of any holder of obligations in a court of competent jurisdiction by mandamus or other appropriate proceedings or actions.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-135. - Revisions to stormwater charges.

If any stormwater charge made under the provisions of this article is either in whole or in part annulled, vacated or set aside by the judgment of any court, or if the council is satisfied that any such stormwater charge is so irregular or defective that the same cannot be enforced or collected, or if the council has failed to include any property on the stormwater roll that should have been so included, the council may take all necessary steps to impose a new stormwater charge against any such property, following as nearly as may be practicable, the provisions of this article and in case such second stormwater charge is annulled, the council may obtain and impose other stormwater charges until a valid stormwater charge is imposed.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-136. - Procedural irregularities.

Any irregularity in the proceedings in connection with the levy of any stormwater charge under the provisions of this article shall not affect the validity of the same after the approval thereof, and any stormwater charge as finally approved shall be competent and sufficient evidence that such stormwater charge was duly levied, that the stormwater charge was duly made and adopted, and that all other proceedings adequate to such stormwater charge were duly had, taken and performed as required by this article; and no variance from the directions hereunder shall be held material unless it be clearly shown that the party objecting was materially injured thereby. Notwithstanding the provisions of this section 21-136, any party objecting to a stormwater charge imposed pursuant to this article must file an objection with a court of competent jurisdiction within the time periods prescribed in section 21-130 of this article.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-137. - Correction of errors and omissions.

- (a) No act of error or omission on the part of the council, official, property appraiser, tax collector, clerk, or their respective deputies, employees or designees, shall operate to release or discharge any obligation for payment of any stormwater charge imposed by the council under the provisions of this article.
- (b) The official may correct the number of ESFIAs or mitigation credit attributed to a parcel of property at any time. Any such correction which reduces a stormwater charge shall be considered valid from the date on which the stormwater charge was imposed and shall in no way affect the enforcement of the stormwater charge imposed under the provisions of this article. Any such correction which increases a stormwater charge or imposes a stormwater charge on omitted property shall first require notice to the affected owner in the manner described in section 21-127 hereof, providing the date, time and place that the council will consider confirming the correction and offering the owner an opportunity to be heard.
- (c) After the stormwater roll has been delivered to the tax collector in the case of stormwater assessments, any changes, modifications or corrections thereto shall be made in accordance with the procedures applicable to errors and insolvencies for ad valorem taxes.

(Ord. No. 2003-200, § 7, 8-7-03; Ord. No. 2010-93, § 2, 7-29-2010)

DIVISION 4. - ISSUANCE OF OBLIGATIONS

Sec. 21-138. - General authority.

Upon adoption of the final stormwater resolution imposing stormwater improvement assessments or at any time thereafter, the council shall have the power and is hereby authorized to provide by ordinance or resolution, at one (1) time or from time to time in series, for the issuance of obligations of the city to fund the project cost thereof and any amounts to be paid or accrued in connection with issuance of such obligations, including, but not limited to capitalized interest, transaction costs and reserve account deposits.

(Ord. No. 2003-200, § 7, 8-7-03)

Sec. 21-139. - Taxing power not pledged.

Obligations issued under the provisions of this article shall not be deemed to constitute a pledge of the faith and credit of the city, but such obligations shall be payable only from pledged revenue and, if applicable, proceeds of the stormwater assessments, in the manner provided herein and by the ordinance or resolution authorizing the obligations. The issuance of obligations under the provisions of this article shall not directly or indirectly obligate the city to levy or to pledge any form of ad valorem taxation whatever

therefor. No holder of any such obligations shall ever have the right to compel any exercise of the ad valorem taxing power on the part of the city to pay any such obligations or the interest thereon or to enforce payment of such obligations or the interest thereon against any property of the city, nor shall such obligations constitute a charge, lien or encumbrance, legal or equitable, upon any property of the city, except the pledged revenue.

(Ord. No. 2003-200, § 7, 8-7-03)

ARTICLE V. - REGULATION OF THE USE AND SALE OF FERTILIZERS CONTAINING NITROGEN AND/OR PHOSPHORUS

Footnotes:

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Note— *It is the intent that Ordinance 2011-74 adopted June 23, 2011, remains valid and enforceable with the adoption of the amendments proposed herein in compliance with F.S. §§ 570.07(41)(b) and 576.181(5)(b). In the event that a court of competent jurisdiction determines that the amendments contained herein in any way render Ordinance 2011-74 unenforceable, it is the city's intent that these amendments be stricken so that Ordinance 2011-74 remains in effect and enforceable.*

Sec. 21-140. - Purpose and intent.

This article regulates the proper use of fertilizers by any applicator and requires proper training of commercial and institutional fertilizer applicators and landscape maintenance companies. The article requires the use of best management practices which provide specific management guidelines to minimize negative secondary and cumulative environmental effects associated with the misuse of fertilizers. These secondary and cumulative effects have been observed in and on the City of Tampa's natural and artificial stormwater and drainage conveyances, rivers, lakes, canals, estuaries, interior freshwater wetlands, and Tampa Bay. Collectively, these water bodies are an asset critical to the environmental, recreational, cultural and economic well-being of the City of Tampa and the health of the public. Overgrowth of algae and vegetation hinder the effectiveness of flood attenuation provided by natural and artificial stormwater and drainage conveyances. Regulation of nutrients, including both phosphorus and nitrogen contained in fertilizer, will help improve and maintain water and habitat quality.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-141. - Definitions.

For this article, the following terms shall have the meanings set forth in this section unless the context clearly indicates otherwise.

Application or *apply* means the actual physical deposit of fertilizer to turf or landscape plants.

Applicator means any person who applies fertilizer on turf and/or landscape plants in the City of Tampa.

Article means Chapter 21, Article V of the City of Tampa Code of Ordinances, as amended, unless otherwise specified.

Best management practices or *BMP* means turf and landscape practices which minimize the negative environmental impacts of installation and maintenance of landscapes.

Code enforcement officer, official, or inspector means any employee or agent of the City of Tampa who has been designated to enforce codes and ordinances enacted by the City of Tampa City Council.

Commercial fertilizer applicator means any person or an agent or employee of a commercial lawn or landscaping or commercial fertilizer company who applies fertilizer on turf and/or landscape plants in the City of Tampa in exchange for money; goods, services or other valuable consideration.

Fertilize, fertilizing, or fertilization means the act of applying fertilizer to turf, specialized turf, or landscape plants.

Fertilizer means any substance or mixture of substances that contains one or more recognized plant nutrients and promotes plant growth, or controls soil acidity or alkalinity, or provides other soil enrichment, or provides other corrective measures to the soil.

Fruit and vegetable garden means an area dedicated to the cultivation of edible plants.

Granular means composed of small grains or particles.

Institutional applicator means any person, other than a non-commercial or commercial applicator, that applies fertilizer for the purpose of maintaining turf and/or landscape plants. Institutional applicators shall include, but shall not be limited to, owners and managers of public lands, schools, parks, religious institutions, utilities, industrial or business sites and any residential properties maintained in condominium and/or common ownership.

Impervious surface means a surface that has been compacted or covered with a layer of material so that it is highly resistant or prevents infiltration by stormwater. It includes roofed areas and surfaces such as compacted sand, limerock, or clay, as well as conventionally surfaced streets, sidewalks, parking lots, and other similar surfaces.

Landscape plant means any native or exotic tree, shrub, or groundcover (excluding turf).

Landscape maintenance means activities carried out to manage and maintain landscape plants including but not limited to mowing, edging, and trimming.

Person means any human being, business, corporation, limited liability company, partnership, limited partnership, association, club, organization, and/or any group of people acting as an organized entity.

Restricted season means June 1 through September 30.

Saturated soil means a soil in which the voids are filled with water. Saturation does not require flow. For the purposes of this article, soils shall be considered saturated if standing water is present or the pressure of a person standing on the soil causes the release of free water.

Site supervisor means the direct supervisor of landscape maintenance personnel.

Slow or controlled release fertilizer means a fertilizer containing a plant nutrient in a form which delays its availability for plant uptake and use after application, or which extends its availability to the plant significantly longer than a referenced "rapidly available nutrient fertilizer."

Specialized turf means areas of grass used for athletic fields, golf course practice and play areas, and other similar activities.

Specialized turf manager means a person responsible for fertilizing or directing the fertilization of specialized turf.

Surface water means fresh, brackish, saline or tidal waters, including but not limited to bays, rivers, lakes, streams, wetlands, springs, impoundments, as well as canals and other artificial water bodies.

Turf, sod, or lawn means a piece of grass-covered soil held together by the roots of the grass.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-142. - Applicability and implementation.

The provisions of this article shall govern any and all applicators of fertilizer and areas of application of fertilizer within the City of Tampa unless such applicator or activity is specifically exempted by the terms of this article from the regulatory provisions of this article as indicated herein. The provisions of this article shall be implemented as of June 1, 2012 and no person shall act in a manner inconsistent with this article after such date.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-143. - Weather and seasonal restrictions.

- (a) No applicator shall apply fertilizers containing nitrogen and/or phosphorous to turf and/or landscape plants during the restricted season from June 1 through September 30 unless subject to an exemption indicated in this article.
- (b) No commercial fertilizer applicator shall apply fertilizers containing nitrogen and/or phosphorous to turf and/or landscape plants during the restricted season from June 1 through September 30 unless subject to an exemption indicated in this article.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-144. - Fertilizer content and application rate.

- (a) No fertilizer containing phosphorus shall be applied to turf and/or landscape plants in the City of Tampa, except where phosphorus deficiency has been demonstrated in the soil underlying the turf and/or landscape plants by a soil analysis test performed by a State of Florida-certified laboratory. Any person who obtains such a soil analysis test showing a phosphorus deficiency and who wishes to apply phosphorus to turf and/or landscape plants shall mail a copy of the test results to City of Tampa Department of Public Works, Stormwater Division: 306 E. Jackson Street, Tampa, FL 33602 prior to the application of phosphorous.
- (b) Granular fertilizers containing nitrogen applied to turf and/or landscape plants within the City of Tampa shall contain no less than fifty (50) percent slow release nitrogen per guaranteed analysis label.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-145. - Exemptions.

The provisions set forth above in sections 21-143 and 21-144 of this article shall not apply to:

- (a) *Golf courses.* For all golf courses, the provisions of the Florida Department of Environmental Protection (FDEP) document, "BMPs for the Enhancement of Environmental Quality on Florida Golf Courses, January 2007," are required and shall be followed when applying fertilizer to golf courses.
- (b) *Specialized turf.* Specialized turf managers are required to follow the Best Management Practices embodied in the "Florida Friendly Best Management Practices for Protection of Water Resources by the Green Industries," December 2008.
- (c) Bona fide farm operations as defined in the Florida Right to Farm Act, F.S. § 823.14.
- (d) Fruit and vegetable gardens, owned by individual property owners or a community, provided that fertilizer application rates do not exceed UF IFAS recommendations per SP 103 Florida Vegetable Gardening Guide, December 2008.
- (e) Yard waste compost, mulches, or other similar materials that are primarily organic in nature and are applied to improve the physical condition of the soil.
- (f) Tree trunk injection fertilization treatments that are performed by a certified arborist.
- (g) Theme park or entertainment complex as defined in F.S. § 509.13 that: operates pursuant to a National Pollution Discharge Elimination System (NPDES) permit; complies with the requirements of the "Best Management Practices identified in the "Florida Friendly Best Management Practices for the Protection of Water Resources by the Green Industries," dated December 2008 and as revised or amended thereafter and whose applicators are certified pursuant to this article.

- (h) Retail or wholesale fertilizer sellers may sell products containing nitrogen and/or phosphorus to specialized turf managers, theme parks or entertainment complexes as defined in F.S. § 509.13 and (g) above or to operators of bona fide farms operations during the restricted period for use only on specialized turf, within theme parks or entertainment complexes, or for use at bona fide farm operations, respectively.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-146. - Certification and training.

- (a) All commercial applicators and their supervisors, as well as government and institutional applicators, site supervisors and managers of professional landscape maintenance companies, government and institutional landscape supervisors, and any employee of a lawn and landscape maintenance company performing fertilizer application shall comply with the Rule Chapter 1-15 of the EPCHC. To be in compliance with the provisions of this article, a copy of the appropriate certificate indicating the completion of the training and certification as required by Chapter 1-15 referenced herein shall be with an applicator at all times and provided to the City of Tampa representative such as a code enforcement officer or public works department stormwater division staff upon request.
- (b) A vehicle decal issued by the EPCHC executive director or other authorized organization indicating that the company is in compliance with the training and certification requirements of Chapter 1-15 of the EPCHC shall be affixed and maintained on the exterior of all vehicles used by the company in connection with landscape maintenance activities and/or the application of fertilizer within the area regulated by this article.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-147. - Retail sale of fertilizer containing nitrogen or phosphorous.

No person, firm, corporation, franchise, or commercial establishment shall sell, at retail, any lawn or landscape fertilizer, liquid or granular, within the City of Tampa that contains any amount of nitrogen or phosphorous during the restricted season from June 1 through September 30 unless subject to an exemption indicated in this article.

- (a) Granular fertilizers containing nitrogen sold at retail within the City of Tampa shall contain no less than fifty (50) percent slow release nitrogen per guaranteed analysis label.
- (b) Displays of lawn and landscape fertilizers containing nitrogen or phosphorous shall not be allowed on the sales area of the retail store during the restricted season.
- (c) Retailers shall post a notice provided by the city stating that the use of lawn and landscape fertilizers in the City of Tampa is restricted in accordance with this article.

- (d) Fertilizers sold within the City of Tampa shall meet the requirements set forth in Rule 5E-1.003(2), Florida Administrative Code, Labeling Requirements For Urban Turf Fertilizers.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012)

Sec. 21-148. - Enforcement and penalty.

- (a) Violations of this article may be enforced as provided for in chapter 1, section 1-6 and subdivision procedures set forth in chapter 27, section 23.5-5 of the City of Tampa Code of Ordinances.
- (b) A violation of this article is deemed an irreversible or irreparable violation and will result in an immediate civil citation or notice to appear.

(Ord. No. 2011-74, § 1, 6-23-2011; Ord. No. 2012-48, § 1, 5-3-2012; Ord. No. 2013-67, § 5, 5-16-2013)

Chapter 22 - STREETS AND SIDEWALKS

Footnotes:

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Cross reference— Ordinances dedicating, naming, establishing, locating, relocating, opening, paving, widening or vacating any street or public way in the city saved from repeal, § 1-12(3); ordinances establishing and prescribing the street grades of any street in the city saved from repeal, § 1-12(7); cable communications, Ch. 7; assemblies obstructing streets and sidewalks, § 14-41; tacks, broken glass, etc., on sidewalks or public places, § 14-43; parking, Ch. 15; dogs prohibited on streets or public places without leash, § 16-8; placing or permitting offensive matter on streets, vacant lots, etc., § 19-53; signs on right-of-way, §§ 19-103, 19-104; public improvements, Ch. 20; subdivision procedures, § 27-153.1 et seq.; private street improvements in subdivisions, § 27-155.3.2; streets in subdivisions, § 27-155.3.3.; sidewalks in subdivisions, § 27-155.3.4; streetlights in subdivisions, § 27-155.3.5; transportation, Ch. 25; temporary street closures, § 25-50 et seq.; use of skateboards, coasters, roller skates, etc., on streets, etc., § 25-172; soliciting business or contributions from within rights-of-way, § 25-173; repairing vehicles on streets, § 25-174; truck routes and hazardous materials routes established, § 25-182; use of truck routes, § 25-183; bicycle parking on streets, etc., § 25-184; bicycle riding on sidewalks, § 25-185; trains blocking streets, § 25-196 et seq.; utilities, Ch. 26; placing solid waste on streets, vacant lots, etc., § 26-149; zoning and land development, Ch. 27.

ARTICLE I. - ADMINISTRATIVE PROVISIONS

Footnotes:

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Cross reference— Administration, Ch. 2.

DIVISION 1. - GENERAL PROVISIONS; ADMINISTRATIVE AUTHORITY; DEFINITIONS

Sec. 22-1. - Title.

This chapter shall be known and may be cited as the "City of Tampa Streets and Sidewalks Ordinance."

(Ord. No. 89-244, § 2(34-1), 9-28-89)

Sec. 22-2. - Purpose.

The city recognizes that vehicular and pedestrian traffic are vital to the operation of the city. Protection of these rights of travel and the infrastructure that supports these activities is a priority for the city government and for the citizens of this community. Therefore, it is necessary in the interest of the public health, safety and welfare to regulate the use of the streets and sidewalks of Tampa.

(Ord. No. 89-244, § 2(34-2), 9-28-89)

Sec. 22-3. - Applicability.

The provisions of this chapter shall apply to the rights-of-way and any improvements thereon and any work or activity thereon within the corporate limits of the city, unless they are expressly exempted by law.

(Ord. No. 89-244, § 2(34-3), 9-28-89)

Sec. 22-4. - Requirement of a franchise.

- (a) No person shall use any public rights-of-way to provide any services, including, but not limited to, electrical and gas services, but excluding any communications service, unless a franchise has first been obtained by the person. Such franchise shall not take the place of any other license or permit which may be legally required of the person to conduct such a business.
- (b) Any franchise granted hereunder shall be granted pursuant to an ordinance duly adopted by the city pursuant to the terms of the Charter.
- (c) Any franchise granted hereunder shall allow the franchise holder to lease, construct, operate, maintain, repair, rebuild or replace the franchise holder's facilities within the public rights-of-way, subject to the terms of the ordinance adopted by the city granting the franchise and all other applicable requirements of this Code.
- (d) As compensation and consideration for the use by a franchise holder of the public rights-of-way for the construction, operation, maintenance and repair of a route for the provision of such services, a franchise fee shall be imposed. The fee is in addition to any other fee that may be lawfully imposed pursuant to applicable law.
- (e) Any person desiring to use any public rights-of-way to provide any communications service, shall comply with Article IV of this chapter.
- (f) Any person desiring to use any public rights-of-way to provide any cable services, shall also be required to obtain a franchise from the city prior to such use to the extent such franchise requirement is consistent with applicable law.

(Ord. No. 89-244, § 2(34-4), 9-28-89; Ord. No. 2000-343, §§ 1, 2, 12-21-00)

Cross reference— Ordinances granting any right or franchise saved from repeal, § 1-12(2).

Sec. 22-5. - Definitions.

For the purpose of this chapter, certain abbreviations, terms, phrases, words and their derivatives shall have the following meanings:

Abandonment or *abandoned* means the cessation of all uses of a communications facility for a period of one hundred eighty (180) or more consecutive days provided this term shall not include the cessation of all use of a communications facility within a physical structure where the physical structure continues to be used for some purpose or use accessory to the communications facility. By way of example, cessation of all use of a cable within a conduit, where the conduit continues to be used for some purpose or use accessory to the communications facility, shall not be abandonment of a communications facility, a wireless infrastructure provider's failure to have a wireless service provider provide service through a small wireless facility collocated on a utility pole within nine (9) months after the application is approved in accordance with F.S. § 337.401(7)(j), shall constitute abandonment. The terms abandonment or abandoned are not intended to include a dropped line from a potential or existing customer in the event the communications services provider, communications facility provider, or pass-through provider reasonably anticipates future use of the dropped line.

Antenna means communications equipment that transmits or receives electromagnetic radio frequency signals used in providing wireless services.

Applicable codes means uniform building, fire, electrical, plumbing, or mechanical codes adopted by a recognized national code organization or local amendments to those codes enacted solely to address threats of destruction of property or injury to persons, or local codes or ordinances adopted to implement this chapter. The term includes objective design standards adopted by ordinance that may require a new utility pole that replaces an existing utility pole to be of substantially similar design, material, and color or that may require reasonable spacing requirements concerning the location of ground-mounted equipment. The term includes objective design standards adopted by ordinance that may require a small wireless facility to meet reasonable location context, color, stealth, and concealment requirements; however, such design standards may be waived by the authority upon a showing that the design standards are not reasonably compatible for the particular location of a small wireless facility or that the design standards impose an excessive expense.

Applicant means a person who submits an application for a right-of-way permit, excluding applications to collocate small wireless facilities (see "wireless provider applicant," "consolidated small wireless facilities collocation application," "small wireless facilities collocation application").

Application means a request submitted by an applicant, to the city, for a right-of-way permit, excluding applications to collocate small wireless facilities (see "wireless provider applicant," "consolidated small wireless facilities collocation application," "small wireless facilities collocation application").

As-built survey(s) means the final and complete drawing(s) in hard copy signed and sealed by a professional surveyor and mapper, as defined in F.S. § 472.005. An as-built survey is a survey performed to obtain horizontal and/or vertical dimensional data, so that constructed improvements can be located and delineated. As-built surveys depict the present/existing state of facilities/improvements in/on/over/through right(s)-of-way and/or land(s).

Authority means, pursuant to F.S. § 337.401(7), the City of Tampa ("city"), having jurisdiction and control over its public rights-of-way. The term does not include the department of transportation. Rights-of-way under the jurisdiction and control of the department of transportation are excluded from this definition and the provisions set forth in article IV.

Authority utility pole means a utility pole owned by the city in the public rights-of-way. The term does not include a utility pole owned by a municipal electric utility, a utility pole used to support municipally owned or operated electric distribution facilities, or a utility pole located in the rights-of-way within:

- a. A retirement community that:
 - (I) Is deed restricted as housing for older persons as defined in F.S. § 760.29(4)(b);
 - (II) Has more than five thousand (5,000) residents; and
 - (III) Has underground utilities for electric transmission or distribution.
- b. A municipality that:
 - (I) Is located on a coastal barrier island as defined in F.S. § 161.053(1)(b)3.;
 - (II) Has a land area of less than five (5) square miles;
 - (III) Has less than ten thousand (10,000) residents; and
 - (IV) Has, before July 1, 2017, received referendum approval to issue debt to finance municipal-wide undergrounding of its utilities for electric transmission or distribution.

Cable service means the transmission of video, audio, or other programming service to purchasers, and the purchaser interaction, if any, required for the selection or use of any such programming service, regardless of whether the programming is transmitted over facilities owned or operated by the cable service provider or over facilities owned or operated by one (1) or more other providers of communications services. The term includes point-to-point or point-to-multipoint distribution services by which programming is transmitted or broadcast by microwave or other equipment directly to the purchaser's premises, but does not include direct-to-home satellite service. The term includes basic, extended, premium, pay-per-view, digital, and music services.

City transportation engineer means that entity authorized to render official determinations and decisions on behalf of the city, regarding transportation-related matters, as described in this chapter.

Collocate or *collocation* means to install, mount, maintain, modify, operate, or replace one (1) or more wireless facilities on, under, within, or adjacent to a wireless support structure or utility pole. The term does not include the installation of a new utility pole or wireless support structure in the public rights-of-way.

Communications facility means the plant, equipment and property, including but not limited to, any and all such conduits, cables, poles, wires, supports, ducts, fiber optics, antenna and other structures, equipment, appurtenances and pathways, including wireless facilities, small wireless facilities, and micro-wireless facilities, as may be reasonably necessary to be used to provide communications services.

Communications services means the transmission, conveyance, or routing of voice, data, audio, video, or any other information or signals, including video services, to a point, or between or among points, by or through any electronic, radio, satellite, cable, optical, microwave, or other medium or method now in existence or hereafter devised, regardless of the protocol used for such transmission or conveyance. The term includes such transmission, conveyance, or routing in which computer processing applications are used to act on the form, code, or protocol of the content for purposes of transmission, conveyance, or routing without regard to whether such service is referred to as voice-over-Internet-protocol services or is classified by the Federal Communications Commission as enhanced or value-added. This definition, as defined in F.S. § 202.11, as may be amended, also includes but is not limited to wireless services, as defined in this chapter. The term does not include:

- (1) Information services.
- (2) Installation or maintenance of wiring or equipment on a customer's premises.
- (3) The sale or rental of tangible personal property.
- (4) The sale of advertising, including, but not limited to, directory advertising.
- (5) Bad check charges.
- (6) Late payment charges.
- (7) Billing and collection services.
- (8) Internet access service, electronic mail service, electronic bulletin board service, or similar on-line computer services.

Consolidated small wireless facilities collocation application ("consolidated SWFC application") means a single permit application that would otherwise require individual permit applications for the collocation of between two (2) and thirty (30) small wireless facilities to existing structures within the public rights-of-way.

Department means the department of transportation and stormwater services ("TSS") or planning and development ("PDD"), as applicable.

Director means the director transportation and stormwater services ("TSS Director") or planning and development ("PDD Director"), as applicable.

Emergency means a condition that poses clear and immediate danger to the life, safety, or health of one (1) or more persons, or poses clear and immediate danger of significant damage to property.

Emergency action means any action in the public rights-of-way, including repair, replacement, or maintenance of any existing equipment or facility, which is necessary to alleviate an emergency.

FCC means the Federal Communications Commission.

Franklin Street Mall means the area of Franklin Street lying between Cass Street to the north and Jackson Street to the south.

Franklin Street Mall Phase II District means the area of Franklin Street lying between Fortune Street to the north and Cass Street to the south, and that area of Franklin Street lying between Whiting Street to the north and Garrison Channel to the south; and the area of Fortune Street, Cass Street, Jackson Street and Whiting Street lying between Morgan Street to the east and Tampa Street to the west; and the area of Royal Street, Harrison Street, Tyler Street, Polk Street, Zack Street, Twiggs Street, Madison Street, Kennedy Boulevard and Brorein Street lying between Franklin Street to the east and Tampa Street to the west; and the area of Royal Street lying between Florida Avenue to the east and Franklin Street to the west; and the area of Harrison Street, Tyler Street, Polk Street, Zack Street, Twiggs Street, Madison Street, Kennedy Boulevard, Cumberland Street, Brorein Street, Platt Street and Ashley Drive lying between Morgan Street to the east and Franklin Street to the west; and the area of Washington Street and Ella Mae Street lying between Morgan Street to the east and Florida Avenue to the west.

Herman C. Massey Park means the area described in Ordinance No. 9124-A.

License means a city occupational license tax receipt.

Micro wireless facility means a small wireless facility having dimensions no larger than twenty-four (24) inches in length, fifteen (15) inches in width, and twelve (12) inches in height and an exterior antenna, if any, no longer than eleven (11) inches.

Modular news rack means a connected grouping of at least two (2) pockets within a single news rack in or upon, or projecting onto, or over, any part of the public right-of-way, and which is bolted directly to concrete surface, installed or used for the display, sale or distribution of newspapers, other periodicals or advertising circulars.

NCNB Plaza means the area described in Ordinance No. 9130-A.

News rack means any unstaffed, self-service, free, or coin-operated box, container, storage unit or other dispenser located in or upon, or projecting onto, or over, any part of the public right-of-way, and which is installed, used or maintained for the display, sale, or free distribution of newspapers and other publications.

News rack includes modular news rack.

Owner means the person to whom a permit or license shall be issued, for example, to install, operate and maintain trash receptacles upon the sidewalks of the city.

Pass-through provider means any person who places or maintains a communications facility in the public rights-of-way and who does not remit tax pursuant to F.S. § 202.19.

PDD: As defined in Chapter 27, section 27-43.

Permit means an official document authorizing performance of a specific activity regulated by this chapter.

Place and/or maintain (also "placement and/or maintenance " or "placing and/or maintaining") means to erect, construct, install, maintain, place, repair, extend, expand, remove, occupy, locate or relocate. A provider that owns or exercises physical control over communications facilities in public rights-of-way, such as the physical control to maintain and repair, is placing and/or maintaining such facilities. To the extent required by applicable law, a party providing service only through resale or only through use of a third party's unbundled network elements is not placing and/or maintaining the communications facilities through which such service is provided. The transmission and receipt of radio frequency signals through the airspace of the public rights-of-way is not placing and/or maintaining facilities in the public rights-of-way.

Provider means any person that places and/or maintains, or seeks to place and/or maintain, communications facilities in the public rights-of-way.

PSC means the Florida Public Service Commission.

Public rights-of-way means the roads, streets, alleys, highways, waterways, bridges, sidewalks, and other ways or places of whatever nature, including the space above, on, at or below such rights-of-way, that are owned by the city, publicly held by the city, dedicated to the city, or otherwise controlled by the city, for public use and presently opened or to be opened for public use, for vehicular, bicycle, and/or pedestrian movement. This term shall not include any other property owned or controlled by the city, including any building, fixture, structure, or other improvement, regardless of whether it is situated in the city's rights of way.

Registrant means any provider who has a valid registration with the city.

Shroud means a covering or enclosure of a utility pole, small wireless facility, and/or equipment associated with a small wireless facility, other than the antenna, collocated on a utility pole.

Sidewalk café means an outdoor dining area adjoining a restaurant, located on a public street (which is public through dedication or easement) or public right-of-way that provides waiter or waitress service and contains readily removable tables, chairs or railings, and is open to the air, except that it may have retractable awnings or umbrellas, or other nonpermanent covers.

Small wireless facility means a wireless facility that meets the following qualifications: a. Each antenna associated with the facility is located inside an enclosure of no more than six (6) cubic feet in volume or, in the case of antenna that have exposed elements, each antenna and all of its exposed elements could fit within an enclosure of no more than six (6) cubic feet in volume; and b. All other wireless equipment associated with the facility is cumulatively no more than twenty-eight (28) cubic feet in volume. The following types of associated ancillary equipment are not included in the calculation of equipment volume: electric meters, concealment elements, telecommunications demarcation boxes, ground-based enclosures, grounding equipment, power transfer switches, cutoff switches, vertical cable runs for the connection of power and other services, and utility poles or other support structures.

Small wireless facility collocation application (also "SWFC application") means a request submitted by a wireless provider applicant, to the city, for a permit to collocate small wireless facilities.

Street café means an extension of an approved sidewalk café, in the public right-of-way, that is a removable platform, that occupies a portion of a designated parking space that is closed to motor vehicle parking.

Trash receptacle means a movable receptacle, suitable for the deposit of trash, located upon a public sidewalk of the city.

Utility pole means a pole or similar structure that is used in whole or in part to provide communications services or for electric distribution, lighting, traffic control, signage, or a similar function. The term includes the vertical support structure for traffic lights (signals) but does not include a horizontal structure to which traffic signal indications, signs, or other traffic control equipment are attached and does not include a pole or similar structure fifteen (15) feet in height or less unless an authority grants a waiver for such pole.

Wireless facility means equipment at a fixed location which enables wireless communications between user equipment and a communications network, including radio transceivers, antennas, wires, coaxial or fiber-optic cable or other cables, regular and backup power supplies, and comparable equipment, regardless of technological configuration, and equipment associated with wireless communications. The term includes small wireless facilities. The term does not include: a. The structure or improvements on, under, within, or adjacent to the structure on which the equipment is collocated; b. Wireline backhaul facilities; or c. Coaxial or fiber-optic cable that is between wireless structures or utility poles or that is otherwise not immediately adjacent to or directly associated with a particular antenna.

Wireless infrastructure provider or WIP means a person who has been certificated to provide telecommunications service in the state and who builds or installs wireless communication transmission equipment, wireless facilities, or wireless support structures but is not a wireless services provider. Pursuant to F.S. § 337.401, a wireless infrastructure provider is a pass-through provider.

Wireless provider or WP means a wireless infrastructure provider or a wireless services provider.

Wireless provider applicant means a person who submits an application and is a wireless provider.

Wireless services means any services provided using licensed or unlicensed spectrum, whether at a fixed location or mobile, using wireless facilities.

Wireless services provider or WSP means a person who provides wireless services.

Wireless support structure means a freestanding structure, such as a monopole, a guyed or self-supporting tower, or another existing or proposed structure designed to support or capable of supporting wireless facilities. The term does not include a utility pole.

Ybor City means the area described in Chapter 27.

(Ord. No. 89-244, § 2(34-5), 9-28-89; Ord. No. 92-45, § 1, 4-2-92; Ord. No. 2000-343, §§ 1, 4, 5, 12-21-00; Ord. No. 2010-60, § 1, 5-20-2010; Ord. No. 2017-150, § 1, 10-26-2017; Ord. No. 2019-54, § 5, 4-19-2019; Ord. No. 2022-108, § 1, 6-16-2022)

Cross reference— Definitions and rules of construction generally, § 1-2.

Sec. 22-6. - Administration of this chapter.

The provisions of this chapter shall be administered and enforced by the official or as otherwise designated herein.

(Ord. No. 89-244, § 2(34-6), 9-28-89; Ord. No. 2017-150, § 2, 10-26-2017)

Cross reference— Administrative authority of the official, § 1-13; delegation of administrative authority, § 1-14.

Sec. 22-7. - Alternative materials and methods of construction.

The provisions of this chapter, excluding the provisions set forth in article IV, are not intended to prevent the use of any material or method of construction not specifically prescribed by this chapter, provided that any such alternative has been approved by the city transportation engineer. The city transportation engineer may approve any such alternative, provided that the alternative, for the purpose intended, is at least the equivalent of that prescribed in this chapter in quality, strength, effectiveness, fire resistance, durability, and safety. The city transportation engineer shall require that sufficient evidence be submitted to substantiate any claim made regarding the alternative. If these criteria are not met, the city transportation engineer shall deny the request. Decisions regarding alternative materials for capital improvement projects shall be rendered by the city transportation engineer within the TSS department. Decisions regarding alternative materials within the public rights-of-way related to private development or non-city utility projects shall be rendered by the city transportation engineer within the PDD department.

(Ord. No. 89-244, § 2(34-7), 9-28-89; Ord. No. 2017-150, § 3, 10-26-2017)

Sec. 22-8. - Obstructing streets, sidewalks, alleys, etc.; exceptions.

- (a) It is unlawful for any person to place in or upon any place, street, sidewalk, alley, landing, wharf or pier owned or controlled by the city and located within the city limits any article or thing without a permit therefor, unless such article or thing is otherwise authorized by law.
- (b) If any such article or thing shall be placed in or upon any such place, street, sidewalk, alley, landing, wharf or pier without lawful authority, the city, without notice, is authorized to cause such article or thing to be removed to some convenient place designated by the city. The cost of such removal shall be charged to the owner of the article or thing or to the person responsible for placing, establishing or fixing the article or thing in violation of this section.

(Ord. No. 89-244, § 2(34-8), 9-28-89; Ord. No. 2017-150, § 4, 10-26-2017)

Sec. 22-9. - Tearing down or removing barricades or signboards; driving on closed streets.

It is unlawful for any person to tear down or remove any barricade or signboard upon any street, avenue or alley or any part thereof after the same has been closed in conformity with this chapter. It is unlawful for any person to drive any vehicle upon or over any work being done upon such street, avenue or alley or any part thereof after the same has been closed to the passage of vehicles or pedestrians.

(Ord. No. 89-244, § 2(34-9), 9-28-89)

Sec. 22-10. - Defacing, etc., poles.

It is unlawful for any person to willfully or maliciously deface any signal poles, utility poles or any poles used by the city for any municipal purpose or to post or tack any bills, notices or other matter on any such poles or in any manner to mutilate or injure the same (refer also to chapter 19, sec. 19-57).

(Ord. No. 89-244, § 2(34-10), 9-28-89; Ord. No. 2017-150, § 5, 10-26-2017)

Sec. 22-11. - Gates swinging open on sidewalks prohibited.

It is unlawful for any person to erect or maintain on his premises any gate which shall, when open, swing out and away from the premises and on or across the sidewalk in front thereof on any street of the city.

(Ord. No. 89-244, § 2(34-11), 9-28-89)

Cross reference— Removal of gates opening on sidewalk, § 22-257.

Sec. 22-12. - Defective sidewalks; notice to owner to repair.

Whenever a sidewalk in the city shall become so defective as to be dangerous to persons passing over the same, the occupant, owner or agent of the premises along which such defective and dangerous sidewalk may be shall be notified in writing, by the director, department of public works, that the sidewalk is dangerous and to repair the same and to place the same in a safe condition within fifteen (15) days after having received such notice. If the owner, agent or occupant refuses or neglects to repair the sidewalk within the time mentioned in this section, after having received written notice, he shall be deemed guilty of maintaining a public nuisance and, upon conviction thereof, shall be punished as provided in this Code. In such cases, the city may repair the sidewalk and bill the owner for the cost of such repairs.

(Ord. No. 89-244, § 2(34-12), 9-28-89)

Sec. 22-13. - Certificates of indebtedness—For laying or repairing sidewalks.

The certificates of indebtedness issued by the city, based upon assessments made for the laying, construction or repairing of sidewalks which have been laid, constructed or repaired by the city in accordance with the provisions of section 33 of Chapter 5363, Laws of Florida, 1903, shall be for the entire cost of laying, constructing or repairing of any sidewalk which shall be assessed against the abutting property in front of which such sidewalk shall be laid, constructed or repaired and shall be payable in three (3) equal installments, in one (1), two (2) and three (3) years. Such certificates shall have annexed thereto two (2) coupons representing the respective installments of principal and annual interest payable one (1) and two (2) years after date. The installments of principal and annual interest payable three (3) years after date shall be payable only upon surrender and cancellation of the original certificate. Such certificates and coupons shall be in the form hereto annexed and identified by the signature of the city clerk on the top margin thereof, and, for the purpose of permanently preserving the form, the city clerk shall and he is hereby authorized and directed to paste such form in the ordinance book at or immediately following the place where the ordinance from which this chapter is derived is recorded.

(Ord. No. 89-244, § 2(34-13), 9-28-89)

Sec. 22-14. - Same—Interest rate; when due and payable.

The rate of interest which certificates of indebtedness provided for in this chapter shall bear and the manner in which such certificates shall be payable shall be as prescribed by the resolution or ordinance authorizing such work to be done.

(Ord. No. 89-244, § 2(34-14), 9-28-89)

Sec. 22-15. - Same—Signing; affixing seal.

Before issuance, the certificates of indebtedness provided for in this chapter shall be signed by the mayor of the city, attested to by the city clerk and countersigned by the director of revenue and finance, and the corporate seal of the city shall be affixed thereto by the city clerk. The coupons thereto annexed shall bear the facsimile signatures of the officers but shall not be under the corporate seal of the city.

(Ord. No. 89-244, § 2(34-15), 9-28-89)

Secs. 22-16—22-30. - Reserved.

DIVISION 2. - CERTIFICATES; DOCUMENTS; REQUIREMENTS; ETC.

Sec. 22-31. - Applications, documentation.

- (a) Any person legally entitled to apply for and receive a permit under the provisions of this chapter shall make such application in writing (electronic) to the city in a form/format provided for that purpose. Every applicant for a permit shall give a description of the character of the work proposed to be done and the location, ownership, occupancy and use of the premises in connection therewith. The city may require plans, specifications or drawings and such other information as it may deem necessary and pertinent prior to the granting of a permit. If the city determines that the plans, specifications, drawings, descriptions or other information furnished by the applicant are in compliance with this chapter, the rules and regulations of any other department having jurisdiction and any other laws, rules and regulations pertaining to work proposed to be done, it shall issue the permit applied for upon payment of the required fee.

- (b) The order, sequence and prerequisites for making applications shall be as designated by the city.

(Ord. No. 89-244, § 2(34-31), 9-28-89; Ord. No. 2017-150, § 6, 10-26-2017)

Sec. 22-32. - Opening, widening or extending streets—Resolution authorizing city attorney to enter condemnation proceedings.

Whenever the city council shall deem it necessary or expedient to open, widen or extend any street, avenue, alley or thoroughfare in the city and condemnation proceedings shall be deemed necessary therefor, the city council shall authorize the city attorney, by resolution, to initiate condemnation proceedings against the necessary property for the opening, widening or extending of such avenue, alley or thoroughfare.

(Ord. No. 89-244, § 2(34-32), 9-28-89)

Sec. 22-33. - Same—Form of condemnation proceedings.

The city attorney shall, as soon as practicable after the passage of a resolution as provided for in this chapter, initiate condemnation proceedings against the necessary property for the opening, widening or extending of streets, alleys, avenues or thoroughfares mentioned in such resolution to the width prescribed therein. Such condemnation proceedings shall be in the manner prescribed by the statutes of the state for other condemnation proceedings.

(Ord. No. 89-244, § 2(34-33), 9-28-89)

Sec. 22-34. - Application for vacating streets and alleys—Generally.

All applications for vacating of public right(s)-of-way (public street, road, alleyway, place or highway dedicated or acquired for travel or any part or portion thereof) shall be submitted to the land development coordination division (LDC). Standard application forms shall be made available in the LDC office.

(Ord. No. 89-244, § 2(34-34), 9-28-89; Ord. No. 2007-26, § 1, 2-7-08)

Sec. 22-35. - Same—Form; address.

Vacating applications filed pursuant to this article shall be typewritten and shall be sworn to by the applicant and shall include the post office address of the applicant.

(Ord. No. 89-244, § 2(34-35), 9-28-89; Ord. No. 2007-26, § 2, 2-7-08)

Sec. 22-36. - Same—Contents.

- (a) Vacating applications filed under this article shall give an accurate legal description of the public street, road, alleyway, place of highway or any part or portion thereof applied to be vacated, closed, discontinued and abandoned. If the vacating, closing, discontinuing and abandoning of a part or portion of an alleyway desired by the applicant to be vacated, closed, discontinued and abandoned would result in the creation of a dead-end alleyway, then the applicant is required to apply to vacate, close, discontinue and abandon the entire alleyway or such part or portion thereof as will preclude the creation of a dead-end alleyway, unless the applicant provides an adequate turnaround or cul-de-sac.
- (b) The applicant shall list the property owners' names, addresses and the property legal description, as reflected in the latest ad valorem tax records, of all property touching or abutting on the public street, road, alley, alleyway, place or highway or other right-of-way or any part or portion thereof requested to be vacated, closed, discontinued and abandoned.
- (c) The applicant shall state the reason why the applicant desires the closing of the street, road, alleyway, place or highway or any part or portion thereof.
- (d)

The application shall contain a recital as follows: The applicant(s) herein named hereby waive, renounce, relinquish, absolve and discharge the city from any claim for damages of any nature and kind whatsoever that such applicant(s) may have or claim or demand, now or in the future, by reason of the vacating, closing, discontinuing and abandoning of the public street, road, alleyway, place or highway or any part or portion thereof.

- (e) The application shall have attached thereto a drawing or blueprint of the subdivision in which the public street, road, alleyway, place or highway or any part or portion thereof to be vacated, closed, discontinued and abandoned is located or, if located in an unplatted area, of the streets, highways, roads, alleys and public places in the immediate area surrounding the public street, road, alleyway, place or highway or any part or portion thereof to be vacated, closed, discontinued and abandoned.

(Ord. No. 89-244, § 2(34-36), 9-28-89; Ord. No. 2007-26, § 3, 2-7-08)

Sec. 22-37. - Same—Filing; number of copies required.

Four (4) copies of the vacating application required by this article shall be filed with the land development coordination division.

(Ord. No. 89-244, § 2(34-37), 9-28-89; Ord. No. 2007-26, § 4, 2-7-08)

Sec. 22-38. - Same—Procedure on receipt; distribution to reviewing agencies.

Upon receipt of the vacating application, the land development coordination division shall review for completeness. If complete, the land development coordination division shall distribute a copy to the legal department and all reviewing agencies, including but not limited to all applicable city agencies, other governmental agencies, and private utilities.

(Ord. No. 89-244, § 2(34-38), 9-28-89; Ord. No. 2007-26, § 5, 2-7-08)

Sec. 22-39. - Scheduling of public hearing; notice.

- (a) The land development coordination division shall schedule the date for the public hearing consistent with city council rules of procedure and forward the application to the city clerk for inclusion on the requested agenda.
- (b) Public notice. The procedures for required public notice are governed by section 27-394, with supplemental notice provided per sections 27-394(c)(1)a. (mailed notice to property owner), (c)(1)c. (mailed good neighbor notice) and (c)(2) (posted notice). Mailed notice to the property owner shall include mailed notice to the owner of every parcel of land abutting on the public street,

road, alleyway, place or highway or any part or portion thereof proposed to be vacated, closed, discontinued and abandoned. Per section 27-394(c)(3), the applicant shall file the required affidavit of compliance with the city clerk.

- (c) When all or a majority of the alley rights-of-way within a platted subdivision or within an area of four (4) or more contiguous blocks are included in a single application, then the posting of signs, as required in section 27-394(c)(2), shall not be required for those alleys within that subdivision or for those alleys within the four (4) or more contiguous blocks referred to above.

(Ord. No. 89-244, § 2(34-39), 9-28-89; Ord. No. 2002-257, § 2, 11-21-02; Ord. No. 2004-71, § 4, 3-11-04; Ord. No. 2007-26, § 6, 2-7-08; Ord. No. 2011-12, § 5, 1-20-2011, eff. 2-1-2011)

Sec. 22-40. - Application of chapter to city council proceedings.

Nothing contained in this chapter shall be deemed or construed as applying to any proceedings instituted by the city council in their own discretion and on their own motion relating to the vacating, closing, discontinuing and abandoning of any public street, road, alleyway, place or highway or any part or portion thereof.

(Ord. No. 89-244, § 2(34-40), 9-28-89; Ord. No. 2007-26, § 7, 2-7-08)

Secs. 22-41—22-55. - Reserved.

DIVISION 3. - FEE AUTHORITY AND TYPES; PERMITS; INSPECTIONS

Subdivision I. - Generally

Sec. 22-56. - Fees—City council to establish.

The city council shall have the authority to set fees by resolution.

(Ord. No. 89-244, § 2(34-61), 9-28-89)

Sec. 22-57. - Same—Types enumerated.

Fees may be charged for the following:

- (1) Vacating streets and alleys petition;
- (2) Permit issuance;
- (3) Reinspection;
- (4) Interest for certificates of indebtedness;

- (5) Application for bench permit;
- (6) Annual renewal for bench permits;
- (7) Sidewalk café permit;
- (8) Sidewalk café permit renewal;
- (9) Right-of-way permit for guardhouses and/or gates;
- (10) Modular news rack permits.

(Ord. No. 89-244, § 2(34-62), 9-28-89; Ord. No. 92-45, § 2, 4-2-92; Ord. No. 99-105, § 1, 5-13-99; Ord. No. 2010-60, § 2, 5-20-2010, eff. 6-24-2010)

Sec. 22-58. - Permit types.

(a) *Driveway permit.*

- (1) *Required for:* Installing or relocating driveway aprons and/or curbs between private property line and street pavement.
- (2) *May be issued to:* Owner, contractor or agent.
- (3) *Scope of work:* Forming and pouring asphalt or concrete or the placement of bricks or stone in accordance with approved plans and/or department specifications.

(b) *Right-of-way permit—Maintenance.*

- (1) *Required for:* Performing utility maintenance activity which causes any obstruction or redirection of normal traffic flow in excess of the following time periods:

Collector; major or minor

arterial4 hours

Local streets8 hours

- (2) *May be issued to:* Certified/licensed contractors; utility companies.
- (3) *Scope of work:* Obstruction or redirection of traffic flow in accordance with this Code and state law.

(c) *Right-of-way permit—New construction.*

- (1) *Required for:* Performing utility construction activity which causes any obstruction or redirection of normal traffic flow.
- (2) *May be issued to:* Certified/licensed contractors; utility companies.
- (3) *Scope of work:* Obstruction or redirection of traffic flow in accordance with this Code and state law.

(d) *Right-of-way permit; miscellaneous structures.*

- (1)

Required for: Installing or relocating miscellaneous structures on city right-of-way between the private property line and the street pavement.

(2) *May be issued to:* Owner, contractor or agent.

(3) *Scope of work:* Placement of miscellaneous structures on the right-of-way in accordance with approved plans and/or department specifications.

(e) *Sidewalk café permit.*

(1) *Required for:* Operation of a sidewalk café.

(2) *May be issued to:* Any person meeting the requirements for a sidewalk café contained in this chapter.

(3) *Scope of work:* Operation of a sidewalk café.

(f) *Right-of-way permit for guardhouses and/or gates.*

(1) *Required for:* The erection, operation and maintenance of guardhouses and/or gates on, in or in any manner affecting public right(s)-of-way.

(2) *May be issued to:* A corporation or association incorporated or formed under the laws of the State of Florida whose membership is comprised of all owners of real property located in a subdivision or a clearly defined development or a community development district or special district formed for the purpose of erecting, operating and maintaining a guardhouse and/or gates at the entrance into the subdivision or development to be located on, in or in any manner affecting public right(s)-of-way and meeting the following criteria:

- a. The public right-of-way on which the guardhouse and/or gate is erected shall not provide a means of vehicular access through the subdivision or development to any public roads or streets located outside of the subdivision or development; and
- b. All public rights-of-way located within the subdivision or development intersecting the public right-of-way on which the guardhouse and/or gates are located shall not provide a means of vehicular access through the subdivision or development to any public roads or highways located outside of the subdivision or development; and
- c. All other requirements contained herein in connection with the permitting, erection, operation and maintenance of the guardhouse and/or gates shall be satisfied.

(3) *Scope of work:* The erection, operation and maintenance of a guardhouse and/or gates located in, on, or in anyway affecting public right(s)-of-way subject to the standards set forth in this ordinance and any specific permit requirements.

(Ord. No. 89-244, § 2(34-63), 9-28-89; Ord. No. 92-37, § 1, 3-12-92; Ord. No. 92-45, § 3, 4-2-92; Ord. No. 99-105, § 2, 5-13-99)

Sec. 22-59. - Vacating streets and alleys; payment of costs, expenses.

- (a) The applicant requesting that any public street, road, alleyway, place or highway or any part or portion thereof be vacated, closed, discontinued and abandoned shall pay all costs and expenses to be incurred by the city, as follows:
 - (1) For the handling and processing of the application, including the publishing of notice of the public hearing;
 - (2) For the posting of signs;
 - (3) For the publishing of the vacating ordinance, if the application is granted;
 - (4) For the recording of a certified copy of the ordinance in the office of the clerk of the circuit court of the county;
 - (5) For the review of the application.
- (b) A payment in the amount as established by resolution of the city council shall be made by the applicant to the land development coordination division with the submittal of the application. A receipt showing the payment to the city shall be attached to the application. No portion of this fee shall be refunded. Should an error (by the applicant or his agent) in the original application occur that requires the filing of an amended application and readvertisement of notice of the public hearing, the additional charge and subsequent payment in the amount as established by resolution of the city council to defray additional costs and expenses shall be made by the applicant to the land development coordination division, before the amended application will be rescheduled for a public hearing. A receipt showing the payment to the city of this additional fee shall be attached to the amended application. No portion of this additional fee shall be refunded.

(Ord. No. 89-244, § 2(34-64), 9-28-89; Ord. No. 2007-26, § 8, 2-7-08)

Sec. 22-60. - Installations in rights-of-way.

- (a) It is unlawful for any person, public or private utility or any other governmental agency or contractor to excavate, dig, blast or tunnel or to place, construct or install any facilities, structures and objects such as utility lines, telecommunication cables, culverts, etc., within any public street, alley or other rights-of-way in the city unless application shall first be made to and a written permit obtained from the city, except under the following conditions:
 - (1) Installation of trees or shrubbery which will not grow to a diameter in excess of twenty-four (24) inches when installed by public or private utility work crews, provided that said installations meet minimum state and federal design standards, related to roadside recovery areas, minimum site triangles and the Americans with Disability Act requirements, including amendments thereto, as said standards and requirements are adopted herein;
 - (2)

Installation of gas, water, sewer, electric or telephone service connection lines, not including underground main feeder lines parallel to the street, when installed by public or private utility work crews which are subject to all conditions specified in this Code.

- (b) It is unlawful for any person, public or private utility or any other governmental agency or contractor working for the same to excavate, dig, blast or tunnel or to place, construct, repair or install any driveway, curb sidewalk or culvert within any public street, alley or other rights-of-way in the city, unless application shall first be made and a written permit obtained in advance of beginning work.
- (c) It is unlawful for any person, public or private utility or any other governmental agency or any contractor working for the same to excavate, dig, blast or tunnel for the purpose of repairs or maintenance of any existing facilities within any public street, alley or other rights-of-way in the city, unless application shall first be made and a permit for the repairs or maintenance obtained in advance of beginning work; provided, however, there is hereby excepted from this requirement public or private utility work crews which are subject to all conditions specified in this chapter when accomplishing the following work:
 - (1) Removal, replacement or relocation of trees;
 - (2) Repair, cleaning or replacement of gas, water, sewer, electric or telephone service connection lines, not including underground main feeder lines parallel to the street;
 - (3) Raising manhole covers in conjunction with street resurfacing;
 - (4) Trouble-shooting for leaks, gas, water, sewer, storm sewer, pressurized telephone and electric lines in the unimproved (no traffic or sidewalk) rights-of-way.
- (d) The applicant for a permit shall determine all potential utility conflicts during the design stage and shall show same on the plan and profile drawings submitted with the application. The plan and profile drawings shall be in accordance with utility plan guidelines or as specified by the city.
- (e) If it is determined that such work or activity within any street, alley or other rights-of-way will not unreasonably interfere with the rights of the public or city, the city may issue a permit for such construction work or activity, upon such reasonable conditions as the city deems necessary for the protection of the rights of the public and the city.
- (f) Under all conditions prescribed in this section, the construction shall not proceed unless the statewide one-call toll-free telephone notification system or such other method established under the Underground Facility Damage Prevention and Safety Act, as now or hereafter amended, is notified not less than forty-eight (48) hours nor more than five (5) days in advance of beginning construction. Advance notification is waived when it is documented to the city transportation engineer of the PDD department that the excavation work is of an emergency nature involving the public health, safety or welfare.

(g)

All applicants shall give the full name and address of the person or organization making such application, shall designate the place, extent, nature and purpose of such work or activity and, if any paving, curbing, sidewalk, sewer or water main will be disturbed by such work, the city transportation engineer of the PDD department may require that the application be accompanied by a deposit of money in such amount as shall in the opinion of the city transportation engineer of the PDD department be sufficient to pay for the expense of repairing or restoring the same. Pavement replacement shall be in accordance with the conditions set forth in the permit and other standards of the city. Failure or neglect on the part of the applicant to carry out all work in compliance with the conditions set forth in the permit and other standards of the city shall be reason for revocation of the permit.

(h) All applicants shall restore the rights-of-way to its previous condition.

(i) All applicants shall verify the location and elevation of all underground facilities and shall protect said facilities from damage; in the event that any facilities are damaged, the applicant or applicants shall, at their sole expense, repair or cause to be repaired the damaged facilities to the satisfaction of the owner or operator of said facilities.

(Ord. No. 89-244, § 2(34-65), 9-28-89; Ord. No. 93-178, § 1, 11-18-93; Ord. No. 97-155, §§ 1, 2, 7-24-97; Ord. No. 2017-150, § 7, 10-26-2017)

Sec. 22-61. - Public service corporations; standing cash deposit or bond.

A public service corporation operating under a franchise from the city may make a cash deposit or give a bond in such amount as the official determines is sufficient to cover all expenses connected with the work, including inspection of the same; provided, however, that the official may discontinue such arrangement at any time and require a specific charge for each opening. The city shall not be liable for any interest on such deposit made.

(Ord. No. 89-244, § 2(34-66), 9-28-89)

Sec. 22-62. - Railroad or railway company repairs; application; deposit.

(a) Any railroad or railway company desiring to repair its tracks shall make application as set forth in this article, and if such repairs will disturb the pavement or sidewalk, such company shall restore the pavement or sidewalk to its previous condition. The official shall collect a cash deposit that will be sufficient for the repair and upkeep of that part of the pavement which will be disturbed.

(b) Such railroad company making such application will be required to repave and maintain permanently that part of the pavement between the rails.

(Ord. No. 89-244, § 2(34-67), 9-28-89)

Sec. 22-63. - Guards and danger signals; bond.

In addition to the payment required by this article, any person to whom a permit to disturb a pavement or sidewalk has been issued shall erect and maintain at his expense all necessary guards and danger signals, shall furnish all necessary watchmen to protect the public and the work during its progress, and shall assume all liability for accidents or damage to persons or property that may occur in the course of or by reason of such work. If necessary for the protection of the city, the official may require the applicant to post a bond in such amount which the official deems proper to protect the city from all loss and damage by reason of such work, because of injury to persons, property or animals.

(Ord. No. 89-244, § 2(34-68), 9-28-89)

Sec. 22-64. - Display of permits; penalty.

Any person disturbing, digging up, or excavating any pavement or sidewalk authorized herein shall exhibit, upon demand to any city official, the permit for such work issued by the city, and any person failing to do so or to comply with the provisions of this chapter shall, upon conviction, be punished as provided in section 1-6 of this Code.

(Ord. No. 89-244, § 2(34-69), 9-28-89; Ord. No. 2017-150, § 8, 10-26-2017)

Sec. 22-65. - Refilling; cleaning up; repaving.

Upon the completion of the work for which any disturbance, digging up or excavation is made, the applicant shall refill all trenches and excavations. All openings in streets must be promptly filled with suitable material, free from rubbish and perishable matter, and thoroughly and evenly compacted throughout, ramming in thin layers while being put in or by flooding with water. Upon completion of the backfill, the person to whom the permit is issued shall immediately place the pavement in a safe condition for traffic by laying a temporary pavement, properly supported, having the top of the pavement flush with the pavement surface. Immediately after completion of this work or any consecutive portion of it, the applicant shall remove from such street or sidewalk all unused material, refuse and dirt placed in the vicinity of the work resulting from its prosecution and restore the street to a condition satisfactory to the city, notifying the city of such action. In case the work is not completed within the time limited in the permit, the city may, if it deems necessary, take steps to backfill the trench and replace the pavement over the opening for which the permit has been issued. If an extension of time beyond such date is necessary for completion of the work, a new application must be obtained. All persons in charge of any work on the streets must retain and have in possession at all times while so engaged a permit as described in this division. After the person to whom the permit has been issued has complied with the foregoing sections in all respects, the holder thereof shall be relieved from all further expense for repaving the street and shall not be held responsible for the upkeep and maintenance of the pavement from and after that date, except when a defect develops by reason of improper workmanship below the pavement itself.

(Ord. No. 89-244, § 2(34-70), 9-28-89; Ord. No. 2017-150, § 9, 10-26-2017)

Sec. 22-66. - Replacement of paving; removing of improper repaving.

The city shall cause each person who has cut the pavement or sidewalks or disturbed, dug or excavated the same, to replace and repair such pavements and sidewalks under its supervision and inspection. Such work shall be done by or inspected by a person who has passed an examination given by the city and demonstrated capabilities for doing such work and/or is licensed/authorized by the city to do such work; provided, however, if the city at any time within thirty (30) days after the sidewalks and/or pavement have been replaced or repaired determine that the persons mending or replacing such pavement or sidewalks so disturbed, dug up or excavated have failed and neglected to repair and replace such pavement and sidewalks to meet city standards, then, and in that event, the city shall cause the sidewalks or pavement so defectively replaced and repaired to be properly replaced and repaired. All costs and expenses of so replacing and repairing such pavement or sidewalk shall be charged against the fund deposited by the person to whom the permit was granted to cut, disturb and excavate the pavement or sidewalks, for a period of one (1) year against defect.

(Ord. No. 89-244, § 2(34-71), 9-28-89; Ord. No. 2017-150, § 10, 10-26-2017)

Sec. 22-67. - Permit revocation.

The city may revoke permits issued upon finding that:

- (1) The permit was issued by mistake of law or fact;
- (2) The permit is for work which violates the provisions of this chapter;
- (3) The permit was issued upon a false statement or misrepresentation by the applicant;
- (4) The permit violates any ordinance of the city or any state or federal law, rule or regulation;
- (5) The work is not being performed in accordance with the provisions of this chapter;
- (6) The certificate of competency or license of the permittee has become invalid by reason of expiration, suspension, revocation or otherwise;
- (7) The work is not being performed under the supervision of the holder of the certificate or license upon which the same was issued;
- (8) The work is not being done in accordance with the terms of the permit, the plans or the application upon which the same was issued;
- (9) Payment of the permit fees was not effected due to insufficient funds or any other reason;
- (10) The work performed under that permit is threatening or interfering with public welfare and safety;
- (11) The work performed under the permit is not in compliance with this chapter and/or Code; or

(12) The permittee is not in compliance with this chapter and/or Code.

(Ord. No. 89-244, § 2(34-72), 9-28-89; Ord. No. 2017-150, § 11, 10-26-2017)

Sec. 22-68. - Nontransferability of permits.

No permit shall be transferable from one (1) permittee to another, and the issuance of a permit for certain work shall not preclude the issuance of a subsequent permit for the same work or for the completion of the work.

(Ord. No. 89-244, § 2(34-73), 9-28-89)

Sec. 22-69. - Inspections, other approvals.

Activities regulated by this chapter shall be subject at all times to inspection by the city. The city may require documents, drawings or certificates necessary to effect approval of such work.

(Ord. No. 89-244, § 2(34-74), 9-28-89; Ord. No. 2017-150, § 12, 10-26-2017)

Cross reference— Inspections generally, § 1-27.

Secs. 22-70—22-85. - Reserved.

Subdivision II. - Bridges

Footnotes:

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Cross reference— *Boats, docks and waterways, § 14-196 et seq.; pollution of navigable waters, § 14-236 et seq.*

Sec. 22-86. - Plans for bridges to be submitted to city for approval.

- (a) It is unlawful for any person, including any commercial railroad or transportation company, to build, erect or construct any bridge or to rebuild or replace any bridge across the Hillsborough River within the corporate limits of the city without first submitting the plans to the city for approval.
- (b) All bridge plans must be submitted to the city for approval. Plans must be signed and sealed by a structural engineer currently registered in the state. Plans must conform to the most recent edition of the state department of transportation "Standard Specifications for Road and Bridge Construction." All applicable permits must be acquired by the party submitting plans for city review.

(Ord. No. 89-244, § 2(34-81), 9-28-89)

Secs. 22-87—22-100. - Reserved.

Subdivision III. - Sidewalks

Footnotes:

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Editor's note— *This subdivision is included as part of the land development code adopted in § 17.5-17 which combines and compiles all land development regulations into a single land development code.*

Sec. 22-101. - Construction permit.

It is unlawful for any person to construct, build or repair sidewalks in the city without first obtaining a permit therefor from the official. Such application shall be duly filed with the official and shall specify the material with which the sidewalk is to be constructed, built or repaired.

(Ord. No. 89-244, § 2(34-86), 9-28-89)

Sec. 22-102. - Specifications for construction.

All sidewalks in the city for which a permit shall be issued shall be constructed in accordance with the plans and specifications of the rules and regulations as promulgated by the official, and it shall be unlawful for any person to construct any sidewalk on any street or street area in the city which does not conform with such plans and specifications of the official.

(Ord. No. 89-244, § 2(34-87), 9-28-89)

Sec. 22-103. - When new sidewalk construction is required; contributions to "sidewalk trust fund" in lieu of constructing a sidewalk.

(a) In order to provide continual access for pedestrians, sidewalks shall be required to be provided by the property owner or permit applicant in the public right-of-way when one (1) of the following events occur:

(1) *Residential structure(s)/use(s) generally.* Except as provided for below, whenever a permit is issued for the construction of: (a) a new single-family or multi-family residential structure or use; or (b) any major renovation as defined in Chapter 27 of any existing single-family or multi-family residential structure.

(2)

Commercial/industrial/office/mixed use and all other non-residential structure(s)/use(s). Whenever a permit is issued for: (a) the construction of a new commercial, industrial or office structure; or (b) any expansion of an existing structure or use (other than a residential structure or use) which results in an expansion of that structure or use in excess of twenty-five (25) percent of the existing square footage of structure area on a parcel.

- (3) *All uses.* All uses undergoing: (a) site plan controlled zoning approval; or (b) S-2 special use approval; or (c) any change in an existing use requiring twenty-five (25) percent additional parking.

Whenever sidewalk(s) is/are required above, then the sidewalk(s) shall be constructed in the public right-of-way along the full length of any and all streets abutting a parcel of property and parallel to the street in accordance with the Transportation Technical Manual. The location of the sidewalk in the public right-of-way shall be determined by the transportation manager or their designee.

- (b) If a sidewalk is required under subsection 22-103(a) of this Code, but the construction of the sidewalk is determined to be not practical (as determined pursuant to either subsection 22-103(c) or 22-103(d) below), then the property owner or permit applicant shall make a contribution to the applicable "sidewalk trust fund" as described in section 22-104 of this Code in lieu of constructing the required sidewalk. The amount of the contribution shall be determined by multiplying the linear feet of that parcel's street frontage(s) (minus the width of any paved driveway and/or driveway apron) times the per linear foot contribution fee established pursuant to section 22-104 of this Code.
- (c) The decision of whether the construction of a sidewalk on a parcel is "not practical" shall be made by the transportation manager or their designee. In making such a decision, the transportation manager or their designee shall consider the following factors:
- (1) Whether there is no existing sidewalk to which the proposed sidewalk can connect and it is unlikely that there will be additional development nearby which will require the construction of additional sidewalk(s) (if the parcel terminates at a street intersection and a sidewalk is located across the street, then a sidewalk will be required to connect with the sidewalk located across the street); or
 - (2) Whether a sidewalk cannot be constructed without removing a grand tree; or
 - (3) Whether a stormwater drainage ditch or similar public utility facility prevents the construction of a sidewalk and neither the facility nor the proposed sidewalk can be reasonably relocated or altered to accommodate both the facility and the sidewalk; or
 - (4) Whether or not other unique or peculiar circumstances exist on a given parcel or development, which would prevent the construction of a sidewalk.

(d)

City council shall also have the authority to determine whether or not circumstance exists making it "not practical" to construct a sidewalk in connection with site plan controlled rezoning, and S-2 special use petitions.

- (e) Existing sidewalks adjacent to a parcel of property shall be repaired and/or replaced if the transportation manager or their designee determines that the sidewalk sections are unsafe.
- (f) Ramps for the handicapped, designed to city specifications, shall be provided at all intersections.
- (g) In the event that it is determined that the construction of a sidewalk is "required" (as provided for in subsection (a) above) but "not practical" (as provided for in subsection (c) or (d) above and by the city's construction services division), contribution to the sidewalk trust fund shall be required. Contribution to the sidewalk trust fund shall not be required if the permit is issued for single-family affordable housing unit. For the purposes of this subsection, an affordable housing unit shall be defined by F.S. § 420.907, as it may be amended.
- (h) The mobility department shall given an annual report to city council regarding the city's sidewalk program and the sidewalk trust fund.

(Ord. No. 90-110, § 1(34-88), 4-26-90; Ord. No. 2001-92, § 1, 4-19-01; Ord. No. 2006-259, § 3, 10-26-06; Ord. No. 2008-136, § 1, 8-21-08; Ord. No. 2009-174, § 1, 12-3-09; Ord. No. 2010-140, § 1, 10-7-2010; Ord. No. 2021-150, § 1, 12-2-2021)

Sec. 22-104. - Sidewalk trust funds.

- (a) There are hereby established six (6) separate sidewalk trust funds for each of the six (6) separate multi-modal transportation impact fee districts described in section 25-71 of the Code. The sidewalk trust funds shall be used for the deposit, maintenance and distribution of all monetary contributions made in lieu of constructing a sidewalk pursuant to subsection 22-103(b) of this Code. All contributions made pursuant to subsection 22-103(b) of this Code shall be monetary payments into the sidewalk trust fund that corresponds with multi-modal transportation impact fee district in which the parcel is located. All contributions made to and interest derived from any of the sidewalk trust funds shall be used solely for the purpose of constructing new sidewalks along or on public streets in the multi-modal transportation impact fee district in which the contribution was collected.
- (b) The sidewalk trust fund fee shall be established by city council resolution. The fee shall be set on per linear foot of street frontage basis and shall be based on the average of the city's sidewalk construction costs on a per linear foot of street frontage basis.

(Ord. No. 2001-92, § 2, 4-19-01; Ord. No. 2015-81, § 1, 7-30-2015; Ord. No. 2021-150, § 1, 12-2-2021)

Secs. 22-105—22-115. - Reserved.

Subdivision IV. - Multimodal Benches, Shelters, and Bicycle Kiosks; Display of Advertising

Footnotes:

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Editor's note— Ordinance No. 2014-40, § 1, adopted June 5, 2014, amended Subdivision IV title to read as herein set out. Formerly, such subdivision pertained to benches displaying advertising.

Cross reference— Removal or relocation of benches in violation, § 22-258.

Sec. 22-116. - Persons permitted to place benches on public rights-of-way; applicability of article.

Any person duly incorporated under the laws of the state or duly authorized to transact business in the state who complies with the provisions of this article may be permitted to place and maintain within the corporate limits of the city benches for the use and convenience of the general public. Such benches may be located on public rights-of-way only where, in the determination of the city mobility department, such benches do not present a hazard to pedestrians or motorists. The provisions of this article shall apply to benches which display advertising, which are intended for the display of advertising, or which provide seating in the public rights-of-way and when such benches are to be located on the city or county public rights-of-way within the corporate limits of the city or when such benches are to be located on private property but the advertising is intended to be viewed from the public rights-of-way.

(Ord. No. 89-244, § 2(34-91), 9-28-89; Ord. No. 2024-107, § 2, 10-17-2024)

Sec. 22-117. - Design standards.

All benches placed or maintained within the corporate limits of the city as permitted under the provisions of this article shall be designed in such a manner to ensure such benches are placed in locations that do not interfere with the safe operation of traffic control equipment and movement of the traveling public. All benches are subject to the criteria enumerated in this section which shall be depicted on a site plan that has been signed and sealed by a professional engineer.

- (a) Such bench shall not create any safety hazard(s) or physical or visual obstruction to vehicular, bicycle, and/or pedestrian traffic.
- (b) Except as otherwise provided in this article, such benches shall be located only at bus stops along active bus routes recognized as such by any regional transit authority or as near thereto as the physical characteristics of the area and the safety of vehicular and pedestrian traffic will permit. Benches may be placed at locations other than recognized bus stops when, in the determination of the mobility department, there is an identified need for a bench as a public convenience and the proposed location is not one which will be mistaken for a bus stop or otherwise lead to the confusion of the public.

- (1) At locations other than recognized bus stops, if a need exists to place appropriate signage, such signage shall be placed alongside or affixed to the bench to prevent confusion.
- (c) The bench shall be located out of the clear zone/recovery area as defined in the Manual of Uniform Minimum Standards for Design, Construction and Maintenance for Streets and Highways, Table 3-15.
- (d) The bench shall not create a sight obstruction as defined in the Florida Greenbook - Manual of Uniform Minimum Standards for Design, Construction and Maintenance for Street and Highways.
- (e) The bench shall adhere to the Americans with Disabilities Act (ADA)/Public Right-of-Way Accessibility Guidelines (PROWAG) and Elements Policy to ensure accessibility and compliance with established standards.
 - (1) Benches placed on sidewalks shall maintain a minimum four-foot pedestrian walkway.
 - (2) Benches shall be placed on level ground which cannot exceed a two (2) percent cross slope.
- (f) The bench shall adhere to the Florida Building Code Section 903, which requires:
 - (1) Seats that are forty-two (42) inches long minimum and twenty (20) inches deep minimum and twenty-four (24) inches deep maximum; and
 - (2) Back supports that are forty-two (42) inches long minimum and shall extend from a point two (2) inches maximum above the seat surface to a point eighteen (18) inches minimum above the seat surface. Back support shall be two and one-half (2½) inches maximum from the rear edge of the seat measured horizontally.
- (g) The overall height of the bench shall not exceed forty-eight (48) inches.
- (h) No bench shall be placed so that the angle of its long diversion in relation to the curblin or edge of pavement shall be greater than thirty (30) degrees.
- (i) Each bench shall display in a conspicuous manner the name of the owner and/or sponsor of the bench and website or such other identifying symbol, mark, design, or abbreviation as is acceptable by the mobility department.
- (j) Benches shall be constructed to sustain a minimum load of one thousand (1,000) pounds.
- (k) Metal benches or equivalent must be affixed to a concrete pad or sidewalk.
- (l) Benches may not negatively impact the operation of a traffic control device.
- (m) On request by the mobility department director or designee, applicant must provide right-of-way lines as established and mapped by a Florida Professional Surveyor and Mapper or as depicted on signed and sealed roadway plans.

(Ord. No. 89-244, § 2(34-92), 9-28-89; Ord. No. 2024-107, § 3, 10-17-2024)

Sec. 22-118. - Permit requirements.

- (a) Before placing any bench as provided by this article, application shall be made in writing to the director of the mobility by the person desiring to place such benches, which application shall include the following:
 - (1) The full name and business address of such applicant and, if a corporation, where incorporated, and, if a foreign corporation, when authorized to do business in the state;
 - (2) A description of the materials, dimensions, and type of construction, together with a scaled drawing, of the proposed bench;
 - (3) The description of the location shall include either the nearest address with street name and number or intersection and designated corner;
 - (4) The latitudinal and longitudinal coordinates for each bench location must be provided on the site plan;
 - (5) If bench installation is proposed to be on private property, written permission from the property owner must be obtained and submitted with the permit application; and
 - (6) A statement that the applicant shall, if issued a permit, comply with all the provisions of this article in the placing and maintenance of each bench for which a permit shall be issued.

(Ord. No. 89-244, § 2(34-93), 9-28-89; Ord. No. 2024-107, § 4, 10-17-2024)

Sec. 22-119. - Permit application.

- (a) Upon the filing of an application to locate a bench, the mobility department director or their designee shall review it and determine whether the application complies with the requirements of this article and that no prior permit has been issued for a bench or shelter at each location specified.
- (b) If an application is approved, the mobility department shall issue a permit to the applicant for the placing of benches at the approved locations upon the furnishing of proof of insurance by the applicant as provided in this chapter hereof and upon the payment of such fees, licenses, taxes and other charges as shall be fixed and prescribed by this Code.
- (c) Benches placed or maintained under the provisions of this article shall be placed and maintained in accordance with the following criteria:
 - (1) Not more than one (1) bench displaying advertising or intended for the display of advertising shall be permitted at a particular bus stop, except as provided in this chapter.
 - (2) Where any regional transit authority places a shelter, the permit for any bus bench at that bus stop may be revoked.
 - (3)

Where there is no sidewalk, a minimum setback from the outer edge of the pavement of any road is six (6) feet. Where a sidewalk exists, the bench shall be set back so that a minimum of a forty-eight-inch path on the sidewalk is open. Benches shall be placed such distances in excess of these requirements as may be deemed necessary or desirable for the public safety, welfare or convenience.

- (4) Benches must be affixed to a concrete pad or placed on a level surface. Benches shall not restrict access to or be attached to any traffic control device.
- (5) Any permitted bench location may be revoked by mobility department if the need no longer exists or if a public safety issue exists. The decision of the mobility department director or their designee, in respect to the installation and maintenance of public benches at any location, shall be final.
- (6) Applicant shall conform to all design standards set forth in this chapter.

(Ord. No. 89-244, § 2(34-94), 9-28-89; Ord. No. 2024-107, § 5, 10-17-2024)

Sec. 22-120. - Payment of application fee required.

Each applicant for an initial permit to locate a bench at a designated location shall pay to the mobility department an application fee for an initial permit for each proposed location. This fee is to defray the cost of the inspection required herein and offset other expenses incurred in connection with the application. However, if the application is approved, a permit shall be issued to the applicant without further payment for the permit during the city's fiscal year in which the application is made.

(Ord. No. 89-244, § 2(34-95), 9-28-89; Ord. No. 2024-107, § 6, 10-17-2024)

Sec. 22-121. - Insurance required.

- (a) The permittee shall procure and maintain in effect the types and amounts of insurance shown below:
 - (1) Public liability and property damage insurance covering claims for damages for bodily injury, including accidental death, as well as claims for property damage, in an amount not less than one million dollars (\$1,000,000.00) combined single limit for injuries, including accidental death, and property damage insurance in the amount of not less than one hundred thousand dollars (\$100,000.00) for any one (1) accident;
 - (2) An owner's protective public liability and property damage policy of like amounts, as specified in subsection (a)(1) above, to protect the city against claims for bodily injury, including accidental death, as well as claims for property damage;
 - (3) All such insurance is to be with insurance companies authorized to do business in the state and the policies countersigned by a local resident agent of the company. The policies shall be in effect at all times the benches are in place.

- (b) All insurance policies shall be issued as required by law and shall be endorsed as to provide that the insurance company shall give the city fifteen (15) days' precancellation notice if the policies are to be terminated or any changes made therein during the life of the permit. As evidence of the carriage of such insurance, the holder of the permit shall furnish the city with an original, executed certificate of such liability and property damage insurance and, if required at any time, a copy of each such policy and shall furnish to the city the original owner's protective public liability and property damage insurance policy showing the city as an additional named insured and shall also, if required, furnish to the city a receipted bill evidencing proof of payment of the premium on the policies. Failure to maintain such insurance as herein required shall be grounds for the revocation of such permit.
- (c) For a permit issued for a three-year renewal, the applicant must submit a certificate of insurance upon expiration of the previous certificate of insurance.

(Ord. No. 89-244, § 2(34-96), 9-28-89; Ord. No. 2024-107, § 7, 10-17-2024)

Sec. 22-122. - Payment of business tax.

In addition to the permits required by this article, each person engaged in the business of placing benches within the corporate limits of the city, as herein provided, shall pay to the department of revenue and finance (license bureau) the annual license taxes specified in this chapter for the privilege of engaging in the business.

(Ord. No. 89-244, § 2(34-97), 9-28-89; Ord. No. 2007-200, § 3, 10-4-07)

Cross reference— Business tax receipt, § 24-101 et seq.

Sec. 22-123. - Renewal of concrete bench permit; renewal fee.

- (a) The mobility department shall, as deemed necessary, inspect all benches within the city for which permits have been issued to determine that such benches conform to the criteria set forth in this chapter. Renewal permits for concrete benches shall run for a one-year cycle expiring on September 30 following the date of application.
- (b) An annual renewal application fee will become due and payable on October 1 for each year. Such fee shall be for each bench then under active permit and for which a permittee desires a yearly permit renewal. The permittee shall furnish with the renewal application fee a list of each and every bench and its location placed by the permittee within the city. The list shall be in the manner, form and order as prescribed from time to time by the mobility department and shall contain information required by section 22-119, permit application.
- (c)

Failure to pay the fee or submit the list on or before October 1 or the failure of a bench under permit to conform to criteria set forth herein shall be grounds to reject the application for renewal. In the event of rejection, the permittee shall remove such bench within ten (10) days after the receipt of written notice by the mobility department director or his designee.

(Ord. No. 89-244, § 2(34-98), 9-28-89; Ord. No. 2024-107, § 8, 10-17-2024)

Sec. 22-124. - Renewal of metal bench or equivalent bench permit; renewal fee.

- (a) The mobility department shall, as deemed necessary, inspect all permitted benches within the city for which permits have been issued to determine that such benches conform to the criteria set forth in this chapter. Renewal permits for metal benches or equivalent bench shall run for a three-year cycle expiring on September 30 of the third year from the date of the renewal.
- (b) Metal bench or equivalent bench permits may be renewed for up to a three-year renewal period. Applicants must reapply for permits and pay related permit fees. Permit fees will be due and payable on October 1 of the applicable cycle year. Such fee shall be for each bench under active permit and for which a permittee desires a three-year permit renewal. The permittee shall furnish with the renewal application fee a list of each and every bench and its location placed by the permittee within the city. The list shall be in the manner, form and order prescribed from time to time by the mobility department and shall contain information required by section 22-119, permit application.
- (c) Failure to pay the fee or submit the list on or before October 1 or the failure of a bench under permit to conform to criteria set forth herein shall be grounds to reject the application. In the event of rejection, the permittee shall remove such bench within ten (10) days after the receipt of written notice by the mobility department director or designee.

(Ord. No. 2024-107, § 9, 10-17-2024)

Sec. 22-125. - Objection to permit by property owner for benches located on private property; notice to permit holder; bench to be removed.

Upon the filing by the owner or lessee or tenant, if any, or authorized representative with the mobility department of an objection in writing to the permit issued to the applicant to install or maintain a bench on private property, the property of such owner, lessee, tenant or authorized representative, the permit issued to such applicant shall be revoked by the mobility department as to such location, and notice of such revocation shall be forthwith given by mobility department to the permittee therefor, and it shall be the duty of the permittee to remove it from such location within ten (10) days after the receipt of written notice from the mobility department.

(Ord. No. 89-244, § 2(34-99), 9-28-89; Ord. No. 2024-107, § 10, 10-17-2024)

Sec. 22-126. - Maintenance.

- (a) Permittee is responsible for placement and maintenance of benches within the corporate limits of the city as herein provided shall, at their own cost and expense, repair, keep and maintain such benches in good condition and repair and shall replace all unsound, unsightly or damaged materials with good, sound, sightly material, and all weathered or defaced surfaces shall be restored or replaced so as to maintain such benches at all times in good, safe and sound condition and shall, without cost to the city, remove or cause to be removed from under and around each of such benches for a distance of five (5) feet therefrom all trash, dirt, rubbish or unsanitary matter and shall keep any grass and weeds within such area trimmed or mowed, and failure to do so shall be grounds for the revocation of the permit by the mobility department.
- (b) Benches and advertising will be subject to inspection by the city at any time for compliance with the location requirements and bench standards on file in the mobility department. Such inspection will be for the sole benefit of the city and shall not relieve the permittee of the responsibility of providing measures to ensure that the benches, advertising and placement of the benches strictly complies with this article and the bench standards set by the mobility department.

(Ord. No. 89-244, § 2(34-100), 9-28-89; Ord. No. 2024-107, § 11, 10-17-2024)

Sec. 22-127. - Advertising matter permitted on bench.

Each permittee shall have the right to rent and display advertising upon benches permitted pursuant to this article, subject, however, to the following criteria and exceptions:

- (1) No advertising affixed thereon shall appear other than on either the front or rear surface of the backrest area on the bench and shall not be greater than seventy-two (72) inches in length nor twenty-four (24) inches in height;
- (2) No advertising shall be of a political, scandalous, immoral or libelous nature or of an alcoholic beverage and no portion of such advertising shall be of a reflectorized material or otherwise illuminated;
- (3) No advertising shall be permitted to appear upon benches placed within the downtown business district more particularly described as follows: that area bounded on the north by Scott Street, on the south by Garrison Channel, on the east by Meridian Avenue, and on the west by the Hillsborough River;
- (4) No benches containing advertising shall be placed in locations which conflict with state or federal regulations controlling advertising.

(Ord. No. 89-244, § 2(34-101), 9-28-89; Ord. No. 92-169, § 1, 10-15-92; Ord. No. 2024-107, §§ 12, 13, 10-17-2024)

Editor's note— Ord. No. 2024-107, § 12, adopted October 17, 2024, renumbered and amended § 22-126 as § 22-127 to read as herein set out. Section 12 of same ordinance repealed existing § 22-127, which pertained to right of owner of property to maintain benches on sidewalks adjacent to property and derived from Ord. No. 89-244, § 2(34-102), 9-28-89).

Sec. 22-128. - Removal of bench in case of emergency, during construction.

Whenever an emergency shall exist which, in the opinion of the city, requires the temporary removal of any bench licensed and permitted hereunder, the city shall have full power and authority, either with or without notice to the owner of such bench, to remove same temporarily to a safe location for the duration of such emergency and shall cause such bench to be returned to its location at the expense of the city after the termination of such emergency. However, removal of benches during periods of construction work shall be the responsibility of the owner of such benches.

(Ord. No. 89-244, § 2(34-103), 9-28-89; Ord. No. 2024-107, § 14, 10-17-2024)

Sec. 22-129. - Removal of unauthorized benches, advertising.

Any bench or advertising thereon placed or maintained within the corporate limits of the city in violation of this article or without the permits and license fees as provided by this article shall be declared a public nuisance. If it is not removed or the violation corrected within ten (10) days of written notice given by the city, it may be removed by the city and disposed of, and the costs of such removal and disposal shall be borne by the permittee of such bench.

(Ord. No. 89-244, § 2(34-104), 9-28-89)

Sec. 22-130. - Notices to owner of benches.

All notices herein provided to be given to the owner of any benches within the corporate limits of the city shall be given to such owner either by delivery to such owner of a written notice or by mailing such notice to the owner at the address given in the owner's application for a permit to place the benches within the corporate limits of the city.

(Ord. No. 89-244, § 2(34-105), 9-28-89)

Sec. 22-131. - Defacing, injuring or removing benches.

It is unlawful for any person to damage, deface, post bills upon or remove, without the permission of the owner, any bench lawfully placed and maintained within the corporate limits of the city which has been duly permitted and permitted hereunder; provided, however, that the city shall have the right to remove such benches whenever required or permitted hereunder.

(Ord. No. 89-244, § 2(34-106), 9-28-89)

Sec. 22-132. - Revocation of bench permit.

- (a) Notwithstanding the provisions contained in this article, the mobility department director or their designee, upon written notice to the permittee, may order removal within ten (10) days of any particular bench or advertising thereon for failure to comply with any provisions of this article or any other provision of this Code or for any of the following reasons:
- (1) The advertising displayed on the bench is not suitable for viewing by the public as a whole;
 - (2) The bench or the advertising thereon is not in the best interest of the general welfare of the neighborhood in which it is located;
 - (3) The bench creates a sight obstruction for motorists or restricts the flow of pedestrian, wheeled, wheelchair, bicycle or vehicular traffic;
 - (4) If, in the sole discretion of the mobility department director or their designee, the need for the bench or special manner in which it is placed no longer exists.
- (b) If the permittee fails to remove any such bench within ten (10) days of the written notice issued by the mobility department director or their designee, the city may remove and dispose of such bench, and the cost of such removal and disposal shall be borne by the permittee.

(Ord. No. 89-244, § 2(34-107), 9-28-89; Ord. No. 2024-107, § 15, 10-17-2024)

Sec. 22-133. - Modification of bus route/bus stop.

Whenever a regional transit authority modifies bus route(s), including the realignment of the route(s), any existing authorization for a bench and/or concrete pad at such bus stop(s) shall become void within ninety (90) days of the date of modification of the bus stop(s). At the request of the mobility department director or their designee, the permittee shall remove any structures, including the concrete pad and benches, installed by the permittee unless the mobility department deems it beneficial to retain these structures at the site for public convenience as provided for in this chapter.

(Ord. No. 89-244, § 2(34-108), 9-28-89; Ord. No. 2024-107, § 16, 10-17-2024)

Sec. 22-134. - Transit stop facilities required for certain developments.

- (a) All residential developments of two hundred (200) dwelling units or more and all nonresidential developments of two hundred thousand (200,000) square feet or more shall propose the establishment of a transit stop when applying for commercial plan review or PD rezoning petition. The transportation division will coordinate with HART to determine the design, location, time of installation and necessity of the proposed transit stop.

(b)

Transit stop facilities shall be located and designed in such a way as to ensure the safety of motorists, pedestrians and the handicapped.

(c) The design of transit stops shall include the following unless otherwise approved by the city and HART:

- (1) Each transit stop shall have shelter and seating.
- (2) Shelters shall meet HART standards.
- (3) Bus pull-out bays shall be provided when transit stops are located along a classified roadway. These bays shall be designed in accordance with city, HART, and the state department of transportation standards.

(d) All DRI level developments shall provide a major transit stop as part of their DRI application. These transit stops shall be located and designed in accordance with city and HART standards. Major transit stops shall include but not be limited to the following:

- (1) All design standards listed in subsection (c).
- (2) All stops shall be provided adjacent to a main entrance unless otherwise approved by the city and HART.
- (3) Separate loading and unloading areas shall be provided in site by the developer in accordance with city and HART standards.

(Ord. No. 90-111, § 1(34-109), 4-26-90)

Editor's note— This section is included as part of the land development code adopted in § 17.5-17 which combines and compiles all land development regulations into a single land development.

Sec. 22-135. - Transit shelter advertising.

- (a) Transit shelters may be permitted only in accordance with the standards contained in this Code and Florida Statutes.
- (b) Transit shelters containing advertising may be permitted in any commercial, office, or industrial zoning district; or Hillsborough Area Regional Transit Authority ("HART") routes adjacent to hospitals, schools or other permitted non-residential uses in multifamily residential zoning districts, including planned development districts containing such uses. No new transit shelters containing advertising shall be permitted in the Westshore Overlay District Development Standards, per section 27-238. No transit shelters with advertising shall be permitted in single-family residential detached zoning districts, including planned developments which contain single-family detached as an allowed use, unless the transit shelter is to be located on an arterial or collector roadway. Transit shelters containing advertising shall only be constructed at approved bus stops on HART routes as approved by HART.

(c)

The construction of the Transit shelters shall comply with Chapter 5 of this Code and Florida Statutes.

Transit shelters containing advertising shall meet the following minimum design specifications:

- (1) Transit shelters shall be not less than seven (7) feet high (interior), no more than ten (10) feet high (exterior), and shall have a minimum of two (2) wall panels.
 - (2) Transit shelters shall have seating that accommodates a minimum of two (2) persons.
 - (3) Shelters shall provide protection from wind, sun and rain.
 - (4) Shelters shall offer see-through visibility, except for the sign panels.
 - (5) Access to shelters shall be provided at least through the front, the right-of-way side of the shelter.
 - (6) Shelters shall contain display transit information, a route map, and other schedule information.
 - (7) Shelters shall be constructed of material designed to withstand vandalism and weathering, such as extruded aluminum with anodized finish.
 - (8) Transparent vertical panels shall be composed of a minimum one-quarter ($\frac{1}{4}$) inch tempered glass except that the advertising panel may be three-sixteenths ($\frac{3}{16}$) inch tempered glass. High impact strength polycarbonate may be substituted for the tempered glass.
- (d) Advertising on transit shelters permitted subject to the following restrictions:
- (1) The advertising contained in the transit shelter shall be limited to the "downstream" end wall (furthest from approaching transit vehicles) for a two-sided or flared and secured panel.
 - (2) Lighting of advertising materials shall be limited to back-lighting and shall comply with the lighting standards contained in City of Tampa Code of Ordinances section 27-289.12 for on-site signs. Electronic message signs are prohibited on transit shelters.
 - (3) No advertising poster shall exceed twenty-four (24) square feet in area, or be greater than six (6) feet in height and four (4) feet in width.

(Ord. No. 2007-50, § 1, 2-15-07; Ord. No. 2010-57, § 6, 5-20-2010; Ord. No. 2012-150, § 1, 12-20-2012; Ord. No. 2013-22, § 2, 2-7-2013)

Sec. 22-136. - Bicycle kiosks within the rights-of-way; display of advertising.

- (a) The primary purpose of a bicycle kiosk is to provide the facilities to pay for the use of a bicycle, which is part of the bicycle share program, and will be physically integrated with a bicycle rack.
- (b) Bicycle kiosks are permitted in the rights-of-way of the City of Tampa, in accordance with applicable standards set forth in the City of Tampa Code of Ordinances and Florida Statutes. Such bicycle kiosks may contain advertising as provided for herein.
- (c) Bicycle kiosks containing advertising may be permitted within public right-of-way, lying adjacent to certain parcels of land that are located within specific designated areas, described as follows:

- (1) Within designated areas set forth in (2) below, and adjacent to any parcel zoned for a multi-family residential, commercial, office, or industrial district, including a site plan district that allows such uses as principal uses of the land; and,

(2) Adjacent to lands described in (1) above, and located within the following designated areas:

a. The Central Business District, as described in Chapter 27, Article III, Division 2, Tampa Code of Ordinances;

b. The Ybor City Historic District, as described in Chapter 27, Article III, Division 2, Tampa Code of Ordinances;

c. The area commonly known as "Old Hyde Park Village," specifically within that segment of Swann Avenue between Rome Avenue and Oregon Avenue, and that segment of Dakota Avenue/Snow Avenue between Swann Avenue and Rome Avenue;

d. The area commonly known as "Davis Islands Village Center," specifically that segment of East Davis Boulevard between Barbados Avenue and Chesapeake Avenue.

(d) No bicycle kiosk containing advertising shall be permitted adjacent to a parcel zoned for a single-family detached residential zoning district, including site plan districts that permit single-family detached residential use as the sole, principal use of the land.

(e) Bicycle kiosks containing advertising shall only be constructed at bicycle share program stations, as approved by the transportation manager, with consultation of the zoning administrator as needed.

(f) Bicycle kiosks containing advertising shall meet the following minimum design specifications:
- | | |
|--|-----------|
| Table 22.136a. Bicycle Kiosk Design Specifications | |
| Bicycle Kiosk Dimensions | |
| Description | Dimension |
| Maximum height[1]: | 9' |
| Maximum depth: | 2' |
| Maximum width: | 4' |
| Bicycle Wall Panel and Advertising Standards | |
- about:blank

204/312

Maximum wall panels on opposite side of each wall [2, 3]:	2
Placement of advertising:	Only permitted on wall panel opposite of wall panel with non-advertising information
Maximum advertising poster dimensions:	Area: 19 SF [4]
Electronic message signs:	Prohibited on Bicycle Kiosks
Bicycle Kiosk Advertising Lighting Standards	
Lighting of advertising within the bicycle kiosk:	Limited to back-lighting only [5]
Bicycle Kiosk Materials	
Shall be constructed of materials designed to withstand vandalism and weathering, such as extruded aluminum with anodized finish [6].	
Note(s):	
[1] Refer to "height" as defined in <u>Chapter 27</u> Zoning and Land Development.	
[2] A minimum of one (1) wall panel shall contain a display of transit information, a route map, and other information regarding the bicycle share program.	
[3] Advertising shall only be allowed on the wall panel opposite the wall panel that contains non-advertising information.	
[4] Advertising poster(s) shall not exceed 19 SF in area, or be greater than 5' in height and 4' in width.	
[5] Shall comply with lighting standards set forth in <u>section 27-289.12</u> for on-site signs.	
[6] Alternative materials may be considered by the transportation manager.	

(Ord. No. 2014-40, § 2, 6-5-14)

Secs. 22-137—22-145. - Reserved.

Subdivision V. - News Racks

Sec. 22-146. - Permit required.

- (a) It is unlawful for any person to install, maintain or operate a news rack upon any sidewalk or other public place of the city without first having made application for a permit to do so and having been issued a permit as herein provided.
- (b) Any permit application for modular news racks shall include a dimensioned site plan of a block including location of each proposed modular news rack, sidewalks, curbs, street, street names, driveways, trees, tree grates, fire hydrants, parking meters and utility access points. Only one (1) permit shall be required for the placement of any number of modular news racks, provided that each modular news rack is included on the site plan.
- (c) Permit applications for news racks, other than modular news racks, shall include the total number of and exact location of each news rack to be permitted, as well as an affidavit from the applicant that the location meets the requirements of the Code. Only one (1) permit shall be required for the placement of any number of news racks, provided that the application clearly states the location of each.

(Ord. No. 89-244, § 2(34-121), 9-28-89; Ord. No. 2010-60, § 3, 5-20-2010)

Sec. 22-147. - Approval of application; permit authorization; appeals.

- (a) Upon the filing of an application to locate a news rack(s), the transportation manager or his or her designee shall review it and determine whether the application complies with the requirements of this subdivision.
- (b) The transportation manager or his or her designee shall approve the application within ten (10) working days if the application complies with the requirements of this subdivision, including the furnishing of proof of insurance by the applicant.
- (c) Any applicant who has been denied a permit pursuant to the provisions of this article may file an appeal. Any denial of a news rack permit may be appealed in accordance with section 1-19 of the City of Tampa Code. The decision rendered pursuant to section 1-19 may be appealed in any manner allowed by law.

(Ord. No. 89-244, § 2(34-123), 9-28-89; Ord. No. 2010-60, § 4, 5-20-2010)

Sec. 22-148. - Approval of permit without charge.

No fee or charge shall be made for the permit to install a news rack, except for modular news racks as provided in sections 22-56 and [22-]57.

(Ord. No. 89-244, § 2(34-124), 9-28-89; Ord. No. 2010-60, § 5, 5-20-2010)

Sec. 22-149. - Insurance required.

(a) Before placing any news rack upon the public sidewalks and other public places of the city, the owner of the news rack or the applicant shall effect, and during all periods of time during which the news rack is maintained upon the sidewalks and other public places of the city, shall maintain in force the following types and amounts of insurance:

- (1) Applicant must provide proof of insurance with companies authorized to do business in Florida, with an A.M. Best rating of B+ VII or higher (or otherwise be acceptable to the City). All liability policies shall name City of Tampa as an additional insured as to the operations of the applicant, shall provide the severability of interest provision, and the waiver of subrogation endorsement in favor of the city. The applicant shall provide proof of a commercial general liability insurance policy on the most current insurance services office (ISO) form, or its equivalent, with an amount of no less than one million dollars (\$1,000,000.00) per occurrence and a two million dollars (\$2,000,000.00) general aggregate. The insurance coverage and limits required must be evidenced by a properly executed Accord 25 Certificate of Insurance form (or its equivalent). This requirement is waived for the owner of a personal dwelling; and, city franchised utilities, the city, the state, the county, or other governmental body, board, or authority, which are self-insured in limits exceeding those set forth herein, provided further, however, that this waiver shall not be applicable to any contractor employed by the owner of a personal dwelling or any of the aforementioned governmental agencies. Thirty (30) days written notice must be given to the city of any cancellation or reduction in the policy coverage. The applicant's insurance coverage required herein is to be primary to any insurance carried by the city or any self insurance program thereof. The city reserves the right to adjust insurance requirements based on the scope of service of the permit.

(Ord. No. 89-244, § 2(34-125), 9-28-89; Ord. No. 2010-60, § 6, 5-20-2010)

Sec. 22-150. - Indemnification of city by applicant for damages.

The applicant to which a permit shall be issued shall at all times indemnify and save harmless the city, its officers and boards of and from all damages, costs and liability whatsoever arising from, growing out of or incident to or in any manner connected with the installation, maintenance or operation of each such news rack, together with all costs, charges and expenses, including reasonable attorney's fees, incurred by the city in defending any suit brought against it, either as sole defendant or joined as a defendant with the applicant. If the applicant fails to defend any such suit against the city, the city may itself defend the same and the applicant will pay to the city upon demand all costs, charges and fees incurred in connection therewith.

(Ord. No. 89-244, § 2(34-126), 9-28-89; Ord. No. 2010-60, § 7, 5-20-2010)

Sec. 22-151. - Location.

- (a) No news rack shall be chained, bolted or attached in any other manner to any traffic sign, utility pole, or traffic-control device.
- (b) Location and placement of any news rack shall meet minimum state and federal design standards, related to roadside recovery areas, minimum sight triangles and the Americans with Disability Act requirements, including amendments thereto, as said standards and requirements are adopted herein.
- (c) News racks shall be parallel to the roadway.
- (d) The front of any news rack located in landscaped areas of the public right-of-way or on a public sidewalk shall face toward the sidewalk and/or away from the street.
- (e) The back of a news rack shall not be located against the back of another news rack.
- (f) News racks shall only be installed on any sidewalk or pedestrian path if such placement will not result in less than five (5) feet of unobstructed sidewalk or pedestrian path.

(Ord. No. 89-244, § 2(34-128), 9-28-89; Ord. No. 2010-60, § 9, 5-20-2010)

Editor's note— Ord. No. 2010-60, § 8, adopted May 20, 2010, repealed the former § 22-151, which pertained to location subject to approval of owners or lessees of property, and derived from Ord. No. 89-244, § 2(34-127), 9-28-89. Section 9 of said ordinance renumbered former § 22-152 as § 22-151, as set out herein.

Sec. 22-152. - Construction details.

- (a) News racks, except modular news racks shall be not more than four and one-half (4½) feet in height, two and one-half (2½) feet in width and two and one-half (2½) feet in depth when fully extended, shall be constructed of metal, shatterproof glass or similar materials and shall be movable. Each news rack shall have clearly marked thereon the applicant thereof.
- (b)

Modular news racks shall be not more than sixty-two (62) inches in height, seventeen and one-half (17½) inches in width and seventy-three (73) inches in length when fully extended, shall be constructed of metal, shatterproof glass or similar materials and shall be bolted directly to a concrete surface as approved by the transportation manager. Each modular news rack shall have clearly marked thereon the applicant thereof. (Ord. No. 89-244, § 2(34-130), 9-28-89; Ord. No. 2010-60, § 11, 5-20-2010)

Editor's note— Ord. No. 2010-60, § 10, adopted May 20, 2010, repealed the former § 22-153, which pertained to amended permits, and derived from Ord. No. 89-244, § 2(34-129), 9-28-89. Section 11 of said ordinance renumbered former § 22-154 as § 22-152, as set out herein.

Sec. 22-153. - Operation and maintenance.

- (a) Each news rack must contain contact information for the news rack owner or the applicant, including a name and a working telephone number.
- (b) After installation, the applicant shall at his own cost and expense, keep and maintain each news rack in good operating condition and repair.

(Ord. No. 89-244, § 2(34-131), 9-28-89; Ord. No. 2010-60, § 12, 5-20-2010)

Editor's note— Ord. No. 2010-60, § 12, adopted May 20, 2010, renumbered former § 22-155 as § 22-153, as set out herein.

Sec. 22-154. - Permit revocation, violations, removal.

- (a) At any time after the installation of any such news rack, the transportation manager may review the location of news rack. The permit issued to any applicant for the installation, maintenance and operation of a news rack may be revoked at any time by the transportation manager, upon written notice to the applicant, whenever the transportation manager finds and determines that:
 - (1) The applicant has failed to install such news rack in compliance with the terms and provisions of this article;
 - (2) The applicant has failed to operate and maintain such news rack in compliance with the provisions and conditions hereof;
 - (3) Such news rack interferes with public safety.

The applicant shall at his or her own cost and expense, within thirty (30) days from the date of the written notice, remove the news rack. Should applicant fail to remove the news rack, the transportation manager may remove the same and the applicant, upon demand of the city, shall reimburse it for all costs incurred in the connection with such removal.

- (b)

It is a violation of this Code to install, operate, or maintain a news rack without a permit. It is further a violation of this Code to install, operate, or maintain a news rack in a manner not in compliance with the terms and provisions of this article, regardless of whether a permit has been issued for the news rack.

- (c) If the transportation manager determines that the immediate further operation or maintenance of any news rack, regardless of whether a permit has been issued for the news rack, is an immediate threat to public safety, the transportation manager may remove or move the same and the owner or applicant, upon demand of the city, shall reimburse it for all costs incurred in the connection with such removal.
- (d) Revocation of a news rack permit may be appealed in accordance with section 1-19 of the City of Tampa Code. The decision rendered pursuant to section 1-19 may be appealed in any manner allowed by law.

(Ord. No. 89-244, § 2(34-132), 9-28-89; Ord. No. 2010-60, § 13, 5-20-2010)

Editor's note— Ord. No. 2010-60, § 13 , adopted May 20, 2010, renumbered former § 22-156 as § 22-154, as set out herein.

Sec. 22-155. - Injury, defacement, destruction, misuse or removal unlawful.

It is unlawful for any person to injure, deface, destroy or remove without the permission of the applicant any news rack lawfully placed, operated and maintained in pursuance of this article or to use the same for any purpose other than as a news rack.

(Ord. No. 89-244, § 2(34-135), 9-28-89; Ord. No. 2010-60, § 16, 5-20-2010)

Editor's note— Ord. No. 2010-60, § 16 , adopted May 20, 2010, renumbered former § 22-159 as § 22-155, as set out herein.

Sec. 22-156. - Abandoned news racks.

- (a) A news rack shall be deemed abandoned when no publication is in the news rack for a period of more than seven (7) consecutive days. Abandonment of a news rack is a violation of this Code.
- (b) A news rack shall be deemed abandoned when no contact information, as required in section 22-153, "Operation and maintenance," is provided on the news rack.
- (c) In the event an applicant of a news rack desires to voluntarily abandon a news rack location, the applicant shall notify the transportation manager and completely remove the news rack.

(Ord. No. 2010-60, § 17, 5-20-2010; Ord. No. 2010-183, § 1, 11-18-2010)

Sec. 22-157. - Reserved.

Editor's note— Ord. No. 2010-60, § 14 , adopted May 20, 2010, repealed the former § 22-157, which pertained to removal by owner, and derived from Ord. No. 89-244, § 2(34-133), 9-28-89.

Sec. 22-158. - Reserved.

Editor's note— Ord. No. 2010-60, § 15 , adopted May 20, 2010, repealed the former § 22-158, which pertained to removal by city, and derived from Ord. No. 89-244, § 2(34-134), 9-28-89.

Secs. 22-159—22-170. - Reserved.

Subdivision VI. - Temporary Structures

Footnotes:

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Cross reference— *Building requirements for temporary structures, § 5-127.*

Sec. 22-171. - Permit authorized.

The official is hereby authorized to issue permits to charitable, civic or nonprofit corporations, associations or organizations to install structures, stands, tables, booths, supports or objects in and upon the public sidewalks or any other public place of the city and to maintain and operate the same for the purpose of making sales of goods, wares, merchandise or items of value or receiving donations or of effecting lawful endeavors of such corporations, associations or organizations, the proceeds from which shall be devoted entirely to charitable purposes.

(Ord. No. 89-244, § 2(34-151), 9-28-89)

Sec. 22-172. - Permit form.

Permits required by this article shall be issued in writing by the city.

(Ord. No. 89-244, § 2(34-152), 9-28-89)

Sec. 22-173. - Time limit.

Structures, stands, tables, booths, supports and/or objects authorized under this article shall be installed, maintained and operated on public sidewalks or other public places of the city for the purposes mentioned on a temporary basis only and for a period of no more than forty-two (42) consecutive days.

(Ord. No. 89-244, § 2(34-153), 9-28-89)

Sec. 22-174. - Issuance of permit; proof of charitable purpose required.

Permits required by this article shall be issued only upon proof by the applicant that it is a charitable, civic or nonprofit corporation, association or organization maintaining business offices within the city limits and that it intends to and will establish on the public sidewalk or other public place of the city structures, stands, tables, booths, supports or objects for the purpose of promoting and effecting lawful sales of goods, wares, merchandise or items of value, of receiving donations and of effecting lawful endeavors, the entire proceeds of which, after deduction of reasonable expenses, will be devoted to and used exclusively for charitable purposes.

(Ord. No. 89-244, § 2(34-154), 9-28-89)

Sec. 22-175. - Term of permit.

Permits required by this article shall be issued initially for a period of no more than fourteen (14) days. Permits may be renewed for no more than two (2) similar periods upon application therefor, provided such renewal is for and upon the same terms and conditions as initially issued and all requirements hereof are otherwise met.

(Ord. No. 89-244, § 2(34-155), 9-28-89)

Sec. 22-176. - Liability of applicant for damages; indemnification of city.

The applicant to which a permit shall be issued pursuant to this article shall at all times indemnify and save harmless the city, its officers and boards of and from all damages, costs and liability whatsoever arising from, growing out of or incident to or in any manner connected with the installation, maintenance and operation of such structures, stands, tables, booths, supports and/or objects, together with all costs, charges and expenses, including reasonable attorney's fees, incurred by the city in defending any suit brought against it, either as sole defendant or joined as a defendant with the applicant. If the applicant fails to defend any such suit against the city, the city may itself defend the same and the applicant will pay to the city upon demand all costs, charges and fees incurred in connection therewith.

(Ord. No. 89-244, § 2(34-156), 9-28-89)

Sec. 22-177. - Insurance; type and amount required.

- (a) Before placing any structures, stands, tables, booths, supports and objects upon the public sidewalks and other public places of the city, the applicant shall effect and, during all periods of time during which the structures, stands, tables, booths, supports and objects shall be

maintained upon the sidewalks and other public places of the city, shall maintain in force, in companies satisfactory to the city, the following types and amounts of insurance, all such insurance to be in insurance companies duly authorized to do business in the state:

- (1) Public liability and property damage insurance covering claims for damages for bodily injury, including accidental death, as well as claims for property damage, the liability insurance to be in an amount not less than one hundred thousand dollars (\$100,000.00) for injuries, including accidental death, to any one (1) person, and subject to the same limitations for each person, in an amount not less than three hundred thousand dollars (\$300,000.00) for any one (1) accident, and property damage insurance in an amount not less than ten thousand dollars (\$10,000.00) for any one (1) accident and in an aggregate amount not less than twenty-five thousand dollars (\$25,000.00).
 - (2) An owner's protective public liability and property damage policy or the equivalent thereof of like amounts as specified in subsection (a)(1) above to protect the city against claims for damages for bodily injury, including accidental death, as well as claims for property damage.
- (b) All such insurance policies shall be issued as required by law and shall be endorsed so as to provide that the insurance company shall notify the city if the policies are to be terminated or any changes made therein during the life of the permit which will affect in any way the insurance requirements. As evidence of the carriage of such insurance, the applicant for the permit shall furnish the official a certificate of such public liability and property damage insurance and shall also, if required, furnish to the official a receipted bill evidencing payment of the premiums on the policies. Failure to maintain such insurance at all times shall be grounds for the revocation forthwith of any permit issued hereunder.

(Ord. No. 89-244, § 2(34-157), 9-28-89)

Sec. 22-178. - Revocation of permit.

The official may revoke all permits issued without notice if it reasonably appears either that the applicant is not qualified for the permit described herein or that the structures, stands, tables, booths, supports and/or objects authorized herein are threatening or interfering with public welfare or safety.

(Ord. No. 89-244, § 2(34-158), 9-28-89)

Secs. 22-179—22-190. - Reserved.

Subdivision VII. - Moving Buildings

Footnotes:

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Cross reference— *Building and construction regulations, Ch. 5.*

Sec. 22-191. - Interference with telephone, electric or other wires; deposit to cover cost of cutting, raising, etc.

If it shall appear to the city engineer that the house or building to be removed cannot be so removed without interfering with, disturbing or going into contact with any telephone, telegraph or other electrical wire, cable or conductor, no permit shall be issued for the removal of such house or building along such route until the applicant shall have made a deposit in the manner hereinafter specified of a sufficient amount of money to cover cost of cutting, raising or making such other disposition of such wires, cables or electrical conductors as may be necessary to enable such house or building to pass along such route and also to cover the cost and expense of splicing and replacing any such wire, cable or electrical conductor which it has been necessary to cut, raise or otherwise disturb.

(Ord. No. 89-244, § 2(34-171), 9-28-89)

Sec. 22-192. - Determining amount of deposit.

The amount required to be deposited in such case shall be deposited, in the case of wires or electrical conductors owned or used by the city, with the city engineer, and in case of wires or electrical conductors owned or used by any person or corporation, with such person or corporation. Such amount shall not exceed the estimated actual cost of cutting, raising or making such other disposition as may be necessary of any such wire, cable or electrical conductor, and splicing and replacing any such wire, cable or electrical conductor which it has been necessary to cut or disturb in order to permit the passage of any house or building being removed. Such amount shall be approximated as near as may be in the case of city wires, cables or other electrical conductors by the city engineer. In the case of wires, cables and other electrical conductors owned or used by any person or corporation, such amount shall be approximated by such person or by some duly authorized officer of such corporation. If the amount so deposited is more than sufficient to pay the expense of cutting, raising or making such other dispositions as may be necessary and of replacing and splicing any such wire, cable or other electrical conductor, any amount remaining unexpended shall be forthwith returned to the person who made such deposit.

(Ord. No. 89-244, § 2(34-172), 9-28-89)

Sec. 22-193. - Disputes over cost of raising or cutting wires, cables, etc.

In case a dispute shall arise between any person owning or using any such wires, cables or other electrical conductors and any licensed housemover as to the amount of money necessary to be deposited in order to cover the cost and expense of cutting, raising or making such other disposition of such wires,

cables or other electrical conductors and splicing and replacing same, as hereinbefore described, the city engineer shall determine such dispute and shall fix the amount necessary to be deposited, and his decision in such cases shall be final and conclusive upon both parties.

(Ord. No. 89-244, § 2(34-173), 9-28-89)

Sec. 22-194. - Notice to owner of wires of time wires to be removed.

Whenever any licensed housemover engaged in removing any house or building shall find it necessary to move such house or building through or past wires, cables or other electrical conductors owned and operated by the city or by any person and shall have secured a permit from the city engineer for such removal in accordance with the provisions of this article, he shall serve notice in writing upon the city or person owning, using or operating any such wire, cable or other electrical conductor through which he desires to pass, specifying the time the house or building he is removing will reach such wire, cable or other electrical conductor and the time at which he desires such wire, cable or other electrical conductor to be cut or otherwise removed or disposed of so as to allow such house or building to pass. Such notice shall be served upon such person not less than twenty-four (24) hours before the time at which it is desired to cut such wire, cable or electrical conductor or otherwise dispose of same. When such notice has been served as thus provided, it is hereby made the duty of the city or the person owning, using or operating any such wire, cable or other electrical conductor to cut or otherwise remove or dispose of such wire, cable or other electrical conductor so as to allow such house or building to pass at the time specified in such notice.

(Ord. No. 89-244, § 2(34-174), 9-28-89)

Secs. 22-195—22-210. - Reserved.

Subdivision VIII. - Trash Receptacles

Footnotes:

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Cross reference— *Solid waste, § 26-146 et seq.*

Sec. 22-211. - Permit or license required; exception.

It is unlawful for any person to install, maintain or operate a trash receptacle upon any sidewalk or any other public place of the city without first having made application for a permit or license to do so and having been issued a permit or license as herein provided; provided, however, that nothing herein contained shall be construed as prohibiting the city from installing, maintaining and operating its own trash receptacles at locations of its own choosing.

(Ord. No. 89-244, § 2(34-181), 9-28-89)

Sec. 22-212. - Permit or license application; issuance.

Any person duly authorized to do business in the state, upon making application therefor, which application shall describe in detail the material and mode of construction and shall include a detailed drawing of such trash receptacle, and upon complying with the terms, conditions and provisions hereof, shall be issued a permit or license to install and after installation to maintain and operate on the public sidewalks of the city trash receptacles for the convenience and use of the public in the disposal of trash. Such application shall be made to the department of public works and shall state the approximate location at which it is proposed to install, operate and maintain each such trash receptacle. The applicant, upon the issuance of such license or permit, agrees to carry out, comply with, perform and be bound by all the terms, covenants and agreements herein contained on its part to be observed, complied with, kept and performed and shall have attached thereto the approval of the solid waste department and the approval of each owner or tenant when necessary, as herein required. Upon consideration thereof, if the official shall determine that the installation, maintenance and operation of such proposed trash receptacles will be for the convenience, health and welfare of the public, he shall approve the application by endorsing his approval on all five (5) copies thereof, which approval shall operate as a license or permit for the installation, maintenance and operation of such trash receptacles and which approval shall authorize, upon compliance otherwise with the provisions hereof, the installation within ninety (90) days thereafter of such trash receptacles and the future maintenance and operation thereof, subject, nevertheless, to the terms, provisions and conditions hereof. One (1) copy of such application, shall be filed with the DPW.

(Ord. No. 89-244, § 2(34-182), 9-28-89)

Sec. 22-213. - Permit fee.

So long as trash receptacles shall be kept and maintained by the owner upon sidewalks of the city, such owner shall pay to the city such permit fee as shall be levied or assessed by resolution of the city council; but no fee or charge shall be made for the license or permit to install such trash receptacles.

(Ord. No. 89-244, § 2(34-183), 9-28-89)

Sec. 22-214. - Insurance.

Before placing trash receptacles upon the public sidewalks of the city, the owner shall effect and during all periods of time during which the receptacles shall be maintained upon the sidewalks of the city shall maintain in force, in companies satisfactory to the city, the following types and amounts of insurance, all such insurance to be in insurance companies duly authorized to do business in the state, and the policies issued and countersigned by a duly authorized local resident producing agent of the companies in the state:

- (1) Public liability and property damage insurance covering claims for damages for bodily injury, including accidental death, as well as claims for property damage, the liability insurance to be in an amount not less than ten thousand dollars (\$10,000.00) for injuries, including accidental death, to any one (1) person, and subject to the same limitations for each person, in an amount not less than twenty thousand dollars (\$20,000.00) for any one (1) accident, and property damage insurance in an amount not less than two thousand five hundred dollars (\$2,500.00) for any one (1) accident and in an aggregate amount not less than five thousand dollars (\$5,000.00).
- (2) An owner's protective public liability and property damage policy of like amounts as specified in (1) above, to protect the city against claims for damages for bodily injury, including accidental death, as well as claims for property damage, all of such insurance policies to be issued as required by law and to be endorsed so as to provide that the insurance company shall notify the city if the policies are to be terminated or any changes made therein during the life of the permit which will affect in any way the insurance requirements. As evidence of the carriage of such insurance, the holder of the permit shall furnish the city with a certificate of such public liability and property damage insurance and, if required at any time, a copy of each policy and shall furnish to the city the original owner's protective public liability and property damage insurance policy and shall also, if required, furnish to the city a receipted bill evidencing payment of the premiums on the policies. Failure to maintain such insurance at all times shall be grounds for the revocation forthwith of such owner's license or permit.

(Ord. No. 89-244, § 2(34-184), 9-28-89)

Sec. 22-215. - Liability of owner.

The owner to whom a license or permit shall be issued under this article shall at all times indemnify and save harmless the city, its officers and boards of and from all damages, costs and liability whatsoever arising from, growing out of or incident to or in any manner connected with the installation, maintenance or operation of each such trash receptacle, together with all costs, charges and expenses, including reasonable attorney's fees, incurred by the city in defending any suit brought against it, either as sole defendant or joined as a defendant with the owner. If the owner fails to defend any such suit against the city, the city may itself defend the same, and the owner will pay to the city upon demand all costs, charges and fees incurred in connection therewith.

(Ord. No. 89-244, § 2(34-185), 9-28-89)

Sec. 22-216. - Installation and construction details.

Trash receptacles shall be installed at the sites stated in the application, not more than one (1) such trash receptacle on any one (1) side of any block, shall be of box-like construction having four (4) rectangular sides not more than four and one-half (4½) feet in height and two (2) feet in width, resting on legs not less than one (1) inch in height, and with small openings at the bottom for drainage, with hinged or easily removable covers which shall have incorporated therein hinged or spring-operated self-closing doors for the deposit of trash. They shall be of fireproof construction of heavy gauge nonreflecting aluminum, which need not be painted, or of heavy gauge steel with the exterior painted a uniform olive green or medium grey color, with the words "Deposit Trash Here" in letters not less than two (2) inches high on the exterior of the swinging doors on top of the receptacle, the letters to be black on unpainted aluminum receptacles and of a contrasting color on painted receptacles. They shall be so constructed as to be movable and easily emptied, and all exterior edges and corners shall be rounded and there shall be no projections or protuberances extending outwardly therefrom exceeding one and one-fourth (1¼) inches.

(Ord. No. 89-244, § 2(34-186), 9-28-89)

Sec. 22-217. - Operation and maintenance.

After installation, the owner shall at his own cost and expense keep and maintain each trash receptacle properly painted, clean and sanitary and in good operating condition and repair.

(Ord. No. 89-244, § 2(34-187), 9-28-89)

Sec. 22-218. - Advertising matter.

Each owner to whom a permit or license to install, operate and maintain trash receptacles upon the sidewalks of the city shall be issued shall, so long as such permit or license remains in force, have the privilege of pasting or painting upon each exterior side wall of such trash receptacle commercial advertisements, leaving a margin of one and one-fourth (1¼) inches around the sides of the advertising matter, and of making and collecting charges therefor; provided that no advertising matter shall be placed on any other part or portion of such trash receptacle and provided that none of such advertising matter shall be of a political, scandalous, immoral or libelous nature, and if any advertising matter of such nature shall be placed upon any part or portion of such trash receptacle, the same shall be forthwith removed upon written notice given by the department of public works, and if not removed forthwith, the permit or license for the maintenance and operation of such trash receptacle at such location may be forthwith revoked.

(Ord. No. 89-244, § 2(34-188), 9-28-89)

Sec. 22-219. - Revocation of permit or license.

The permit or license issued to any owner for the installation, maintenance and operation of any trash receptacle may be revoked at any time, after thirty (30) days' written notice to the owner, whenever it shall be found and determined that:

- (1) The owner has failed to install such trash receptacle in compliance with the terms and provisions of this article or within the period of time after date of the permit as herein specified;
- (2) The owner has failed to operate and maintain such trash receptacle in compliance with the provisions and conditions hereof;
- (3) The owner or tenant or his successor in interest of the premises whose private approval was given to the installation and maintenance of such trash receptacle has notified the mayor in writing that the private approval has been withdrawn or revoked;
- (4) Such trash receptacle is no longer serving public convenience, health and welfare;
- (5) Such trash receptacle interferes with or is inimical to public safety or the general welfare.

(Ord. No. 89-244, § 2(34-189), 9-28-89)

Sec. 22-220. - Removal by owner.

Upon the revocation of the permit or license for the installation, maintenance and operation of a trash receptacle, the owner shall at his own cost and expense within thirty (30) days thereafter remove the same; provided, however, that if the department of public works shall determine that further operation and maintenance of such trash receptacle interferes with or is inimical to public safety or the general welfare, the owner shall forthwith remove the same at his own cost and expense.

(Ord. No. 89-244, § 2(34-190), 9-28-89)

Sec. 22-221. - Removal by the city.

If the license or permit for any particular trash receptacle has been revoked and the owner does not remove the same within thirty (30) days after notice by the city to do so, the city may remove the same, and the owner, upon demand of the city, shall reimburse it for all costs incurred in connection with such removal.

(Ord. No. 89-244, § 2(34-191), 9-28-89)

Sec. 22-222. - Injury, defacement, destruction, misuse or removal unlawful.

It is unlawful for any person to injure, deface, destroy or remove, without the permission of the owner, any trash receptacle lawfully placed, operated and maintained in pursuance of this article or to use the same for any purpose other than as a trash receptacle.

(Ord. No. 89-244, § 2(34-192), 9-28-89)

Subdivision IX. - Sidewalk Cafés

Footnotes:

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Cross reference— *Alcoholic beverages, ch. 3 et seq.; zoning and land development, ch. 27.*

Sec. 22-223. - Administrative authority.

The transportation manager or designee shall administer the provisions of this subdivision.

(Ord. No. 2013-66, § 1, 5-16-2013; Ord. No. 2019-54, § 6, 4-19-2019; Ord. No. 2022-108, § 2, 6-16-2022)

Sec. 22-224. - Establishment authorized to operate sidewalk and street cafes application criteria, review and approval procedures.

A restaurant, or retail shop (as defined in Chapter 27) that complies with the provisions of this subdivision is authorized to operate a sidewalk café and a street café. No restaurant or retail shop may obtain a permit for or operate a street café without having also obtained a sidewalk café permit. Permits issued under this subdivision are valid for one (1) calendar year, commencing on July 1, with an automatic expiration date of June 30 of the following calendar year. Permits may be issued for a partial year, if the application is received subsequent to July 1; however, permits shall also automatically expire on the next June 30 after the permit is issued.

- (1) *General application criteria:* Before operating a sidewalk or a street café, applications for a sidewalk and street café permits shall be made to the transportation manager or designee. Such application shall include, but not be limited to, the following information:
 - a. The name, address, phone number of applicant, and name of duly authorized representative;
 - b. Evidence of registration of a fictitious name or trade name, if any, under which the business applicant proposes to do business or is doing business;
 - c. Two (2) copies of a detailed, scaled site plan including, but not limited to, the following:
 1. The proposed use, materials, colors and design;

2. Relationship of the sidewalk café to the adjacent existing building and their uses and entrance locations;
3. The location of any utilities that might effect or be affected by the proposal;
4. The relationship of the sidewalk café to the centerline of the adjacent street, if applicable, and to any existing or proposed public improvements, including, but not limited to, benches, fire hydrants, light standards and landscaping;
5. The total square footage and exact dimensions of the proposed sidewalk café;
6. The existing and proposed pedestrian circulation pattern;
7. Floor plan of the existing building and any proposed modification, showing the relationship of food preparation areas to the sidewalk café;
8. If alcoholic beverage sales are proposed, clear reference to adopted ordinance/special use permit/approval record and classification of alcoholic beverages to be sold must be included in the application and on the site plan.

(2) *Additional requirements for street café application.*

- a. In addition to the requirements above, a street café application must also include a detailed, scaled site plan, signed and sealed by a professional engineer, depicting the following:
 1. A street café platform, with a maximum width of six (6) feet for a parallel parking space, a minimum two (2) feet from the edge of the travel lane and a minimum of two (2) feet from the edge of the travel lane and a minimum of two (2) feet from the parking stall line, and must be located directly adjacent to the sidewalk café.
 2. The design of the platform must accommodate the crown of the road and must have a flush transition at the sidewalk and curb, and must be Americans with Disabilities Act (ADA) compliant, including, but not limited to, slip resistant surface, minimum of thirty-six-inch accessible entry way, maximum cross slope of two (2) percent, and a maximum vertical gap between the platform and curb shall be one-fourth inch. The platform must have a railing, no higher than three (3) feet and capable of withstanding at least two hundred (200) pounds of horizontal force.
 3. The platform shall not inhibit the adequate drainage of stormwater runoff. Small channels are required between the base and the platform to facilitate drainage along the curb line. The applicant must remove any debris from the street café platform that is impeding drainage along the curb line and gutter flow line.
- b.

The street café must be within a designated parallel or angled parking space directly adjacent to the sidewalk café. The street café cannot exceed two (2) parallel parking spaces or three (3) angled parking spaces, but in no event shall the street café exceed the frontage of the sidewalk café.

- c. The street café must meet sight visibility requirements.
 - d. The street café must be visible at night and must include a reflective element in the design or two (2) vertical delineators located at each corner of platform, parallel to the roadway.
 - e. No street café shall be permitted or located on Florida Department of Transportation ("FDOT") right-of-way.
 - f. No more than one (1) street café permit may be issued per block, unless approved by the transportation manager or designee.
 - g. The applicant for the street café shall obtain a right-of-way permit prior to installing the street café platform.
 - h. The adjacent property owner's written consent for the minimum period of one (1) year if seeking to operate a sidewalk café that extends to a public right-of-way in front of an adjacent owner's property. It is contemplated hereby that an applicant and adjacent property owners may enter into an agreement for the right to extend a sidewalk café in front of an adjacent owner's property, therefore, for purposes of this subdivision, an applicant shall provide, at the applicant's option, evidence of consent by either presenting the agreement or short form agreement that, at minimum:
 - 1. Identifies and contains the notarized signature, with two (2) witnesses, of all interested property owner(s); and
 - 2. Express language evidencing consent for the minimum period required by this subdivision; and
 - 3. An acknowledgment by the consenting party that the city shall be provided notice of any revocation or suspension of consent by registered mail, return receipt requested, within five (5) business days of exercising said revocation or suspension; and
 - 4. An acknowledgment that the city shall be held harmless from any and all liability arising out of the issuance of a sidewalk café permit.
 - i. Plans for the operation of the sidewalk café, including, but not limited to, hours of operation, maintenance of the sidewalk café and services to be provided.
- (3) *Application criteria and method of review for sidewalk and street cafés:*
- a. Criteria and method of review: Applications to operate a sidewalk and street café shall be reviewed as follows:
 - 1.

The transportation manager or designee shall examine the qualifications of the applicant and the applicant's plan for operation and maintenance of the sidewalk café and street café.

2. The transportation manager or designee shall route the application and plans to the appropriate agencies or departments for review, including but not limited to fire and risk management.
3. The transportation manager or designee shall approve plans, designs and specifications that do not unreasonably interfere with any of the following:
 - i. Adequate pedestrian flow;
 - ii. Access to public utilities, building entrances, crosswalks, bus stops and transient entrances;
 - iii. Pedestrian and traffic safety; and
 - iv. Aesthetic compatibility with the surrounding area.
4. The transportation manager or designee may advise the applicant of the revisions to the applicant's plans, designs and specifications that will result in an application that conforms to the provisions of this subdivision.
5. The transportation manager or designee shall deny an application for a sidewalk café permit if:
 - i. The sidewalk café and street café, as the applicant represents how it will be operated, fails to comply with the criteria set forth in this subdivision;
 - ii. Any information submitted by the applicant is found to be incorrect; or
 - iii. The transportation manager or designee finds that the sidewalk café and street café would create an obstruction to, or cause congestion of, pedestrian or vehicular traffic due to existing conditions on the surrounding public right-of-way so as to represent a danger to the health, safety or general welfare of the public.

(3) *Reapplication:* Any current holder of a sidewalk café and street café permit shall reapply for a new permit, subject to the applicable conditions above, if changes are proposed to the permitted sidewalk café.

(Ord. No. 92-45, § 4, 4-2-92; Ord. No. 92-75, § 2, 5-21-92; Ord. No. 97-171, § 1, 7-31-97; Ord. No. 2005-306, § 3, 11-10-05; Ord. No. 2009-174, § 2, 12-3-09; Ord. No. 2013-66, § 2, 5-16-2013; Ord. No. 2022-108, § 3, 6-16-2022)

Sec. 22-225. - Permit issuance.

(a) Prior to the issuance of a permit, the applicant shall furnish the transportation engineering coordinator or designee with the following:

- (1) A completed, signed permit application;

- (2) A copy of a valid City of Tampa business tax receipt as required by this Code;
 - (3) Copies of all required health department permits to operate a sidewalk café;
 - (4) Insurance with companies authorized to do business in Florida, with an A.M. Best rating of B+ or better and Class VII or higher. All liability policies shall name City of Tampa as an additional insured as to the operations of the permittee, and shall provide the severability of interest provision. In lieu of the additional named insured requirement, permittee may purchase an owner's and contractor's protective liability policy. Such policy shall be written in the name of the city at the same limit as is required for general liability coverage. The permittee shall provide proof of a commercial general liability insurance policy on the most current Insurance Services Office (ISO) form, or its equivalent, with an amount of no less than one million dollars (\$1,000,000.00) per occurrence and a two million dollar (\$2,000,000.00) general aggregate. The insurance coverages and limits required must be evidenced by a properly executed Accord 25 Certificate of Insurance form. This requirement is waived for the owner of a personal dwelling; and, city franchised utilities, the city, the state, the county, or other governmental body, board, or authority, which are self-insured in limits exceeding those set forth herein, provided further, however, that this waiver shall not be applicable to any contractor employed by the owner of a personal dwelling or any of the aforementioned governmental agencies. Thirty (30) days' written notice must be given the city of any cancellation or reduction in the policy coverages;
 - (5) An agreement in a form acceptable to the City Attorney of the City of Tampa and executed by the applicant to hold the city harmless from any and all liability arising out of the issuance of a sidewalk and street café permit and/or execution of a sidewalk and street café lease;
 - (6) The sidewalk and street café permit fee;
 - (7) Two (2) copies of a scaled site plan in compliance with section 27-224; and
 - (8) Written authorization (notarized) from owner(s) of property upon which the restaurant or retail shop is located, authorizing the location of a sidewalk and street café adjacent to such property.
- (b) Upon approval of an application and submission of the aforesaid items, the transportation engineering coordinator shall issue a sidewalk and street café permit.

(Ord. No. 92-45, § 4, 4-2-92; Ord. No. 2005-306, § 4, 11-10-05; Ord. No. 2009-174, § 3, 12-3-09; Ord. No. 2013-66, § 3, 5-16-13; Ord. No. 2022-108, § 4, 6-16-2022)

Sec. 22-226. - Conditions of permit.

The permit shall be issued on the form provided by the transportation manager or designee. In addition to naming the permittee and any other information deemed appropriate by the transportation manager or designee, the permit shall be subject to the following conditions:

- (1) *Permit period:* Each permit shall be effective for one (1) year subject to annual renewal.
- (2) *Permittee; non-transferability:* The permit shall be issued to the applicant (the "permittee") and shall not be transferable in any manner.
- (3) *Removal for right-of-way development or maintenance:* The transportation manager or designee may require the removal, temporary or permanent, of the sidewalk and street café when redevelopment of the street or sidewalk, or utility repairs necessitates such action, or the permittee fails to comply with the criteria set forth in this subdivision.
- (4) *Emergency situation; removal for severe inclement weather:* Upon declaration of a state of emergency, upon the issuance of a tropical storm or hurricane warning or warning of severe inclement weather by the county, the permittee shall immediately place indoors all tables, chairs, and platform of a street café and other equipment located on the public right-of-way. The issuance of such a warning shall constitute an emergency situation, therefore, violation of this subsection may result in a fine not to exceed five hundred dollars (\$500.00). The city's officers and employees may immediately remove all or parts of the sidewalk café in an emergency situation. Any and all costs incurred by the city for removal or storage of sidewalk café tables, chairs, and street café platform and other equipment shall be the responsibility of the permittee. In the event the city removes sidewalk café tables, chairs, and street café platform and other equipment pursuant to this chapter, the city shall provide each applicable permittee written notice of removal, notice of costs assessed or a fine, and thirty (30) days to recover all sidewalk café tables, chairs, and street café platform and other equipment removed pursuant to this subsection. The city is not responsible for any damages or loss of equipment removed pursuant to this subsection.
- (5) *Site plan controlled:* The permit shall be specifically limited to the area shown on the exhibit attached to and made part of the permit.
- (6) *Permit scope:* The permit covers only the public right-of-way. Tables, chairs and other equipment will be governed by other applicable regulations.

(Ord. No. 92-45, § 4, 4-2-92; Ord. No. 2005-306, § 5, 11-10-05; Ord. No. 2013-66, § 4, 5-16-2013; Ord. No. 2022-108, § 5, 6-16-2022)

Sec. 22-227. - Operational guidelines.

(a) *Location requirements.*

- (1) The width of the sidewalk café is restricted as follows:
 - a. The width shall not exceed the width of the sidewalk frontage of the subject property. However, the area of the permit may be extended up to a maximum of fifty (50) feet on one (1) side of the subject location, subject to the provisions of subsection b. of this section.

- b. An applicant for a sidewalk café permit may be permitted to extend by a maximum of fifty (50) contiguous feet in the public right-of-way on one (1) side and/or the other side of the applicant's property so long as the applicant's property abuts the public right-of-way. In order for the subject area of the permit to extend to a public right-of-way in front of an adjacent owner's property, the applicant must obtain:
 - i. Written permission (notarized) for use of such area from the adjacent property owner(s) for a minimum period of one (1) year.
 - ii. Such permission shall at all times take into consideration applicable federal, state and local accessibility and safety requirements. If at any time such permission is revoked or suspended, there will be no refund granted to the permittee of the annual permit fee or any other fees paid to the city for operation of a sidewalk café.
 - iii. The party revoking or suspending such permission shall have a continuing duty to inform the city, in writing, of the revocation: upon receipt of said notice the area of the permit shall be automatically constricted to exclude the area subject of the revocation.
 - iv. In the event the extended area includes consent from more than one (1) adjacent owner, and the revocation by one (1) owner will result in breaking the contiguous quality of the sidewalk café area, then that entire side of the sidewalk café shall constrict to the permittee's property boundary, regardless of the continuing consent of the other property owner(s) on the affected side or reinstatement of consent by the original revoking party.
- (2) A clearly marked, unobstructed, and durable pedestrian right-of-way, also known as the "pedestrian path", that meets required accessibility standards, of no less than four (4) feet shall be maintained for each sidewalk café area and shall be reviewed by the transportation manager or designee or their designee to determine the appropriate width based on the existing and projected pedestrian demand, and shall adhere to the following standards:
 - a. The minimum distance of said path shall be measured from the portion of the sidewalk and street café boundary which is nearest either the curb line or the nearest obstruction.
 - b. In no event may recesses in the sidewalk and street café boundary be used to satisfy this unobstructed width requirement for said path, except that the corners of the sidewalk café may be rounded or mitered.
 - c. Sidewalk cafés shall maintain a clearance of four (4) feet around the corners of other sidewalk cafés measured in radius.
- (3) The pedestrian path shall maintain a minimum of four (4) feet from large obstructions. No tables, or chairs, umbrellas or other fixtures shall be permitted within four (4) feet of a pedestrian crosswalk or corner curb cut. For the purposes of this section, large obstructions

shall be bus stops shelters, newsstands, existing planters or any other object greater than fifteen (15) square feet in area.

- (4) Access to fire hydrants, fire hose connections for sprinkler systems, and entrances and exits of all buildings shall not be obstructed at any time by barriers or seating. The twenty (20) feet fire lane shall not be obstructed at any time. There shall be a minimum of forty (40) inches in distance separating the edge of a table or chair to a fire department connection.
- (5) No object shall be permitted around the perimeter of an area occupied by tables and chairs which would have the effect of forming a physical or visual barrier discouraging the free use of the tables and chairs by the general public or which would have the effect of obstructing the pedestrian path.
- (6) The operational hours of the café may be restricted, based on the location and area conditions, and shall be determined by the transportation manager or designee through the permitting process and consultation with the transportation division, when necessary.

(b) *Construction; signage; maintenance and umbrella—Requirements.*

- (1) Appropriate lighting of the sidewalk café is required.
- (2) Use of landscaping and planters is permissible.
- (3) All signage must be in compliance with this Code. Signs are prohibited on umbrellas, chairs, tables and other permissible fixtures which are located on the public right-of-way, except that the establishment identified on the permit and/or its logo shall be permitted on umbrellas.
- (4) Use of removable barriers to define the sidewalk café is permissible.
- (5) No heating, cooking or open flames are permitted in the sidewalk and street café. However, space heaters are permitted provided that they are an outdoor approved type, are located in accordance with the manufacturer's recommendations, and are located at least two (2) feet from the edge of any umbrella canvas, any foliage, or any other flammable object or material.
- (6) No food preparation, plastic food displays, food storage, or refrigeration apparatus shall be allowed on the public right-of-way. Alternatives may be considered but must be clearly shown on the plan, per section 22-224.
- (7) Umbrellas and other decorative material shall be fire-retardant, pressure-treated or manufactured of fire-resistant material. No portion of an umbrella shall be less than six (6) feet, eight (8) inches (eighty (80) inches) above the sidewalk.
- (8) Sidewalk and street café seating shall be counted in determining the requirements for parking and bathroom facilities of the subject establishment.

(Ord. No. 92-45, § 4, 4-2-92; Ord. No. 2001-210, § 1, 9-13-01; Ord. No. 2005-306, § 6, 11-10-05; Ord. No. 2009-174, § 4, 12-3-09; Ord. No. 2013-66, § 5, 5-16-2013; Ord. No. 2022-108, § 6, 6-16-2022)

Sec. 22-228. - Revocation or suspension of permit.

- (a) The transportation manager or designee may revoke or suspend a permit for any sidewalk café if it is found that:
 - (1) Any necessary business or health permit has been suspended, revoked or cancelled;
 - (2) The permittee does not have insurance which is correct and effective in the minimum amount as required in this subdivision;
 - (3) Changing conditions of pedestrian or vehicular traffic cause congestion necessitating the removal of the sidewalk and street café. Such decisions shall be based upon findings of the official that the existing conditions represent a danger to the health, safety or general welfare of the public;
 - (4) The permittee fails to maintain or keep the sidewalk and street café clean;
 - (5) The permittee has failed to correct violations of this subdivision within five (5) working days of receipt of the transportation manager or designee's notice of same delivered in writing to the permittee.
- (b) Upon revocation or suspension of a permit, the transportation manager or designee shall give notice of such action to the permittee in writing stating the action which has been taken and the reason therefor. Such revocation or suspension shall become effective within fifteen (15) days following receipt of the notice by the permittee unless appealed as provided in this Code.

(Ord. No. 92-45, § 4, 4-2-92; Ord. No. 2013-66, § 6, 5-16-2013; Ord. No. 2022-108, § 7, 6-16-2022)

Sec. 22-229. - Permit renewal.

- (a) The transportation manager or designee shall, as deemed necessary, inspect all sidewalk and street cafés within the city for which permits have been issued to determine whether such sidewalk and street cafés conform to the criteria set forth in this subdivision.
- (b) A sidewalk and street café permit renewal fee will become due and payable on July 1 for each calendar year. Such fee shall be for the sidewalk and street café then under an active permit for which a permittee desires a permit renewal. Together with such fee, the permittee shall provide the transportation manager or designee with a renewal application on a form provided by the transportation manager or designee containing the location of the sidewalk café.
- (c) Failure to pay the sidewalk café permit renewal fee or submit the renewal application on or before July 1 for the existing sidewalk café permit shall deem the permit expired until such time a new application is submitted, with required fee, for review. In the event the permit expires or the permit ceases to exist, the permittee shall remove the sidewalk café immediately upon the expiration of the existing sidewalk café permit.

(Ord. No. 92-45, § 4, 4-2-92; Ord. No. 2009-174, § 5, 12-3-09; Ord. No. 2013-66, § 7, 5-16-2013; Ord. No. 2022-108, § 8, 6-16-2022)

Subdivision X. - Guardhouses and Gates

Sec. 22-230. - Permit required to erect, operate, and maintain a guardhouse and/or gates; application requirements; issuance.

- (a) No guardhouse and/or gate shall be erected, operated, or maintained in, on, or in any manner affecting public right(s)-of-way in the City of Tampa unless a permit has been issued for the erection, operation, and maintenance of the guardhouse and/or gate by the city's transportation division.
- (b) The applicant shall file an application for a permit with the city's transportation division containing all of the following information:
 - (1) Evidence that the applicant meets the criteria set forth in subsections 22-58(f)(2) of the Code;
 - (2) A traffic study prepared in accordance with standards established by the transportation division addressing storage capacity requirements for vehicular traffic entering and exiting through the proposed guardhouse and/or gates during "a.m. peak" and "p.m. peak" hours, unless such study is waived by the city's transportation manager;
 - (3) A complete description of the proposed guardhouse and/or gates including, without limitation, accurate plans of the guardhouse and/or gates and all appurtenances thereto;
 - (4) An accurate legal description of any portion of a right-of-way which is or will be dedicated to the public on which the guardhouse and/or gate is proposed to be located;
 - (5) The location and identity of any underground or above-ground utilities affected by the installation and operation of the proposed guardhouse and/or gate based on information provided to the applicant by "Call Sunshine," the underground utility clearance center, and a survey of the property or rights-of-way affected by the application;
 - (6) Technical information regarding the mechanical operation of the gates, including, without limitation the means by which the applicant will assure that the public will have guaranteed access to any affected public rights-of-way at all times;
 - (7) An agreement in a form acceptable to the City Attorney of the City of Tampa and executed by the applicant regarding the erection, operation and maintenance of the guardhouse and/or gates, and containing the applicant's agreement to: (a) indemnify, defend, and hold the City of Tampa, its officers, agents and employees harmless from and against any and all claims, actions, causes of action, suits, liability, and damages of any nature whatsoever (including, without limitation, legal fees and costs) in connection with the construction, operation, use,

repair or maintenance of the guardhouse and/or gates by the applicant in, on or in any manner affecting public right(s)-of-way in the City of Tampa; (b) indemnify, defend and hold the City of Tampa, its officers, agents and employees harmless from and against any and all fines, penalties, liabilities, costs, and expenses (including, without limitation, legal fees and costs) arising out of or resulting from the applicant's violation of any law, ordinance, rule, or governmental regulation applicable to the activities of the applicant subject to the permit; (c) provide the City of Tampa with insurance meeting the requirements of this ordinance; (d) provide the City of Tampa an escrow to secure the applicant's compliance with the requirements of the Code, the permit and the agreement concerning the guardhouse and/or gates which escrow may be in the form of cash, a letter of credit or bond equal to one hundred ten (110) percent of the estimated cost of removing the guardhouse and/or gates or such other form of security as approved by the city attorney, unless such escrow is waived by city council as an economic hardship for the applicant in connection with the approval of the agreement; and (d) guarantee public access at all times over and across all public rights-of-way located in the subdivision or development;

- (8) Commercial general liability insurance policy: (a) naming the City of Tampa as an additional insured in the minimum amount of one million dollars (\$1,000,000.00) per occurrence covering bodily injury and property damage resulting from or related to the erection, operation and maintenance of the guardhouse and/or gates; (b) meeting such other criteria as may be established by the city's risk management department; and (c) requiring the insurer to provide the city thirty (30) days prior written notice of any proposed termination, cancellation or change in insurance coverage or limits; and
- (9) Payment of the permit fee.
- (c) After the receipt of an application containing all of the information required in section 22-230(b) above, the transportation division shall have thirty (30) days to review the application and determine whether to issue or deny a permit for the proposed guardhouse and/or gates. The transportation division shall be entitled to deny the issuance of a permit if:
 - (1) Based on the information submitted in the application, the transportation division determines that the permitting of the guardhouse and/or gates would constitute a traffic hazard or otherwise negatively affect the public health, safety and welfare; or
 - (2) Based on the information submitted in the application, the transportation division determines that the permitting of the guardhouse and/or gates would materially interfere with any existing utilities located in the affected rights-of-way which utilities will not be relocated as part of the construction of the guardhouse and/or gates; or
 - (3) The transportation division determines that the proposed guardhouse and/or gates would violate any applicable federal, state or local laws, statutes, ordinances, rules, regulations or permits as may exist from time to time.

(Ord. No. 99-105, § 3, 5-13-99)

Sec. 22-231. - Conditions of permit.

- (a) The permit shall be issued on the form provided by the city's transportation division to the permit applicant. If the permit is issued to more than one (1) person or applicant, then all persons or applicants named on the permit shall be jointly and severally responsible for compliance with the requirements of both the permit and this ordinance. The permit may contain such special conditions and requirements as may be deemed appropriate by the city's transportation division. In addition to the name and address of the permittee and any special conditions or requirements, each permit shall contain the following general conditions:
- (1) The permit shall be personal to the permittee named in the permit and shall not be transferable except with the written consent of the city's transportation division, which consent shall be conditioned on the proposed transferee meeting all of the requirements contained in this ordinance, including, without limitation, the execution of an agreement in accordance with section 22-230(b)(7) above and the provision of insurance in accordance with section 22-230(b)(8) above;
 - (2) The permittee shall be responsible for all costs and expenses associated with erection, operation, and maintenance of the guardhouse and/or gates;
 - (3) The permittee shall operate the guardhouse and/or gates so that the public shall be afforded access over and across all public rights-of-way in the subdivision or development at all times;
 - (4) The permittee shall comply with all orders and directions given by law enforcement officers, City of Tampa Code Enforcement Officers, or official or employees of the city's transportation division in connection with the erection, operation and maintenance of the guardhouse and/or gates;
 - (5) The permittee shall become and remain a member of "Call Sunshine," the underground utility clearance center; and
 - (6) The permittee and the agents and employees of the permittee shall comply with: (a) all terms and conditions in the agreement between the City of Tampa and the permittee regarding the erection, operation and maintenance of the guardhouse and/or gates; and (b) all applicable federal, state or local laws, rules, regulations and permits, including, without limitation, all applicable state or local traffic regulations, this ordinance and the permit issued by the City of Tampa for the guardhouse and/or gates.

(Ord. No. 99-105, § 3, 5-13-99)

Sec. 22-232. - Operational requirements.

- (a) In addition to the general permit conditions set forth above and any special permit conditions required by the city's transportation division, the permittee shall operate the guardhouse and/or gates in accordance with the following requirements:
- (1) The guardhouse and/or gates shall be operated in a manner so that the public will be guaranteed access at all times over and across all public rights-of-way located in the subdivision or development.
 - (2) Access to the public over and across the publicly dedicated rights-of-way located in a subdivision or development shall not be denied for any reason, including, without limitation the failure of a driver of a vehicle or a pedestrian to provide his or her name or destination to a security guard at the guardhouse.
 - (3) In the event that a guardhouse is unmanned or the gates are not operational for any reason, the gates shall be kept in the "up" position so that the public is afforded unimpeded access over and across all public rights-of-way located in the subdivision or development.

(Ord. No. 99-105, § 3, 5-13-99)

Sec. 22-233. - Revocation of permit; removal of guardhouse and/or gates.

- (a) The permit for a guardhouse and/or gate may be revoked by the City of Tampa if:
- (1) The transportation manager of the City of Tampa determines that the guardhouse and/or gates constitute a danger to the public health, safety and welfare; or
 - (2) The permittee fails to comply with:
 - a. The agreement between the City of Tampa and the permittee concerning the erection, operation and maintenance of the guardhouse and/or gates;
 - b. Any of the guardhouse and/or gate permit conditions (specific or general);
 - c. The operational requirements of this ordinance; or
 - d. Any other applicable federal, state or local law, statute, ordinance, regulation or permit.
- (b) In the event a permit for a guardhouse and/or gate is revoked by the City of Tampa as provided above, then the permittee shall remove the guardhouse and/or gates within thirty (30) days of the date of revocation of the permit. If the permittee fails to remove the guardhouse and/or gates within thirty (30) days of revocation of the permit, the city shall be entitled to remove the guardhouse and gates. If the city removes the guardhouse and/or gates, the permittee shall be responsible for paying all costs incurred by the city in connection with such removal. Further, the City of Tampa shall be entitled to apply any escrow under the agreement between the City of Tampa and the permittee in connection with the erection, operation and maintenance of the guardhouse and/or the gates for the cost of removing the guardhouse and/or gates.

(Ord. No. 99-105, § 3, 5-13-99)

Subdivision XI. - Banners

Sec. 22-234. - Permit required to install and maintain banners within the public right(s)-of-way; application requirements; issuance.

- (a) No banners shall be installed or maintained on light poles located in, on, or in any manner affecting public right(s)-of-way in the City of Tampa unless a permit has been issued for the installation and maintenance of the banners by the department of public works.
- (b) The applicant shall file an application with the department of public works containing the following information:
 - (1) The name and address of the applicant and the applicant's authorized agent, if applicable.
 - (2) If the proposed banner is for an event, the name of the event and whether the event is being sponsored or cosponsored by the city. "Event," for purposes of this subdivision, is defined as any public or private happening, occurrence or program scheduled for a date and time certain.
 - (3) A sketch of the banner, including the message, lettering, logo, emblems and any other representations contained thereon.
 - (4) A site plan of the specific location where the banners are requested to be installed, including but not limited to the height of the banners, location of the banner supports, and the location of the light poles.
 - (5) The date the banner display is requested to be installed and the date the banner display will be removed.
 - (6) Evidence that the light poles and the banners to be attached thereto comply with all of the requirements contained in section 22-235 hereof.
 - (7) A description of the method that will be utilized to install the banner(s) to the support structure or brackets.
 - (8) Evidence of insurance as required in section 22-238 hereof.
 - (9) Evidence of a written contractual agreement between the owner of the light pole and the applicant authorizing the installation of the banners.
 - (10) Hold harmless and indemnification agreement as required in section 22-237 hereof.
 - (11) Evidence of proper licensure for the installing contractor.
 - (12) Payment of the permit fee, as established by resolution by the city council.
- (c)

Permit applications must be filed with the department of public works no more than one hundred eighty (180) days and not less than ninety (90) days prior to the requested date of installation. Completed permit applications will be considered in the order received. After the receipt of a completed permit application containing all of the information required in section 22-234(b) herein, the department of public works shall have thirty (30) business days to review the application and determine whether to issue or deny a permit for the proposed banners. The department of public works shall be entitled to deny the issuance of a permit if:

- (1) Based on the information submitted in the application, the department of public works determines that the permitting of the banners would constitute a traffic hazard or otherwise negatively affect the public health, safety and welfare; or
- (2) Based on the information submitted in the application, the department of public works determines that the permitting of the banners would materially interfere with any existing utilities located in the affected right(s)-of-way; or
- (3) The department of public works determines that the proposed banner display would violate any applicable federal, state or local laws, statutes, ordinances, rules, regulations or permits as may exist from time to time; or
- (4) The proposed permit does not satisfy the requirements contained in section 22-235 hereof; or,
- (5) The city, in accordance with section 22-239, has previously revoked a permit issued to the applicant and/or removed any banners installed by the applicant.

(Ord. No. 2003-322, § 4, 12-4-03)

Sec. 22-235. - Installation and dimension requirements.

- (a) Banners shall be permitted to be installed and maintained only on underground fed light poles that support no utility other than a street light at the following locations within the City of Tampa:
 - (1) Ashley Drive between Tyler Street and Whiting Street; and
 - (2) Tampa Street between Tyler Street and Whiting Street; and
 - (3) Franklin Street between Tyler Street and Jackson Street; and
 - (4) Florida Avenue between Tyler Street and Jackson Street; and
 - (5) Madison Street between Ashley Drive and Jefferson Street; and
 - (6) Jackson Street between Ashley Drive and Jefferson Street; and
 - (7) Kennedy Boulevard between Hoover Avenue and Channelside Drive; and
 - (8) Nick Nuccio Parkway between Nebraska Avenue and Palm Avenue; and
 - (9) Channelside Drive between Franklin Street and Adamo Drive; and

- (10) Ice Palace Drive between Franklin Street and Channelside Drive; and
- (11) South Franklin Street between Whiting Street and Ice Palace Drive; and
- (12) Dale Mabry Hwy. between Interstate 275 and Hillsborough Avenue; and
- (13) 30th Street between Busch Boulevard and Fowler Avenue; and
- (14) Boy Scout Blvd between Westshore Boulevard and Dale Mabry Highway; and
- (15) Fowler Avenue between Interstate 275 and Interstate 75; and
- (16) Fletcher Avenue between Interstate 275 and Interstate 75; and
- (17) Davis Islands Boulevard between Barbados Avenue and Chesapeake Avenue.

- (b) Banners shall be permitted to be installed and maintained only on light poles as described in subsection (a) herein that are affixed with brackets installed by or at the direction of the Tampa Electric Company, at no cost to the city, and installed in compliance with the current edition of the National Electric Safety Code as it may be amended from time to time; and
- (c) Banners shall not exceed thirty (30) inches in width and ninety (90) inches in height; and
- (d) Banners permitted to be installed and maintained shall not extend beyond the edge of pavement or the back of the curb and be a minimum of fourteen and one-half (14.5) feet in height from the grade of the street; and
- (e) Banners shall be made of material commonly used in the industry capable of withstanding wind loads as prescribed by the Florida Department of Transportation and/or the owner of the light pole(s); and
- (f) Sponsor identification, if any, shall not exceed ten (10) percent of the face of the banner; and
- (g) Banners shall be erected by a properly licensed electrical contractor.

(Ord. No. 2003-322, § 4, 12-4-03; Ord. No. 2006-271, § 1, 11-9-06; Ord. No. 2010-68, § 1, 6-24-2010; Ord. No. 2011-123, § 1, 10-6-2011)

Sec. 22-236. - Permitted areas; duration of permit; maintenance requirements; removal.

- (a) Only one (1) permit may be issued per location. For purposes of this article, location is defined as the area included in the permit application.
- (b) Banners authorized by this article may be installed thirty (30) calendar days in advance of an event and shall be removed within five (5) business days of the conclusion of the event. Permits for non-event related banners authorized by this article may be issued for thirty (30) calendar days and may be renewed for no more than two (2) similar periods upon application therefor, provided such renewal is for and upon the same terms and conditions as initially issued and all requirements hereof are otherwise met; provided, such renewal was requested in writing no later than ten (10) business days prior to expiration of the permit; and, provided further that the department of public works is not in receipt of any completed permit applications which would

have been approved were it not for the fact that banners were properly permitted for the location included in the subsequently received permit application(s). Non-event related banners shall be removed within five (5) business days of expiration of the permit or any renewal(s) authorized herein. Permits issued for banners which are installed by the University of South Florida, Board of Trustees, a public body corporate or other public institution on the allowable roadways identified in [subsections] (a)(15) and (16) above shall not be limited in duration, so long as the provisions of this subdivision are complied with.

- (c) The permittee shall maintain the banners to conform to the condition of their original installation. Failure to maintain the banners as required herein shall result in the revocation of the permit and immediate removal of the banners.
- (d) The city may require the banners to be removed, at any time, if necessary to protect the public health, safety and welfare or if the city requires use of the light poles. Any banners removed shall be forfeited by the owner and/or permittee at the discretion of the city.

(Ord. No. 2003-322, § 4, 12-4-03; Ord. No. 2010-68, § 2, 6-24-2010)

Sec. 22-237. - Liability of applicant for damages; indemnification of city.

The applicant to which a permit shall be issued pursuant to this article, as a condition precedent to issuing the permit, shall execute an agreement in favor of the City of Tampa in which the applicant shall agree at all times to indemnify, defend, and hold the City of Tampa, its officers, agents and employees harmless from and against any and all claims, actions, causes of action, suits, liability and damages of any nature whatsoever (including, without limitation, legal fees and costs) in connection with the installation and maintenance of the banner display by the applicant in, on or in any manner affecting public right(s)-of-way in the City of Tampa. If the applicant fails to defend any such suit against the city, the city may itself defend the same and the applicant will pay to the city upon demand all costs, charges and fees incurred in connection therewith.

(Ord. No. 2003-322, § 4, 12-4-03)

Sec. 22-238. - Insurance; type and amount required.

The applicant is required to obtain and maintain, during all period of time during which the banners shall be permitted to be maintained in, on or within the public right(s)-of-way of the city, public liability and property damage insurance: (a) naming the City of Tampa as an additional insured in the minimum amount of one million dollars (\$1,000,000.00) per occurrence covering bodily injury and property damage resulting from or related to the installation and maintenance of the banners; (b) meeting such other criteria as may be established by the Tampa Electric Company or by the city's risk management department; and, (c) requiring the insurer to provide the city thirty (30) days prior written notice of any proposed termination, cancellation or change in insurance coverage or limits.

(Ord. No. 2003-322, § 4, 12-4-03)

Sec. 22-239. - Revocation of permit; removal of banner display.

(a) Any permit authorized herein may be revoked by the City of Tampa if:

- (1) The department of public works determines that the banners constitute a traffic hazard or otherwise negatively affect the public health, safety and welfare; or
- (2) The permittee:
 - a. Included a misrepresentation or misrepresentations in the permit application, which if known by the official, would have caused the official to deny the permit application; or
 - b. Failed to maintain insurance as required in section 27-238; or
 - c. Failed to comply with the any of the permit conditions, regulations or restrictions contained in this article; or
 - d. Failed to comply with the permit application as submitted and approved by the department of public works; or
 - e. Failed to comply with any other applicable federal, state, or local law, statute, ordinance, regulation or permit; or
 - f. Failed to execute a hold harmless and indemnification agreement in favor of the City of Tampa; or
 - g. Failed to maintain the banners to conform to the condition of their original installation as required in section 27-236.
- (b) In the event a banner permit is revoked by the City of Tampa as provided herein, the permittee shall be required to remove the banners within three (3) calendar days of revocation of the permit. If the permittee fails to remove the banners within three (3) calendar days of revocation of the permit, the city shall be entitled to remove the banners. If the city removes the banners, the permittee shall be responsible for paying all costs incurred by the city in connection with such removal and the banners shall be forfeited to the city.

(Ord. No. 2003-322, § 4, 12-4-03)

Sec. 22-240. - Reserved.

ARTICLE II. - SANCTIONS; APPEALS; BOARDS

DIVISION 1. - GENERALLY

Secs. 22-241—22-255. - Reserved.

DIVISION 2. - ACTION AUTHORIZED TO MITIGATE VIOLATIONS

Sec. 22-256. - Stop work and emergency orders.

Upon notice from the official, work on any system that is being done contrary to the provisions of this chapter or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing and shall be given to the owner of the property, his agent or the person doing the work or posted at the job site and shall state the conditions under which work may be resumed. Where an emergency exists, verbal notice by the official shall be sufficient to require the stoppage of work.

(Ord. No. 89-244, § 2(34-201), 9-28-89)

Sec. 22-257. - Removal of gates opening on sidewalk.

It is hereby made the duty of the official to notify in writing the owner or agent of the owner of any property in the city that gates erected on or swinging open on or across the sidewalk in front of such premises be removed or altered, so that same shall open in and toward the property and not across the sidewalk, and it shall be the duty of the owner or agent of the owner of such property to have the same altered or removed within twenty (20) days after the service of such notice. Any person violating this section after due notice shall be punished as provided in section 1-6 of this Code.

(Ord. No. 89-244, § 2(34-202), 9-28-89)

Cross reference— Gates swinging open on sidewalks prohibited, § 22-11.

Sec. 22-258. - Removal or relocation of benches in violation.

Any bench placed or maintained for public use within the corporate limits of the city which is found to be in violation of this chapter shall be declared a nuisance and removed or relocated in accordance with provisions of this Code.

(Ord. No. 89-244, § 2(34-203), 9-28-89)

Cross reference— Benches displaying advertising, § 22-116 et seq.

Secs. 22-259—22-275. - Reserved.

ARTICLE III. - TECHNICAL PROVISIONS

DIVISION 1. - AUTHORITY TO ESTABLISH/PUBLISH TECHNICAL STANDARDS

Sec. 22-276. - Technical standards may be established.

The official may establish technical standards setting forth administrative standards governing the enforcement of this chapter and requirements not specifically addressed in this chapter. Such standards are to be published in a technical manual, which shall be on file in the office of the city clerk at least seven (7) days prior to adoption thereof and shall be made available to the public for inspection and for duplication at cost.

(Ord. No. 89-244, § 2(34-216), 9-28-89; Ord. No. 2023-51, § 2, 4-6-2023)

Cross reference— Requirements not covered by Code may be required by the official, § 1-17.

Secs. 22-277—22-290. - Reserved.

DIVISION 2. - ADOPTION OF STANDARDS BY REFERENCE

Sec. 22-291. - Technical standards adopted.

The Technical Standards set forth in the Transportation Technical Manual, 2023 edition, on file in the office of the city clerk, are herein adopted by reference and have the full force and effect of law.

(Ord. No. 89-244, § 2(34-221), 9-28-89; Ord. No. 2010-3, § 1, 1-7-10; Ord. No. 2023-51, § 3, 4-6-2023)

Secs. 22-292—22-303. - Reserved.

DIVISION 3. - SPECIFIC TECHNICAL REQUIREMENTS

Sec. 22-304. - Functional classification of roadways.

The city transportation manager shall be authorized to establish, for purposes of this article, the functional classification of roadways within the city, in accordance with the general guidelines provided in the standard engineering manuals referenced in the Transportation Technical Manual.

(Ord. No. 2010-4, § 2, 1-7-10)

Sec. 22-305. - Vitrified brick street standards.

- (a) *Purpose:* The general purpose of this section is to preserve, protect, maintain and provide for the rehabilitation of existing vitrified brick streets defined herein as those streets and alleys constructed of vitrified brick. For the purposes of this section, vitrified brick is brick street pavers which have been produced through a chemical process causing the brick to be impervious to water.
- (b) *Application:* Generally, local streets or portions of local streets and alleyways that are constructed primarily in vitrified brick shall be protected. In the historic districts, the protections of this provision shall apply to all streets and alleyways, paved in vitrified brick and the associated granite curbs, and the portions of sidewalks embossed with construction dates.
- (c) *Exemptions:* This section shall not apply to streets roads or alleyways that are surfaced primarily in asphalt and have small, insignificant patches of vitrified brick appearing under or around the asphalt. Additionally, this section does not apply to any type of paving surface other than vitrified brick, including asphalt brick.
- (d) *Standards for vitrified brick streets located in local historic districts:* All vitrified brick streets (whether local, collector or arterial and including alleyways, associated granite curbs and portions of sidewalks embossed with construction dates) shall be protected, preserved, maintained or rehabilitated (in the case of utility or road construction) as provided for herein:
- (1) The streets and alleyways that shall be protected include all of those vitrified brick streets which were identified in City of Tampa Ordinance 2001-193. All applications for designation as a local historic district, after the effective date hereof, shall include a map identifying all existing vitrified brick streets in the proposed district and this section shall be revised to include said streets and alleyways.
 - (2) If a person or entity intends to pave or otherwise alter a vitrified brick street, that person or entity shall be required to obtain a certificate of appropriateness pursuant to Chapter 27, City of Tampa Code. In making its determination, the ARC or BLC shall take into consideration the nature and purpose of the street, including the use of such streets by trucks and heavy equipment traversing the area at higher speeds. Additionally, the ARC and BLC shall take into consideration the infrastructure needs of the area including, but not limited to, water mains and sewer mains.
- (e) *Vitrified brick streets located outside of a local historic district:* Outside of a local historic district, vitrified brick streets shall be preserved, protected, maintained and rehabilitated (in the case of utility or road construction) except as follows:
- (1) Local streets which are primarily asphalt or primarily covered by pavement or pavers other than vitrified brick; or
 - (2)

When specifically requested by a city department, other governmental agency or third party for reasons related to public health, safety and welfare or because the vitrified brick street is designated as arterial or collector or is located in an industrial area and is or will be subject to heavy equipment and trucks. City council may approve requests to impact a vitrified brick street, after a public hearing in which city council shall review the need to impact the vitrified brick street and alternatives to such impact. Notice shall be provided to all property owners abutting the vitrified brick street as provided for in section 22-39 City of Tampa Code of Ordinances.

- (f) In the event that city council approves the request to impact a vitrified brick street in a manner which requires the removal of the vitrified brick, then the party responsible for the removal of the vitrified brick shall clean, palletize and deliver the vitrified brick to the City of Tampa Department of Public Works Transportation Division for use by the city at said party's sole cost and expense.
- (g) In the event of an emergency, as determined by the transportation manager, every effort shall be made to minimize the impact of repairing an existing vitrified brick street and all displaced brick shall be salvaged and retained by the city. As soon as practicable after the determination of an emergency, the displaced vitrified brick street shall be rehabilitated with vitrified bricks unless the vitrified brick street is exempted from the terms of this section or a request to impact the vitrified brick street has been or is granted. In the event of an emergency, the transportation manager shall notify city council or the administrator of the ARC or BLC as applicable. For the purposes of this section, emergency shall be defined as a public health, safety or welfare emergency.

(Ord. No. 2010-4, § 4, 1-7-10)

Sec. 22-306. - Placing street signs bearing other than legal name of street.

Whoever shall put up or cause to be put up any sign designating a street by a different name than that by which it is generally and legally known or who shall refuse to remove the same from his property when requested to do so by an officer of the city and whoever shall retain or allow to remain any such sign upon any building owned or occupied by him, after such request, shall be punished as provided in section 1-6 of this Code.

(Ord. No. 89-244, § 2(34-226), 9-28-89)

Sec. 22-307. - Injuring, defacing or removing traffic-control devices.

It is unlawful for any person to willfully injure, deface or remove any traffic-control device or barricade posted on any city street.

(Ord. No. 89-244, § 2(34-227), 9-28-89)

Cross reference— Damage to city property, § 1-21.

Sec. 22-308. - Trees, shrubbery, etc., obstructing vision of drivers of motor vehicles declared in violation.

Any person who plants, fixes or maintains any tree, shrubbery or any other object upon any parkway or private property within the city adjacent to the intersection of any street or intersection of a driveway and a street or at any location along any street in the city, which obstructs the driving vision of the operator of a vehicle or keeps the driver of a vehicle from seeing a lawfully placed traffic-control device, is hereby declared to be in violation of this chapter. Standards as to what constitutes a sight obstruction will be available for public inspection in the office of the director of the department of public works. These standards consist of the standards listed in TRR 541, 1975, by Humphreys and Moore, with minor revisions.

(Ord. No. 89-244, § 2(34-228), 9-28-89)

Cross reference— Visibility at intersections, § 27-283.5.

Sec. 22-309. - Trimming branches of trees projecting over streets and sidewalks.

It is the duty of the owners of all trees, the branches of which project over or across any sidewalk or street in the city, to cause the same to be trimmed to a height of not less than eight (8) feet above the sidewalk or street over or across which the branches of such trees shall project and to keep and maintain the branches of such trees trimmed to that height above such sidewalk or street.

(Ord. No. 89-244, § 2(34-229), 9-28-89)

Sec. 22-310. - Sight obstruction.

- (a) Whenever the city, after investigation, shall determine that any tree, shrubbery or other object planted or fixed upon any rights-of-way or private property in the city adjacent to a street intersection obstructs the driving vision of the operators of vehicles passing over or through such street intersection or is in violation of this chapter, the city shall cause to be served upon the owner or occupant of the property abutting such rights-of-way or the owner of the property upon which such violation exists a written notice requiring such owner or occupant to remove such tree or shrubbery or reduce the height and width of other objects so as to comply with the provisions of this section. Such written notice shall be served upon the owner or occupant of the property herein referred to and shall require the owner or occupant to comply with the directions contained therein within fifteen (15) days after the date of the notice. During this fifteen-day notice period and until such time as the existing sight obstruction is removed, the property owner of record shall be solely liable for any damage or injury, suit or legal action resulting from any accident in which the sight obstruction is a cause.
- (b) Such notice to correct a sight obstruction shall be served in accordance with this chapter. Upon failure of the owner or occupant to correct or terminate the violations delineated in the notice within the time specified in the notice and if no appeal has been taken or if an appeal has been

taken and denied, the matter shall be referred to the rehabilitation officer of the city, and he shall cause the violations to be corrected or terminated through the use of city forces or by an independent contractor at the direction of the city. All costs of correction or termination, including the notice, title information, recording, advertising, if necessary, and processing and any other related costs shall be assessed against the property abutting the rights-of-way or the property on which the violations existed, and this assessment shall constitute a lien on the property for the work accomplished. The procedure for declaring the assessment, reducing it to a lien and providing for payment or foreclosure thereof shall conform to the procedure delineated in this chapter. Additionally, any liability associated with the traffic hazard will be borne entirely by the property owner of record.

(Ord. No. 89-244, § 2(34-230), 9-28-89; Ord. No. 2017-150, § 13, 10-26-2017)

Cross reference— Visibility at intersections, § 27-283.5.

Sec. 22-311. - Injuring trees, plants or flowers; hitching animals to trees, signboards, etc.

It is unlawful for any person to willfully injure, deface or mutilate any shade tree, plant or flower growing on any city street or to nail or affix to any such tree or to paint thereon any sign or signboard or to hitch thereto any livestock.

(Ord. No. 89-244, § 2(34-231), 9-28-89)

Cross reference— Horses or beasts of burden pulling nonmotorized vehicles, § 25-188 et seq.

Sec. 22-312. - Planting of trees or shrubs between sidewalk and curbing.

No planting of trees or shrubs shall be done in the parkways lying between the sidewalk area and the street curbing on the several streets in the city nor shall any trees or shrubs be removed from such parkways unless first approved by the parks department.

(Ord. No. 89-244, § 2(34-232), 9-28-89)

Sec. 22-313. - Sight rules not to prohibit buildings.

Nothing contained in this chapter shall prohibit the owner of any property from erecting or maintaining buildings or structures as permitted by any laws or ordinances of the city.

(Ord. No. 89-244, § 2(34-233), 9-28-89)

Sec. 22-314. - Driveways—Location, design and construction standards.

The following diagrams (Figures 2-1 through 2-8) shall govern the dimensional and placement standards for driveways that access local streets and alleys within the city limits:

Figure 2-1

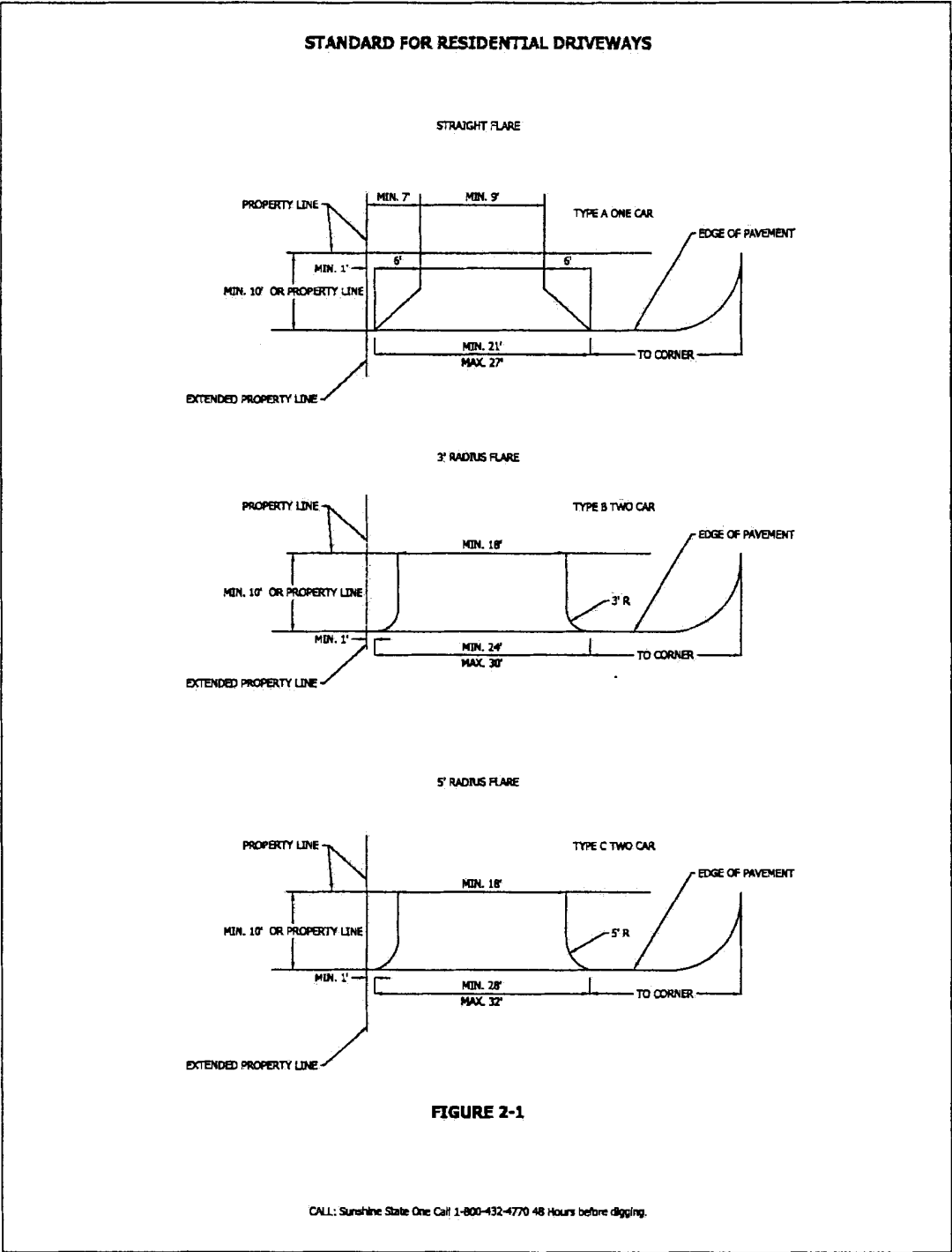


Figure 2-2

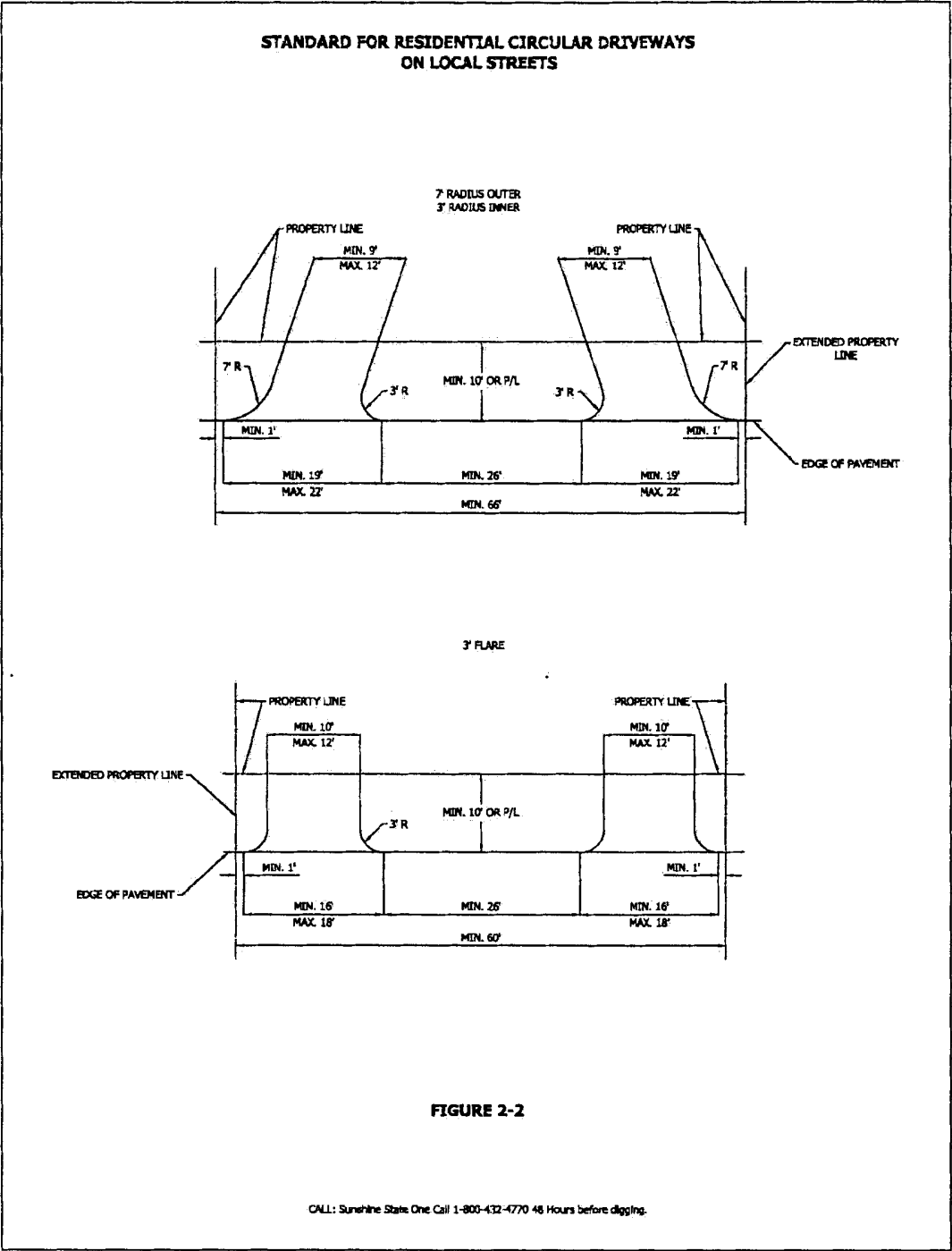


Figure 2-3

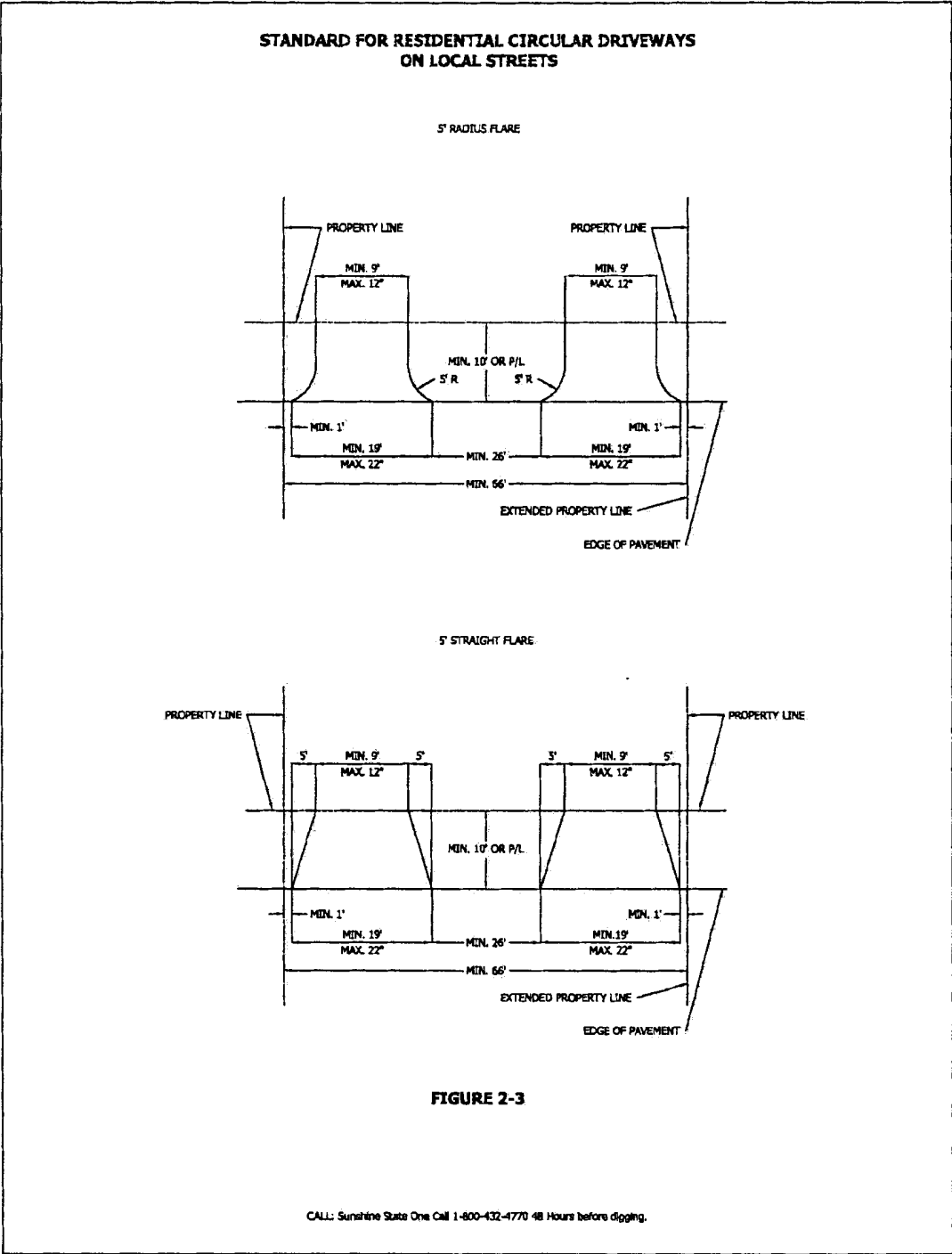


Figure 2-4

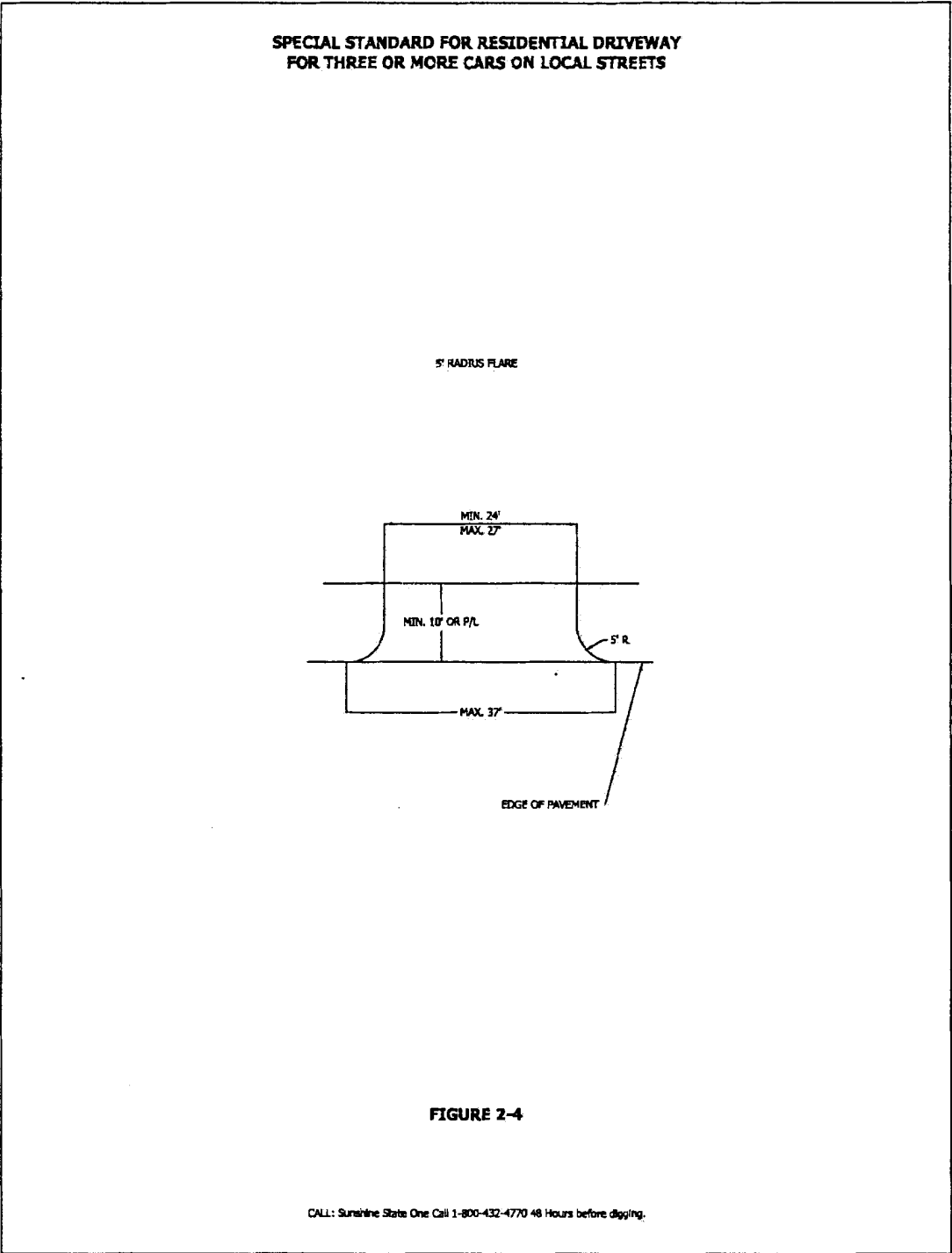


Figure 2-5

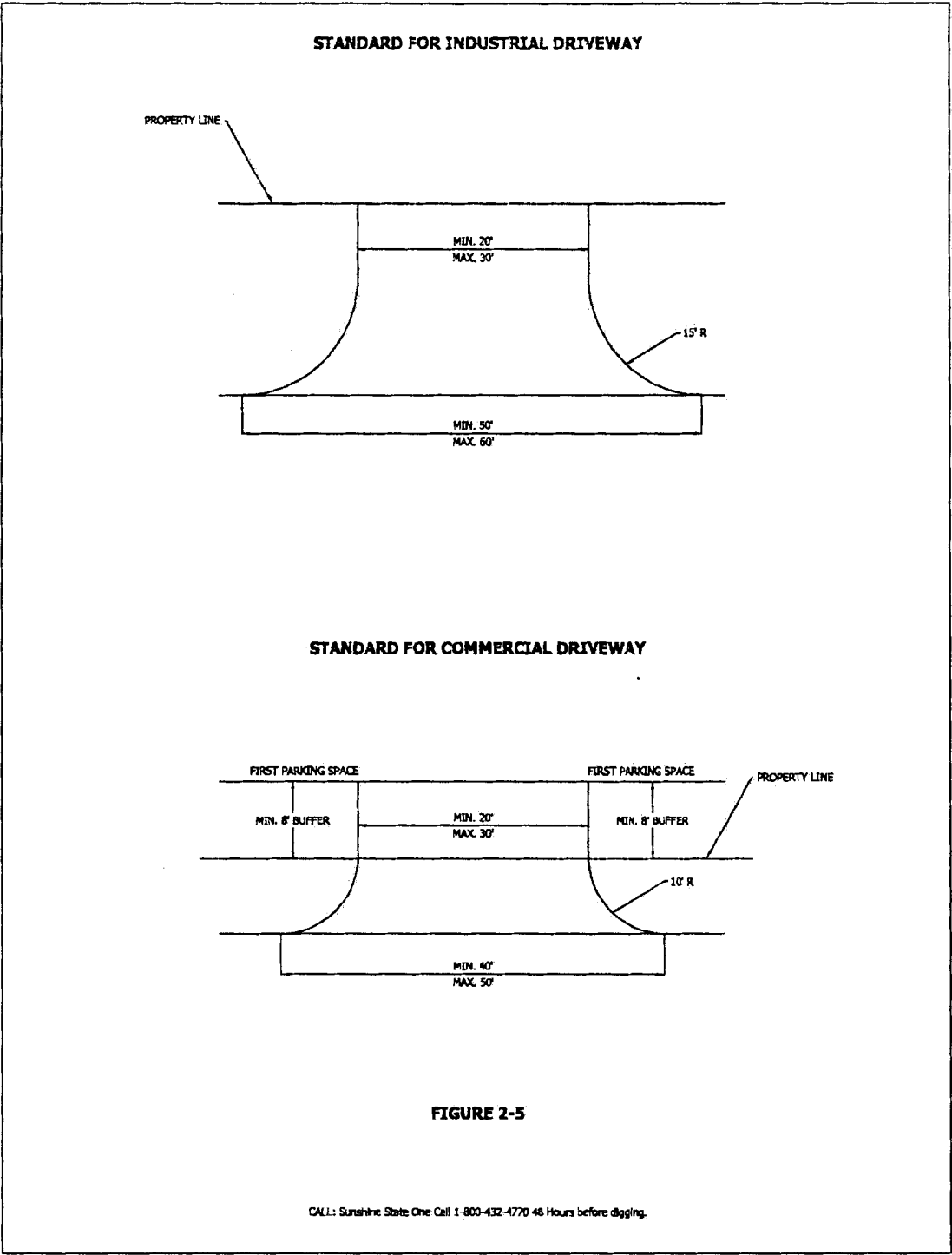


Figure 2-6

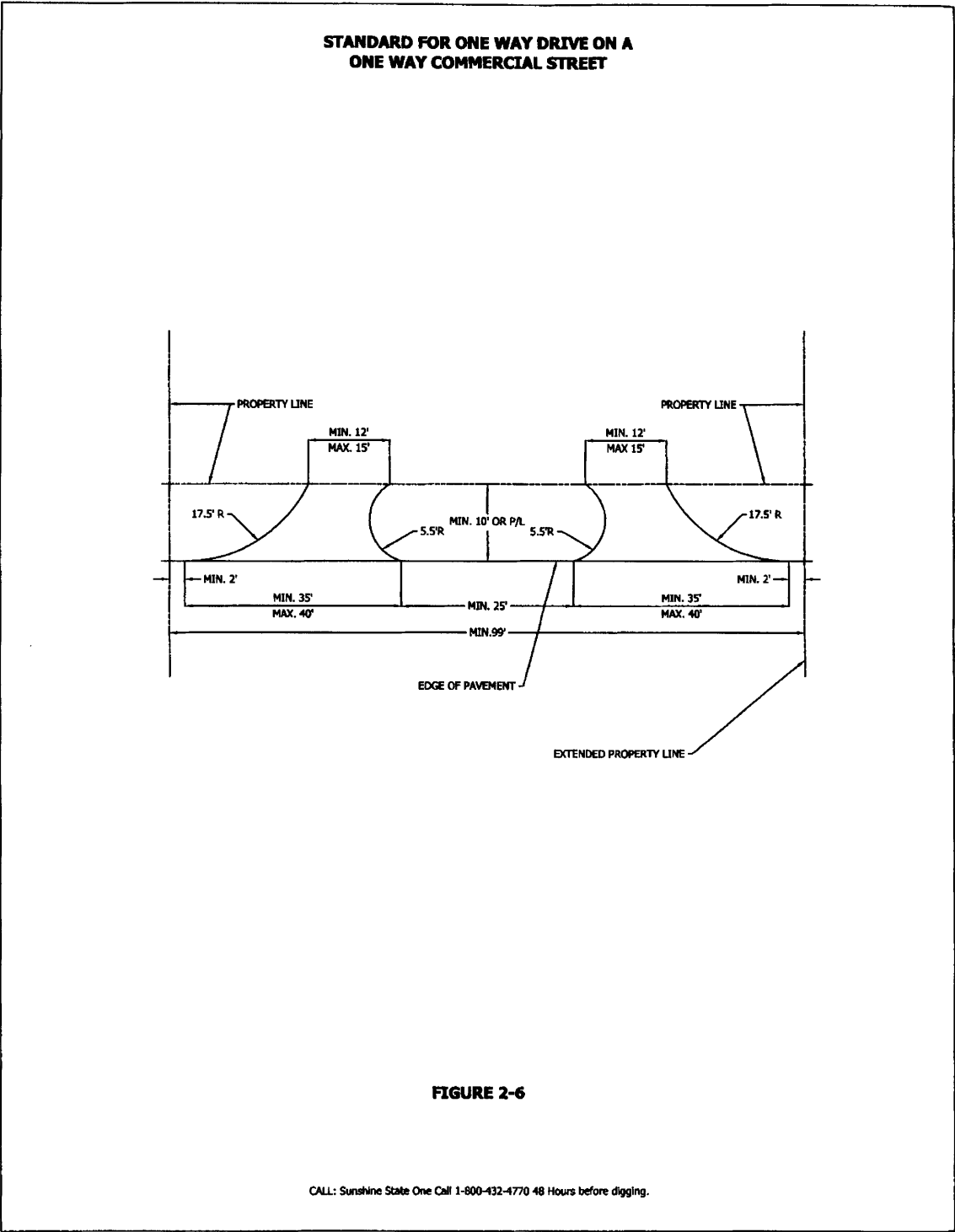


Figure 2-7

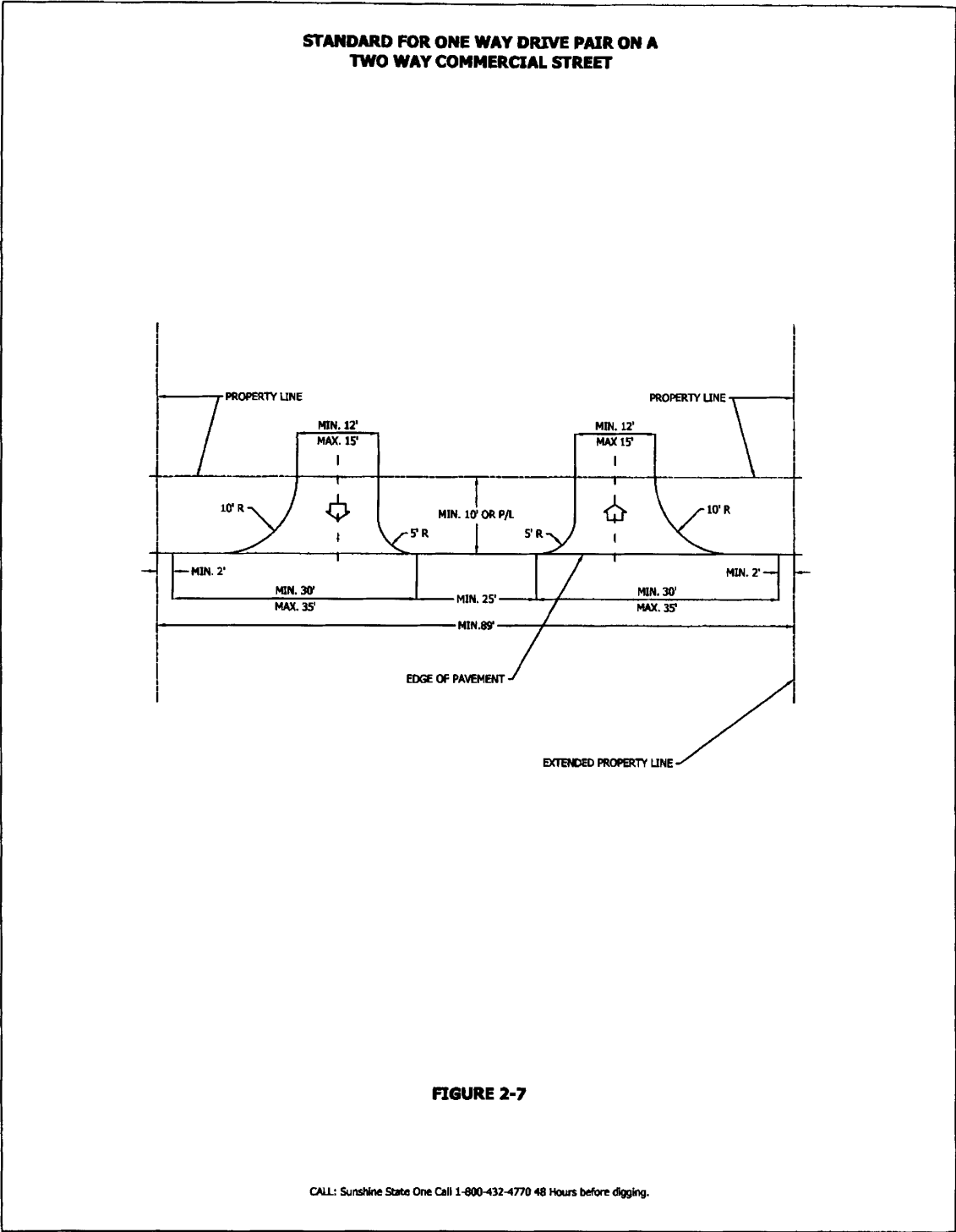
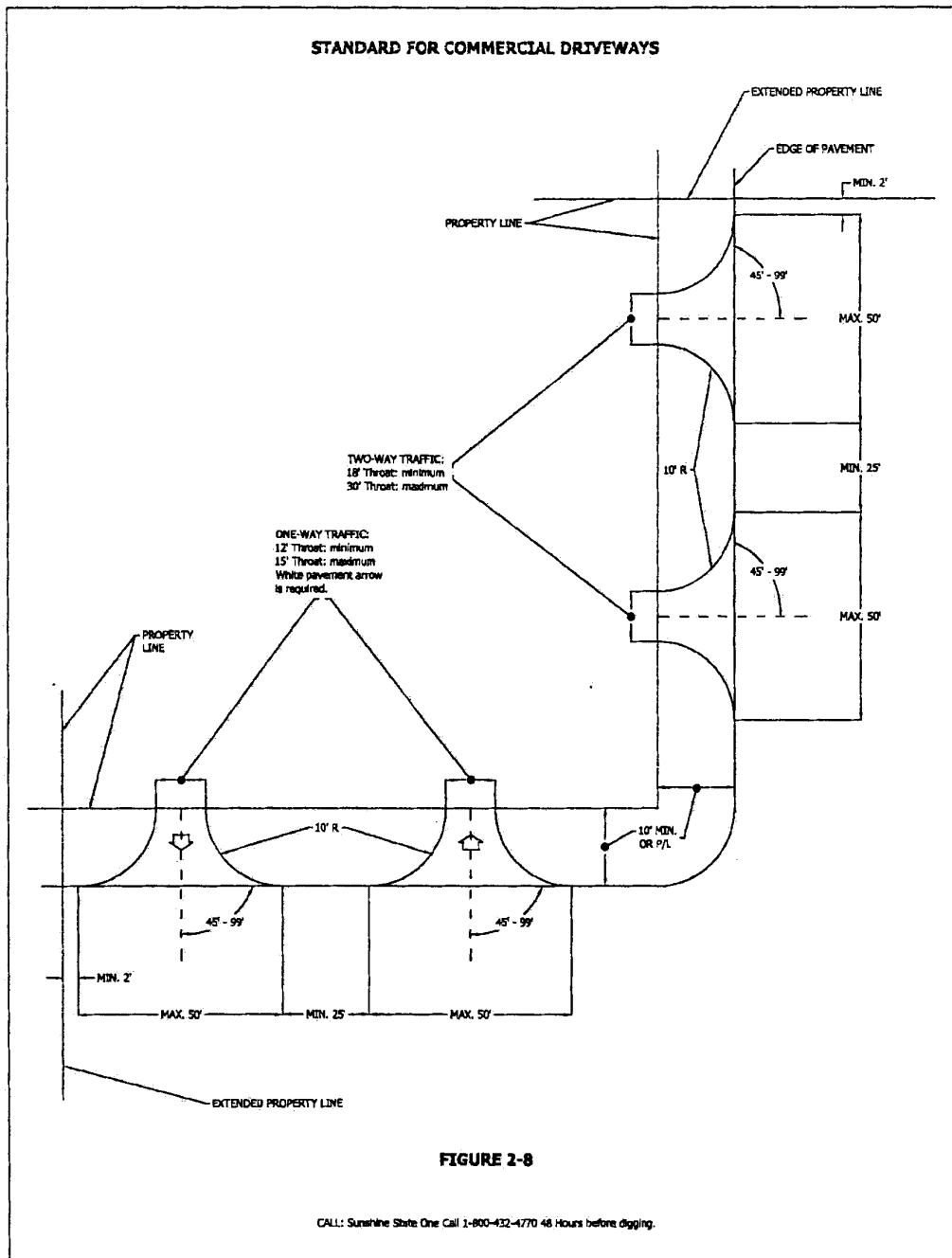


Figure 2-8



(Ord. No. 89-244, § 2(34-234), 9-28-89; Ord. No. 2010-4, § 5, 1-7-10; Ord. No. 2010-61, § 1, 6-3-2010)

Sec. 22-315. - Same—Number permitted.

The number of driveways permitted to access property shall be dependent on the amount of street frontage owned by the property owner and the abutting street functional classification as defined by the city traffic engineer's office, as follows:

Number of Driveways	Local Street (feet)	Collector Street (feet)	Minor Arterial Street (feet)	Principal Arterial Street (feet)
1	0—150	0—150	0—200	0—200
2	Over 150	Over 150	Over 200	Over 200

Property having frontage on more than one (1) street may have driveways on each frontage in accordance with the provisions herein. Property having frontage on a state roadway must receive Florida Department of Transportation approval. The city traffic engineer shall coordinate with FDOT staff in the review of all applications submitted to the FDOT for curb and median cuts on state roads.

(Ord. No. 89-244, § 2(34-235), 9-28-89; Ord. No. 90-282, § 1, 12-20-90)

Sec. 22-316. - Same—Minimum corner clearance.

At an intersecting street or highway, the dimension measured along the edge of the traveled way between the return radius point and the nearest point of the driveway shall meet the dimensions specified in the table below.

The city traffic engineer shall be authorized to establish, for purposes of this section, the minimum corner radius for each class of road within the city.

The minimum corner radius shown in the table below will be used when calculating the corner clearance for driveways if the corner has no radius or a radius less than the established minimum. If the actual radius is greater than the minimum dimension, the actual radius will be used to calculate the corner clearance for driveways.

—

			Driveway Type	
Type of Street Being Accessed	Type Street Intersecting	Corner Radius Minimum (feet)	Res. (feet)	Commercial or Industrial (feet)

Local	Local	15	25	30
Local	Collector	25	25	30
Local	Minor/principal arterial	25	25	30
Collector	Local	25	35	40
Collector	Collector	35	35	40
Collector	Minor/principal arterial	35	35	40
Minor/principal arterial	Local	25	50	50
Minor/principal arterial	Collector	35	50	50
Minor/principal arterial	Minor/principal arterial	35	50	50

(Ord. No. 89-244, § 2(34-236), 9-28-89; Ord. No. 90-282, § 2, 12-20-90)

Sec. 22-317. - Same—Construction and maintenance.

All driveway approaches and curb returns which adjoin paved roadways shall be constructed of concrete or other materials approved by the director. The maintenance of driveways shall be the responsibility of the property being served.

(Ord. No. 89-244, § 2(34-237), 9-28-89)

Sec. 22-318. - Same—Abandonment.

At any time an existing driveway is abandoned or use of such driveway is discontinued, it shall be the responsibility of the owner of the property formerly accessed by such driveway to restore the public right-of-way to its original condition. Determination of original condition shall be made by the city transportation manager.

(Ord. No. 89-244, § 2(34-238), 9-28-89)

Sec. 22-319. - Alternative design exception.

- (a) The transportation manager is hereby authorized to grant alternative design exceptions from strict application of the Transportation Technical Manual or any other technical standards adopted pursuant to this chapter, inclusive of approving alternative materials.
- (b) All alternative design exception applications shall include documentation sufficient to justify the request and, if required, an independent evaluation of the operational and safety impacts of the alternative design. In addition, an application for an alternative design exception shall address the following issues, as applicable:
 - (1) *Description:*
 - a. Project description (general information, typical section, etc.);
 - b. Description of alternative design exception (specific project conditions related to alternative design exception, controlling design element, applicable manual value, and proposed value for project);
 - c. The compatibility of the design and operation with the adjacent sections; and
 - d. If the project is in an overlay or historic district, applicable City of Tampa Code of Ordinance provisions or design standards.
 - (2) *Operational impacts:*
 - a. Amount and character of traffic using facility; and
 - b. Effect on capacity of the deviation (proposed criteria vs. manual using an acceptable capacity analysis procedure and calculate reduction for design year, level of service).
 - (3) *Safety impacts:*
 - a. Crash history and analysis (location, type, severity, relation to the design exception element); and
 - b. Impacts associated with proposed criteria (annualized value of expected economic loss associated with crashes).
 - (4) *Benefit/cost analysis:* Calculate a benefit/cost analysis, which estimates the cost effectiveness of correcting or mitigating a substandard design feature. The benefit is the expected reduction in future crash costs and the cost is the direct construction and maintenance costs

associated with the design. These costs are calculated and annualized, so that direct comparison or alternate designs can be made. The transportation manager shall determine the appropriate manner in which to calculate the benefit/cost analysis, if such an analysis is necessary.

- (c) The alternative design exception application shall also contain a recommendation by the professional engineer responsible for the project design elements, unless the transportation manager determines that such a recommendation is not necessary given the scope of the request.
- (d) Prior to submitting an application for an alternative design exception, the applicant must schedule a pre-application meeting with the transportation division in order to determine the scope of the request and what documentation will be necessary to support the application.
- (e) The transportation manager shall have thirty (30) working days after the submission of a complete application to render a written decision on the alternative design exception. In approving an alternative design exception, the transportation manager must determine that the alternative design would not have a negative impact on the operation and safety of a City of Tampa facility and that the alternative design meets or exceeds the requirements of the applicable technical standard. In addition, the transportation manager may place appropriate conditions on any approval of an application. An applicant may submit a request for an alternative design exception concurrent with an application to the City of Tampa for the approval of a development order. The transportation division may charge a fee, as set by city council, for the review of an application for alternative design exception.
- (f) An applicant shall provide a complete application to the transportation manager for review and determination, which shall include all information contained in this section.
- (g) An application for an alternative review exception may be filed and reviewed as part of a site plan rezoning process. During the site plan rezoning process, city council may request the transportation manager to recommend an alternate design consistent with this section.

(Ord. No. 2010-4, § 7, 1-7-10)

Editor's note— Ord. No. 2010-4, § 7, adopted Jan. 7, 2010, repealed the former § 22-319, and enacted a new § 22-319 as set out herein. The former § 22-319 pertained to driveway variances and derived from Ord. No. 89-244, § 2(34-239), 9-28-89.

ARTICLE IV. - COMMUNICATIONS FACILITIES IN THE PUBLIC RIGHTS-OF-WAY

Footnotes:

--- (10) ---

Editor's note— Ord. No. 2017-150, §§ 14—57, adopted October 26, 2017, amended article IV in its entirety to read as herein set out. Former article IV, §§ 22-320—22-340, pertained to communications rights-of-way usage. See Code Comparative Table for complete derivation.

DIVISION 1. - GENERAL PURPOSE

Sec. 22-320. - Purpose.

The purpose of this article is to manage the public rights-of-way to protect the public health, safety, and welfare and to minimize disruption of services therein, by establishing a reasonable, non-discriminatory, and competitively neutral regulatory framework, which governs the placement and/or maintenance of communications facilities for the use thereof, for the provision of communications services; and, in the public rights-of-way by providers of communications services, which rules are generally applicable to all persons using the public rights-of-way for the provision of communications services or infrastructure. This article does not apply to utility poles governed by a valid franchise agreement; however, collocation of small wireless facilities on such poles will be governed by the applicable provisions of this article.

(Ord. No. 2017-150, § 16, 10-26-2017)

DIVISION 2. - REGISTRATION

Sec. 22-321. - Authorization to place and/or maintain communications facilities in public rights-of-way.

Subject to the terms and conditions of this article, any person who complies with the provisions of this division is authorized to place and/or maintain communications facilities, including wireless facilities, or utility poles (placed for the support of small wireless facilities) in the public rights-of-way, for the provision of communications services.

(Ord. No. 2017-150, § 17, 10-26-2017)

Sec. 22-322. - Registration.

Before placing and/or maintaining communications facilities in the public rights-of-way, or applying for any permits required by this chapter, a prospective provider shall register with the city. Such registration shall include the following information:

- (a) The name of the prospective provider;
- (b) The name, address, telephone number(s), and electronic mail address, of the prospective provider's primary contact person and the person to contact in the event of an emergency, which telephone number(s) and/or electronic mail address shall be monitored twenty-four (24) hours per day, seven (7) days per week;

- (c) The type of communications services that the prospective provider intends to provide within the city, "wireless services" or "other communication services", and whether the prospective provider remits tax pursuant to F.S. § 202.19.
 - (1) If "other communications services" is declared, the prospective provider shall list all services to be provided, pursuant to the definition set forth in section 22-5;
 - (2) If no communication services are to be provided, the prospective provider shall state if it is a wireless infrastructure provider and/or a pass-through provider (refer to section 22-323.1 for pass-through provider fees and charges);
- (d) A copy of the prospective provider's current certificate of authorization to provide communications services issued by the Florida Department of State, Florida Public Service Commission, or the Federal Communications Commission, as applicable;
- (e) A copy of the state corporate registration proving the ability to lawfully conduct business within the State of Florida;
- (f) Evidence of the insurance coverage required under this article; and
- (g) Acknowledgment of the indemnity and other provisions of this article.

(Ord. No. 2017-150, § 18, 10-26-2017)

Sec. 22-322.1. - Approval of registration.

Upon a finding by the city that the provider is in compliance with the registration requirements of this article, the city shall approve the provider's registration, and advise the provider, in writing, of such approval within thirty (30) working days of the city's receipt of the provider's registration.

(Ord. No. 2017-150, § 19, 10-26-2017)

Sec. 22-322.2. - Denial of registration.

Upon a finding by the city that the provider is not in compliance with the registration requirements of this article, the city shall deny the provider's registration. The city shall advise the provider, in writing (electronic mail), of such denial, including the reasons therefor, within thirty (30) working days of the city's receipt of the provider's registration.

(Ord. No. 2017-150, § 20, 10-26-2017)

Sec. 22-322.3. - Cancellation of registration.

A provider may cancel a registration upon written notice to the city that the provider will cease placing and/or maintaining communications facilities in the public rights-of-way. Following the cancellation of a provider's registration, such provider shall submit a new registration to the city in accordance with the

provisions of this article before placing communications facilities in any public rights-of-way.

(Ord. No. 2017-150, § 21, 10-26-2017)

Sec. 22-322.4. - Transfer of registration.

If a provider transfers or assigns its registration incident to a sale or other transfer of the provider's communications facilities located in the public rights-of-way, the transferee or assignee shall comply with the provisions of this article. Written notice of any such transfer or assignment shall be provided to the city within twenty (20) days of the effective date thereof. In order for such transfer or assignment to be effective, such written notice must include a new registration form which includes the information required by this article.

(Ord. No. 2017-150, § 22, 10-26-2017)

Sec. 22-322.5. - Registration amendments; renewal.

- (a) In the event of any change to the information required pursuant to section 22-323 of this Code as contained in an approved registration, a provider shall advise the city, in writing, of such changes within thirty (30) days of the effective date thereof.
- (b) No later than October 1 of each year, each provider that has previously complied with the registration requirements of this article shall submit an annual registration renewal to the city on a form/format provided by the city.

(Ord. No. 2017-150, § 23, 10-26-2017)

Sec. 22-322.6. - Effect of registration.

- (a) The approval of a registration pursuant to this article shall neither convey any interest in public rights-of-way to a provider, nor grant a provider any right of priority over any other person with respect to the placement of any facilities in the public rights-of-way.
- (b) Providers shall comply with any and all of the provisions of this Code, including, but not limited to, any and all applicable permitting, and design requirements.
- (c) Providers must have a valid registration in order to apply for and/or obtain permits.

(Ord. No. 2017-150, § 24, 10-26-2017)

Sec. 22.322.7. - Involuntary termination of registration.

- (a) *Involuntary termination.* The city may terminate a registration if:
 - (1) A federal or state authority suspends, denies, or revokes a registrant's certification or license required to provide communication services;

- (2) The registrant's placement or maintenance of a communications facility in the rights-of-way presents an extraordinary danger to the general public or other users of the rights-of-way and the registrant fails to remedy the danger promptly after receipt of written notice; or
 - (3) The registrant performs substantive and material repetitive violations of any of the provisions of this article.
- (b) *Notice of intent to terminate.* Prior to termination, the registrant shall be notified by the city with a written notice setting forth all matters pertinent to the proposed termination action, including the reason therefore. The registrant shall have thirty (30) days after receipt of such notice within which to address or eliminate the reason or within which to present a plan, satisfactory to the city, to accomplish the same. If the plan is rejected by the city, the city shall provide written notice of such rejection within fifteen (15) days of receipt of the plan to the registrant and shall make a final determination as to termination of the registration and the terms and conditions relative thereto.
- (c) *Post termination action.* In the event of termination, following any appeal period, the former registrant shall:
- (1) In accordance with the provisions of this article and as may otherwise be provided under state law, notify the city of the assumption or anticipated assumption by another registrant of ownership of the registrant's communication facilities in the rights-of-way; or
 - (2) Provide the city with an acceptable plan for disposition of its communication facilities in the rights-of-way. If a registrant fails to comply with this subsection, the communication facilities are deemed to be abandoned and the city may exercise any remedies or rights it has at law or in equity. In any event, a terminated registrant shall take such steps as are necessary to render safe every portion of the communication facilities remaining in the rights-of-way. A registrant that has its registration terminated by the city under this section may reapply for registration one (1) year after the termination date of the prior registration, unless otherwise permitted to reapply at the sole discretion of the city.
- (d) *When removal not authorized or required.* In the event of termination of a registration, this section does not authorize the city to cause the removal of communication facilities used to provide another service for which the registrant or another person who owns or exercises physical control over the communication facilities holds a valid certification or license with the governing federal or state agency, if required, for the provision of such service, and is registered with the city, if required.

(Ord. No. 2017-150, § 25, 10-26-2017)

Sec. 22-322.8. - Existing communications facilities in public rights-of-way.

Providers with communications facilities in the public rights-of-way shall comply with the provisions of this article.

(Ord. No. 2017-150, § 26, 10-26-2017)

DIVISION 3. - GENERAL PERMIT REQUIREMENTS AND PROCEDURES

Subdivision 1. - General permit standards

Sec. 22-323. - Permits, generally.

- (a) Prior to the installation, placement, maintenance, and/or removal of any communications facilities, or the start of any other type of construction in the public rights-of-way, a provider shall, pursuant to the requirements of existing or subsequently enacted provisions of this Code, obtain all permits from the city, unless preempted by state or federal law (refer also to sec. 22-8, 22-60, 22-67, and 22-323.11).
- (b) Any communications facilities installed or placed by a provider without first having obtained the permits hereinbefore provided for shall be removed within thirty (30) days written notice (electronic or standard mail) by the city to remove the same and in default of compliance with such notice, such communications facilities may be removed by order of the city and the cost of removal shall be borne and paid by such provider (refer also to sec. 22-60 and 22-323.11).
- (c) In the event that work to be conducted by a provider requires streets, travel or bicycle lanes, sidewalks, or any multi-modal pathway to be closed or obstructed, such provider shall obtain approval from the city of its maintenance-of-traffic plan, pursuant to applicable city, state, and federal maintenance of traffic design standards.
- (d) In the event a provider deems the pruning or removal of any trees reasonably necessary to place or maintain its communications facilities and to maintain the integrity and safety of same it shall, pursuant to the requirements of existing or subsequently enacted provisions of this Code, obtain all permits from, the city, and comply with all other such requirements of this Code (refer also to sec. 22-323.6).
- (e) In the event the placement or maintenance by a provider of its communications facilities requires the obstruction of city owned, metered parking spaces, such provider shall pursuant to the requirements of existing or subsequently enacted provisions of this Code, obtain all permits from the city.
- (f) Wireless support structures are prohibited within the public rights-of-way. Wireless support structures shall comply with Chapter 27 of this Code.

(Ord. No. 2017-150, § 29, 10-26-2017)

Sec. 22-323.1. - Pass-through provider fees and charges.

- (a) Pass-through providers shall pay to the city, on an annual basis, an amount equal to five hundred dollars (\$500.00) per linear mile, or portion thereof, of communications facilities placed and/or maintained in the public rights-of-way.
- (b) The amounts charged pursuant to this section shall be based on the linear miles of public rights-of-way where communications facilities are placed, not based on a summation of the lengths of individual cables, conduits, strands or fibers.
- (c) The city shall discontinue charging pass-through provider fees at such time the provider begins remitting tax pursuant to F.S. § 202.19. Any annual amounts charged shall be reduced for a prorated portion of any twelve-month period during which the provider remits said tax.
- (d) Annual fees shall be due on October 1 of each year.
- (e) If the payments required by this section are not made within ninety (90) days after the due date, the city may withhold the issuance of any permits to the registrant until the amount past due is paid in full.

(Ord. No. 2017-150, § 30, 10-26-2017)

Sec. 22-323.2. - Disruption or destruction of and/or interference with other facilities or property.

A provider shall not design, place, or maintain its communications facilities in a manner that will, in any way, disrupt, displace, damage, destroy, or interfere with any of the following:

- (a) Any sewer line, gas line, water main, pipe, conduit, wires, fiber-optics, or another providers' facilities (including any cable service provider);
- (b) Any traffic signals or facilities of the Tampa Police Department or Tampa Fire Rescue;
- (c) Any facilities of any public utility; or,
- (d) Any property belonging to the city or any other person lawfully occupying the public rights-of-way, without first obtaining the consent of and being granted permission by the city.

Any provider, who does not comply with the requirements above, shall bear all responsibility and costs resulting from any such conduct and shall pay such costs upon demand.

(Ord. No. 2017-150, § 31, 10-26-2017)

Sec. 22-323.3. - Temporary raising or lowering, relocation, or removal of communications facilities.

- (a) *Temporary raising or lowering of facilities.* A provider shall temporarily raise or lower its facilities to accommodate temporary encroachments or movements in, on, over, or across the public rights-of-way, subject to the following:
- (1) Upon request of any person holding a valid building or moving permit from the city granting permission for such temporary encroachment or movement. With the exception of below, the person requesting the temporary raising or lowering of facilities shall be responsible for the following:
 - a. Any costs associated with the temporary raising or lowering of facilities; and,
 - b. Contacting and coordinating with the provider, in advance of the temporary encroachment/movement, to ensure the temporary relocation of the providers' facilities is completed in a timely and cooperative manner.
 - (2) The city is not subject to, nor shall it be liable for, any such expense performed by the city or its contractors.
- (b) Except in an emergency, a provider shall commence within thirty (30) days after receipt of written notice from the city and complete within ninety (90) days of such notice, the necessary work to adjust, alter, relocate, or remove, at its own expense, any portion of its communications facilities in the event the city finds that such adjustment, alteration, relocation, or removal is necessary for the city's use of its property and public rights-of-way, or if that the particular facility(-ies) is (are) unreasonably interfering in some way with the convenient, safe, or continuous use, or the maintenance, improvement, extension or expansion of any public rights-of-way. In the event such a contingency occurs and such provider fails to cause the aforementioned adjustment, alteration, relocation or removal as required herein, the city may remove such portion of such provider's communications facilities, and the total cost and expense therefor shall be charged to such provider. The city shall provide such provider with a notice and order as provided for in F.S. § 337.404, or any subsequently enacted law of the state, in the event it may charge such provider for the cost and expense of removing such portion of such provider's facilities pursuant to this section.
- (c) In the event the city requires a provider to adapt or conform any portion of such provider's communications facilities, or in any way to alter, temporarily or permanently relocate or to change any portion of same to enable any other person to use a public rights-of-way, such provider shall be reimbursed by the person desiring or occasioning such change for any loss, cost or expense caused by or arising out of such change, alteration or relocation.

(Ord. No. 2017-150, § 32, 10-26-2017)

Sec. 22-323.4. - Coordination within public rights-of-way.

In an effort to minimize any adverse impact on the public rights-of-way and other municipal improvements, the city shall require a provider to coordinate the placement or maintenance of its facilities with any work, construction, installation in or repairs of the subject public rights-of-way or other facilities therein, that is occurring or is scheduled to occur within a reasonable time from the date(s) requested in the provider's permit application. Within the public rights-of-way, every provider shall make space available in its trench and/or conduit to other providers consistent with the federal requirements of 47 U.S.C. 224. Every provider shall utilize existing conduits, pathways and other facilities whenever possible, and shall not place or maintain any new, different, or additional poles, conduits, pathways or other facilities, whether in the public rights-of-way or on privately-owned property, until written approval is obtained from the city or other appropriate governmental authority, and, where applicable, from the private property owner.

(Ord. No. 2017-150, § 33, 10-26-2017)

Sec. 22-323.5. - Restoration of the public rights-of-way.

A provider shall, at its own cost and without delay, restore (replace/repair) the public rights-of-way to its original condition, in compliance with minimum city technical standards, after completion of placement or maintenance of its facility(-ies) therein, by phase (if applicable). If the provider fails to commence such restoration within thirty (30) days following the completion of such placement and/or maintenance and complete such work within one hundred twenty (120) days, the city may perform such restoration and charge the costs of the restoration to the provider in accordance with F.S. § 337.402, as it may be amended. The provider shall, to the satisfaction of the city transportation engineer, maintain and correct any restorations made pursuant hereto, for a period of twelve (12) months following the date of its completion. Upon written notice from the city regarding any failure to comply with this subsection, failure to remedy within thirty (30) days of such notice shall be deemed sufficient grounds for denial of any future rights-of-way permits for the placement and/or maintenance of communications facilities.

(Ord. No. 2017-150, § 34, 10-26-2017)

Sec. 22-323.6. - Trees within or proximate to public rights-of-way.

A provider shall not prune, remove, or irreversibly damage any protected or grand tree, as defined in Chapter 27 of this Code, unless such activity is authorized by a permit issued by the city.

(Ord. No. 2017-150, § 35, 10-26-2017; Ord. No. 2019-54, § 7, 4-19-2019)

Sec. 22-323.7. - Repair of communications facilities by city.

In an emergency, as determined by the city, when a provider or its representative is immediately unavailable or unable to provide the necessary immediate removal or make repairs to any portion of its communications facilities that is damaged or malfunctioning or to any faults or settled or sunken areas that may develop in any area over, around or adjacent to same, the city, when apprised of such an emergency, shall have the right to remove or make repairs with the total cost of same being charged to such provider.

(Ord. No. 2017-150, § 36, 10-26-2017)

Sec. 22-323.8. - Access to communications facilities by city.

The city shall have access, without charge, at any time, to the manholes of a provider in which the city has facilities, provided the city has given such provider reasonable prior notice so that such provider can have trained personnel present when the city makes its access to any such manholes. Subject to the foregoing, the city, in the proper exercise of its municipal powers and duties with respect to the public rights-of-way, shall have access to all manholes of such provider in the public rights-of-way.

(Ord. No. 2017-150, § 37, 10-26-2017)

Sec. 22-323.9. - Abandonment of communications facilities.

- (a) Upon determination by a provider that one or more of its communications facilities in the public rights-of-way is to be abandoned, the provider shall notify the city no later than ninety (90) days from such determination, or no later than thirty (30) days following such abandonment, whichever is sooner.
- (b) The city may independently establish that a communications facility has been abandoned. In reaching such determination, the city may request documentation and/or affidavits from the provider regarding the active use of the facility. If the provider fails to provide the requested documentation within thirty (30) days, a rebuttable presumption shall exist that the provider has abandoned the communications facility.
- (c) Abandonment of the communications facility requires removal of the communications facility. If the communications facility is attached to an existing structure that has an independent function, such as a light pole, traffic signal, pedestrian signal, or the like, the abandonment of the communications facility requires removal of the communications facility only and does not require the removal of the existing structure.
- (d) If the provider fails to remove any or all portion(s) of an abandoned communications facility as directed by the city within thirty (30) days, the city may perform such removal and charge the cost of the removal against the provider.

(Ord. No. 2017-150, § 39, 10-26-2017)

Sec. 22-323.10. - Revocation.

The city may revoke any permit granted pursuant to this article (refer to sec. 22-67).

(Ord. No. 2017-150, § 40, 10-26-2017)

Sec. 22-323.11. - Stop work and emergency orders.

- (a) Upon notice from the city, work on any system or facility that is being done contrary to the provisions of this chapter or in a dangerous or unsafe manner shall immediately cease. Such notice shall be in writing, by hand delivery, electronic or standard mail, and shall be posted at the job site, and given to the person performing the work and/or permit holder. Upon issuance of a stop work order, the cited work shall immediately cease. The stop work order shall state the reason for the order, and the conditions under which the cited work will be permitted to resume. Where an emergency exists, verbal notice by the city transportation engineer or designee shall be sufficient to require the stoppage of work.
- (b) Unlawful continuance. Any person who actively continues any work after having been served with a stop work order, except such work as that person is directed by the city to perform, to remove a violation or unsafe condition, shall be subject to penalties as provided in section 1-6. The city retains all available legal remedies to abate the work.

(Ord. No. 2017-150, § 41, 10-26-2017)

Sec. 22-323.12. - General restrictions on city.

Pursuant to F.S. § 337.401(7), the city shall adhere to the requirements set forth below, regarding applications for right-of-way permits for small wireless facilities and micro-wireless facilities, subject to this article. Refer to additional requirements set forth in the respective sections noted below.

- (a) SWFC application for collocation on existing, non-authority poles (refer also to section 22-327.1).
 - (1) The city may not directly or indirectly require a wireless provider applicant to perform services unrelated to the collocation for which approval is sought, such as in-kind contributions to the city, including reserving fiber, conduit, or pole space for the city;
 - (2) A wireless provider applicant may not be required to provide more information to obtain a permit than is necessary to demonstrate said applicant's compliance with applicable codes for the placement of small wireless facilities in the locations identified in the SWFC application;
 - (3) The city may not require the placement of small wireless facilities on any specific utility pole or category of poles or require multiple antenna systems on a single utility pole; and

- (4) The city may not limit the placement of small wireless facilities by minimum separation distances; however, the city may require reasonable spacing requirements for ground-mounted equipment.
- (b) SWFC application for new non-authority utility pole to support small wireless facilities (refer also to section 22-327.2). The applicable requirements are set forth in (a)(4) above.
- (c) SWFC application for collocation on authority pole (refer also to section 22-327.3). Refer to the requirements set forth in (a) above.

(Ord. No. 2017-150, § 42, 10-26-2017)

Subdivision 2. - Specific permit application requirements and review procedures

Sec. 22-324. - Permits required.

- (a) Pursuant to the requirements of this chapter, any use of the public rights-of-way shall require a right-of-way permit, with the exception of the activities specifically listed below, unless such work exceeds the timeframes set forth in section 22-58(b)(1):
 - (1) Emergency actions, with the city reserving authority to require an after-the-fact permit;
 - (2) Routine maintenance and/or repair of communications facilities and/or utility poles authorized to be located within the public rights-of-way;
 - (3) Replacement of existing wireless facilities with wireless facilities that are substantially similar or of the same or smaller size; or,
 - (4) Installation, placement, maintenance, or replacement of micro-wireless facilities that are suspended on cables strung between existing utility poles in compliance with applicable codes by or for a provider authorized to occupy the rights-of-way and who is remitting taxes pursuant to F.S. § 202.19.
- (b) Notwithstanding this section, the city may require a right-of-way permit for work that involves excavation (regardless of time needed to perform such activity(-ies)) or closure of a sidewalk and/or vehicular lane(s) that exceeds those time frames set forth in section 22-58(b)(1).
- (c) Emergency action. Any person who performs work in the public rights-of-way in connection with an emergency action without a permit shall immediately notify the city of the emergency action. The person shall cease all work immediately upon completion of emergency action. The person shall also cease all work immediately upon receipt of a city stop work order determining the situation does not involve an emergency or that the emergency action is no longer warranted.

(Ord. No. 2017-150, § 44, 10-26-2017)

Sec. 22-325. - Permit duration.

Unless revoked by the city pursuant to this chapter, canceled or withdrawn by the wireless provider applicant, or otherwise nullified by a court of law with jurisdiction over such matters, a right-of-way permit issued pursuant this article, shall remain effective for a maximum of one (1) year. Extensions of time beyond the initial one (1) year period may be requested by the wireless provider applicant and granted in no more than three (3) month increments, at the discretion of the city.

(Ord. No. 2017-150, § 45, 10-26-2017)

Sec. 22-326. - Provision and filing of as-built surveys.

Within sixty (60) days after completion of any placement of a communications facility in the public rights-of-way, the provider shall submit the as-built survey(s), at its expense, showing the final location of such facility in the public rights-of-way, to the city. For maintenance of a communications facility which alters the configuration and/or location of such facility as depicted/described in the as-built survey on file with the city, then a new as-built survey shall be filed. Such survey(s) will be filed with the city and included as part of the right-of-way permit record that was issued for the work performed. Failure of the provider to submit the required as-built survey(s) in a timely manner may cause the subject permit to be revoked and is sufficient grounds for the city to deny the issuance of any future right-of-way permits to the provider.

(Ord. No. 2017-150, § 46, 10-26-2017)

Sec. 22-327. - Permit types; pre-application conference; application requirements; general review procedures.

- (a) Pursuant to the requirements of this chapter, F.S. § 337.401, and applicable federal law, providers may place and maintain wireless facilities, small wireless facilities, and micro-wireless facilities within public rights-of-way, subject to the specific permit requirements and procedures set forth in subdivision 2.
- (b) Prior to submitting a consolidated SWFC application, unless otherwise determined by the city transportation engineer or designee of the PDD department, the wireless provider applicant must schedule and attend a pre-application meeting with the city transportation engineer or designee, of the PDD department, in order to determine the scope of the request, efficient processing schedule, and what documentation will be necessary to support said application.

(Ord. No. 2017-150, § 47, 10-26-2017)

Sec. 22-327.1. - Permit for collocation of small wireless facilities on existing non-authority utility pole.

As part of any permit application to collocate a small wireless facility (SWFC application) on an existing, non-authority utility pole, a wireless provider applicant shall include with the SWFC application submittal, at a minimum, the information described below. SWFC applications that propose replacing existing, non-

authority poles, shall be accepted and processed by the city, in accordance with section 22-327.2.

(a) *Minimum application submittal requirements.* No permit shall be issued unless a wireless provider applicant submits a written application to the city, in accordance with this article. A SWFC application for a permit shall be filed in the form and manner specified by the city, (such as in an electronic form acceptable to the city) and contain such information as may be required by the city, including, at a minimum, the information contained in this section. The city may require the wireless provider applicant to provide such additional information as the city deems necessary to complete its review of a requested permit. Pursuant to section 337.401(7)(d)2, Florida Statutes, the city shall not require a wireless provider applicant to provide more information than is necessary to demonstrate compliance with applicable codes. At a minimum, the wireless provider applicant shall submit the following information in its application:

- (1) The name, address, electronic mail address, and phone number (cellular number if available) of the wireless provider applicant who is requesting the permit and written evidence that such wireless provider applicant has legal authority to place, maintain, or remove the equipment or facilities covered by the requested permit in the public rights-of-way and will own and/or control all such equipment and facilities after completion of construction;
- (2) A description of the facilities/equipment, dimensions, and proposed locations of all equipment and facilities covered by the requested permit;
- (3) The specific location, depth, dimensions, and length of each proposed new or replacement duct, conduit, or other underground facility and the specific location, depth, dimensions, and height of any utility pole covered by the requested permit, to the extent necessary to demonstrate compliance with applicable codes;
- (4) A description of the manner in which the work covered by the requested permit is to be undertaken (i.e., proposed construction methods and techniques) and a proposed date for commencement of work and an estimate of the time required to complete all such work;
- (5) A city-approved maintenance-of-traffic plan for vehicular, bicycle, and pedestrian traffic in the area to be affected by the proposed work;
- (6) Proof of insurance; acknowledgement of indemnification; and, performance bond(s);
- (7) Identification and description of any utility or other distribution or transmission system to which any equipment or facility covered by the requested permit is to be connected or attached;
- (8)

Sufficient specificity demonstrating compliance with the Florida Building Code, most current edition, specifically including but not limited to terms of compliance with the High Velocity Zone Criteria specified therein;

- (9) The Global Positioning System (GPS) coordinates of the proposed facility. The GPS coordinates shall be based on the reading from a handheld mobile GPS unit set to Datum NAD 83 or WGS84. GPS coordinates based on Google Earth or similar software application may be used where areas of shading occur due to overhead canopy. GPS Coordinates shall be provided in decimal degrees at a 6 decimal point precision;
- (10) Engineering drawings signed and sealed by a structural engineer, which depict:
 - a. Details and specifications that demonstrate compliance with applicable codes;
 - b. Public rights-of-way in the affected area of the proposed construction;
 - c. A survey of locations of all existing equipment and facilities in the area of proposed construction;
 - d. All equipment and facilities to be installed and/or removed;
 - e. The routes of all transmission and distribution lines to be installed or removed; and,
 - f. The sites of all other equipment and facilities to be installed or removed in the public rights-of-way.
- (11) Proof of pole attachment agreement and/or letter of authorization for pole attachment from pole owner or authorized agent;
- (12) Photographic or video documentation of the pre-construction condition of the public rights-of-way in the area to be affected by the proposed work; and,
- (13) Restoration plan and estimated cost of restoration of the public rights-of-way. A restoration plan and a good faith estimate of the cost of restoration of the public rights-of-way. Such good faith estimate shall be accepted by the city, unless the city determines such estimated costs are not representative of the actual costs of the restoration of the public rights-of-way. Estimates of the cost to restore the public rights-of-way shall include all costs necessary to restore the public rights-of-way to its original condition, in compliance with minimum city technical standards. Such good faith estimate may include, but shall not be limited to, costs to restore the paving, curbs/gutters, sidewalks, multi-purpose trails, and landscaping. All planted or naturally occurring shrubbery or vegetation, including sod and/or other ground cover, damaged or destroyed during work in the public rights-of-way shall be replaced. Any tree pruning and/or removal approved as part of the permit shall not be considered damage or impairment to be restored to the original condition, provided the person complies with the approved mitigation plan and ANSI pruning standards, as applicable.
- (14)

Design standards. The wireless provider applicant shall provide a description of and sufficient details and specifications to demonstrate compliance with design standards to be utilized to minimize the visual impacts, in accordance with section 22-328.

- (b) *Application quantity.* A wireless provider applicant seeking to collocate small wireless facilities may, at said applicant's discretion, file a consolidated small wireless facility collocation (SWFC) application and receive a single permit for the collocation of up to thirty (30) small wireless facilities.
- (c) *Decision and notice for application submittal (completeness).* Within fourteen (14) days after receiving a small wireless facility collocation (SWFC) application, the city shall determine and notify the wireless provider applicant by electronic mail as to whether said application is complete.
 - (1) If a SWFC application is deemed incomplete, the city shall specifically identify the missing information.
 - (2) If the SWFC application includes multiple small wireless facilities, the city may separately address small wireless facility collocations for which incomplete information has been received.
 - (3) A SWFC application is deemed complete if the city fails to provide notification to the wireless provider applicant within fourteen (14) days of the application filing date.
- (d) *Decision and notice for application (permit issuance/denial).* A small wireless facility collocation (SWFC) application shall be processed on a non-discriminatory basis, and is subject to the following:
 - (1) A complete SWFC application is deemed approved if the city fails to approve or deny the application within sixty (60) days after receipt of the application.
 - (2) If the SWFC application includes multiple small wireless facilities, the city may separately address small wireless facility collocations which are denied.
 - (3) The city shall notify the wireless provider applicant of approval or denial by electronic mail. If the SWFC application is denied, the city shall specify in writing the basis for denial, including the specific code provisions on which the denial was based, and send the documentation to the wireless provider applicant by electronic mail. The date the electronic mail is sent shall be the date of denial.
 - (4) If the city does not use the thirty-day (30-day) negotiation period provided in subsection(e) below, the parties may mutually agree to extend the sixty-day application review period. The city shall grant or deny the SWFC application at the end of the extended period.
 - (5) The wireless provider applicant may cure the deficiencies identified by the city and resubmit the SWFC application within thirty (30) days after notice of the denial is sent to the wireless provider applicant. The city shall approve or deny the revised SWFC

application within thirty (30) days after receipt of said application is deemed approved. Any subsequent review shall be limited to the deficiencies cited in the denial.

(e) *Alternative location.* Within fourteen (14) days after the date of filing the SWFC application, the city may request that the proposed location of a small wireless facility be moved to another location in the rights-of-way and placed on an alternative authority utility pole (refer to "make ready" provisions), support structure, or request the wireless provider applicant to place a new utility pole. The city and the wireless provider applicant may negotiate the alternative location, including any objective design standards and reasonable spacing requirements for ground-based equipment, for thirty (30) days after the date of the request. At the conclusion of the negotiation period, if the alternative location is accepted by the wireless provider applicant, the wireless provider applicant must notify the authority of such acceptance and the application shall be deemed granted for any new location(s) for which there is agreement. If an agreement is not reached, the wireless provider applicant must notify the authority of such non-agreement and the authority must grant or deny the original SWFC application within ninety (90) days after the date said application was filed. A request for an alternative location, an acceptance of an alternative location, or a rejection of an alternative location must be in writing and provided by electronic mail.

(f) *Permit review criteria.*

- (1) The city shall approve a SWFC application and issue a right-of-way permit to a wireless provider applicant once said applicant has demonstrated compliance with the following non-discriminatory, objective criteria and applicable codes:
 - a. The height of a small wireless facility shall be limited to ten (10) feet above the existing utility pole upon which the small wireless facility is to be collocated;
 - b. The SWFC application shall demonstrate compliance with applicable codes, as defined in this chapter, and design standards set forth in section 22-328.
 - c. The SWFC application demonstrates compliance with the requirements set forth in division 4 below for insurance, indemnification, and performance bonds.
 - d. Airport airspace protections. The SWFC application includes evidence of and statement that any structure to be installed pursuant to this article shall comply with F.S. Ch. 333, and federal regulations pertaining to airport airspace protections.
- (2) The city shall deny a proposed collocation of a small wireless facility in the public rights-of-way, if the proposed collocation:
 - a. Materially interferes with the safe operation of traffic control equipment;
 - b. Materially interferes with sight lines or clear zones for transportation, pedestrians, or public safety purposes;
 - c.

Materially interferes with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement;

- d. Materially fails to comply with the 2010 Florida Department of Transportation Utility Accommodation Manual;
- e. Fails to comply with criteria set forth in (f)(1) above, applicable codes (as defined in section 22-5), or design standards set forth in section 22-328.

(Ord. No. 2017-150, § 48, 10-26-2017)

Sec. 22-327.2. - Permit for new non-authority utility pole to support small wireless facilities.

As part of any permit application to place a new non-authority utility pole to support the collocation of a small wireless facility(-ies), a wireless provider applicant shall provide a small wireless facility (SWFC) application that includes, at a minimum, the information described below. Applications that propose replacing existing, non-authority poles, shall be accepted and processed by the city, in accordance with this section.

- (a) *Minimum application submittal requirements.* No permit shall be issued unless a wireless provider applicant submits a written application to the city, in accordance with this subdivision. An application for a permit shall be filed in accordance with the submittal requirements set forth in section 22-327.1(a), and shall include the following additional information:
 - (1) A certificate of appropriateness, as applicable, pursuant to section 27-328;
 - (2) As part of the required construction plans, the survey must also include all utility poles located in the same right(s)-of-way as the proposed pole(s), identifying the height of the existing pole(s) as measured from existing grade, within five hundred (500) feet in any direction; and,
 - (3) A SWFC application from a wireless infrastructure provider must include an attestation by an officer of the registrant that small wireless facilities will be collocated on the utility pole or structure and will be used by a wireless services provider, to provide service, within nine (9) months after the date the application is approved.
- (b) *Application quantity.* An application to collocate small wireless facilities on a new non-authority pole shall be limited to one (1) new pole per application, unless otherwise determined by the city during the pre-application conference.
- (c) *Decision and notice for application submittal (completeness).* Refer to section 22-327.1(c).
- (d) *Decision and notice for application (permit issuance/denial).* Refer to section 22-327.1(d).
- (e)

Alternative location: Within fourteen (14) days after the date of filing the SWFC application, the city may request that the proposed location of a small wireless facility be moved to another location in the rights-of-way and placed on an alternative authority utility pole (refer to "make ready" provisions set forth in section 27-327.3(f)(2)), or support structure, or request the wireless provider applicant to place a new utility pole. The city and the wireless provider applicant may negotiate the alternative location, including any objective design standards and reasonable spacing requirements for ground-based equipment, for thirty (30) days after the date of the request. At the conclusion of the negotiation period, if the alternative location is accepted by the wireless provider applicant, the wireless provider applicant must notify the authority of such acceptance and the SWFC application shall be deemed granted for any new location(s) for which there is agreement. If an agreement is not reached, the wireless provider applicant must notify the authority of such non-agreement and the authority must grant or deny the original SWFC application within ninety (90) days after the date the application was filed. A request for an alternative location, an acceptance of an alternative location, or a rejection of an alternative location must be in writing and provided by electronic mail.

(f) *Permit review criteria.*

- (1) The city shall approve an application and issue a right-of-way permit to a wireless provider applicant once said applicant has demonstrated compliance with the following non-discriminatory, objective criteria and applicable codes:
 - a. The height of a small wireless facility shall be limited to ten (10) feet above the utility pole upon which the small wireless facility is to be collocated;
 - b. The height for a new utility pole is limited to the tallest existing utility pole as of July 1, 2017, located in the same rights-of-way, measured from existing grade, within five hundred (500) feet in any direction, of the proposed location of the small wireless facility. If there is no utility pole within five hundred (500) feet, the city shall limit the height of the utility pole to fifty (50) feet;
 - c. The application shall demonstrate compliance with applicable codes, as defined in this chapter, and design standards set forth in sec. 22-328;
 - d. The application shall demonstrate compliance with the requirements set forth in division 4 below for insurance, indemnification, and performance bonds;
 - e. Airport airspace protections. The application shall include evidence of and statement that any structure to be installed pursuant to this article shall comply with F.S. Ch. 333, and federal regulations pertaining to airport airspace protections.
- (2) The city shall deny a proposed collocation of a small wireless facility in the public rights-of-way, if the proposed collocation:
 - a. Materially interferes with the safe operation of traffic control equipment;
 - b.

Materially interferes with sight lines or clear zones for transportation, pedestrians, or public safety purposes;

- c. Materially interferes with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement;
- d. Materially fails to comply with the 2010 Florida Department of Transportation Utility Accommodation Manual;
- e. Fails to comply with criteria set forth in (e)(1) above, applicable codes (as defined in section 22-5), or design standards set forth in section 22-328.

(Ord. No. 2017-150, § 49, 10-26-2017)

Sec. 22-327.3. - Permit for collocation of small wireless facilities on authority pole.

As part of any permit application to collocate small wireless facilities on an authority pole, a wireless provider applicant shall provide a permit application that includes, at a minimum, the information described below:

- (a) *Minimum application submittal requirements.* No permit shall be issued unless a wireless provider applicant submits a written application to the city, in accordance with this subdivision. An application for a permit shall be filed in accordance with the submittal requirements set forth in section 22-327.1(a).
- (b) *Application quantity.* An application shall be limited to the quantity set forth in section 22-327.1(b).
- (c) *Decision and notice for application submittal (completeness):* The city shall determine and notify the wireless provider applicant by electronic mail pursuant to the time frames set forth in section 22-327.1(c).
- (d) *Decision and notice for application (permit issuance/denial):* An application shall be processed on a non-discriminatory basis, subject to the following:
 - (1) A complete application is deemed approved if the city fails to approve or deny the application within sixty (60) days after receipt of the application.
 - (2) If the application includes multiple small wireless facilities, the city may separately address small wireless facility collocations which are denied.
 - (3) The city shall notify the wireless provider applicant of approval or denial by electronic mail. If the application is denied, the city shall specify in writing the basis for denial, including the specific code provisions on which the denial was based, and send the documentation to said applicant by electronic mail. The date the electronic mail is sent shall be the date of denial.
 - (4)

If the city does not use the thirty-day negotiation period provided herein, the parties may mutually agree to extend the sixty-day application review period.

- (5) The city shall grant or deny the application at the end of the extended period.
 - (6) The wireless provider applicant may cure the deficiencies identified by the authority and resubmit the application within thirty (30) days after notice of the denial is sent to the wireless provider applicant.
 - (7) The authority shall approve or deny the revised application within thirty (30) days after receipt or the application is deemed approved. Any subsequent review shall be limited to the deficiencies cited in the denial.
- (e) *Alternative location.* Within fourteen (14) days after the date of filing the application, the city may request that the proposed location of a small wireless facility be moved to another location in the rights-of-way and placed on an alternative authority utility pole (refer to "make ready" provisions set forth in (f)(2) below), support structure, or request the wireless provider applicant to place a new utility pole. The city and the wireless provider applicant may negotiate the alternative location, including any objective design standards and reasonable spacing requirements for ground-based equipment, for thirty (30) days after the date of the request. At the conclusion of the negotiation period, if the alternative location is accepted by the wireless provider applicant, said applicant must notify the authority of such acceptance and the application shall be deemed granted for any new location(s) for which there is agreement. If an agreement is not reached, the wireless provider applicant must notify the authority of such non-agreement and the authority must grant or deny the original application within ninety (90) days after the date the application was filed. A request for an alternative location, an acceptance of an alternative location, or a rejection of an alternative location must be in writing and provided by electronic mail.
- (f) *Permit review criteria.*
- (1) The city shall approve an application and issue a right-of-way permit to a wireless provider applicant once said applicant has demonstrated compliance with the following non-discriminatory, objective criteria, applicable codes, and applicable make-ready provisions (refer to subsection (2) below):
 - a. The height of a small wireless facility shall be limited to ten (10) feet above the existing utility pole upon which the small wireless facility is to be collocated;
 - b. The height for a new utility pole is limited to the tallest existing utility pole as of July 1, 2017, located in the same rights-of-way, measured from existing grade, within five hundred (500) feet in any direction, of the proposed location of the small wireless facility. If there is no utility pole within five hundred (500) feet, the city shall limit the height of the utility pole to fifty (50) feet;

- c. The application shall demonstrate compliance with applicable codes, as defined in this chapter, and design standards set forth in section 22-328;
- d. The application shall demonstrate compliance with the requirements set forth in division 4 below for insurance, indemnification, and performance bonds;
- e. Airport airspace protections. The application shall include evidence of and statement that any structure to be installed pursuant to this article shall comply with F.S. Ch. 333, and federal regulations pertaining to airport airspace protections.

(2) Authority Make-Ready provisions.

- a. Pursuant to F.S. § 337.401(7)(f)5b, for a city-owned utility pole ("authority utility pole" as defined in section 22-5) that supports an aerial facility used to provide communications services or electric service, the parties shall comply with the process for make-ready work under 47 U.S.C. Section 224 and implementing regulations. The good faith estimate of the person owning or controlling the pole for any make-ready work necessary to enable the pole to support the requested collocation must include pole replacement, if necessary.
- b. Pursuant to F.S. § 337.401(7)(f)5c, for a city-owned utility pole ("authority utility pole") that does not support an aerial facility used to provide communications services or electric service, the city shall provide a good faith estimate for any make-ready work necessary to enable the pole to support the requested collocation, including necessary pole replacement, within sixty (60) days after receipt of a complete application. Make-ready work, including any pole replacement, must be completed within sixty (60) days after written acceptance of the good faith estimate by the wireless provider applicant.
- c. Make-ready alternative. Alternatively, pursuant to F.S. § 337.401(7)(f)5c, the city may require the wireless provider applicant seeking to collocate a small wireless facility to provide a make-ready estimate, at said applicant's expense, for the work necessary to support the small wireless facility, including pole replacement, and perform the make-ready work. If pole replacement is required, the scope of the make-ready estimate is limited to the design, fabrication, and installation of a utility pole that is substantially similar in color and composition. The city may not condition or restrict the manner in which the wireless provider applicant obtains, develops, or provides the estimate or conducts the make-ready work, subject to usual construction restoration standards for work in the right-of-way. The replaced or altered utility pole shall remain the property of the city.
- d.

Pursuant to F.S. § 337.401(7)(f)5d, the city shall not require more make-ready work than is required to meet applicable codes and/or industry standards. Fees for make-ready work shall not include costs related to pre-existing damage or prior non-compliance. Fees for make-ready work, including any pole replacement, shall not exceed actual costs or the amount charged to communication services providers, other than wireless services providers, and shall not include any consultant fee or expense.

- (3) The city may reserve space on authority utility poles for future public safety uses.
However, a reservation of space may not preclude collocation of a small wireless facility. If replacement of the authority utility pole is necessary to accommodate the collocation of the small wireless facility and the future public safety use, the pole replacement is subject to make-ready provisions and the replaced pole shall accommodate the future public safety use.
- (4) Collocation of small wireless facilities on authority utility poles is subject to the following requirements:
 - a. The city shall not enter into an exclusive arrangement with any person for the right to attach equipment to authority utility poles;
 - b. The rates and fees for collocations on authority utility poles must be nondiscriminatory, regardless of the services provided by the collocating person;
 - c. The rate to collocate small wireless facilities on an authority utility pole shall be one hundred fifty dollars (\$150.00) per pole annually, or maximum amount allowed by applicable law.
- (5) The city shall deny a proposed collocation of a small wireless facility in the public rights-of-way, if the proposed collocation:
 - a. Materially interferes with the safe operation of traffic control equipment;
 - b. Materially interferes with sight lines or clear zones for transportation, pedestrians, or public safety purposes;
 - c. Materially interferes with compliance with the Americans with Disabilities Act or similar federal or state standards regarding pedestrian access or movement;
 - d. Materially fails to comply with the 2010 Florida Department of Transportation Utility Accommodation Manual;
 - e. Fails to comply with criteria set forth in (e)(1) through (4) above and/or applicable codes (as defined in section 22-5).

(Ord. No. 2017-150, § 50, 10-26-2017)

Sec. 22-328. - Design standards.

- (a) *Purpose and intent.* Aboveground and underground facilities, communications facilities, utility poles, and associated facilities and equipment shall be designed in such a manner to ensure such facilities and poles are placed in locations that do not interfere with the safe operation of traffic control equipment and movement of the traveling public. These facilities and poles shall be designed to maximize compatibility with the affected area (a five hundred-foot radius of the proposed location) and to minimize any negative visual impact on that area. Pursuant to F.S. § 337.401(7), the following design standards shall apply, unless waived pursuant to section 22-329.
- (b) *General placement requirements within public rights-of-way.*
- (1) *Aboveground facilities, communications facilities, utility poles, and associated ground mounted facilities and equipment.* Such facilities and equipment shall not create any safety hazard(s) or physical or visual obstruction to vehicular, bicycle, and/or pedestrian traffic.
 - (2) *Communications facilities placement within public rights-of-way.* Communications facilities shall be placed between the property line and the curb line of all streets and shall not be within the roadway recovery area. Underground cables, where required, shall have consistent alignment parallel with the edge of pavement, a thirty-six-inch depth of cover for the paved portion of roadways, a twenty-four-inch to thirty-inch depth of cover in all areas except the paved portion of roadways, and shall have a two-foot horizontal clearance from other underground utilities and their appurtenances.
 - (3) *Grounding rods and pull boxes.* The grounding rod may not extend above the top of sidewalk and must be placed in a pull box, and the ground wire between the pole and ground rod must be inside an underground conduit. All pull boxes shall be vehicle load bearing, comply with FDOT Standard specification 635 and be listed on the FDOT Approved Products List. A concrete pad shall be installed around all pull boxes not located in the sidewalk. No new or replacement pull boxes shall be located in pedestrian ramps.
 - (4) *Signs.* No signs shall be permitted on or attached to communications facilities or utility poles in public rights-of-way, unless otherwise required by federal or state law. Any existing facility or structure that lawfully supports signs may continue to support such signs, as otherwise permitted by city code or state or federal law, as may be amended.
 - (5) *Other associated ground mounted facilities and equipment.* Ground-mounted equipment for small wireless facilities shall be located within a ten (10) feet radius of the utility pole supporting such facility and, if possible, in areas with existing foliage or other aesthetic features to obscure the view of the ground-mounted equipment. The ground-mounted equipment shall use wrap that is similar to the pole color. If the city has a planned future project to replace facilities or equipment in the subject public rights-of-way, the replacement facilities or equipment proposed in the application or SWFC application shall conform to the city's updated design, material, and color.

- (6) *Separation from driveways and hydrants.* Communications facilities and utility poles shall be located at least ten (10) feet from a driveway apron and at least thirty (30) feet from a fire hydrant.
- (7) *New and replacement utility poles; general, city-wide placement and maintenance standards.*
- a. New utility poles, where permitted, shall be placed between the property line and the curb line of all streets and shall not be within the roadway recovery area. The lowest wire on any of such poles, placed in any public rights-of-way open to vehicular, bicycle, and/or pedestrian traffic shall not be less than eighteen (18) feet from the ground and, whenever telephone and electric power wires cross each other, wires shall cross and be maintained in accordance with the National Electrical Code, the National Electrical Safety Code and the "Safety Rules for the Installation and Maintenance of Electrical Supply and Communication Lines" established by the Department of Commerce, Bureau of Standards of the United States, as may be amended;
 - b. New utility poles, where permitted, shall be made of the similar design, material, and color as other utility poles within the same public right-of-way (within five hundred (500) feet in any direction along that right-of-way). Where no utility poles exist within the aforementioned right-of-way, black enamel/paint-clad metal or concrete poles are required, and such poles are generally preferred throughout the city, as applicable;
 - c. New poles, where permitted, shall adhere to the protection and pruning standards, as set forth in chapter 13 and ANSI standards, for protected and grand tree species, located in the public rights-of-way and/or on private property. A provider shall not prune, remove, or irreversibly damage any protected or grand tree, as defined in chapter 13 of this Code, unless such activity is authorized by a permit issued by the city; and,
 - d. Replacement utility poles shall be of similar design, material, and color of the existing pole being replaced; however, black enamel/paint-clad metal or concrete poles, are preferred. The replacement pole shall be located in approximately the same location as the existing pole. The replacement pole shall continue to serve its primary function. If the city has a planned future project to replace utility poles in the subject public rights-of-way, the replacement poles proposed in the application or SWFC application shall conform to the city's updated design, material, and color.
- (c) *General stealth design requirements within public rights-of-way, city-wide.*
- (1) The small wireless facility, electric meters and disconnect switches may be mounted on the exterior of the pole and shall be concealed with use of shrouds that are similar to the pole color and texture;
 - (2)

No exposed wires, cables, conduits, etc. attached to poles; preferred if such are placed internal to pole, but if not possible, then such attachments must be concealed with use of shrouds that are similar to the pole color and texture;

- (3) Other components, such as back-haul, where housed above-ground, shall be placed within a cabinet, box, or other such container that are concealed with durable materials or paint that are similar to the pole color or includes other imagery in context with the location of equipment (i.e. imagery of vegetation, architectural/geometrical patterns, or equivalent).

(d) *Location context placement standards.*

- (1) *Placement in relation to adjacent uses of property and building facades thereon, city-wide.*

Where parking and/or loading spaces are not permitted between a building facade and the corresponding property line (i.e. front façade and front property line, side street façade and side street property line) by design standard or district standard set forth in Chapter 27, or such spaces do not exist in those locations on existing properties, new communication facilities and new utility poles shall be placed in-line with the common, interior side lot lines and shall not be placed in-line with the front/principal facade of a residence, place of business, or any other principal use building, as defined in Chapter 27 of this Code.

- (2) *Placement within Ybor City Historic District.* The purpose of the district, in part and as further described in sections 27-176 and -178, is to safeguard the heritage of Ybor City by preserving and regulating the district and its landmarks, which reflect elements of our cultural, social, economic, political and architectural history. Unless otherwise authorized by a franchise agreement or for public safety purposes, any new utility pole, small wireless facility (including collocation) shall meet the minimum design standards below. Applications that demonstrate compliance with the minimum design standards shall be approved administratively. Applications seeking a waiver to the minimum design standards shall require approval of a certificate of appropriateness through the Barrio Latino Commission, as set forth in Chapter 27, Article II, Division 4 of this Code. The minimum design standards are as follows:

- a. Installation of a new pole.

1. Use of a metal fluted pole, not to exceed a 12-inch diameter, and decorative fluted base (TECO Franklin, or design equivalent);
2. No lighting is to be affixed to the pole, unless otherwise approved as part of a certificate of appropriateness;
3. Pole base height shall be less than twenty-four (24) inches from grade;
4. Pole, base, antenna, housings, components, and all attachments thereto shall be finished to the Sherwin Williams Exterior Finishes - Street Pole Signs specification (or equivalent); Primer: B66A00050 - DTM Bonding Primer, 2 Coats: B66B00011 - DTM Acrylic Gloss Acrylic Coating Black; and,

5. The small wireless facility, electric meters, disconnect switches, wires, cables, conduit, and all other appurtenances shall be stealth designed and consistent with the material and color of the Ybor City exterior metal trash receptacle (model SD-42) manufactured by Victor Stanley (or design equivalent).
 - b. Collocation on existing and replacement poles, buildings, or non-pole structures.
 1. The small wireless facility, electric meters, disconnect switches, wires, cables, conduit, and all other appurtenances shall be stealth designed and in compliance with subsection (c) above;
 2. Where affixed to a building or non-pole structure, application shall demonstrate compliance with a. above and shall require approval of a certificate of appropriateness through the Barrio Latino Commission:
 - i. Design referenced to original architectural characteristics of building or structure;
 - ii. Required to be incorporated or affixed in a manner that will not damage or destroy original architectural features of the building or structure;
 - iii. Utilizes materials that are original or similar to the building or structure, and are appropriate for the stealth reference;
 - iv. Required to be designed in a manner that replicated original historic references of the specific historic district, such as blade signs, other encroachment signs, balcony supports, canopy supports, chimneys, cupolas, architectural ornamentation, cornices, statuary, fencing, and light fixtures.
- (3) *Central Business District and Channel District.* Pursuant to F.S. § 337.401(7)(i), a wireless provider shall, in relation to a small wireless facility or utility pole in the rights-of-way, comply with non-discriminatory undergrounding requirements of an authority that prohibit above-ground structures in public rights-of-way. The city has undergone, and continues to undergo, great expense to place utility facilities underground in the Central Business District and Channel District Community Redevelopment Areas, thus the following provisions are intended to enhance traffic, bicycle, and pedestrian safety and minimize aesthetic impacts associated with an excessive number of structures and unnecessarily high structures in the rights-of-way of the pedestrian oriented downtown area planned for higher densities and intensities.
- a. No new utility poles are allowed in public rights-of-way in the CBD or CD zoning districts, unless otherwise required in the special district requirements for CBD and CD, as set forth in Chapter 27 of this Code, or as waived subject to section 22-329.
 - b. Antennae are allowed to be attached to existing utility poles within the CBD and CD, provided they are located no lower than fifteen (15) feet from the ground as measured vertically from the base of the pole. The communications facility, electric meters,

disconnect switches, wires, conduit, and all other appurtenances shall incorporate stealth design consistent with the design standards in subsection (c) above.

(4) *Placement within a Scenic or Gateway Corridor.* Unless otherwise authorized by a franchise agreement or for public safety purposes, no new utility poles shall be placed within a designated Scenic or Gateway Corridor, as described in the Tampa Comprehensive Plan. The purpose and intent of the designations is to protect these corridors into and through the city. The following roadways are designated corridors:

- a. Bayshore Boulevard, Scenic Corridor (south of Platt Street and north of Gandy Boulevard); and
- b. Kennedy Boulevard, Gateway Corridor (east of Memorial Highway and west of Nebraska Avenue).

The communications facility, electric meters, disconnect switches, wires, conduit, and all other appurtenances shall incorporate stealth design consistent with the design standards in subsection (c) above.

(Ord. No. 2017-150, § 51, 10-26-2017)

Sec. 22-329. - Waiver of objective design standards for small wireless facilities.

- (a) Objective design standards provided in sec. 22-328 may be waived by the city transportation engineer or designee, upon the wireless services provider demonstrating to the city, that the objective design standards are not reasonably compatible for the particular location of a small wireless facility or that the objective design standards impose an excessive expense. The objective design standards may also be waived to comply with 47 U.S.C. 332 pertaining to gap in coverage. Any application seeking a waiver to sec. 22-328 within a local historic district or local landmark, outside of Ybor City Historic District, shall require approval of a certificate of appropriateness through the Architectural Review Commission as set forth in Chapter 27, Article II, Division 4 of this Code.
- (b) A request for a waiver shall be filed contemporaneously with the small wireless facility collocation (SWFC) application. The request for waiver shall contain each section or subsection for which a waiver is being sought. A request for a waiver shall include a detailed explanation, with supporting engineering or other data, as to why a waiver from the requirements of this article is required. For waivers based on 47 U.S.C. 332, the request for waiver must demonstrate that denial of the SWFC application will result in a significant gap in a wireless service provider's coverage, and that the proposed facility is the least intrusive means for closing that gap within said wireless service provider's network.

(c)

In granting any waiver, the city transportation engineer may impose conditions to the extent the engineer concludes such conditions are necessary to minimize any adverse effects of the proposed small wireless facility within a five hundred (500) feet radius of the proposed location, or to protect the health, safety, and welfare of the public.

- (d) The city transportation engineer shall grant or deny a request for a waiver within forty-five (45) days after receiving such request.

(Ord. No. 2017-150, § 52, 10-26-2017)

Secs. 22-330—22-338. - Reserved.

DIVISION 4. - INSURANCE, INDEMNIFICATION, AND PERFORMANCE BOND

Sec. 22-339. - Insurance.

- (a) A provider shall provide, pay for, and maintain with companies satisfactory to the city, the types of insurance described in this section. All insurance shall be from responsible companies duly authorized to do business in the state and having a financial rating in Best's Insurance Guide of A-Class VII or better. All liability policies shall provide that the city is an additional insured as to such provider's operations in the public rights-of-way and shall provide the severability of interest provision. The required coverages must be evidenced by properly executed certificates of insurance on forms furnished by the official. Certified copies of the policies required by this section are acceptable in lieu of such certificates of insurance and shall be furnished at the time of application/SWFC application to the official within five (5) days of the city's request therefor. Renewal certificates shall be provided to the city at least ten (10) days prior to the expiration of the current coverages. The certificates must be manually signed by the authorized representative of the insurance company. Thirty (30) days advanced written notice by registered or certified mail must be given to the city of any cancellation, intent not to renew or reduction in the policy coverages.
- (b) The limits and types of coverage of insurance required shall not be less than the following:
- (1) *Commercial general liability insurance.* Commercial general liability insurance shall be written on ISO Occurrence Form CG 00 01 or an equivalent substitute form to cover liability arising from premises and operations, independent contractors, products and completed operations, personal and advertising injury, blanket contractual, and XCU exposures, unless waived by the city. Completed operations liability coverage shall be maintained for a minimum of one (1) year following the cessation of the placement of communications facilities in the public rights-

of-way. The combined bodily injury and property damage limit shall not be less than five million dollars (\$5,000,000.00) each occurrence and annual aggregate and shall apply specifically to the provider's activities in the public rights-of-way.

- (2) *Automobile liability insurance.* Automobile liability insurance shall be maintained in accordance with the laws of the state as to the ownership, maintenance and use of all owned, non-owned, leased and hired vehicles. The combined bodily injury and property damage limit shall not be less than five million dollars (\$5,000,000.00) each accident.
- (3) *Workers' compensation/employer's liability insurance.* Workers' compensation insurance shall cover all employees engaged in work for the provider in accordance with the laws of the state. The employer's liability limit shall not be less than five hundred thousand dollars (\$500,000.00) disease each employee, five hundred thousand dollars (\$500,000.00) disease aggregate and five hundred thousand dollars (\$500,000.00) each accident.
- (c) Notwithstanding the foregoing, a provider may provide such coverage through an actuarially sound and prudent self-insurance program that is satisfactory to the city.

(Ord. No. 2017-150, § 55, 10-26-2017)

Sec. 22-340. - Indemnification.

- (a) By reason of the acceptance of a registration or a permit under this article, the city does not assume any liability for injuries to persons, damage to property, or loss of service claims by parties other than the registrant or the city; or for claims or penalties of any sort resulting from the installation, placement, maintenance, and/or operation of communication facilities by registrants or activities of registrants.
- (b) A registrant shall defend, indemnify, and hold the city whole and harmless from all costs, liabilities, and claims for damages of any kind arising out of the construction, presence, placement, installation, maintenance, repair or operation of its communications facilities, whether any act or omission complained of is authorized, allowed, or prohibited by a permit, inspection of plans or work by the city, except to the extent that such claims are caused by the sole negligence or willful misconduct of the city. This section is not, as to third parties, a waiver of any defense or immunity otherwise available to the registrant or to the city; and the registrant, in defending any action on behalf of the city, shall be entitled to assert in any action every defense or immunity that the city could assert in its own behalf. The provisions of this section include, but are not limited to, the city's reasonable attorneys' fees incurred in defending against any such claim, suit, or proceeding(s).
- (c) The city agrees to notify the registrant, in writing, within thirty (30) days of the city receiving notice, of any issue it determines may require indemnification.
- (d)

This indemnification obligation is not limited in any way by a limitation of the amount or type of damages or compensation payable by or for the registrant under workers' compensation, disability, or other employee benefit acts, or the acceptance of insurance certificates required under this article, or the terms, applicability, or limitations of any insurance held by the registrant.

- (e) The registrant shall investigate, handle, respond to, provide defense for, and defend any such claims at its sole expense and shall bear all other costs and expenses related thereto, even if the claim is groundless, false, or fraudulent, and if called upon by the city, the registrant shall assume and defend not only itself but also the city, in connection with any such claims and any such defenses shall be at no cost or expense whatsoever to the city, provided the city shall retain the right to select counsel of its own choosing. The city shall not settle or compromise any matter for which a registrant is obligated to indemnify without the prior written consent of the registrant. Such consent shall not be unreasonably withheld.
- (f) The city does not and shall not waive any rights against the registrant which it may have by reason of this indemnification, or because of the acceptance by, or the registrant's deposit with the city of any of the insurance policies required by this article for registration.
- (g) This indemnification by the registrant shall apply to all damages and claims for damages of any kind suffered regardless of whether such insurance policies shall have been determined to be applicable to any such damages or claims for damages.
- (h) Nothing contained in this section shall be construed or interpreted as denying to either party any remedy or defense available to such party under the laws of the State of Florida or as a waiver of sovereign immunity beyond the waiver provided in F.S. § 768.28, as may be amended.
- (i) The indemnification requirements under this section and this article shall survive and be in full force and effect after the termination or cancellation of a registration.

(Ord. No. 2017-150, § 56, 10-26-2017)

Sec. 22-341. - Performance bond.

- (a) Prior to issuance of any permit in accordance with this article, the registrant shall be required to obtain, pay for, and file with the city, a performance bond. The performance bond shall serve to guarantee proper performance under the requirements of this article and the permit, the timeliness and quality of the construction and restoration of the affected public rights-of-way, and to secure, and enable the city to recover all costs related to the restoration of the rights-of-way, in the event the registrant fails to make such restoration to the city's satisfaction or causes damage to the rights-of-way during construction. The performance bond must name the city as obligee, and be conditioned upon the full and faithful compliance by the registrant, with all requirements, duties, and obligations imposed by the permit and provisions of this article, during and through completion of the proposed placement and/or maintenance activity(-ies). The

performance bond shall be in a form acceptable to the city attorney and must be issued by a surety having an A.M. Best A- Class VII rating or better and duly authorized to conduct business in the state of Florida.

- (b) The performance bond shall be in the face amount of the estimated costs of the restoration of the rights-of-way, but in no event shall be less than two thousand-five hundred dollars (\$2,500.00). For a consolidated SWFC application, when allowed under this chapter, the registrant shall provide a performance bond in the amount of the total costs of the restoration of the rights-of-way for all wireless communication facilities requested to be collocated on an existing structure within the rights-of-way, but in no event shall be less than five thousand dollars (\$5,000.00).
- (c) The performance bond must be issued as non-cancelable and be for a term of not less than ninety (90) days after the anticipated date of completion of construction, restoration, and city inspection. In the event the term of any construction bond expires, or is reasonably expected to expire, prior to ninety (90) days after the completion of construction, restoration, and city inspection, the registrant shall immediately obtain, pay for, and file with the city, a replacement performance bond.
- (d) The city's right to recover under the performance bond shall be in addition to all other rights of the city, whether reserved in this article, or authorized by other law, and no action, proceeding, or exercise of a right, with respect to the performance bond, will affect or preclude any other right the city may have. Any proceeds recovered under the performance bond may be used to reimburse the city for such additional expenses, as may be incurred by the city, as a result of the failure of the registrant to comply with the responsibilities imposed by this article, including, but not limited to, attorney's fees and costs of any action or proceeding.

(Ord. No. 2017-150, § 57, 10-26-2017)

Chapter 28 - SPECIAL EVENTS

ARTICLE I. - ADMINISTRATIVE PROVISIONS; DEFINITIONS; EXEMPTIONS

Sec. 28-1. - Purpose.

- (a) The purpose and intent of this chapter is to identify when and where a special event permit is required within the city that affects public parks and/or public rights-of-way and to establish uniform standards for review and approval of special events. These standards are designed to protect and promote the health, safety and welfare of persons within the city and to provide uniform requirements for the review and approval of special event permits. This chapter does not include the standards for regulation of special events held entirely on private property and that

are regulated by Chapter 27, Zoning, of the City of Tampa Code of Ordinances; provided, however, if an aspect of the event, such as valet parking, forms a component of the event then additional Code provisions may apply. These standards are intended to provide for the regulation and enforcement of this chapter.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-2. - Short title.

This chapter shall be referred to and cited as the "City of Tampa Special Event Code."

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-3. - Administrative authority.

The provisions of this chapter shall be administered, interpreted and enforced by the official, as defined in chapter 1 of this Code. Upon issuance of a special event permit, the provisions of this chapter shall be enforced, respectively, through the department of code enforcement (code enforcement), the Tampa Police Department and the Tampa Fire Rescue Department, whom are hereby authorized and directed to enforce this chapter.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-4. - Definitions.

For purposes of this chapter, the following words, terms, phrases and their derivatives shall have the meanings set forth in this section. Any word, term or phrase not defined in this section shall have the meaning assigned in the City Code, however, if not defined elsewhere in the City Code, then the definition assigned in the dictionary identified in section 1-3 of this Code shall control. When consistent with the context, the present tense includes the future tense; the plural shall include the singular number and the singular number shall include the plural number.

Admission fee means that certain fee that a person is required to pay to access the event as a spectator, but excludes those fees paid for special privileges such as bleacher seating at an event where a spectator is not required to pay to access the event and may otherwise view the event from a park or public right-of-way. This definition does not include any fees that a person may be required to pay to participate in an event.

Applicant means any person or organization seeking to obtain a special event permit and that has formally submitted the appropriate forms with the city.

Application processing fee means that certain non-refundable fee required at the time of submitting a special event permit application. Said fee being established by city council resolution and intended to cover part of the costs to review the application regardless of whether the special event permit is issued or not.

Amplified sound means any sound projected or transmitted by artificial means, including, but not limited to, loud speakers, amplifiers, beat box, compact disc or digital media device, turn tables, 8-track/cassette player, powered mega-phones or similar devices.

Block party means an organized neighborhood or public gathering on a public right-of-way (street, sidewalk or alley) on a specified date at a specific time and place when such is confined to a designated area and when such is to occur only at a time between the hours permitted by this Code.

Chief of the fire rescue department means the chief of the fire and rescue department of the city.

Chief of police means the chief of police of the city.

City co-sponsored event means any event where the city provides or contributes service(s). The following are recognized co-sponsored events: (1) Gasparilla parade; (2) Krewe Knights of Sant'Yago Knight Parade; (3) Veterans' Day parade; (4) Gasparilla Distance Classic Races; (5) Children's Gasparilla parade; and (6) other official public events, as designated by the city.

City means the City of Tampa.

City department means any department of the city or division thereof.

City park means any property owned by the city and designated as a "dedicated city park" pursuant to section 16-91 of this Code or other city owned, leased, operated or maintained by the city pursuant to chapter 16 of this Code or by executive order as a public park or space.

E.M.S. means emergency medical services provided by Tampa Fire Rescue or other duly licensed, constituted or authorized medical services first responder.

Interlocal agreement means an agreement between the city and another governmental entity entered into pursuant to F.S. ch. 163.

Material misrepresentation means the falsification of information provided in an application or request for a special event permit.

Organized competitive event means any planned race, walk, derby, or event, whether human powered or otherwise, that involves a contest of skill(s) and/or strength and takes place upon public rights-of-way, parks, or both.

Permittee means any person or organization that has been granted a special event permit.

Private road or drive or driveway means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Procession means a public or private march, run, cortege, walk, cavalcade, autocade, parade of any kind, other gathering of persons that occurs upon public right-of-way, park or both that is used for vehicular traffic.

Protective services means security measures from, but not limited to, local, state and federal officials designated to protect secured zones around certain venues or foreign and domestic dignitaries engaged in official functions in the city.

Public assembly means any public gathering, demonstration, picket, rally, gala, ceremony, celebration, or other gathering of persons upon right-of-way, park or both that does not occur upon areas of the right-of-way used for vehicular traffic.

Right-of-way means any street, alley or portion of land set apart for public use, vehicular travel and local convenience, except footpaths, which is either owned by, or dedicated to, a governmental agency by deed or plat and/or is intended or designated for public use (i.e., Riverwalk).

Road festival means an organized neighborhood or public gathering on a public right-of-way (street, sidewalk and alley) on a specified date, at a specified time permitted by this Code and confined to a designated area that requires an admission fee to enter and participate. A road festival is distinguished from a block party in that there is an admission to enter and participate in the event.

Safety zone means the area or space officially set apart within a roadway for the exclusive use of pedestrians, and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

Secure zone means any geographical space; to include jurisdictional air, land and water, that is designated for the requirement of protective services by local, state and/or federal government agencies.

Security deposit means a bond or letter of credit in favor of the city, or cash deposit, which is pledged by an applicant/permittee in order to ensure performance of an obligation under a special event permit issued by the city or cover the cost of damages to city equipment or facilities as a result of or relating to the special event.

Sidewalk means that portion of a street adjacent to the curb lines or the lateral lines of a roadway and the adjacent property lines, intended for use of pedestrians and open to the general public.

Special event means a planned event, whether publicly and/or privately sponsored, including, without limitation, a block party, organized competitive event, procession, road festival or public assembly on one (1) or more city parks or public rights-of-way that involves the reservation and use of a public venue, or closure of one (1) or more rights-of-way, for a particular purpose, for a short duration of time and which involves the

use of city services, either paid by the event promoter, or through co-sponsorship. This definition applies to this chapter only; the definitions for special event and temporary special event in chapter 27 of this Code are not applicable to this chapter.

Special event permit means an official document authorizing performance of a specific event regulated by this chapter.

Special event permit fee means that certain fee, established by city council resolution, representing in whole or in part the cost of issuing the special event permit and of inspecting and regulating the permitted activity.

User fee means charges which are assessed to any person in payment for services for use of city park facilities, as more particularly set forth in chapter 16.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-5. - Authorization and powers of the official and city council—Temporary, complete or partial street and park closures.

- (a) The official is authorized and empowered to issue a special event permit for the temporary partial closure or enclosure of a city park.
- (b) Pursuant to city council approval as provided herein, the official is authorized and empowered to issue a special event permit for the temporary complete or partial closure of roads, alleys, sidewalks or any other public ways used for vehicular or pedestrian traffic, parking or other public use or city parks (unless otherwise provided) in a manner consistent with regulations and conditions set forth in this chapter.

(Ord. No. 2009-126, § 1, 8-20-09)

Secs. 28-6—28-20. - Reserved.

ARTICLE II. - SPECIAL EVENT PERMITTING

Sec. 28-21. - Special event permit—Exemptions.

- (a) A special event permit shall not be required for events on private property, unless otherwise required herein.
- (b) A special event permit shall not be required for the following events on public rights-of-way:
 - (1) Valet parking services which are otherwise regulated by this Code;
 - (2)

Funeral processions by vehicle under the most reasonable route from the funeral home, church or residence of the deceased to the place of interment;

(3) Any event authorized by interlocal agreement with the city;

(4) The establishment of a secure zone and/or coordination of protective services with state or federal agencies.

(c) A special event permit shall not be required for the following events on parks:

(1) Any event on a city park and facility involving one hundred ninety-nine (199) participants or less, unless otherwise required herein;

(2) Any event by a non-city governmental agency acting within the scope of its function, subject to the provision of reasonable notice to the official and so long as the event does not require city services or a temporary road closure(s);

(3) Any event authorized by interlocal agreement with the city;

(4) For the establishment of a secure zone and/or coordination of protective services with state or federal agencies.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-22. - Reserved.

Sec. 28-23. - Special event zoning restrictions.

A special event may be held in any zoning district provided the following limitations are met:

(1) The maximum permit duration for a specific event is two (2) weeks, provided, however, no road closure shall be for a period of longer than forty-eight (48) hours. The official may authorize up to an additional six (6) hours before or after an event for set up and take down of event related facilities.

(2) Upon conclusion of the event, the property must be cleared of all trash and debris within twenty-four (24) hours of conclusion of the event.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-24. - Special event permit requirements on city park property; administrative approval.

No person shall engage in, participate in, or aid any special event on city parks in a manner enumerated in section 16-22 of this Code, unless a special event permit has been obtained from the official. The activities enumerated in section 16-22 of this Code shall require a special event permit.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-25. - Special event permit requirements on public right-of-way.

Unless otherwise exempted herein this chapter, no person shall engage in, participate in or aid any special event on public rights-of-way in a manner enumerated herein, unless a special event permit shall have been obtained from the official after approval of the issuance of such special event permit from the city council. Without limiting the foregoing requirements, the following activities on public rights-of-way shall require a special event permit:

- (1) Procession;
- (2) Public assembly involving two-hundred (200) or more participants;
- (3) Block party. The official may close more than two (2) blocks per street and more than one (1) street within a designated area when such block parties are requested for city co-sponsored events. All other block parties are restricted to two (2) adjacent blocks. All block parties not requested by the city are subject to the provisions of this chapter, as are reasonably applicable to block parties;
- (4) Road festival;
- (5) A city co-sponsored event that is either:
 - a. A public assembly; or
 - b. An organized competitive event.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-26. - Special event permit application—Filing periods, notice, contents.

Application: Any natural person or legal entity required to obtain a special event permit, pursuant to this chapter, shall apply for said permit by filing a fully executed application on a form prescribed by the official. The applicant must be at least eighteen (18) years of age to reserve a facility. The parks and recreation director or his/her designee may refuse to reserve a facility for any person who cannot prove the age requirement to the satisfaction of the department. The application shall contain the following recitals:

"In consideration of the privileges granted by issuance of this permit, the Applicant shall, to the fullest extent permitted by law, indemnify, defend and hold harmless the City, and all officials, agents and employees of the City, from and against all claims which may result from allowing Applicant to utilize the public right-of-way or City owned park. "Claim" as used in this agreement means any financial loss, claim, suit, action, damage, or expense, including but not limited to attorney's fees, attributable for bodily injury, sickness, disease or death, or injury to or destruction of tangible property including loss of use resulting therefrom. The Applicant's obligation to indemnify, defend, and hold harmless includes any claim by Applicant's agents, employees, representatives or any subcontractor or its employees. The Applicant acknowledges that the provisions of this paragraph apply to and include any liability resulting for incidents

involving the streetcar electrified cables. Said indemnification shall not include claims resulting solely from the act, omission, negligence, or other fault on the part of the City, its official, agents, or employees."

- (a) *Filing period:* A complete special event permit application must be filed no later than:
- (1) Sixty (60) days prior to a special event that does not require city services, street closure, city co-sponsorship or a special use permit (i.e. a qualifying event to be held entirely within the confines of a city park or public property not for vehicular use); or
 - (2) Ninety (90) days prior to a planned event that requires street closure, city services, city co-sponsorship and/or a special use permit.
- (b) *Neighborhood notice:* The official shall not be required to provide public notice of events held entirely within the boundary of a city park or public property used for motor vehicle traffic and for which a special event permit is issued administratively by the official as provided herein. The official shall provide notice to the public of each proposed special event that requires city council action in the following manner:
- (1) *Posted and Internet city website notice:* There shall be posted on the special event calendar page of the City of Tampa internet website and at the special event public notice bulletin board in the lobby of the special event office notice of the event, which shall include the date of city council action, the name of the event sponsor, the route, the location and times of temporary road closures and the date, time and name of the proposed event.
 - (2) *Notice to Tampa Downtown Partnership and/or the Ybor City Development Corporation:* In connection with any proposed special event that will include all or a portion of the central business district or Ybor City Historic District, as described in chapter 27 of the Code, the official shall, in addition to the notices above, provide notice by electronic mail to the Tampa Downtown Partnership and/or the Ybor City Development Corporation, as applicable. Notice shall include, at minimum: the date of city council action, the name of the event sponsor, the route, the location and times of temporary road closures and the date, time and name of the proposed event.
 - (3) *Additional methods of notice:* Recognizing that certain events may be of such size and magnitude that they result in significant impact to the flow and or pattern of pedestrian and vehicular traffic on public rights-of-way, nothing herein shall be deemed to restrict the official from conducting additional methods of notice than herein required.
- (c) Each applicant shall comply with the following:
- (1) *Application:* Submit a complete and fully executed application.
 - (2)

Age requirement: Applicant must be at least eighteen (18) years of age to reserve a facility. The parks and recreation director or his/her designee may refuse to reserve a facility for any person who cannot prove the age requirement to the satisfaction of the department.

- (3) *Site plan:* If stationary structures such as tents, stalls, carts, vendor booths or outdoor exhibits/displays are to be part of the special event, then a site plan depicting and naming the relevant property(ies), streets and intersections showing the proposed location and general dimensions of each facility must be included and submitted for review and approval by the official. The site plan shall provide evidence of compliance with all of the standards for "essential event services" as required herein. Each site plan shall be reviewed by the official for adequate spacing between facilities and the location of facilities on or near rights-of-way to ensure the safe and orderly flow of pedestrian and or vehicular traffic. In the event the site plan fails to adequately address compliance with the "essential event services" described below, and/or if spacing and location is deemed by the official to be inadequate for the safe and orderly flow of pedestrian and/or vehicular traffic, the official shall provide the applicant with specific comment on the deficiencies of the site plan and require that a revised site plan be submitted, if necessary.
- (4) *Application processing fee:* Pay at the time of filing an application for special event permit the required application processing fee, in an amount in accordance with the schedule of fees set by the official and approved by city council resolution. The application processing fee is in addition to the special event permit fee and any applicable user fee and security deposit.
- (5) *State of Florida Food and Beverage License:* Permittees shall require their food and beverage vendors participating in the requested special event to be licensed by the State of Florida.
- (6) *Special event permit fee; user fee and security deposit:* Pay any applicable special event permit fee, user fee and security deposit, in the form of a cash deposit, bond or letter of credit acceptable to the city, in an amount in accordance with the schedule of fees set by the official and approved by city council. Any applicable special event permit fee, user fee and security deposit shall be paid at the time of issuance of the special event permit. The payment of a special event permit fee, user fee or security deposit is not exclusive of the other, depending on the event and facilities used each fee may be applicable. A security deposit shall be returned or released as follows upon conclusion of a permitted event subject to inspection of the premises and equipment used by the permittee.
 - a. *No damage.* If it is determined that there has been no damage to city right-of-way, park property or equipment beyond reasonable wear and tear, the security deposit shall be refunded in full within forty-five (45) days of the conclusion of the permitted event.
 - b. *Damage.* If it is determined by such inspection that the permitted event proximately caused damage to city right-of-way, or park property or equipment in excess of routine wear and tear, the official shall retain the security deposit or any portion thereof,

necessary to pay for the cost of the repair.

- c. *Notice of assessment of damages.* The official shall give written notice of the assessment of damages and retention of the security deposit to the permittee by personal delivery or by deposit in the United States mail, with proper postage prepaid to the name and address set forth in the application permit.
 - d. *Damages in excess of security deposit.* Any assessment of damages in excess of the security deposit shall be paid to the city within ten (10) days after notice of such assessment of damages is sent. Any party aggrieved by a decision of the official in enforcing this section may appeal said decision in accordance with the appeal procedures contained in this chapter. A permittee's failure to pay damage assessments may be grounds for denial of application for subsequent events.
 - e. *User fee refund.* An event cancelled prior to commencement of the event shall be entitled to a complete refund if notice of the cancellation is provided no less than thirty (30) days before the scheduled commencement date of the event. No refunds shall be issued for untimely notice, except if the event is cancelled due to declaration of a state of emergency, the issuance of a tropical storm or hurricane warning or warning of severe inclement weather by the county. An applicant seeking a refund shall be required to submit a timely event cancellation notice and refund request on the form provided by the city. Refunds checks will only be issued in the name of and delivered to the person/company whose name(s) appear(s) on the special event application.
 - f. *Special event permit fee refund.* An event cancelled prior to commencement of the event shall be entitled to a complete refund if notice of the cancellation is provided no less than thirty (30) days before the scheduled commencement date of the event. No refunds shall be issued for untimely notice, except if the event is cancelled due to declaration of a state of emergency, the issuance of a tropical storm or hurricane warning or warning of severe inclement weather by the county. An applicant seeking a refund shall be required to submit a timely event cancellation notice and refund request on the form provided by the city. Refund checks will only be issued in the name of and delivered to the person/company whose name(s) appear(s) on the special event application.
- (7) *Essential event services:* Each applicant, at the applicants sole cost and expense, shall provide security services, emergency services, transportation (traffic control), temporary restroom, solid waste services and procession safety services for the event in such manner as required below:
- a. *Security services:* Each applicant shall arrange for security at the event in such manner as required in Exhibit I, the Security Services Personnel Staffing Matrix Guide at the end of this chapter and which is incorporated herein by this reference. For the purposes of this section, "security" shall consist of the number of off-duty (extra-duty) sworn law

enforcement officers based upon projected attendees and participants. Each petitioner shall first satisfy this requirement by arranging for security with Tampa Police Department off-duty (extra-duty) personnel. If Tampa Police Department Personnel are not available, then the petitioner may satisfy this requirement by arranging for security with off-duty (extra-duty) personnel from such law enforcement agencies having concurrent jurisdiction or having a mutual aid agreement with the city.

1. For purposes of this section, the term "active attendee event" means those events in which past experiences and recognized entertainment industry and police standards indicate that active participation by spectators is expected. These would include, but not be limited to, foot races, mosh pits and other events that present highly increased risks to the safety of participants or spectators. The term "passive attendee event" means those events in which past experiences and recognized entertainment industry and police standards indicate that passive participation by spectators is expected. These would include, but not be limited to, mime acting presentations, Broadway shows, symphonic performances, and outdoor Shakespearian festivals.
 2. In the event it is necessary for security services personnel to regulate or control outdoor vehicular or pedestrian traffic at a special event, the applicant shall, in addition to the security services personnel in the matrix above, be responsible for the cost of providing no less than one (1), and no more than three (3), additional security services personnel for each intersection.
- b. *EMS:* Each applicant shall arrange for emergency services at the event in such manner as required in Exhibit II, the Emergency Services Personnel Matrix at the end of this chapter and which is incorporated herein by this reference. For the purposes of this section, "emergency services" shall consist of the following number of off-duty (extra-duty) fire rescue and emergency services officers, including appropriate emergency vehicle(s) and shall be subject to the requirements set forth in section 11-3 of this Code.
- c. *Solid waste collection services:* Each applicant shall arrange for solid waste collection services and receptacles in such manner as required by Exhibit III, the Solid Waste Receptacle Matrix at the end of this chapter and which is incorporated herein by this reference and submit a written description as part of the application to be titled the "Solid Waste Collection Services Plan" describing what special arrangements, if any, have been made for solid waste collection before, during and after the proposed event. The official, in the interest of sanitation and public safety, shall approve or reject the plan and provide the basis therefor. In review of the plan, the official shall consider the number of spectators and participants as well as the size, location, duration and nature of the event.

In the event the plan is rejected, the applicant shall be required to modify the plan as required by the official. The applicant shall be responsible for paying all costs associated with implementing the approved plan for the permitted special event.

- d. *Temporary restroom facilities:* Each applicant shall arrange for adequate temporary restroom facilities at the event in such manner as required by state and federal rules, regulations or laws and submit a written description as part of the application to be titled the "Temporary Restroom Facilities Plan" which shall include the location of temporary restroom facilities, the distribution of male and female restroom facilities, and, if applicable, the total number of temporary restroom facilities proposed if said facilities will exceed the minimum requirements. The official shall approve or reject the plan and provide the basis therefor. In review of the plan, the official shall consider the number of spectators and participants as well as the size, location, duration and nature of the event. In the event the plan is rejected, the applicant shall be required to modify the plan as required by the official. The applicant shall be responsible for paying all costs associated with implementing the approved plan for the permitted special event.
- e. *Parking and traffic control plan:* Each applicant shall arrange for adequate parking and traffic control at the event and submit a written description as part of the application to be titled the "Parking and Traffic Control Plan" describing what special arrangements, if any, have been made for parking and traffic control for the proposed event. Said plan shall include, but not be limited to, identifying the method and location of any barricade, fence, enclosure or traffic control support device used to regulate the safe and orderly movement of traffic on the surrounding road network; and, identifying ingress and egress route(s) for pedestrian and emergency vehicle access. The official shall determine the extent to which the proposed parking and traffic control plan meets the needs of the event and provides for parking and the orderly ingress and egress of traffic to and from the event area, which shall include the review and adequate use of primary and secondary available road networks. This determination shall be based upon the number of spectators and participants as well as the size, location, duration and nature of the event. If the official deems modifications to the parking and traffic control plan for the special event are necessary, the applicant for the special event permit shall be so informed and the "Parking and Traffic Control Plan" shall be modified as directed by the official. The applicant shall have the duty to provide such adequate parking and traffic control plans and equipment as are deemed necessary pursuant to the approved parking and traffic control plan at the sole expense of the applicant.
- f. *Procession safety monitors:* In the event the special event requested by the applicant involves a procession that includes the use of any motorized vehicle or vehicles that are longer than twenty (20) feet in length, each applicant shall provide four (4) safety monitors

stationed at the corners of any vehicle used in the procession at all times while the vehicle or vehicles are moving. Each safety monitor shall be equipped with an orange safety vest and a loud whistle. The role of the safety monitor is to make sure the driver is aware of any emergency requiring him/her to stop immediately. Said emergencies include, but are not limited to, equipment malfunctions, passengers falling from the vehicle, overhead obstructions endangering riders, parade viewers coming too close to the vehicle and parade participants coming too close to the vehicle's wheels. Safety monitors shall not consume any alcoholic beverages or hand out any items during the special event to any spectators along the parade route. Said items include but are not limited to beads, candy, fliers, and merchandise. Any vehicle fitting the description above that does not have the requisite number of safety monitors may be pulled out of a procession line until the safety monitor requirement can be met.

(8) *Road festival.* In addition to the criteria above, a road festival applicant shall meet the following criteria:

- a. That applicant shall identify the amount(s) of the proposed admission fee. The admission fee shall be reasonably related to the costs to be borne by the permittee in conducting and promoting the road festival, and that any admission fees realized by any sponsors or participants in connection with the road festival are utilized to offset the costs associated with conducting and promoting the road festival. Upon request by the official, a road festival applicant shall provide evidence of the relation between the admission fee and costs of the event including, without limitation, the projected costs that the applicant will bear and the projected revenue to be derived from the road festival.
- b. That the permittee will make accommodations in advance to ensure either free access and/or access at a reduced admission fee to the road festival to those who cannot reasonably afford the proposed admission fee as set forth herein. At least one (1) placard no less than ten (10) × ten (10) inches in size shall be on display at one (1) entrance point to the event, which shall include the name and address of the permittee and the following statement: "City of Tampa Code of Ordinances Chapter 28 provides that any person evidencing income below the 2000 U.S. Census Bureau recognized poverty level for the Tampa Bay area may request free or reduced admission to the event from the Event Sponsor in advance of the event."
- c. That any applicant obtaining a road festival permit shall be responsible for all costs for services, including those services that may be provided by the city in support of any road festival. These costs shall include, but not be limited to, the following:
 1. All signs, fences, barricades, enclosures and related traffic control support, manpower, equipment and materials;
 - 2.

All police services, emergency medical services, private security services, equipment and material;

3. All sanitation services, equipment and material;
 4. All street sweeping and cleaning services, equipment and material;
 5. Administrative costs for planning meetings. All costs will be determined by the department responsible for the provision of the appropriate service. The costs will be assembled by the official and shall be paid by the person requesting the special event permit at the request of the city;
 6. A fee shall be paid by the person applying for the road festival permit at the time determined by the city council.
- d. That prior to, and as a condition to issuance of a road festival permit, the permittee shall provide the city a security deposit, bond, unconditional letter of credit or such other security as may be deemed acceptable by the official that is equal to the estimated cost of the road festival and which secures the permittee's compliance with all terms and conditions of the special event permit, including, without limitation, payment of all costs associated with the road festival.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-27. - Exceptions to security and emergency services requirements, notwithstanding the requirements of this chapter.

- (a) A special event may be required to have more security and emergency services personnel for administration of maintenance of traffic plans and wet zoned events, if applicable. A special event may be required to have more security and emergency services personnel in attendance for events with extraordinary risk factors, including, but not limited to, pyrotechnics, automobile races, air shows, boating (including water activities such as skiing, wakeboarding, etc.), mosh pits or other activities perilous to public health and safety are present at special events according to recognized public safety standards of the City of Tampa Police Department and Tampa Fire and Rescue. Either the police chief and fire chief or their designees shall be required to declare an event to consist of "extraordinary risk", and provide reasons therefore in writing, prior to requiring emergency services personnel beyond those set forth in Exhibit I hereto and may increase personnel by up to fifty (50) percent of the required personnel for each attendance category.
- (b) A special event may be allowed to have less security and emergency services personnel in attendance if the special event is of a demonstrated low risk category based upon recognized public safety standards of the Tampa Police Department and Tampa Fire Rescue. In such a

situation, the police chief and fire chief or their designees, based upon such standards and other knowledge of similar special events, may decrease personnel by up to fifty (50) percent of the required personnel for each attendance category.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-28. - Alcohol sales and consumption at special event.

The sale and consumption of alcoholic beverages during a special event shall be subject to the requirements set forth in chapter 3 and chapter 27 of this Code. If the location has received an alcoholic beverage special use permit—temporary, a copy of the detailed boundary description of the area receiving the special use permit, and the graphic (sketch) that depicts the boundaries of where alcohol may be consumed ("consumption area") must be posted at each AB sales area. If the boundaries of the event are not defined by identifiable above grade or vertical fixtures or structures (i.e. outer edge of pavement/sidewalk, water's edge, curb line) then the boundaries of the consumption area must be fenced or gated.

(Ord. No. 2009-126, § 1, 8-20-09; Ord. No. 2010-182, § 4, 11-18-2010)

Sec. 28-29. - Review of special event permit applications.

- (a) Upon receipt of an application for a special event, the official shall cause review of the application to commence by distributing said application to each of the affected city departments, whom shall conduct a review on the following criteria, as applicable to the respective department:
- (1) Whether the construction of any barricade, fence, enclosure or traffic control support device will not substantially interrupt the safe and orderly movement of traffic on the surrounding transportation network.
 - (2) Whether the construction of any barricade, fence, enclosure or traffic-control support device shall be constructed and located in a safe manner.
 - (3) Whether adequate pedestrian and emergency vehicle ingress and egress is provided to the event.
 - (4) Whether the proposed security and emergency services staffing requirements are adequate for the proposed event.
 - (5) Whether the solid waste services collection plan, temporary restroom facilities plan and parking and traffic control plan comply with the applicable technical requirements adopted by the respective department.

In addition to the items above, the official shall also consider the following for any application seeking a special event permit to conduct a road festival:

- (6) Whether the proposed admission fee is reasonably related to the costs to be borne by the permittee in conducting and promoting the road festival, and that any admission fees realized by any sponsors or participants in connection with the road festival are utilized to offset the costs associated with conducting and promoting the road festival.
- (7) Whether, to the extent reasonably possible, the permittee will make accommodations to ensure either free access and/or access at a reduced admission fee to the road festival to those who cannot reasonably afford the proposed admission fee. Accommodations, for purposes of this subsection, shall include adequate notice by signage or publication of either free access and/or access at a reduced admission fee to those who cannot reasonably afford the proposed admission fee.
- (8) Whether the road festival or enclosure of roads pursuant to the application for a special event permit for a road festival is necessary to provide for the public health, safety and welfare of the public, including both the general public and participants in the road festival.
- (9) That at all times during the time of the special event permit, the city has reasonable control over any permittee(s) to ensure that the road festival is conducted in a safe and orderly manner.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-30. - Insurance requirements; exemptions; indemnity/hold harmless.

- (a) All special event permits shall require the applicant to provide evidence of, and maintain during the period of the special event permit, commercial general liability insurance with the appropriate endorsements, if applicable. Further, the applicant shall be responsible for paying all deductibles. An event involving the use of automobiles will require the applicant to provide evidence of, and maintain during the period of the special event permit, automobile liability insurance. An event involving the hiring of employees by the applicant will require the applicant to provide evidence of, and maintain during the period of the special event permit, workers' compensation insurance and employer's liability insurance. An event involving the hiring of employees by the applicant to engage in work on or around a navigable waterway will require the applicant to provide evidence of, and maintain during the period of the special event permit, longshoreman's and harbor worker's insurance. The minimum requirements for the types of insurance identified in this paragraph are as follows:
 - (1) *General liability insurance:* Each applicant shall, unless otherwise exempted, effect and maintain during the period of the special event permit insurance with companies authorized to do business in Florida, with an A.M. Best rating of B+ (or better), Class VII (or higher), or otherwise be acceptable to the city if not rated by A.M., commercial general liability insurance

with a minimum limit of coverage of no less than one million dollars (\$1,000,000.00) for each occurrence and a general aggregate of two million dollars (\$2,000,000.00) which shall include the following coverages:

- a. Premises/operations liability.
- b. Products/completed operations.
- c. Personal/advertising injury.
- d. Contractual liability.
- e. Independent contractors liability.
- f. Medical payments five thousand dollars (\$5,000.00) coverage limit.
- g. Fire damage one hundred thousand dollars (\$100,000.00) coverage limit.

(2) *Additional endorsements:* As may be applicable to a particular event, one (1) or more of the following endorsement(s) shall be required:

- a. *Liquor liability endorsement:* A liquor liability endorsement shall be required for activities involving the sale and consumption of alcoholic beverages, as defined and regulated in chapter 3 of this City Code. Said endorsement shall provide a coverage limit of no less than one million dollars (\$1,000,000.00) for each occurrence.
- b. *Hazardous materials endorsement:* A hazardous materials endorsement shall be required for any activities involving the use of hazardous materials. Said endorsement shall provide a coverage limit of no less than two million dollars (\$2,000,000.00) combined single limit per occurrence and annual aggregate with no deductible.
- c. *Animal endorsement:* An animal endorsement shall be required for any activities involving pony rides, petting zoos and other animal related activities with non-domestic household pets. Said endorsement shall provide a coverage limit of no less than two million dollars (\$2,000,000.00) for each occurrence and annual aggregate with no deductible.
- d. *Carnival endorsement:* A carnival endorsement shall be obtained for activities involving carnival type rides, bungee jumps, trampolines, orbital rides and related rides and attractions commonly associated with a fair or carnival. Said endorsement shall provide a coverage limit of no less than five million dollars (\$5,000,000.00) for each occurrence and annual aggregate with no deductible.
- e. *Boats and planes endorsement:* A boats and planes endorsement shall be obtained for events involving the use of motorcycles, powered model cars, boats, planes, non standard personal cars and jet or inducted fan propulsion watercraft. Said endorsement shall provide a coverage limit of no less than two million dollars (\$2,000,000.00) for each occurrence and annual aggregate with no deductible.
- f.

Garage keepers liability endorsement: A garage keepers and liability endorsement shall be obtained for events that include valet parking service. Said endorsement shall provide a coverage limit of no less than five hundred thousand dollars (\$500,000.00) per occurrence and per location for actual cash value comprehensive and collision.

- (3) *Automobile liability insurance:* For any event involving the use of automobiles, each applicant shall, unless otherwise exempted, effect and maintain during the period of the special event permit automobile liability insurance with companies authorized to do business in Florida, with a A.M. Best rating of B+ (or better), Class VII (or higher), or otherwise be acceptable to the city if not rated by A.M. Such insurance shall be obtained in accordance with the laws of the State of Florida as to the ownership, maintenance and use of all owned, non-owned, leased and hired vehicles. The combined bodily injury and property damage limit shall be no less than one million dollars (\$1,000,000.00) for each occurrence.
- (4) *Worker's compensation insurance and employer's liability insurance:* For any event involving the hiring of employees by the applicant, each applicant shall, unless otherwise exempted, effect and maintain during the period of the special event permit workers' compensation insurance or employer's liability insurance with companies authorized to do business in Florida, with a A.M. Best rating of B+ (or better), Class VII (or higher), or otherwise be acceptable to the city if not rated by A.M. workers' compensation insurance or employer's liability insurance shall be provided for all employees engaged in work under contract and/or for any contractor or subcontractor a permittee may hire, in accordance with the laws of the State of Florida with a limit of no less than one million dollars (\$1,000,000.00) bodily injury by accident and each accident, one million dollars (\$1,000,000.00) bodily injury by disease policy limit, and one million dollars (\$1,000,000.00) bodily injury by disease each employee.
- (5) *Longshoreman's and Harbor Worker's (USL & H) Insurance:* For any event involving the hiring of employees by the applicant to engage in work on or around a navigable waterway, each permittee shall, unless otherwise exempted, effect and maintain longshoreman's and harbor worker's insurance in compliance with federal statutes for activities requiring work on or around a navigable waterway.
- (b) *Certificate of insurance:* Any insurance required for a special event pursuant to the requirements of this section, shall be subject to the approval of the city's risk management office and supported by evidence of approved insurance coverage for the term of the special event permit by a properly executed Accord 25 Certificates of Insurance form. The certificate of insurance must be personally and manually signed by the authorized representative of the insurance company shown on the certificate. The city must be notified in writing at least thirty (30) days prior to any cancellation or modification of the insurance policy. All liability insurance policies required for an event pursuant to this section shall name the city as an additional insured.

(c)

Exemption from insurance requirements for special events on city parks: The insurance requirements herein shall not be required for events held at city parks when said event will take place entirely within an existing park shelter or has as its only additional structure a moon-walk/moon-bounce apparatus that has approval for use by the city.

- (d) *Hold harmless/indemnification:* In consideration of the privileges granted by issuance of this permit, the permittee shall, to the fullest extent permitted by law, indemnify, defend and hold harmless the city, and all officials, agents and employees of the city, from and against all claims, including but not limited to expenses of whatever kind or nature which the city may sustain, suffer or incur, or be required to pay due to damages or losses suffered by any person, including without limitation, the employees, contractors, subcontractors, invitees and guests of the permittee arising out of the issuance of the special events permit, which may result from allowing permittee to utilize the public right-of-way or city owned park. "Claim" as used in this agreement means any financial loss, claim, suit, action, damage, or expense, including but not limited to attorney's fees, attributable for bodily injury, sickness, disease or death, or injury to or destruction of tangible property including loss of use resulting therefrom. The permittee's obligation to indemnify, defend, and hold harmless includes any claim by permittee's agents, employees, representatives or any subcontractor or its employees or liability resulting for incidents involving the streetcar electrified cables. Said indemnification shall not include claims resulting solely from the act, omission, negligence, or other fault on the part of the city, its official, agents, or employees.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-31. - Processing of application for special event permits; rejection of application; amendments.

- (a) *Order:* Each application for a special event permit shall be processed in the order of receipt. The reservation of a particular park or right-of-way, or parts thereof, shall be allocated in order of receipt of a fully executed application, which contains all of the information required, accompanied by the application fee, security deposit and user fee, where applicable.
- (b) *Rejection of application:* The official shall reject an application for one (1) or more of any of the following grounds:
- (1) Failure to submit an application within the time periods prescribed in this chapter.
 - (2) If the application for special event permit (including any required attachments and submissions) is executed improperly or is incomplete.
 - (3) Failure to pay the required application fee at the time of submitting a complete and properly executed application.
 - (4) If the application for special event permit contains a material misrepresentation or fraudulent information.

- (5) If the applicant is legally incompetent to contract or to sue and be sued.
- (6) If the applicant or entity on whose behalf the application for special event permit was made has in the course of a previous permitted special event damaged city property and upon being given proper notice failed to pay in full for such damage or claim.
- (7) If a fully executed prior application for special event permit for the same time and place has been received, and a special event permit has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple occupancy or use of the right-of-way, park or part hereof.
- (8) If the use or event intended by the applicant would conflict with previously planned programs organized and conducted by the city or non-city governmental agencies previously scheduled for the same time and place.
- (9) If the use or event intended by the applicant would present an unreasonable danger to the health or safety of the applicant or the public.
- (10) If the applicant has not complied or cannot comply with applicable local, state and federal licensure requirements for all or part of the planned event no less than five (5) days prior to the time for city council consideration.
- (11) If the use or event intended by the applicant is prohibited by law.
- (12) If the applicant fails to provide neighborhood notice requirements as provided in section 28-26(c) of this chapter.

In the event an application is rejected, the official shall provide notice of such rejection within ten (10) days of the official action by personal delivery or by deposit in the regular U.S. First Class mail, postage prepaid, to the name and address set forth on the application for special event permit.

(c) *Amendments to special event permit application; approval by the official; approval by city council action:*

- (1) *Approval by the official:* Should an error by the permittee in the original application require the filing of an amended application, an applicant may amend the application anytime prior to approval by the official, provided that the applicant pay an additional fee in an amount specified by resolution of the city council to defray additional costs and expenses.
- (2) *Approval by city council action:* Should an error in the original application require the filing of an amended application, an applicant may amend the application anytime prior to city council action, provided that the applicant pay an additional fee in an amount specified by resolution of the city council to defray additional costs and expenses. The official shall update the posted notice and the notice to the Tampa Downtown Partnership and/or the Ybor City Development Corporation, as applicable. For any amendment filed less than thirty (30) days before the day

that city council is scheduled to consider and act on the application for a special event, the city council shall have the authority, at its discretion, by a majority of its members present and voting, to waive or reduce the notice requirements.

(d) *Amendments to special event permit after approval by the official; amendments to special event permit after approval by city council action:*

- (1) An amendment to petition that has been approved by the official may be filed anytime prior to the commencement of the event. There shall be a fee, as prescribed by city council resolution, for any amendment filed after approval by the official, to cover administrative costs to review and reschedule review of the amendment. Subject to a permittee having timely filed and paid the appropriate fee, the official shall promptly schedule review of an amendment.
- (2) An amendment to petition that has been approved by city council shall be filed within five (5) days after such city council action. City council shall have the authority, at its discretion, by a majority of its members present and voting, to waive the notice and five-day post-approval filing requirement. An amendment of an application after city council action shall be required any time there is a material change to the nature and conduct of the event. A material change shall mean a change to the event name, stated purpose, route, location, time or increase in city services to be provided. A material change shall require city council review and approval. There shall be a fee, as established by city council, for any amendment filed after city council action, to cover administrative costs to review and reschedule review of the amendment. Subject to a permittee having timely filed and paid the appropriate fee, city council shall promptly schedule review of an amendment at the next regularly scheduled meeting.

(e) *Priority of amendment:* Any amendment or revision of an application or special event permit shall, for purposes of determining the priority of the application for special event permit, relate back to the original filing thereof, but the time in which official shall grant or deny the application for special event permit and serve notice of such granting or denial shall be computed from the date of the amendment or revision.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-32. - Approval process; denial of application; notice.

- (a) *Administrative approval:* The official shall have fifteen (15) days to review a complete special event permit application and administratively approve each such application that complies with the requirements of this chapter. The official shall provide the applicant with notice of approval by U.S. First Class mail, electronic mail or fax machine, to the name and address set forth on the application for special event permit. Administrative review is limited to proposed event(s) held and contained entirely within a city park, provided the event is not co-sponsored by the city.

- (b) *City council approval:* Upon the filing of a timely special event permit application, and payment of the applicable fees required in this chapter, the city clerk shall assign a date for the matter to be placed on the consent agenda portion of a regularly scheduled meeting of city council prior to the date of the planned event. City council shall review and approve each complete special event permit application that complies with the requirements of this chapter. Approval of an application shall be by motion. When city council approves an application for a special event permit, the city clerk shall provide the applicant with a copy of the motion by U.S. First Class mail, electronic mail or fax machine, to the name and address set forth on the application for special event permit within five (5) days of city council action. The official shall promptly issue a special event permit upon city council approval. All special event permit fees shall be paid prior to issuance of a special event permit.
- (c) *Denial:* The official or city council may deny any special event permit application for one (1) or more of the reasons enumerated in the foregoing section.
- (1) *Administrative denial:* In the event the official denies an application for a special event permit, the official shall provide the applicant with notice of said denial by U.S. First Class mail, electronic mail or fax machine, to the name and address set forth on the application for special event permit, promptly after the official's determination to deny the special event permit application. Notice of denial of an application for special event permit shall clearly set forth the grounds upon which the special event permit was denied.
- (2) *City council denial:* In the event city council denies an application for a special event permit, the city clerk shall provide the applicant with notice of said denial by U.S. First Class mail, electronic mail or fax machine, to the name and address set forth on the application for special event permit, within five (5) days of city council action. Notice of denial of an application for special event permit shall clearly set forth the grounds upon which the special event permit was denied.

(Ord. No. 2009-126, § 1, 8-20-09; Ord. No. 2009-153, § 1, 11-5-09)

ARTICLE III. - CITY SPONSORSHIP OF SPECIAL EVENTS

Sec. 28-33. - Co-sponsorship committee—Establishment; composition.

- (a) *Establishment:* There is hereby established the City of Tampa Special Event Co-sponsorship Committee, to be known as the "Special Event Co-sponsorship Committee."
- (b) *Composition:* The special event co-sponsorship committee shall consist of five (5) members, as follows: (1) the administrator of neighborhood services, or designee; (2) the fire chief, or designee; (3) the chief of police, or designee; (4) the administrator of public works, or designee; and, (5) the

administrator of economic development, or designee.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-34. - Meetings; chairmanship; conduct of meetings; voting.

- (a) *Meetings:* The committee shall meet at least once a month at a regularly scheduled time. Additional meetings may be called by the chairperson or upon a request by the official. All meetings of the committee shall be noticed and open to the public in accordance with Florida law.
- (b) *Chair:* The administrator of neighborhood services or designee shall chair the meetings and shall have the right to vote.
- (c) *Quorum and voting:* A simple majority of those present shall be necessary to conduct routine business and approve or deny an application for co-sponsorship.
- (d) *Rules of procedure:* The committee shall adopt and make public rules of procedure for the conduct of its business, provided such rules are consistent with the provisions hereof.
- (e) *Minutes:* The committee shall prepare and keep on file minutes and a record of its meetings, including the vote of each member on every question, and all documents submitted to it in every case with the special events office. The committee shall cause a tape recording to be made of all proceedings, which, together with all the materials related to each certain petition presented to the committee, shall constitute the official record of the proceeding.

(Ord. No. 2009-126, § 1, 8-20-09; Ord. No. 2009-153, § 2, 11-5-09)

Sec. 28-35. - Administration; power and duties; road festival exclusion.

- (a) *Administration:* Applications for co-sponsorship shall be filed with the official, as agent for the committee. Applications shall be submitted on forms provided by the city.
- (b) *Authority to review:* The special event co-sponsorship committee shall have the responsibility to review applications for co-sponsorship and, based on the criteria and authority granted herein, make a determination whether to approve or deny requests for city co-sponsorship of special events.
- (c) *Time to review:* Upon receipt of a complete application for co-sponsorship, the official shall schedule review of said application by the special event co-sponsorship committee at the next regularly scheduled meeting, unless an extension of time is requested by the petitioner in writing.
- (d) *Road festival exclusion:* The city shall not co-sponsor a road festival.
- (e) *Criteria for review; presentation of co-sponsorship requests:* Each applicant shall file a memorandum with exhibits, if applicable, that address the criteria set forth in this section. Any person, applicant or authorized agent may appear in person before the committee on the day

scheduled for consideration of the application. The co-sponsorship committee shall consider the following in deciding whether to approve or deny a request for co-sponsorship.

- (1) Does the event serve a public purpose of community-wide importance?
- (2) Why is the applicant requesting co-sponsorship?
- (3) What, if any, and to what extent, is media or publicity campaign planned for the event?
- (4) Does the applicant have the demonstrated financial ability to provide all other services required for the event, except those services which the city is being asked to co-sponsor?
- (5) What is the prior history of the event?
- (6) Are there additional co-sponsors? If so, identify each co-sponsor.
- (7) What are the costs to conduct the event? When providing the costs for the event, each applicant shall make available a budget for the event and identify the total contribution by each co-sponsor.
- (8) Is the event open to participation of all citizens? Will the event promote and attract visitors to the city?
- (9) What is the estimated economic impact of the event on the city?
- (10) Will the event impact the surrounding neighborhoods? If so, how will the impact be mitigated?
- (11) What is the pre-event set up and post event removal and clean up plan?
- (12) What city services is the applicant requesting?
- (13) What is the security plan for the event?
- (14) Is the applicant requesting use of the city seal? If so, in what manner and in what publications will the city seal be used?
- (15) Does the city have the available funds, as determined by the city in its sole discretion, to co-sponsor the event?

In addition to the above criteria, committee staff shall provide a report containing, at minimum, the following:

- (16) A report on what impact the event may have on local infrastructure, public facilities and traffic.
- (17) A report on estimate of cost of city of services.
- (18) Previous performance history of the applicant and co-sponsor(s).

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-36. - Effect of approval.

Following the public hearing(s) and the special event co-sponsorship committee's decision on the application, staff shall forward prompt written notice of the decision to the applicant. Said notice shall contain any and all conditions or limitations approved by the committee.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-37. - Effect of denial.

Denial of an application to the special event co-sponsorship committee shall preclude consideration of a substantially similar request for a period of twelve (12) months from the date of denial. The committee may determine that this time period does not apply if a substantially different request is submitted which addresses the grounds for denial identified during the public hearing.

(Ord. No. 2009-126, § 1, 8-20-09)

Secs. 28-38—28-50. - Reserved.

ARTICLE IV. - APPEALS; PETITION FOR ADMINISTRATIVE HEARING DE NOVO; FEE AUTHORITY; REVOCATION OF SPECIAL EVENT PERMIT AFTER ISSUANCE; AMPLIFIED SOUND

Sec. 28-51. - Appeal of denial of a special event permit by city council.

Any person aggrieved by a determination of city council shall file an appeal in such manner as prescribed by law.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-52. - Appeals from determinations by the official or co-sponsorship committee.

- (a) An applicant aggrieved by a determination of the official or the co-sponsorship committee, shall file a request for an administrative hearing in the manner set forth in section 1-19 of the City Code. Each request for an administrative hearing shall state succinctly the grounds upon which it is asserted that the determination should be modified or reversed and shall be accompanied by copies of all documents of record. A request for an administrative hearing to contest a determination of the co-sponsorship committee shall include the record of the proceedings before the committee and, for such purpose, the applicant shall ensure that a verbatim record of the proceedings is made. The record shall consist of the testimony and evidence upon which the co-sponsorship committee based its decision.

(b)

An appeal of the decision by the official, or his designee, pursuant to section 1-19 of the City Code, shall be made by filing a petition with the circuit court in such manner as prescribed by law.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-53. - Appeal—Retention of security deposit.

- (a) A permittee who has had all, or a portion of its security deposit retained, because it was assessed damages pursuant to this chapter may, within fifteen (15) days of the service of notice of such determination, file a written contest of such determination with the official.
- (b) The official shall have fifteen (15) days from the date on which the contest was received in which to review the file, the applicants written contest and serve upon the permittee a notice that the official has affirmed, modified or reversed the retention of security deposit. Such notice shall be deemed served upon the permittee when it is personally delivered or when it is sent by certified United States mail, with proper postage prepaid, to the name and address set forth on the application for special event permit.
- (c) A permittee aggrieved by a determination of the official shall file a request for an administrative hearing in the manner set forth in section 1-19 of the City Code of Ordinances. The permittee shall pay a fee, as established by city council, at the time of filing. Each request for an administrative hearing shall state succinctly the grounds upon which it is asserted that the determination should be modified or reversed and shall be accompanied by copies of all relevant items of record.
- (d) An appeal of the decision by the official, or his designee, pursuant to section 1-19 of the City Code, shall be made by filing a petition for writ of certiorari to the circuit court in such manner as prescribed by law.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-54. - Fee authority; fee refund.

The city council shall have authority to set fees prescribed herein by resolution.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-55. - Compliance with applicable laws.

A permittee for a special event permit shall comply with all special event permit directions and conditions and with all applicable laws and ordinances. The permittee shall produce the special event permit on request from any officer of the city. Failure to produce the special event permit shall be grounds for suspension of the special event permit.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-56. - Authority to revoke special event permit after issuance.

The official shall have exclusive authority to revoke or temporarily suspend a special event permit after issuance if the application for special event permit contains a material misrepresentation or fraudulent information; upon the declaration of a state of emergency, the issuance of a tropical storm or hurricane warning or warning of severe inclement weather by the county; or, when there is an instance of terrorism, insurrection or mayhem absolutely imminent or underway and emergency services personnel are necessary for essential services.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-57. - Amplified sound.

The issuance of a special event permit grants a permittee the exclusive use of amplified sound within the area requested by the permittee for the special event. Unless otherwise requested by the permittee, no other amplified sound shall be permitted within the aforementioned area.

(Ord. No. 2009-126, § 1, 8-20-09)

Sec. 28-58. - Procession safety monitors.

If the special event requested by the applicant involves a procession that includes the use of any motorized vehicle or vehicles that are longer than twenty (20) feet in length, the applicant shall provide four (4) safety monitors stationed at the corners of any vehicle used in the procession at all times while the vehicle or vehicles are moving. Each safety monitor shall be equipped with an orange safety vest and a loud whistle. The role of the safety monitor is to make sure the driver is aware of any emergency requiring him/her to stop immediately. Said emergencies include, but are not limited to, equipment malfunctions, passengers falling from the vehicle, overhead obstructions endangering riders, parade viewers coming too close to the vehicle, parade participants coming too close to the vehicle's wheels. Safety monitors shall not consume any alcoholic beverages or hand out any items during the procession to any spectators along the procession route. Said items include but are not limited to beads, candy, fliers, and merchandise. Any vehicle fitting the description above that does not have the requisite number of safety monitors may be pulled out of a procession line up until the safety monitor requirement can be met.

(Ord. No. 2009-126, § 1, 8-20-09)